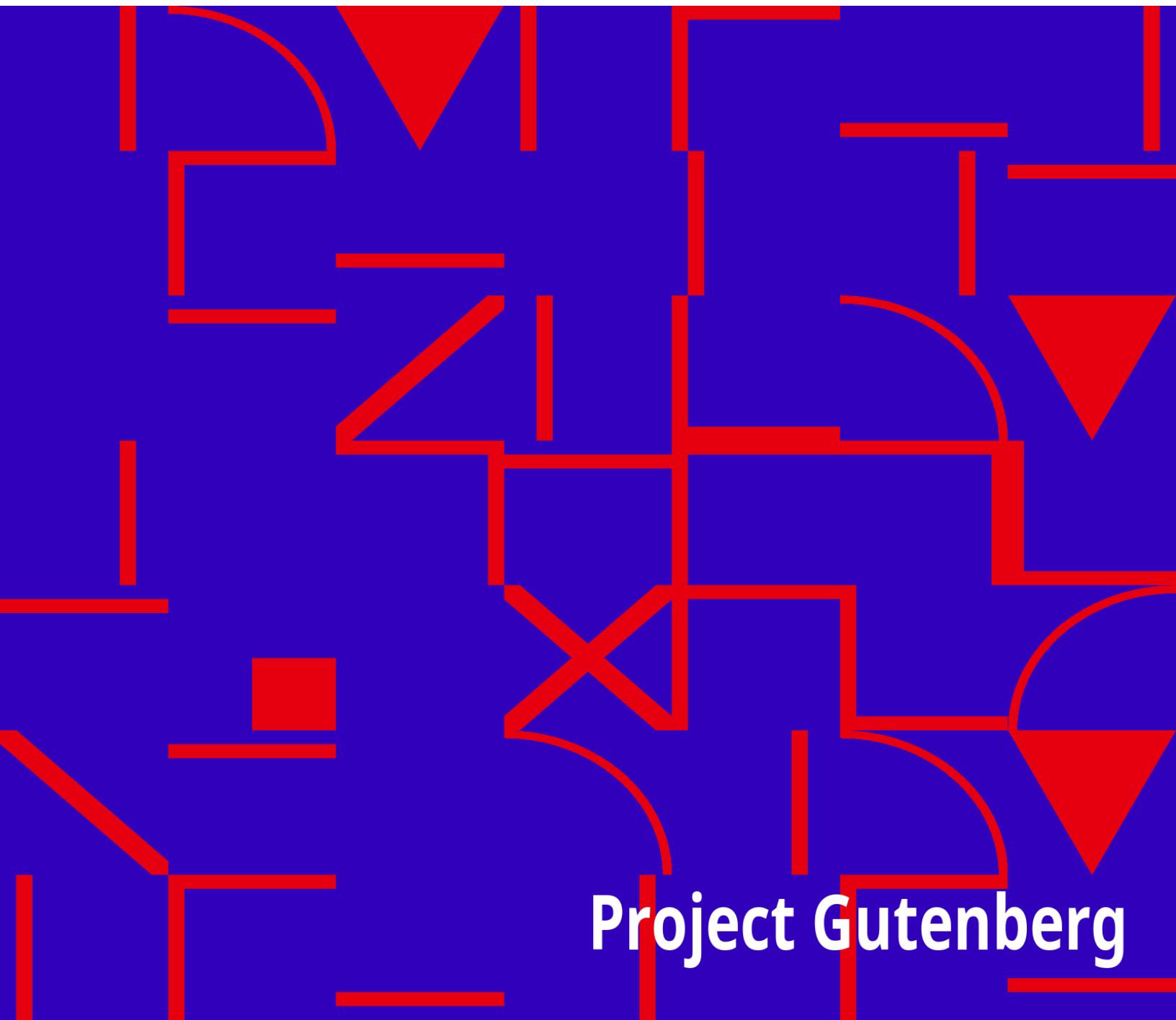


History of the English People, Volume I

John Richard Green

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John Richard Green



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HISTORY OF THE ENGLISH PEOPLE

VOLUME I

BY

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**EARLY ENGLAND, 449-1071
FOREIGN KINGS, 1071-1204
THE CHARTER, 1204-1216**

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I Dedicate this Book
TO TWO DEAR FRIENDS
MY MASTERS IN THE STUDY OF ENGLISH HISTORY
EDWARD AUGUSTUS FREEMAN
AND
WILLIAM STUBBS

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VOLUME I

BOOK I

EARLY ENGLAND

449-1071

AUTHORITIES FOR BOOK I

449-1071

For the conquest of Britain by the English our authorities are scant and imperfect. The only extant British account is the "Epistola" of Gildas, a work written probably about A.D. 560. The style of Gildas is diffuse and inflated, but his book is of great value in the light it throws on the state of the island at that time, and above all as the one record of the conquest which we have from the side of the conquered. The English conquerors, on the other hand, have left jottings of their conquest of Kent, Sussex, and Wessex in the curious annals which form the opening of the compilation now known as the "English" or "Anglo-Saxon Chronicle," annals which are undoubtedly historic, though with a slight mythical intermixture. For the history of the English conquest of mid-Britain or the Eastern Coast we possess no written materials from either side; and a fragment of the Annals of Northumbria embodied in the later compilation ("Historia Britonum") which bears the name of Nennius alone throws light on the conquest of the North.

From these inadequate materials however Dr. Guest has succeeded by a wonderful combination of historical and archæological knowledge in constructing a narrative of the conquest of Southern and South-Western Britain which must serve as the starting-point for all future enquirers.

This narrative, so far as it goes, has served as the basis of the account given in my text; and I can only trust that it may soon be embodied in some more accessible form than that of a series of papers in the Transactions of the Archæological Institute. In a like way, though Kemble's "Saxons in England" and Sir F. Palgrave's "History of the English Commonwealth" (if read with caution) contain much that is worth notice, our knowledge of the primitive constitution of the English people and the changes introduced into it since their settlement in Britain must be mainly drawn from the "Constitutional History" of Professor Stubbs.

Bæda's "*Historia Ecclesiastica Gentis Anglorum*," a work of which I have spoken in my text, is the primary authority for the history of the Northumbrian overlordship which followed the Conquest. It is by copious insertions from Bæda that the meagre regnal and episcopal annals of the West Saxons have been brought to the shape in which they at present appear in the part of the English Chronicle which concerns this period. The life of Wilfrid by Eddi, with those of Cuthbert by an anonymous contemporary and by Bæda himself, throws great light on the religious and intellectual condition of the North at the time of its supremacy. But with the fall of Northumbria we pass into a period of historical dearth. A few incidents of Mercian history are preserved among the meagre annals of Wessex in the English Chronicle: but for the most part we are thrown upon later writers, especially Henry of Huntingdon and William of Malmesbury, who, though authors of the twelfth century, had access to older materials which are now lost. A little may be gleaned from biographies such as that of Guthlac of Crowland; but the letters of Boniface and Alcwine, which have been edited by Jaffé in his series of "*Monumenta Germanica*," form the most valuable contemporary materials for this period.

From the rise of Wessex our history rests mainly on the English Chronicle. The earlier part of this work, as we have said, is a compilation, and consists of (1) Annals of the Conquest of South Britain, and (2) Short Notices of the Kings and Bishops of Wessex expanded by copious insertions from Bæda, and after the end of his work by brief additions from some northern sources. These materials may have been thrown together into their present form in Ælfred's time as a preface to the far fuller annals which begin with the reign of Æthelwulf, and which widen into a great contemporary history when they reach that of Ælfred himself. After Ælfred's day the Chronicle varies much in value. Through the reign of Eadward the Elder it is copious, and a Mercian Chronicle is imbedded in it: it then dies down into a series of scant and jejune entries, broken however with grand battle-songs, till the reign of Æthelred when its fulness returns.

Outside the Chronicle we encounter a great and valuable mass of historical material for the age of Ælfred and his successors. The life of Ælfred which bears the name of Asser, puzzling as it is in some ways, is probably really Asser's work, and certainly of contemporary authority. The Latin rendering of the English Chronicle which bears the name of

Æthelweard adds a little to our acquaintance with this time. The Laws, which form the base of our constitutional knowledge of this period, fall, as has been well pointed out by Mr. Freeman, into two classes. Those of Eadward, Æthelstan, Eadmund, and Eadgar, are like the earlier laws of Æthelberht and Ine, "mainly of the nature of amendments of custom." Those of Ælfred, Æthelred, Cnut, with those which bear the name of Eadward the Confessor, "aspire to the character of Codes." They are printed in Mr. Thorpe's "Ancient Laws and Institutes of England," but the extracts given by Professor Stubbs in his "Select Charters" contain all that directly bears on our constitutional growth. A vast mass of Charters and other documents belonging to this period has been collected by Kemble in his "Codex Diplomaticus Ævi Saxonici," and some are added by Mr. Thorpe in his "Diplomatarium Anglo-Saxonicum." Dunstan's biographies have been collected and edited by Professor Stubbs in the series published by the Master of the Rolls.

In the period which follows the accession of Æthelred we are still aided by these collections of royal Laws and Charters, and the English Chronicle becomes of great importance. Its various copies indeed differ so much in tone and information from one another that they may to some extent be looked upon as distinct works, and "Florence of Worcester" is probably the translation of a valuable copy of the "Chronicle" which has disappeared. The translation however was made in the twelfth century, and it is coloured by the revival of national feeling which was characteristic of the time. Of Eadward the Confessor himself we have a contemporary biography (edited by Mr. Luard for the Master of the Rolls) which throws great light on the personal history of the King and on his relations to the house of Godwine.

The earlier Norman traditions are preserved by Dudo of St. Quentin, a verbose and confused writer, whose work was abridged and continued by William of Jumièges, a contemporary of the Conqueror. William's work in turn served as the basis of the "Roman de Rou" composed by Wace in the time of Henry the Second. The primary authority for the Conqueror himself is the "Gesta Willelmi" of his chaplain and violent partizan, William of Poitiers. For the period of the invasion, in which the English authorities are meagre, we have besides these the contemporary "Carmen de Bello Hastingsi," by Guy, Bishop of Amiens, and the pictures in the Bayeux Tapestry. Orderic, a writer of the twelfth century, gossipy and confused but

honest and well-informed, tells us much of the religious movement in Normandy, and is particularly valuable and detailed in his account of the period after the battle of Senlac. Among secondary authorities for the Norman Conquest, Simeon of Durham is useful for northern matters, and William of Malmesbury worthy of note for his remarkable combination of Norman and English feeling. Domesday Book is of course invaluable for the Norman settlement. The chief documents for the early history of Anjou have been collected in the "Chroniques d'Anjou" published by the Historical Society of France. Those which are authentic are little more than a few scant annals of religious houses; but light is thrown on them by the contemporary French chronicles. The "Gesta Consulum" is nothing but a compilation of the twelfth century, in which a mass of Angevin romance as to the early story of the Counts is dressed into historical shape by copious quotations from these French historians.

It is possible that fresh light may be thrown on our earlier history when historical criticism has done more than has yet been done for the materials given us by Ireland and Wales. For Welsh history the "Brut y Tywysogion" and the "Annales Cambriæ" are now accessible in the series published by the Master of the Rolls; the "Chronicle of Caradoc of Lancarvan" is translated by Powel; the Mabinogion, or Romantic Tales, have been published by Lady Charlotte Guest; and the Welsh Laws collected by the Record Commission. The importance of these, as embodying a customary code of very early date, will probably be better appreciated when we possess the whole of the Brehon Laws, the customary laws of Ireland, which are now being issued by the Irish Laws Commission, and to which attention has justly been drawn by Sir Henry Maine ("Early History of Institutions") as preserving Aryan usages of the remotest antiquity.

The enormous mass of materials which exists for the early history of Ireland, various as they are in critical value, may be seen in Mr. O'Curry's "Lectures on the Materials of Ancient Irish History"; and they may be conveniently studied by the general reader in the "Annals of the Four Masters," edited by Dr. O'Donovan. But this is a mere compilation (though generally a faithful one) made about the middle of the seventeenth century from earlier sources, two of which have been published in the Rolls series. One, the "Wars of the Gaedhil with the Gaill," is an account of the Danish wars which may have been written in the eleventh century; the other, the

"Annals of Loch Cé," is a chronicle of Irish affairs from the end of the Danish wars to 1590. The "Chronicon Scotorum" (in the same series) extends to the year 1150, and though composed in the seventeenth century is valuable from the learning of its author, Duaid Mac-Firbis. The works of Colgan are to Irish church affairs what the "Annals of the Four Masters" are to Irish civil history. They contain a vast collection of translations and transcriptions of early saints' lives, from those of Patrick downwards. Adamnan's "Life of Columba" (admirably edited by Dr. Beeves) supplies some details to the story of the Northumbrian kingdom. Among more miscellaneous works we find the "Book of Rights," a summary of the dues and rights of the several over-kings and under-kings, of much earlier date probably than the Norman invasion; and Cormac's "Glossary," attributed to the tenth century and certainly an early work, from which much may be gleaned of legal and social details, and something of the pagan religion of Ireland.

CHAPTER I

THE ENGLISH CONQUEST OF BRITAIN

449-577

Old England

For the fatherland of the English race we must look far away from England itself. In the fifth century after the birth of Christ the one country which we know to have borne the name of Angeln or the Engleland lay within the district which is now called Sleswick, a district in the heart of the peninsula that parts the Baltic from the northern seas. Its pleasant pastures, its black-timbered homesteads, its prim little townships looking down on inlets of purple water, were then but a wild waste of heather and sand, girt along the coast with a sunless woodland broken here and there by meadows that crept down to the marshes and the sea. The dwellers in this district, however, seem to have been merely an outlying fragment of what was called the Engle or English folk, the bulk of whom lay probably in what is now Lower Hanover and Oldenburg. On one side of them the Saxons of Westphalia held the land from the Weser to the Rhine; on the other the Eastphalian Saxons stretched away to the Elbe. North again of the fragment of the English folk in Sleswick lay another kindred tribe, the Jutes, whose name is still preserved in their district of Jutland. Engle, Saxon, and Jute all belonged to the same Low-German branch of the Teutonic family; and at the moment when history discovers them they were being drawn together by the ties of a common blood, common speech, common social and political institutions. There is little ground indeed for believing that the three tribes looked on themselves as one people, or that we can as yet apply to them, save by anticipation, the common name of Englishmen. But each of them was destined to share in the conquest of the land in which we live; and it is from the union of all of them when its conquest was complete that the English people has sprung.

The English Village

Of the temper and life of the folk in this older England we know little. But from the glimpses that we catch of it when conquest had brought them to the shores of Britain their political and social organization must have been that of the German race to which they belonged. In their villages lay ready formed the social and political life which is round us in the England of to-day. A belt of forest or waste parted each from its fellow villages, and within this boundary or mark the "township," as the village was then called from the "tun" or rough fence and trench that served as its simple fortification, formed a complete and independent body, though linked by ties which were strengthening every day to the townships about it and the tribe of which it formed a part. Its social centre was the homestead where the ætheling or eorl, a descendant of the first English settlers in the waste, still handed down the blood and traditions of his fathers. Around this homestead or æthel, each in its little croft, stood the lowlier dwellings of freelings or ceorls, men sprung, it may be, from descendants of the earliest settler who had in various ways forfeited their claim to a share in the original homestead, or more probably from incomers into the village who had since settled round it and been admitted to a share in the land and freedom of the community. The eorl was distinguished from his fellow villagers by his wealth and his nobler blood; he was held by them in an hereditary reverence; and it was from him and his fellow æthelings that host-leaders, whether of the village or the tribe, were chosen in times of war. But this claim to precedence rested simply on the free recognition of his fellow villagers. Within the township every freeman or ceorl was equal. It was the freeman who was the base of village society. He was the "free-necked man" whose long hair floated over a neck which had never bowed to a lord. He was the "weaponed man" who alone bore spear and sword, and who alone preserved that right of self-redress or private war which in such a state of society formed the main check upon lawless outrage.

Justice

Among the English, as among all the races of mankind, justice had originally sprung from each man's personal action. There had been a time when every freeman was his own avenger. But even in the earliest forms of English society of which we find traces this right of self-defence was being modified and restricted by a growing sense of public justice. The "blood-wite" or compensation in money for personal wrong was the first effort of

the tribe as a whole to regulate private revenge. The freeman's life and the freeman's limb had each on this system its legal price. "Eye for eye," ran the rough code, and "life for life," or for each fair damages. We see a further step towards the modern recognition of a wrong as done not to the individual man but to the people at large in another custom of early date. The price of life or limb was paid, not by the wrong-doer to the man he wronged, but by the family or house of the wrong-doer to the family or house of the wronged. Order and law were thus made to rest in each little group of people upon the blood-bond which knit its families together; every outrage was held to have been done by all who were linked in blood to the doer of it, every crime to have been done against all who were linked in blood to the sufferer from it. From this sense of the value of the family bond as a means of restraining the wrong-doer by forces which the tribe as a whole did not as yet possess sprang the first rude forms of English justice. Each kinsman was his kinsman's keeper, bound to protect him from wrong, to hinder him from wrong-doing, and to suffer with him and pay for him if wrong were done. So fully was this principle recognized that even if any man was charged before his fellow-tribesmen with crime his kinsfolk still remained in fact his sole judges; for it was by their solemn oath of his innocence or his guilt that he had to stand or fall.

The Land

As the blood-bond gave its first form to English justice, so it gave their first forms to English society and English warfare. Kinsmen fought side by side in the hour of battle, and the feelings of honour and discipline which held the host together were drawn from the common duty of every man in each little group of warriors to his house. And as they fought side by side on the field, so they dwelled side by side on the soil. Harling abode by Harling, and Billing by Billing; and each "wick" or "ham" or "stead" or "tun" took its name from the kinsmen who dwelled together in it. In this way the home or "ham" of the Billings was Billingham, and the "tun" or township of the Harlings was Harlington. But in such settlements the tie of blood was widened into the larger tie of land. Land with the German race seems at a very early time to have become everywhere the accompaniment of full freedom. The freeman was strictly the free-holder, and the exercise of his full rights as a free member of the community to which he belonged became inseparable from the possession of his "holding" in it. But property had not

as yet reached that stage of absolutely personal possession which the social philosophy of a later time falsely regarded as its earliest state. The woodland and pasture-land of an English village were still undivided, and every free villager had the right of turning into it his cattle or swine. The meadow-land lay in like manner open and undivided from hay-harvest to spring. It was only when grass began to grow afresh that the common meadow was fenced off into grass-fields, one for each household in the village; and when hay-harvest was over fence and division were at an end again. The plough-land alone was permanently allotted in equal shares both of corn-land and fallow-land to the families of the freemen, though even the plough-land was; subject to fresh division as the number of claimants grew greater or less.

Læt and Slave

It was this sharing in the common land which marked off the freeman or ceorl from the unfree man or læt, the tiller of land which another owned. As the ceorl was the descendant of settlers who, whether from their earlier arrival or from kinship with the original settlers of the village, had been admitted to a share in its land and its corporate life, so the læt was a descendant of later comers to whom such a share was denied, or in some cases perhaps of earlier dwellers from whom the land had been wrested by force of arms. In the modern sense of freedom the læt was free enough. He had house and home of his own, his life and limb were as secure as the ceorl's--save as against his lord; it is probable from what we see in later laws that as time went on he was recognized as a member of the nation, summoned to the folk-moot, allowed equal right at law, and called like the full free man to the hosting. But he was unfree as regards lord and land. He had neither part nor lot in the common land of the village. The ground which he tilled he held of some freeman of the tribe to whom he paid rent in labour or in kind. And this man was his lord. Whatever rights the unfree villager might gain in the general social life of his fellow villagers, he had no rights as against his lord. He could leave neither land nor lord at his will. He was bound to render due service to his lord in tillage or in fight. So long however as these services were done the land was his own. His lord could not take it from him; and he was bound to give him aid and protection in exchange for his services.

Far different from the position of the l et was that of the slave, though there is no ground for believing that the slave class was other than a small one. It was a class which sprang mainly from debt or crime. Famine drove men to "bend their heads in the evil days for meat"; the debtor, unable to discharge his debt, flung on the ground his freeman's sword and spear, took up the labourer's mattock, and placed his head as a slave within a master's hands. The criminal whose kinsfolk would not make up his fine became a crime-serf of the plaintiff or the king. Sometimes a father pressed by need sold children and wife into bondage. In any case the slave became part of the live stock of his master's estate, to be willed away at death with horse or ox, whose pedigree was kept as carefully as his own. His children were bondsmen like himself; even a freeman's children by a slave mother inherited the mother's taint. "Mine is the calf that is born of my cow," ran an English proverb. Slave cabins clustered round the homestead of every rich landowner; ploughman, shepherd, goatherd, swineherd, oxherd and cowherd, dairymaid, barnman, sower, hayward and woodward, were often slaves. It was not indeed slavery such as we have known in modern times, for stripes and bonds were rare: if the slave was slain it was by an angry blow, not by the lash. But his master could slay him if he would; it was but a chattel the less. The slave had no place in the justice court, no kinsmen to claim vengeance or guilt-fine for his wrong. If a stranger slew him, his lord claimed the damages; if guilty of wrong-doing, "his skin paid for him" under his master's lash. If he fled he might be chased like a strayed beast, and when caught he might be flogged to death. If the wrong-doer were a woman-slave she might be burned.

The Moot

With the public life of the village however the slave had nothing, the last in early days little, to do. In its Moot, the common meeting of its villagers for justice and government, a slave had no place or voice, while the last was originally represented by the lord whose land he tilled. The life, the sovereignty of the settlement resided solely in the body of the freemen whose holdings lay round the moot-hill or the sacred tree where the community met from time to time to deal out its own justice and to make its own laws. Here new settlers were admitted to the freedom of the township, and bye-laws framed and headman and tithing-man chosen for its governance. Here plough-land and meadow-land were shared in due lot

among the villagers, and field and homestead passed from man to man by the delivery of a turf cut from its soil. Here strife of farmer with farmer was settled according to the "customs" of the township as its elder men stated them, and four men were chosen to follow headman or ealdorman to hundred-court or war. It is with a reverence such as is stirred by the sight of the head-waters of some mighty river that one looks back to these village-moots of Friesland or Sleswick. It was here that England learned to be a "mother of Parliaments." It was in these tiny knots of farmers that the men from whom Englishmen were to spring learned the worth of public opinion, of public discussion, the worth of the agreement, the "common sense," the general conviction to which discussion leads, as of the laws which derive their force from being expressions of that general conviction. A humourist of our own day has laughed at Parliaments as "talking shops," and the laugh has been echoed by some who have taken humour for argument. But talk is persuasion, and persuasion is force, the one force which can sway freemen to deeds such as those which have made England what she is. The "talk" of the village moot, the strife and judgement of men giving freely their own rede and setting it as freely aside for what they learn to be the wiser rede of other men, is the groundwork of English history.

The Folk

Small therefore as it might be, the township or village was thus the primary and perfect type of English life, domestic, social, and political. All that England has been since lay there. But changes of which we know nothing had long before the time at which our history opens grouped these little commonwealths together in larger communities, whether we name them Tribe, People, or Folk. The ties of race and kindred were no doubt drawn tighter by the needs of war. The organization of each Folk, as such, sprang in all likelihood mainly from war, from a common greed of conquest, a common need of defence. Its form at any rate was wholly military. The Folk-moot was in fact the war-host, the gathering of every freeman of the tribe in arms. The head of the Folk, a head who existed only so long as war went on, was the leader whom the host chose to command it. Its Witenagemot or meeting of wise men was the host's council of war, the gathering of those ealdormen who had brought the men of their villages to the field. The host was formed by levies from the various districts of the tribe; the larger of which probably owed their name of "hundreds" to the

hundred warriors which each originally sent to it. In historic times however the regularity of such a military organization, if it ever existed, had passed away, and the quotas varied with the varying customs of each district. But men, whether many or few, were still due from each district to the host, and a cry of war at once called town-reeve and hundred-reeve with their followers to the field.

The military organization of the tribe thus gave from the first its form to the civil organization. But the peculiar shape which its civil organization assumed was determined by a principle familiar to the Germanic races and destined to exercise a vast influence on the future of mankind. This was the principle of representation. The four or ten villagers who followed the reeve of each township to the general muster of the hundred were held to represent the whole body of the township from whence they came. Their voice was its voice, their doing its doing, their pledge its pledge. The hundred-moot, a moot which was made by this gathering of the representatives of the townships that lay within its bounds, thus became at once a court of appeal from the moots of each separate village as well as of arbitration in dispute between township and township. The judgement of graver crimes and of life or death fell to its share; while it necessarily possessed the same right of law-making for the hundred that the village-moot possessed for each separate village. And as hundred-moot stood above town-moot, so above the hundred-moot stood the Folk-moot, the general muster of the people in arms, at once war-host and highest law-court and general Parliament of the tribe. But whether in Folk-moot or hundred-moot, the principle of representation was preserved. In both the constitutional forms, the forms of deliberation and decision, were the same. In each the priests proclaimed silence, the ealdormen of higher blood spoke, groups of freemen from each township stood round, shaking their spears in assent, clashing shields in applause, settling matters in the end by loud shouts of "Aye" or "Nay."

Social Life

Of the social or the industrial life of our fathers in this older England we know less than of their political life. But there is no ground for believing them to have been very different in these respects from the other German peoples who were soon to overwhelm the Roman world. Though their

border nowhere touched the border of the Empire they were far from being utterly strange to its civilization. Roman commerce indeed reached the shores of the Baltic, and we have abundant evidence that the arts and refinement of Rome were brought into contact with these earlier Englishmen. Brooches, sword-belts, and shield-bosses which have been found in Sleswick, and which can be dated not later than the close of the third century, are clearly either of Roman make or closely modelled on Roman metal-work. Discoveries of Roman coins in Sleswick peat-mosses afford a yet more conclusive proof of direct intercourse with the Empire. But apart from these outer influences the men of the three tribes were far from being mere savages. They were fierce warriors, but they were also busy fishers and tillers of the soil, as proud of their skill in handling plough and mattock or steering the rude boat with which they hunted walrus and whale as of their skill in handling sword and spear. They were hard drinkers, no doubt, as they were hard toilers, and the "ale-feast" was the centre of their social life. But coarse as the revel might seem to modern eyes, the scene within the timbered hall which rose in the midst of their villages was often Homeric in its simplicity and dignity. Queen or Eorl's wife with a train of maidens bore ale-bowl or mead-bowl round the hall from the high settle of King or Ealdorman in the midst to the mead benches ranged around its walls, while the gleeman sang the hero-songs of his race. Dress and arms showed traces of a love of art and beauty, none the less real that it was rude and incomplete. Rings, amulets, ear-rings, neck-pendants, proved in their workmanship the deftness of the goldsmith's art. Cloaks were often fastened with golden buckles of curious and exquisite form, set sometimes with rough jewels and inlaid with enamel. The bronze boar-crest on the warrior's helmet, the intricate adornment of the warrior's shield, tell like the honour in which the smith was held their tale of industrial art. The curiously twisted glass goblets, so common in the early graves of Kent, are shewn by their form to be of English workmanship. It is only in the English pottery, hand-made, and marked with coarse zigzag patterns, that we find traces of utter rudeness.

Religion

The religion of these men was the same as that of the rest of the German peoples. Christianity had by this time brought about the conversion of the Roman Empire, but it had not penetrated as yet among the forests of the

north. The common God of the English people was Woden, the war-god, the guardian of ways and boundaries, to whom his worshippers attributed the invention of letters, and whom every tribe held to be the first ancestor of its kings. Our own names for the days of the week still recall to us the gods whom our fathers worshipped in their German homeland. Wednesday is Woden's-day, as Thursday is the day of Thunder, the god of air and storm and rain. Friday is Frea's-day, the deity of peace and joy and fruitfulness, whose emblems, borne aloft by dancing maidens, brought increase to every field and stall they visited. Saturday may commemorate an obscure god Sætere; Tuesday the dark god, Tiw, to meet whom was death. Eostre, the goddess of the dawn or of the spring, lends her name to the Christian festival of the Resurrection. Behind these floated the dim shapes of an older mythology; "Wyrd," the death-goddess, whose memory lingered long in the "Weird" of northern superstition; or the Shield-maidens, the "mighty women" who, an old rime tells us, "wrought on the battle-field their toil and hurled the thrilling javelins." Nearer to the popular fancy lay deities of wood and fell, or hero-gods of legend and song; Nicor, the water-sprite who survives in our nixies and "Old Nick"; Weland, the forger of weighty shields and sharp-biting swords, who found a later home in the "Weyland's smithy" of Berkshire; Ægil, the hero-archer, whose legend is one with that of Cloudesly or Tell. A nature-worship of this sort lent itself ill to the purposes of a priesthood; and though a priestly class existed it seems at no time to have had much weight among Englishmen. As each freeman was his own judge and his own lawmaker, so he was his own house-priest; and English worship lay commonly in the sacrifice which the house-father offered to the gods of his hearth.

The English Temper

It is not indeed in Woden-worship or in the worship of the older gods of flood and fell that we must look for the real religion of our fathers. The song of Beowulf, though the earliest of English poems, is as we have it now a poem of the eighth century, the work it may be of some English missionary of the days of Bæda and Boniface who gathered in the very homeland of his race the legends of its earlier prime. But the thin veil of Christianity which he has flung over it fades away as we follow the hero-legend of our fathers; and the secret of their moral temper, of their conception of life breathes through every line. Life was built with them not

on the hope of a hereafter, but on the proud self-consciousness of noble souls. "I have this folk ruled these fifty winters," sings the hero-king as he sits death-smitten beside the dragon's mound. "Lives there no folk-king of kings about me--not any one of them--dare in the war-strife welcome my onset! Time's change and chances I have abided, held my own fairly, sought not to snare men; oath never sware I falsely against right. So for all this may I glad be at heart now, sick though I sit here, wounded with death-wounds!" In men of such a temper, strong with the strength of manhood and full of the vigour and the love of life, the sense of its shortness and of the mystery of it all woke chords of a pathetic poetry. "Soon will it be," ran the warning rime, "that sickness or sword-blade shear thy strength from thee, or the fire ring thee, or the flood overwhelm thee, or the sword grip thee, or arrow hit thee, or age o'ertake thee, and thine eye's brightness sink down in darkness." Strong as he might be, man struggled in vain with the doom that encompassed him, that girded his life with a thousand perils and broke it at so short a span. "To us," cries Beowulf in his last fight, "to us it shall be as our Weird betides, that Weird that is every man's lord!" But the sadness with which these Englishmen fronted the mysteries of life and death had nothing in it of the unmanly despair which bids men eat and drink for to-morrow they die. Death leaves man man and master of his fate. The thought of good fame, of manhood, is stronger than the thought of doom. "Well shall a man do when in the strife he minds but of winning longsome renown, nor for his life cares!" "Death is better than life of shame!" cries Beowulf's sword-fellow. Beowulf himself takes up his strife with the fiend, "go the weird as it will." If life is short, the more cause to work bravely till it is over. "Each man of us shall abide the end of his life-work; let him that may work, work his doomed deeds ere death come!"

English Piracy

The energy of these peoples found vent in a restlessness which drove them to take part in the general attack of the German race on the Empire of Rome. For busy tillers and busy fishers as Englishmen were, they were at heart fighters; and their world was a world of war. Tribe warred with tribe, and village with village; even within the village itself feuds parted household from household, and passions of hatred and vengeance were handed on from father to son. Their mood was above all a mood of fighting men, venturesome, self-reliant, proud, with a dash of hardness and cruelty

in it, but ennobled by the virtues which spring from war, by personal courage and loyalty to plighted word, by a high and stern sense of manhood and the worth of man. A grim joy in hard fighting was already a characteristic of the race. War was the Englishman's "shield-play" and "sword-game"; the gleeman's verse took fresh fire as he sang of the rush of the host and the crash of its shield-line. Their arms and weapons, helmet and mailshirt, tall spear and javelin, sword and seax, the short broad dagger that hung at each warrior's girdle, gathered to them much of the legend and the art which gave colour and poetry to the life of Englishmen. Each sword had its name like a living thing. And next to their love of war came their love of the sea. Everywhere throughout Beowulf's song, as everywhere throughout the life that it pictures, we catch the salt whiff of the sea. The Englishman was as proud of his sea-craft as of his war-craft; sword in hand he plunged into the sea to meet walrus and sea-lion; he told of his whale-chase amidst the icy waters of the north. Hardly less than his love for the sea was the love he bore to the ship that traversed it. In the fond playfulness of English verse the ship was "the wave-floater," "the foam-necked," "like a bird" as it skimmed the wave-crest, "like a swan" as its curved prow breasted the "swan-road" of the sea.

Their passion for the sea marked out for them their part in the general movement of the German nations. While Goth and Lombard were slowly advancing over mountain and plain the boats of the Englishmen pushed faster over the sea. Bands of English rovers, outdriven by stress of fight, had long found a home there, and lived as they could by sack of vessel or coast. Chance has preserved for us in a Sleswick peat-bog one of the war-keels of these early pirates. The boat is flat-bottomed, seventy feet long and eight or nine feet wide, its sides of oak boards fastened with bark ropes and iron bolts. Fifty oars drove it over the waves with a freight of warriors whose arms, axes, swords, lances, and knives, were found heaped together in its hold. Like the galleys of the Middle Ages such boats could only creep cautiously along from harbour to harbour in rough weather; but in smooth water their swiftness fitted them admirably for the piracy by which the men of these tribes were already making themselves dreaded. Its flat bottom enabled them to beach the vessel on any fitting coast; and a step on shore at once transformed the boatmen into a war-band. From the first the daring of the English race broke out in the secrecy and suddenness of the pirates'

swoop, in the fierceness of their onset, in the careless glee with which they seized either sword or oar. "Foes are they," sang a Roman poet of the time, "fierce beyond other foes and cunning as they are fierce; the sea is their school of war and the storm their friend; they are sea-wolves that live on the pillage of the world!"

Britain

Of the three English tribes the Saxons lay nearest to the Empire, and they were naturally the first to touch the Roman world; at the close of the third century indeed their boats appeared in such force in the English Channel as to call for a special fleet to resist them. The piracy of our fathers had thus brought them to the shores of a land which, dear as it is now to Englishmen, had not as yet been trodden by English feet. This land was Britain. When the Saxon boats touched its coast the island was the westernmost province of the Roman Empire. In the fifty-fifth year before Christ a descent of Julius Cæsar revealed it to the Roman world; and a century after Cæsar's landing the Emperor Claudius undertook its conquest. The work was swiftly carried out. Before thirty years were over the bulk of the island had passed beneath the Roman sway and the Roman frontier had been carried to the Firths of Forth and of Clyde. The work of civilization followed fast on the work of the sword. To the last indeed the distance of the island from the seat of empire left her less Romanized than any other province of the west. The bulk of the population scattered over the country seem in spite of imperial edicts to have clung to their old law as to their old language, and to have retained some traditional allegiance to their native chiefs. But Roman civilization rested mainly on city life, and in Britain as elsewhere the city was thoroughly Roman. In towns such as Lincoln or York, governed by their own municipal officers, guarded by massive walls, and linked together by a network of magnificent roads which reached from one end of the island to the other, manners, language, political life, all were of Rome.

For three hundred years the Roman sword secured order and peace without Britain and within, and with peace and order came a wide and rapid prosperity. Commerce sprang up in ports amongst which London held the first rank; agriculture flourished till Britain became one of the corn-exporting countries of the world; the mineral resources of the province were explored in the tin mines of Cornwall, the lead mines of Somerset or

Northumberland, and the iron mines of the Forest of Dean. But evils which sapped the strength of the whole Empire told at last on the province of Britain. Wealth and population alike declined under a crushing system of taxation, under restrictions which fettered industry, under a despotism which crushed out all local independence. And with decay within came danger from without. For centuries past the Roman frontier had held back the barbaric world beyond it, the Parthian of the Euphrates, the Numidian of the African desert, the German of the Danube or the Rhine. In Britain a wall drawn from Newcastle to Carlisle bridled the British tribes, the Picts as they were called, who had been sheltered from Roman conquest by the fastnesses of the Highlands. It was this mass of savage barbarism which broke upon the Empire as it sank into decay. In its western dominions the triumph of these assailants was complete. The Franks conquered and colonized Gaul. The West-Goths conquered and colonized Spain. The Vandals founded a kingdom in Africa. The Burgundians encamped in the border-land between Italy and the Rhone. The East-Goths ruled at last in Italy itself.

Conquests of Jute and Saxon

It was to defend Italy against the Goths that Rome in the opening of the fifth century withdrew her legions from Britain, and from that moment the province was left to struggle unaided against the Picts. Nor were these its only enemies. While marauders from Ireland, whose inhabitants then bore the name of Scots, harried the west, the boats of Saxon pirates, as we have seen, were swarming off its eastern and southern coasts. For some thirty years Britain held bravely out against these assailants; but civil strife broke its powers of resistance, and its rulers fell back at last on the fatal policy by which the Empire invited its doom while striving to avert it, the policy of matching barbarian against barbarian. By the usual promises of land and pay a band of warriors was drawn for this purpose from Jutland in 449 with two ealdormen, Hengest and Horsa, at their head. If by English history we mean the history of Englishmen in the land which from that time they made their own, it is with this landing of Hengest's war-band that English history begins. They landed on the shores of the Isle of Thanet at a spot known since as Ebbsfleet. No spot can be so sacred to Englishmen as the spot which first felt the tread of English feet. There is little to catch the eye in Ebbsfleet itself, a mere lift of ground with a few grey cottages dotted over

it, cut off nowadays from the sea by a reclaimed meadow and a sea-wall. But taken as a whole the scene has a wild beauty of its own. To the right the white curve of Ramsgate cliffs looks down on the crescent of Pegwell Bay; far away to the left across grey marsh-levels where smoke-wreaths mark the sites of Richborough and Sandwich the coast-line trends dimly towards Deal. Everything in the character of the spot confirms the national tradition which fixed here the landing-place of our fathers; for the physical changes of the country since the fifth century have told little on its main features. At the time of Hengest's landing a broad inlet of sea parted Thanet from the mainland of Britain; and through this inlet the pirate boats would naturally come sailing with a fair wind to what was then the gravel-spit of Ebbsfleet.



The work for which the mercenaries had been hired was quickly done; and the Picts are said to have been scattered to the winds in a battle fought on the eastern coast of Britain. But danger from the Pict was hardly over when danger came from the Jutes themselves. Their fellow-pirates must have flocked from the Channel to their settlement in Thanet; the inlet between Thanet and the mainland was crossed, and the Englishmen won their first victory over the Britons in forcing their passage of the Medway at the village of Aylesford. A second defeat at the passage of the Cray drove

the British forces in terror upon London; but the ground was soon won back again, and it was not till 465 that a series of petty conflicts which had gone on along the shores of Thanet made way for a decisive struggle at Wippedsfleet. Here however the overthrow was so terrible that from this moment all hope of saving Northern Kent seems to have been abandoned, and it was only along its southern shore that the Britons held their ground. Eight years later, in 473, the long contest was over, and with the fall of Lymne, whose broken walls look from the slope to which they cling over the great flat of Romney Marsh, the work of the first English conqueror was done.

The warriors of Hengest had been drawn from the Jutes, the smallest of the three tribes who were to blend in the English people. But the greed of plunder now told on the great tribe which stretched from the Elbe to the Rhine, and in 477 Saxon invaders were seen pushing slowly along the strip of land which lay westward of Kent between the weald and the sea. Nowhere has the physical aspect of the country more utterly changed. A vast sheet of scrub, woodland, and waste which then bore the name of the Andredsweald stretched for more than a hundred miles from the borders of Kent to the Hampshire Downs, extending northward almost to the Thames and leaving only a thin strip of coast which now bears the name of Sussex between its southern edge and the sea. This coast was guarded by a fortress which occupied the spot now called Pevensey, the future landing-place of the Norman Conqueror; and the fall of this fortress of Anderida in 491 established the kingdom of the South-Saxons. "Ælle and Cissa beset Anderida," so ran the pitiless record of the conquerors, "and slew all that were therein, nor was there henceforth one Briton left." But Hengest and Ælle's men had touched hardly more than the coast, and the true conquest of Southern Britain was reserved for a fresh band of Saxons, a tribe known as the Gewissas, who in 495 landed under Cerdic and Cynric on the shores of the Southampton Water, and pushed to the great downs or Gwent where Winchester offered so rich a prize. Nowhere was the strife fiercer than here; and it was not till 519 that a decisive victory at Charford ended the struggle for the "Gwent" and set the crown of the West-Saxons on the head of Cerdic. But the forest-belt around it checked any further advance; and only a year after Charford the Britons rallied under a new leader, Arthur, and threw back the invaders as they pressed westward through the Dorsetshire

woodlands in a great overthrow at Badbury or Mount Badon. The defeat was followed by a long pause in the Saxon advance from the southern coast, but while the Gewissas rested a series of victories whose history is lost was giving to men of the same Saxon tribe the coast district north of the mouth of the Thames. It is probable however that the strength of Camulodunum, the predecessor of our modern Colchester, made the progress of these assailants a slow and doubtful one; and even when its reduction enabled the East-Saxons to occupy the territory to which they have given their name of Essex a line of woodland which has left its traces in Epping and Hainault Forests checked their further advance into the island.

Conquests of the Eagle

Though seventy years had passed since the victory of Aylesford only the outskirts of Britain were won. The invaders were masters as yet but of Kent, Sussex, Hampshire, and Essex. From London to St. David's Head, from the Andredsweald to the Firth of Forth the country still remained unconquered: and there was little in the years which followed Arthur's triumph to herald that onset of the invaders which was soon to make Britain England. Till now its assailants had been drawn from two only of the three tribes whom we saw dwelling by the northern sea, from the Saxons and the Jutes. But the main work of conquest was to be done by the third, by the tribe which bore that name of Engle or Englishmen which was to absorb that of Saxon and Jute, and to stamp itself on the people which sprang from the union of the conquerors as on the land that they won. The Engle had probably been settling for years along the coast of Northumbria and in the great district which was cut off from the rest of Britain by the Wash and the Fens, the later East-Anglia. But it was not till the moment we have reached that the line of defences which had hitherto held the invaders at bay was turned by their appearance in the Humber and the Trent. This great river-line led like a highway into the heart of Britain; and civil strife seems to have broken the strength of British resistance. But of the incidents of this final struggle we know nothing. One part of the English force marched from the Humber over the Yorkshire wolds to found what was called the kingdom of the Deirans. Under the Empire political power had centred in the district between the Humber and the Roman wall; York was the capital of Roman Britain; villas of rich landowners studded the valley of the Ouse; and the

bulk of the garrison maintained in the island lay camped along its northern border. But no record tells us how Yorkshire was won, or how the Engle made themselves masters of the uplands about Lincoln. It is only by their later settlements that we follow their march into the heart of Britain. Seizing the valley of the Don and whatever breaks there were in the woodland that then filled the space between the Humber and the Trent, the Engle followed the curve of the latter river, and struck along the line of its tributary the Soar. Here round the Roman Rataë, the predecessor of our Leicester, settled a tribe known as the Middle-English, while a small body pushed further southwards, and under the name of "South-Engle" occupied the oolitic upland that forms our present Northamptonshire. But the mass of the invaders seem to have held to the line of the Trent and to have pushed westward to its head-waters. Repton, Lichfield, and Tamworth mark the country of these western Englishmen, whose older name was soon lost in that of Mercians, or Men of the March. Their settlement was in fact a new march or borderland between conqueror and conquered; for here the impenetrable fastness of the Peak, the mass of Cannock Chase, and the broken country of Staffordshire enabled the Briton to make a fresh and desperate stand.

Conquests of West-Saxons

It was probably this conquest of Mid-Britain by the Engle that roused the West-Saxons to a new advance. For thirty years they had rested inactive within the limits of the Gwent, but in 552 their capture of the hill-fort of Old Sarum threw open the reaches of the Wiltshire downs, and a march of King Cuthwulf on the Thames in 571 made them masters of the districts which now form Oxfordshire and Buckinghamshire. Pushing along the upper valley of Avon to a new battle at Barbury Hill they swooped at last from their uplands on the rich prey that lay along the Severn. Gloucester, Cirencester, and Bath, cities which had leagued under their British kings to resist this onset, became in 577 the spoil of an English victory at Deorham, and the line of the great western river lay open to the arms of the conquerors. Once the West-Saxons penetrated to the borders of Chester, and Uriconium, a town beside the Wrekin which has been recently brought again to light, went up in flames. The raid ended in a crushing defeat which broke the West-Saxon strength, but a British poet in verses still left to us sings piteously the death-song of Uriconium, "the white town in the valley,"

the town of white stone gleaming among the green woodlands. The torch of the foe had left it a heap of blackened ruins where the singer wandered through halls he had known in happier days, the halls of its chief Kyndylan, "without fire, without light, without song," their stillness broken only by the eagle's scream, the eagle who "has swallowed fresh drink, heart's blood of Kyndylan the fair."

CHAPTER II

THE ENGLISH KINGDOMS

577-796

Britain becomes England

With the victory of Deorham the conquest of the bulk of Britain was complete. Eastward of a line which may be roughly drawn along the moorlands of Northumberland and Yorkshire through Derbyshire and the Forest of Arden to the Lower Severn, and thence by Mendip to the sea, the island had passed into English hands. Britain had in the main become England. And within this new England a Teutonic society was settled on the wreck of Rome. So far as the conquest had yet gone it had been complete. Not a Briton remained as subject or slave on English ground. Sullenly, inch by inch, the beaten men drew back from the land which their conquerors had won; and eastward of the border line which the English sword had drawn all was now purely English.

It is this which distinguishes the conquest of Britain from that of other provinces of Rome. The conquest of Gaul by the Franks or that of Italy by the Lombards proved little more than a forcible settlement of the one or the other among tributary subjects who were destined in a long course of ages to absorb their conquerors. French is the tongue, not of the Frank, but of the Gaul whom he overcame; and the fair hair of the Lombard is all but unknown in Lombardy. But the English conquest of Britain up to the point which we have reached was a sheer dispossession of the people whom the English conquered. It was not that Englishmen, fierce and cruel as at times they seem to have been, were more fierce or more cruel than other Germans who attacked the Empire; nor have we any ground for saying that they, unlike the Burgundian or the Frank, were utterly strange to the Roman civilization. Saxon mercenaries are found as well as Frank mercenaries in the pay of Rome; and the presence of Saxon vessels in the Channel for a century before the descent on Britain must have familiarized its invaders

with what civilization was to be found in the Imperial provinces of the West. What really made the difference between the fate of Britain and that of the rest of the Roman world was the stubborn courage of the British themselves. In all the world-wide struggle between Rome and the German peoples no land was so stubbornly fought for or so hardly won. In Gaul no native resistance met Frank or Visigoth save from the brave peasants of Brittany and Auvergne. No popular revolt broke out against the rule of Odoacer or Theodoric in Italy. But in Britain the invader was met by a courage almost equal to his own. Instead of quartering themselves quietly, like their fellows abroad, on subjects who were glad to buy peace by obedience and tribute, the English had to make every inch of Britain their own by hard fighting.

This stubborn resistance was backed too by natural obstacles of the gravest kind. Elsewhere in the Roman world the work of the conquerors was aided by the very civilization of Rome. Vandal and Frank marched along Roman highways over ground cleared by the Roman axe and crossed river or ravine on the Roman bridge. It was so doubtless with the English conquerors of Britain. But though Britain had long been Roman, her distance from the seat of Empire left her less Romanized than any other province of the West. Socially the Roman civilization had made little impression on any but the townsfolk, and the material civilization of the island was yet more backward than its social. Its natural defences threw obstacles in its invaders' way. In the forest belts which stretched over vast spaces of country they found barriers which in all cases checked their advance and in some cases finally stopped it. The Kentishmen and the South-Saxons were brought utterly to a standstill by the Andredsweald. The East-Saxons could never pierce the woods of their western border. The Fens proved impassable to the Northfolk and the Southfolk of East-Anglia. It was only after a long and terrible struggle that the West-Saxons could hew their way through the forests which sheltered the "Gwent" of the southern coast. Their attempt to break out of the circle of woodland which girt in the downs was in fact fruitless for thirty years; and in the height of their later power they were thrown back from the forests of Cheshire.

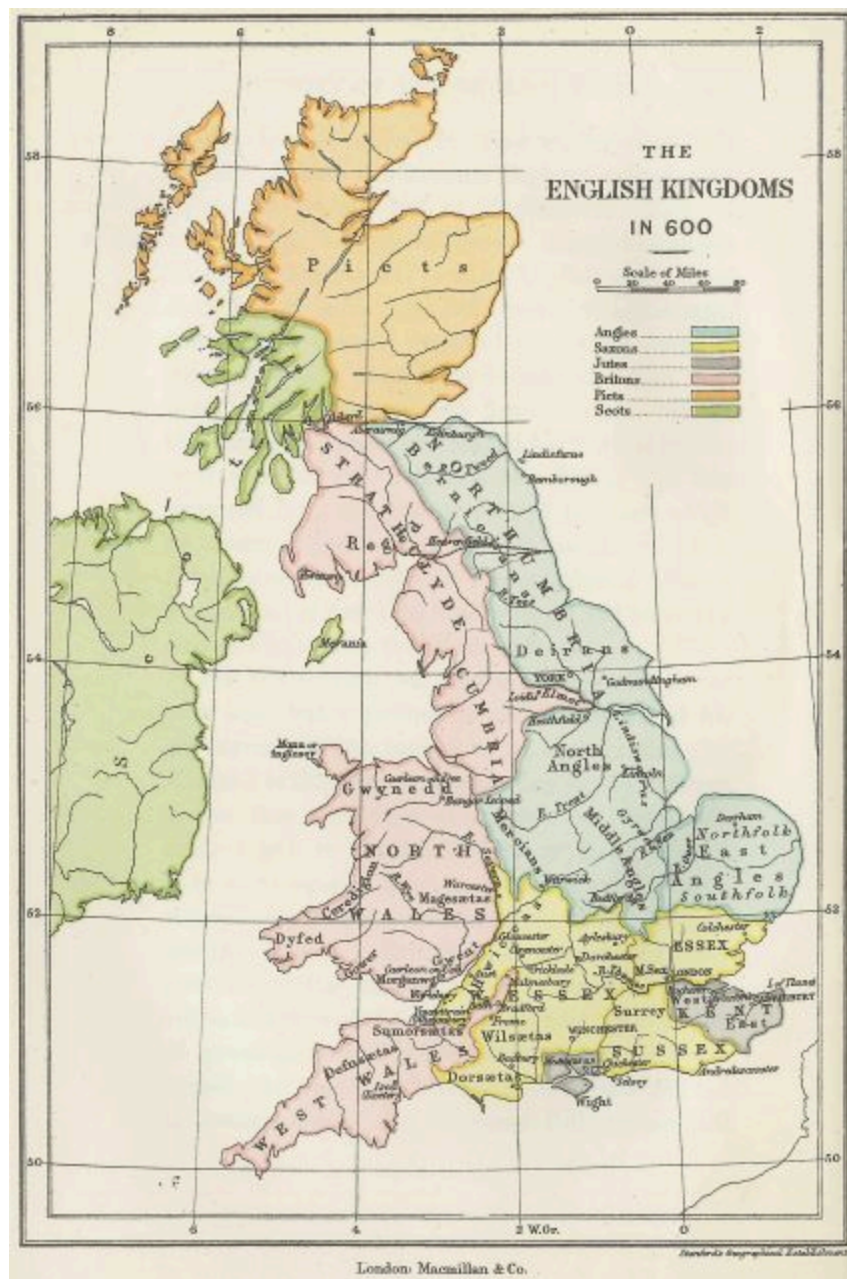
Withdrawal of the Britons

It is only by realizing in this way the physical as well as the moral circumstances of Britain that we can understand the character of its earlier conquest. Field by field, town by town, forest by forest, the land was won. And as each bit of ground was torn away by the stranger, the Briton sullenly withdrew from it only to turn doggedly and fight for the next. There is no need to believe that the clearing of the land meant so impossible a thing as the general slaughter of the men who held it. Slaughter there was, no doubt, on the battle-field or in towns like Anderida whose long resistance woke wrath in their besiegers. But for the most part the Britons were not slaughtered; they were defeated and drew back. Such a withdrawal was only made possible by the slowness of the conquest. For it is not only the stoutness of its defence which distinguishes the conquest of Britain from that of the other provinces of the Empire, but the weakness of attack. As the resistance of the Britons was greater than that of the other provincials of Rome so the forces of their assailants were less. Attack by sea was less easy than attack by land, and the numbers who were brought across by the boats of Hengest or Cerdic cannot have rivalled those which followed Theodoric or Chlodewig across the Alps or the Rhine. Landing in small parties, and but gradually reinforced by after-comers, the English invaders could only slowly and fitfully push the Britons back. The absence of any joint action among the assailants told in the same way. Though all spoke the same language and used the same laws, they had no such bond of political union as the Franks; and though all were bent on winning the same land, each band and each leader preferred their own separate course of action to any collective enterprise.

The English settlement

Under such conditions the overrunning of Britain could not fail to be a very different matter from the rapid and easy overrunning of such countries as Gaul. How slow the work of English conquest was may be seen from the fact that it took nearly thirty years to win Kent alone, and sixty to complete the conquest of Southern Britain, and that the conquest of the bulk of the island was only wrought out after two centuries of bitter warfare. But it was just through the length of the struggle that of all the German conquests this proved the most thorough and complete. So far as the English sword in these earlier days had reached, Britain had become England, a land, that is, not of Britons but of Englishmen. Even if a few of the vanquished people

lingered as slaves round the homesteads of their English conquerors, or a few of their household words mingled with the English tongue, doubtful exceptions such as these leave the main facts untouched. The keynote of the conquest was firmly struck. When the English invasion was stayed for a while by the civil wars of the invaders, the Briton had disappeared from the greater part of the land which had been his own; and the tongue, the religion, the laws of his English conquerors reigned without a break from Essex to Staffordshire and from the British Channel to the Firth of Forth.



For the driving out of the Briton was, as we have seen, but a prelude to the settlement of his conqueror. What strikes us at once in the new England is this, that it was the one purely German nation that rose upon the wreck of Rome. In other lands, in Spain or Gaul or Italy, though they were equally conquered by German peoples, religion, social life, administrative order, still remained Roman. Britain was almost the only province of the Empire where Rome died into a vague tradition of the past. The whole organization of government and society disappeared with the people who used it. Roman roads indeed still led to desolate cities. Roman camps still crowned hill and down. The old divisions of the land remained to furnish bounds of field and farm for the new settlers. The Roman church, the Roman country-house, was left standing, though reft of priest and lord. But Rome was gone. The mosaics, the coins which we dig up in our fields are no relics of our English fathers, but of a world which our fathers' sword swept utterly away. Its law, its literature, its manners, its faith, went with it. Nothing was a stronger proof of the completeness of this destruction of all Roman life than the religious change which passed over the land. Alone among the German assailants of Rome the English stood aloof from the faith of the Empire they helped to overthrow. The new England was a heathen country. Homestead and boundary, the very days of the week, bore the names of new gods who displaced Christ.

As we stand amidst the ruins of town or country-house which recall to us the wealth and culture of Roman Britain, it is hard to believe that a conquest which left them heaps of crumbling stones was other than a curse to the land over which it passed. But if the new England which sprang from the wreck of Britain seemed for the moment a waste from which the arts, the letters, the refinement of the world had fled hopelessly away, it contained within itself germs of a nobler life than that which had been destroyed. The base of Roman society here as everywhere throughout the Roman world was the slave, the peasant who had been crushed by tyranny, political and social, into serfdom. The base of the new English society was the freeman whom we have seen tilling, judging, or fighting for himself by the Northern Sea. However roughly he dealt with the material civilization of Britain while the struggle went on, it was impossible that such a man could be a mere destroyer. War in fact was no sooner over than the warrior settled down into the farmer, and the home of the ceorl rose beside the heap of

goblin-haunted stones that marked the site of the villa he had burned. The settlement of the English in the conquered land was nothing less than an absolute transfer of English society in its completest form to the soil of Britain. The slowness of their advance, the small numbers of each separate band in its descent upon the coast, made it possible for the invaders to bring with them, or to call to them when their work was done, the wives and children, the læt and slave, even the cattle they had left behind them. The first wave of conquest was but the prelude to the gradual migration of a whole people. It was England which settled down on British soil, England with its own language, its own laws, its complete social fabric, its system of village life and village culture, its township and its hundred, its principle of kinship, its principle of representation. It was not as mere pirates or stray war-bands, but as peoples already made, and fitted by a common temper and common customs to draw together into our English nation in the days to come, that our fathers left their German home-land for the land in which we live. Their social and political organization remained radically unchanged. In each of the little kingdoms which rose on the wreck of Britain, the host camped on the land it had won, and the divisions of the host supplied here as in its older home the rough groundwork of local distribution. The land occupied by the hundred warriors who formed the unit of military organization became perhaps the local hundred; but it is needless to attach any notion of precise uniformity, either in the number of settlers or in the area of their settlement, to such a process as this, any more than to the army organization which the process of distribution reflected. From the large amount of public land which we find existing afterwards it has been conjectured with some probability that the number of settlers was far too small to occupy the whole of the country at their disposal, and this unoccupied ground became "folk-land," the common property of the tribe as at a later time of the nation. What ground was actually occupied may have been assigned to each group and each family in the group by lot, and Eorl and Ceorl gathered round them their læt and slave as in their homeland by the Rhine or the Elbe. And with the English people passed to the shores of Britain all that was to make Englishmen what they are. For distant and dim as their life in that older England may have seemed to us, the whole after-life of Englishmen was there. In its village-moots lay our Parliament; in the gleeman of its village-feasts our Chaucer and our Shakspeare; in the pirate-bark stealing from creek to creek our Drakes and our Nelsons. Even

the national temper was fully formed. Civilization, letters, science, religion itself, have done little to change the inner mood of Englishmen. That love of venture and of toil, of the sea and the fight, that trust in manhood and the might of man, that silent awe of the mysteries of life and death which lay deep in English souls then as now, passed with Englishmen to the land which Englishmen had won.

The King

But though English society passed thus in its completeness to the soil of Britain, its primitive organization was affected in more ways than one by the transfer. In the first place conquest begat the King. It seems probable that the English had hitherto known nothing of kings in their own fatherland, where each tribe was satisfied in peace time with the customary government of village-reeve and hundred-reeve and ealdor, while it gathered at fighting times under war leaders whom it chose for each campaign. But in the long and obstinate warfare which they waged against the Britons it was needful to find a common leader whom the various tribes engaged in conquests such as those of Wessex or Mercia might follow; and the ceaseless character of a struggle which left few intervals of rest or peace raised these leaders into a higher position than that of temporary chieftains. It was no doubt from this cause that we find Hengest and his son Æsc raised to the kingdom in Kent, or Ælle in Sussex, or Cerdic and Cynric among the West Saxons. The association of son with father in this new kingship marked the hereditary character which distinguished it from the temporary office of an ealdor. The change was undoubtedly a great one, but it was less than the modern conception of kingship would lead us to imagine. Hereditary as the succession was within a single house, each successive king was still the free choice of his people, and for centuries to come it was held within a people's right to pass over a claimant too weak or too wicked for the throne. In war indeed the king was supreme. But in peace his power was narrowly bounded by the customs of his people and the rede of his wise men. Justice was not as yet the king's justice, it was the justice of village and hundred and folk in town-moot and hundred-moot and folk-moot. It was only with the assent of the wise men that the king could make laws and declare war and assign public lands and name public officers. Above all, should his will be to break through the free customs of his people, he was

without the means of putting his will into action, for the one force he could call on was the host, and the host was the people itself in arms.

The Thegn

With the new English king rose a new order of English nobles. The social distinction of the eorl was founded on the peculiar purity of his blood, on his long descent from the original settler around whom township and thorp grew up. A new distinction was now to be found in service done to the king. From the earliest times of German society it had been the wont of young men greedy of honour or seeking training in arms to bind themselves as "comrades" to king or chief. The leader whom they chose gave them horses, arms, a seat in his mead hall, and gifts from his hoard. The "comrade" on the other hand--the gesith or thegn, as he was called--bound himself to follow and fight for his lord. The principle of personal dependence as distinguished from the warrior's general duty to the folk at large was embodied in the thegn. "Chieftains fight for victory," says Tacitus; "comrades for their chieftain." When one of Beowulf's "comrades" saw his lord hard bested "he minded him of the homestead he had given him, of the folk right he gave him as his father had it; nor might he hold back then." Snatching up sword and shield he called on his fellow-thegns to follow him to the fight. "I mind me of the day," he cried, "when we drank the mead, the day we gave pledge to our lord in the beer hall as he gave us these rings, our pledge that we would pay him back our war-gear, our helms and our hard swords, if need befel him. Unmeet is it, methinks, that we should bear back our shields to our home unless we guard our lord's life." The larger the band of such "comrades," the more power and repute it gave their lord. It was from among the chiefs whose war-band was strongest that the leaders of the host were commonly chosen; and as these leaders grew into kings, the number of their thegns naturally increased. The rank of the "comrades" too rose with the rise of their lord. The king's thegns were his body-guard, the one force ever ready to carry out his will. They were his nearest and most constant counsellors. As the gathering of petty tribes into larger kingdoms swelled the number of eorls in each realm, and in a corresponding degree diminished their social importance, it raised in equal measure the rank of the king's thegns. A post among them was soon coveted and won by the greatest and noblest in the land. Their service was rewarded by exemption from the general jurisdiction of hundred-court or shire-court,

for it was part of a thegn's meed for his service that he should be judged only by the lord he served. Other meed was found in grants of public land which made them a local nobility, no longer bound to actual service in the king's household or the king's war-band, but still bound to him by personal ties of allegiance far closer than those which bound an eorl to the chosen war-leader of his tribe. In a word, thegnhood contained within itself the germ of that later feudalism which was to battle so fiercely with the Teutonic freedom out of which it grew.

The Bernicians

But the strife between the conquering tribes which at once followed on their conquest of Britain was to bring about changes even more momentous in the development of the English people. While Jute and Saxon and Engle were making themselves masters of central and southern Britain, the English who had landed on its northernmost shores had been slowly winning for themselves the coast district between the Forth and the Tyne which bore the name of Bernicia. Their progress seems to have been small till they were gathered into a kingdom in 547 by Ida the "Flame-bearer," who found a site for his King's town on the impregnable rock of Bamborough; nor was it till the reign of his fourth son Æthelric that they gained full mastery over the Britons along their western border. But once masters of the Britons the Bernician Englishmen turned to conquer their English neighbours to the south, the men of Deira, whose first King Ælla was now sinking to the grave. The struggle filled the foreign markets with English slaves, and one of the most memorable stories in our history shows us a group of such captives as they stood in the market-place at Rome, it may be in the great Forum of Trajan, which still in its decay recalled the glories of the Imperial City. Their white bodies, their fair faces, their golden hair was noted by a deacon who passed by. "From what country do these slaves come?" Gregory asked the trader who brought them. The slave-dealer answered "They are English," or as the word ran in the Latin form it would bear at Rome, "they are Angles." The deacon's pity veiled itself in poetic humour. "Not Angles but Angels," he said, "with faces so angel-like! From what country come they?" "They come," said the merchant, "from Deira." "*De irâ!*" was the untranslatable wordplay of the vivacious Roman--"aye, plucked from God's ire and called to Christ's mercy! And what is the name of their king?" They told him "Ælla," and Gregory seized on the word

as of good omen. "Alleluia shall be sung in Ælla's land," he said, and passed on, musing how the angel-faces should be brought to sing it.

While Gregory was thus playing with Ælla's name the old king passed away, and with his death in 588 the resistance of his kingdom seems to have ceased. His children fled over the western border to find refuge among the Welsh, and Æthelric of Bernicia entered Deira in triumph. A new age of our history opens in this submission of one English people to another. When the two kingdoms were united under a common lord the period of national formation began. If a new England sprang out of the mass of English states which covered Britain after its conquest, we owe it to the gradual submission of the smaller peoples to the supremacy of a common political head. The difference in power between state and state which inevitably led to this process of union was due to the character which the conquest of Britain was now assuming. Up to this time all the kingdoms which had been established by the invaders had stood in the main on a footing of equality. All had taken an independent share in the work of conquest. Though the oneness of a common blood and a common speech was recognized by all we find no traces of any common action or common rule. Even in the two groups of kingdoms, the five English and the five Saxon kingdoms, which occupied Britain south of the Humber, the relations of each member of the group to its fellows seem to have been merely local. It was only locally that East and West and South and North English were grouped round the Middle English of Leicester, or East and West and South and North Saxons round the Middle Saxons about London. In neither instance do we find any real trace of a confederacy, or of the rule of one member of the group over the others; while north of the Humber the feeling between the Englishmen of Yorkshire and the Englishmen who had settled towards the Firth of Forth was one of hostility rather than of friendship. But this age of isolation, of equality, of independence, had now come to an end. The progress of the conquest had drawn a sharp line between the kingdoms of the conquerors. The work of half of them was done. In the south of the island not only Kent but Sussex, Essex, and Middlesex were surrounded by English territory, and hindered by that single fact from all further growth. The same fate had befallen the East Engle, the South Engle, the Middle and the North Engle. The West Saxons, on the other hand, and the West Engle, or Mercians, still remained free to conquer and expand on the south of the Humber, as the

Englishmen of Deira and Bernicia remained free to the north of that river. It was plain, therefore, that from this moment the growth of these powers would throw their fellow kingdoms into the background, and that with an ever-growing inequality of strength must come a new arrangement of political forces. The greater kingdoms would in the end be drawn to subject and absorb the lesser ones, and to the war between Englishman and Briton would be added a struggle between Englishman and Englishman.

Kent

It was through this struggle and the establishment of a lordship on the part of the stronger and growing states over their weaker and stationary fellows that the English kingdoms were to make their first step towards union in a single England. Such an overlordship seemed destined but a few years before to fall to the lot of Wessex. The victories of Ceawlin and Cuthwulf left it the most powerful of the English kingdoms. None of its fellow states seemed able to hold their own against a power which stretched from the Chilterns to the Severn and from the Channel to the Ouse. But after its defeat in the march upon Chester Wessex suddenly broke down into a chaos of warring tribes; and her place was taken by two powers whose rise to greatness was as sudden as her fall. The first of these was Kent. The Kentish king Æthelberht found himself hemmed in on every side by English territory; and since conquest over Britons was denied him he sought a new sphere of action in setting his kingdom at the head of the conquerors of the south. The break up of Wessex no doubt aided his attempt; but we know little of the causes or events which brought about his success. We know only that the supremacy of the Kentish king was owned at last by the English peoples of the east and centre of Britain. But it was not by her political action that Kent was in the end to further the creation of a single England; for the lordship which Æthelberht built up was doomed to fall for ever with his death, and yet his death left Kent the centre of a national union far wider as it was far more enduring than the petty lordship which stretched over Eastern Britain. Only three or four years after Gregory had pitied the English slaves in the market-place of Rome, he found himself as Bishop of the Imperial City in a position to carry out his dream of winning Britain to the faith; and an opening was given him by Æthelberht's marriage with Bertha, a daughter of the Frankish king Charibert of Paris. Bertha like her Frankish kindred was a Christian; a Christian bishop accompanied her

from Gaul; and a ruined Christian church, the church of St. Martin beside the royal city of Canterbury, was given them for their worship. The king himself remained true to the gods of his fathers; but his marriage no doubt encouraged Gregory to send a Roman abbot, Augustine, at the head of a band of monks to preach the Gospel to the English people. The missionaries landed in 597 in the Isle of Thanet, at the spot where Hengest had landed more than a century before; and Æthelberht received them sitting in the open air on the chalk-down above Minster, where the eye nowadays catches miles away over the marshes the dim tower of Canterbury. The king listened patiently to the long sermon of Augustine as the interpreters the abbot had brought with him from Gaul rendered it in the English tongue. "Your words are fair," Æthelberht replied at last with English good sense, "but they are new and of doubtful meaning." For himself, he said, he refused to forsake the gods of his fathers, but with the usual religious tolerance of the German race he promised shelter and protection to the strangers. The band of monks entered Canterbury bearing before them a silver cross with a picture of Christ, and singing in concert the strains of the litany of their Church. "Turn from this city, O Lord," they sang, "Thine anger and wrath, and turn it from Thy holy house, for we have sinned." And then in strange contrast came the jubilant cry of the older Hebrew worship, the cry which Gregory had wrested in prophetic earnestness from the name of the Yorkshire king in the Roman market-place, "Alleluia!"

Christian England

It was thus that the spot which witnessed the landing of Hengest became yet better known as the landing-place of Augustine. But the second landing at Ebbsfleet was in no small measure a reversal and undoing of the first. "Strangers from Rome" was the title with which the missionaries first fronted the English king. The march of the monks as they chaunted their solemn litany was in one sense a return of the Roman legions who withdrew at the trumpet-call of Alaric. It was to the tongue and the thought not of Gregory only but of the men whom his Jutish fathers had slaughtered or driven out that Æthelberht listened in the preaching of Augustine. Canterbury, the earliest royal city of German England, became a centre of Latin influence. The Roman tongue became again one of the tongues of Britain, the language of its worship, its correspondence, its literature. But more than the tongue of Rome returned with Augustine. Practically his

landing renewed that union with the Western world which the landing of Hengest had destroyed. The new England was admitted into the older commonwealth of nations. The civilization, art, letters, which had fled before the sword of the English conquerors returned with the Christian faith. The fabric of the Roman law indeed never took root in England, but it is impossible not to recognize the result of the influence of the Roman missionaries in the fact that codes of the customary English law began to be put in writing soon after their arrival.

Æthelfrith

A year passed before Æthelberht yielded to the preaching of Augustine. But from the moment of his conversion the new faith advanced rapidly and the Kentish men crowded to baptism in the train of their king. The new religion was carried beyond the bounds of Kent by the supremacy which Æthelberht wielded over the neighbouring kingdoms. Sæberht, King of the East-Saxons, received a bishop sent in 604 from Kent, and suffered him to build up again a Christian church in what was now his subject city of London, while soon after the East-Anglian king Rædwald resolved to serve Christ and the older gods together. But while Æthelberht was thus furnishing a future centre of spiritual unity in Canterbury, the see to which Augustine was consecrated, the growth of Northumbria was pointing it out as the coming political centre of the new England. In 593, four years before the landing of the missionaries in Kent, Æthelric was succeeded by his son Æthelfrith, and the new king took up the work of conquest with a vigour greater than had yet been shown by any English leader. For ten years he waged war with the Britons of Strathclyde, a tract which stretched along his western border from Dumbarton to Carlisle. The contest ended in a great battle at Dægsastan, perhaps Dawston in Liddesdale; and Æthelfrith turned to deliver a yet more crushing blow on his southern border. British kingdoms still stretched from Clyde-mouth to the mouth of Severn; and had their line remained unbroken the British resistance might yet have withstood the English advance. It was with a sound political instinct therefore that Æthelfrith marched in 613 upon Chester, the point where the kingdom of Cumbria, a kingdom which stretched from the Lune to the Dee, linked itself to the British states of what we now call Wales. Hard by the city two thousand monks were gathered in one of those vast religious settlements which were characteristic of Celtic Christianity, and after a

three days' fast a crowd of these ascetics followed the British army to the field. Æthelfrith watched the wild gestures of the monks as they stood apart from the host with arms outstretched in prayer, and bade his men slay them in the coming fight. "Bear they arms or no," said the King, "they war against us when they cry against us to their God," and in the surprise and rout which followed the monks were the first to fall.

With the battle of Chester Britain as a country ceased to exist. By their victory at Deorham the West-Saxons had cut off the Britons of Dyvnaint, of our Devon, Dorset, Somerset, and Cornwall, from the general body of their race. By Æthelfrith's victory at Chester and the reduction of southern Lancashire which followed it what remained of Britain was broken into two several parts. From this time therefore the character of the English conquest of Britain changes. The warfare of Briton and Englishman died down into a warfare of separate English kingdoms against separate British kingdoms, of Northumbria against the Cumbrians and Strathclyde, of Mercia against the Welsh between Anglesea and the British Channel, of Wessex against the tract of country from Mendip to the Land's End. But great as was the importance of the battle of Chester to the fortunes of Britain, it was of still greater importance to the fortunes of England itself. The drift towards national unity had already begun, but from the moment of Æthelfrith's victory this drift became the main current of our history. Masters of the larger and richer part of the land, its conquerors were no longer drawn greedily westward by the hope of plunder; while the severance of the British kingdoms took from their enemies the pressure of a common danger. The conquests of Æthelfrith left him without a rival in military power, and he turned from victories over the Welsh, as their English foes called the Britons, to the building up of a lordship over his own countrymen.

Eadwine

The power of Æthelberht seems to have declined with old age, and though the Essex men still owned his supremacy, the English tribes of Mid-Britain shook it off. So strong however had the instinct of union now become, that we hear nothing of any return to their old isolation. Mercians and Southumbrians, Middle-English and South-English now owned the lordship of the East-English King Rædwald. The shelter given by Rædwald to Ælla's son Eadwine served as a pretext for a Northumbrian attack.

Fortune however deserted Æthelfrith, and a snatch of northern song still tells of the day when the river Idle by Retford saw his defeat and fall. But the greatness of Northumbria survived its king. In 617 Eadwine was welcomed back by his own men of Deira; and his conquest of Bernicia maintained that union of the two realms which the Bernician conquest of Deira had first brought about. The greatness of Northumbria now reached its height. Within his own dominions, Eadwine displayed a genius for civil government which shows how utterly the mere age of conquest had passed away. With him began the English proverb so often applied to after kings: "A woman with her babe might walk scatheless from sea to sea in Eadwine's day." Peaceful communication revived along the deserted highways; the springs by the roadside were marked with stakes, and a cup of brass set beside each for the traveller's refreshment. Some faint traditions of the Roman past may have flung their glory round this new "Empire of the English"; a royal standard of purple and gold floated before Eadwine as he rode through the villages; a feather tuft attached to a spear, the Roman tufa, preceded him as he walked through the streets. The Northumbrian king became in fact supreme over Britain as no king of English blood had been before. Northward his frontier reached to the Firth of Forth, and here, if we trust tradition, Eadwine founded a city which bore his name, Edinburgh, Eadwine's burgh. To the west his arms crushed the long resistance of Elmet, the district about Leeds; he was master of Chester, and the fleet he equipped there subdued the isles of Anglesea and Man. South of the Humber he was owned as overlord by the five English states of Mid-Britain. The West-Saxons remained awhile independent. But revolt and slaughter had fatally broken their power when Eadwine attacked them. A story preserved by Bæda tells something of the fierceness of the struggle which ended in the subjection of the south to the overlordship of Northumbria. In an Easter-court which he held in his royal city by the river Derwent, Eadwine gave audience to Eumer, an envoy of Wessex, who brought a message from its king. In the midst of the conference Eumer started to his feet, drew a dagger from his robe, and rushed on the Northumbrian sovereign. Lilla, one of the king's war-band, threw himself between Eadwine and his assassin; but so furious was the stroke that even through Lilla's body the dagger still reached its aim. The king however recovered from his wound to march on the West-Saxons; he slew or subdued all who had conspired against him, and returned victorious to his own country.

Conversion of Northumbria

Kent had bound itself to him by giving him its King's daughter as a wife, a step which probably marked political subordination; and with the Kentish queen had come Paulinus, one of Augustine's followers, whose tall stooping form, slender aquiline nose, and black hair falling round a thin worn face, were long remembered in the North. Moved by his queen's prayers Eadwine promised to become Christian if he returned successful from Wessex; and the wise men of Northumbria gathered to deliberate on the new faith to which he bowed. To finer minds its charm lay then as now in the light it threw on the darkness which encompassed men's lives, the darkness of the future as of the past. "So seems the life of man, O king," burst forth an aged ealdorman, "as a sparrow's flight through the hall when one is sitting at meat in winter-tide with the warm fire lighted on the hearth but the icy rain-storm without. The sparrow flies in at one door and tarries for a moment in the light and heat of the hearth-fire, and then flying forth from the other vanishes into the darkness whence it came. So tarries for a moment the life of man in our sight, but what is before it, what after it, we know not. If this new teaching tell us aught certainly of these, let us follow it." Coarser argument told on the crowd. "None of your people, Eadwine, have worshipped the gods more busily than I," said Coifi the priest, "yet there are many more favoured and more fortunate. Were these gods good for anything they would help their worshippers." Then leaping on horseback, he hurled his spear into the sacred temple at Godmanham, and with the rest of the Witan embraced the religion of the king.

Penda

But the faith of Woden and Thunder was not to fall without a struggle. Even in Kent a reaction against the new creed began with the death of Æthelberht. The young kings of the East-Saxons burst into the church where the Bishop of London was administering the Eucharist to the people, crying, "Give us that white bread you gave to our father Saba," and on the bishop's refusal drove him from their realm. This earlier tide of reaction was checked by Eadwine's conversion; but Mercia, which had as yet owned the supremacy of Northumbria, sprang into a sudden greatness as the champion of the heathen gods. Its king, Penda, saw in the rally of the old religion a chance of winning back his people's freedom and giving it the lead among

the tribes about it. Originally mere settlers along the Upper Trent, the position of the Mercians on the Welsh border invited them to widen their possessions by conquest while the rest of their Anglian neighbours were shut off from any chance of expansion. Their fights along the frontier too kept their warlike energy at its height. Penda must have already asserted his superiority over the four other English tribes of Mid-Britain before he could have ventured to attack Wessex and tear from it in 628 the country of the Hwiccas and Magesætas on the Severn. Even with this accession of strength however he was still no match for Northumbria. But the war of the English people with the Britons seems at this moment to have died down for a season, and the Mercian ruler boldly broke through the barrier which had parted the two races till now by allying himself with a Welsh King, Cadwallon, for a joint attack on Eadwine. The armies met in 633 at a place called the Heathfield, and in the fight which followed Eadwine was defeated and slain.

Oswald

Bernicia seized on the fall of Eadwine to recall the line of Æthelfrith to its throne; and after a year of anarchy his second son, Oswald, became its king. The Welsh had remained encamped in the heart of the north, and Oswald's first fight was with Cadwallon. A small Northumbrian force gathered in 635 near the Roman Wall, and pledged itself at the new King's bidding to become Christian if it conquered in the fight. Cadwallon fell fighting on the "Heaven's Field," as after times called the field of battle; the submission of Deira to the conqueror restored the kingdom of Northumbria; and for seven years the power of Oswald equalled that of Eadwine. It was not the Church of Paulinus which nerved Oswald to this struggle for the Cross, or which carried out in Bernicia the work of conversion which his victory began. Paulinus fled from Northumbria at Eadwine's fall; and the Roman Church, though established in Kent, did little in contending elsewhere against the heathen reaction. Its place in the conversion of northern England was taken by missionaries from Ireland. To understand the true meaning of this change we must remember how greatly the Christian Church in the west had been affected by the German invasion. Before the landing of the English in Britain the Christian Church stretched in an unbroken line across Western Europe to the furthest coasts of Ireland. The conquest of Britain by the pagan English thrust a wedge of heathendom

into the heart of this great communion and broke it into two unequal parts. On one side lay Italy, Spain, and Gaul, whose churches owned obedience to and remained in direct contact with the See of Rome, on the other, practically cut off from the general body of Christendom, lay the Church of Ireland. But the condition of the two portions of Western Christendom was very different. While the vigour of Christianity in Italy and Gaul and Spain was exhausted in a bare struggle for life, Ireland, which remained unscourged by invaders, drew from its conversion an energy such as it has never known since. Christianity was received there with a burst of popular enthusiasm, and letters and arts sprang up rapidly in its train. The science and Biblical knowledge which fled from the Continent took refuge in its schools. The new Christian life soon beat too strongly to brook confinement within the bounds of Ireland itself. Patrick, the first missionary of the island, had not been half a century dead when Irish Christianity flung itself with a fiery zeal into battle with the mass of heathenism which was rolling in upon the Christian world. Irish missionaries laboured among the Picts of the Highlands and among the Frisians of the northern seas. An Irish missionary, Columban, founded monasteries in Burgundy and the Apennines. The canton of St. Gall still commemorates in its name another Irish missionary before whom the spirits of flood and fell fled wailing over the waters of the Lake of Constance. For a time it seemed as if the course of the world's history was to be changed, as if the older Celtic race that Roman and German had swept before them had turned to the moral conquest of their conquerors, as if Celtic and not Latin Christianity was to mould the destinies of the Churches of the West.

Aidan

On a low island of barren gneiss-rock off the west coast of Scotland an Irish refugee, Columba, had raised the famous mission-station of Iona. It was within its walls that Oswald in youth found refuge, and on his accession to the throne of Northumbria he called for missionaries from among its monks. The first preacher sent in answer to his call obtained little success. He declared on his return that among a people so stubborn and barbarous as the Northumbrian folk success was impossible. "Was it their stubbornness or your severity?" asked Aidan, a brother sitting by; "did you forget God's word to give them the milk first and then the meat?" All eyes turned on the speaker as fittest to undertake the abandoned mission, and

Aidan sailing at their bidding fixed his bishop's see in the island-peninsula of Lindisfarne. Thence, from a monastery which gave to the spot its after name of Holy Island, preachers poured forth over the heathen realms. Aidan himself wandered on foot, preaching among the peasants of Yorkshire and Northumbria. In his own court the King acted as interpreter to the Irish missionaries in their efforts to convert his thegns. A new conception of kingship indeed began to blend itself with that of the warlike glory of Æthelfrith or the wise administration of Eadwine, and the moral power which was to reach its height in Ælfred first dawns in the story of Oswald. For after times the memory of Oswald's greatness was lost in the memory of his piety. "By reason of his constant habit of praying or giving thanks to the Lord he was wont wherever he sat to hold his hands upturned on his knees." As he feasted with Bishop Aidan by his side, the thegn, or noble of his war-band, whom he had set to give alms to the poor at his gate told him of a multitude that still waited fasting without. The king at once bade the untasted meat before him be carried to the poor, and his silver dish be parted piecemeal among them. Aidan seized the royal hand and blessed it. "May this hand," he cried, "never grow old."

Oswald's lordship stretched as widely over Britain as that of his predecessor Eadwine. In him even more than in Eadwine men saw some faint likeness of the older Emperors; once indeed a writer from the land of the Picts calls Oswald "Emperor of the whole of Britain." His power was bent to carry forward the conversion of all England, but prisoned as it was to the central districts of the country heathendom fought desperately for life. Penda was still its rallying-point. His long reign was one continuous battle with the new religion; but it was a battle rather with the supremacy of Christian Northumbria than with the supremacy of the Cross. East-Anglia became at last the field of contest between the two powers; and in 642 Oswald marched to deliver it from the Mercian rule. But his doom was the doom of Eadwine, and in a battle called the battle of the Maserfeld he was overthrown and slain. For a few years after his victory at the Maserfeld, Penda stood supreme in Britain. Heathenism triumphed with him. If Wessex did not own his overlordship as it had owned that of Oswald, its king threw off the Christian faith which he had embraced but a few years back at the preaching of Birinus. Even Deira seems to have owned Penda's sway. Bernicia alone, though distracted by civil war between rival claimants for

its throne, refused to yield. Year by year the Mercian king carried his ravages over the north; once he reached even the royal city, the impregnable rock-fortress of Bamborough. Despairing of success in an assault, he pulled down the cottages around, and piling their wood against its walls fired the mass in a fair wind that drove the flames on the town. "See, Lord, what ill Penda is doing," cried Aidan from his hermit cell in the islet of Farne, as he saw the smoke drifting over the city, and a change of wind--so ran the legend of Northumbria's agony--drove back the flames on those who kindled them. But burned and harried as it was, Bernicia still clung to the Cross. Oswiu, a third son of Æthelfrith, held his ground stoutly against Penda's inroads till their cessation enabled him to build up again the old Northumbrian kingdom by a march upon Deira. The union of the two realms was never henceforth to be dissolved; and its influence was at once seen in the renewal of Christianity throughout Britain. East-Anglia, conquered as it was, had clung to its faith. Wessex quietly became Christian again. Penda's own son, whom he had set over the Middle-English, received baptism and teachers from Lindisfarne. At last the missionaries of the new belief appeared fearlessly among the Mercians themselves. Penda gave them no hindrance. In words that mark the temper of a man of whom we would willingly know more, Bæda tells us that the old king only "hated and scorned those whom he saw not doing the works of the faith they had received." His attitude shows that Penda looked with the tolerance of his race on all questions of creed, and that he was fighting less for heathenism than for political independence. And now the growing power of Oswiu called him to the old struggle with Northumbria. In 655 he met Oswiu in the field of Winwæd by Leeds. It was in vain that the Northumbrian sought to avert Penda's attack by offers of ornaments and costly gifts. "If the pagans will not accept them," Oswiu cried at last, "let us offer them to One that will"; and he vowed that if successful he would dedicate his daughter to God, and endow twelve monasteries in his realm. Victory at last declared for the faith of Christ. Penda himself fell on the field. The river over which the Mercians fled was swollen with a great rain; it swept away the fragments of the heathen host, and the cause of the older gods was lost for ever.

Oswiu

The terrible struggle between heathendom and Christianity was followed by a long and profound peace. For three years after the battle of Winwæd Mercia was governed by Northumbrian thegns in Oswiu's name. The winning of central England was a victory for Irish Christianity as well as for Oswiu. Even in Mercia itself heathendom was dead with Penda. "Being thus freed," Bæda tells us, "the Mercians with their King rejoiced to serve the true King, Christ." Its three provinces, the earlier Mercia, the Middle-English, and the Lindiswaras, were united in the bishopric of the missionary Ceadda, the St. Chad to whom Lichfield is still dedicated. Ceadda was a monk of Lindisfarne, so simple and lowly in temper that he travelled on foot on his long mission journeys till Archbishop Theodore with his own hands lifted him on horseback. The old Celtic poetry breaks out in his death-legend, as it tells us how voices of singers singing sweetly descended from heaven to the little cell beside St. Mary's Church where the bishop lay dying. Then "the same song ascended from the roof again, and returned heavenward by the way that it came." It was the soul of his brother, the missionary Cedd, come with a choir of angels to solace the last hours of Ceadda.

Cuthbert

In Northumbria the work of his fellow missionaries has almost been lost in the glory of Cuthbert. No story better lights up for us the new religious life of the time than the story of this Apostle of the Lowlands. Born on the southern edge of the Lammermoor, Cuthbert found shelter at eight years old in a widow's house in the little village of Wrangholm. Already in youth his robust frame hid a poetic sensibility which caught even in the chance word of a game a call to higher things, and a passing attack of lameness deepened the religious impression. A traveller coming in his white mantle over the hillside and stopping his horse to tend Cuthbert's injured knee seemed to him an angel. The boy's shepherd life carried him to the bleak upland, still famous as a sheepwalk, though a scant herbage scarce veils the whinstone rock. There meteors plunging into the night became to him a company of angelic spirits carrying the soul of Bishop Aidan heavenward, and his longings slowly settled into a resolute will towards a religious life. In 651 he made his way to a group of straw-thatched log-huts, in the midst of an untilled solitude, where a few Irish monks from Lindisfarne had settled in the mission-station of Melrose. To-day the land is a land of poetry and

romance. Cheviot and Lammermoor, Ettrick and Teviotdale, Yarrow and Annan-water, are musical with old ballads and border minstrelsy. Agriculture has chosen its valleys for her favourite seat, and drainage and steam-power have turned sedgy marshes into farm and meadow. But to see the Lowlands as they were in Cuthbert's day we must sweep meadow and farm away again, and replace them by vast solitudes, dotted here and there with clusters of wooden hovels and crossed by boggy tracks, over which travellers rode spear in hand and eye kept cautiously about them. The Northumbrian peasantry among whom he journeyed were for the most part Christians only in name. With Teutonic indifference they yielded to their thegns in nominally accepting the new Christianity as these had yielded to the king. But they retained their old superstitions side by side with the new worship; plague or mishap drove them back to a reliance on their heathen charms and amulets; and if trouble befell the Christian preachers who came settling among them, they took it as proof of the wrath of the older gods. When some log-rafts which were floating down the Tyne for the construction of an abbey at its mouth drifted with the monks who were at work on them out to sea, the rustic bystanders shouted, "Let nobody pray for them; let nobody pity these men; for they have taken away from us our old worship, and how their new-fangled customs are to be kept nobody knows." On foot, on horseback, Cuthbert wandered among listeners such as these, choosing above all the remoter mountain villages from whose roughness and poverty other teachers turned aside. Unlike his Irish comrades, he needed no interpreter as he passed from village to village; the frugal, long-headed Northumbrians listened willingly to one who was himself a peasant of the Lowlands, and who had caught the rough Northumbrian burr along the banks of the Tweed. His patience, his humorous good sense, the sweetness of his look, told for him, and not less the stout vigorous frame which fitted the peasant-preacher for the hard life he had chosen. "Never did man die of hunger who served God faithfully," he would say, when nightfall found them supperless in the waste. "Look at the eagle overhead! God can feed us through him if He will"--and once at least he owed his meal to a fish that the scared bird let fall. A snowstorm drove his boat on the coast of Fife. "The snow closes the road along the shore," mourned his comrades; "the storm bars our way over sea." "There is still the way of heaven that lies open," said Cuthbert.

Cædmon

While missionaries were thus labouring among its peasantry, Northumbria saw the rise of a number of monasteries, not bound indeed by the strict ties of the Benedictine rule, but gathered on the loose Celtic model of the family or the clan round some noble and wealthy person who sought devotional retirement. The most notable and wealthy of these houses was that of Streoneshealh, where Hild, a woman of royal race, reared her abbey on the cliffs of Whitby, looking out over the Northern Sea. Hild was a Northumbrian Deborah whose counsel was sought even by kings; and the double monastery over which she ruled became a seminary of bishops and priests. The sainted John of Beverley was among her scholars. But the name which really throws glory over Whitby is the name of a cowherd from whose lips during the reign of Oswiu flowed the first great English song. Though well advanced in years, Cædmon had learned nothing of the art of verse, the alliterative jingle so common among his fellows, "wherefore being sometimes at feasts, when all agreed for glee's sake to sing in turn, he no sooner saw the harp come towards him than he rose from the board and went homewards. Once when he had done thus, and gone from the feast to the stable where he had that night charge of the cattle, there appeared to him in his sleep One who said, greeting him by name, 'Sing, Cædmon, some song to Me.' 'I cannot sing,' he answered; 'for this cause left I the feast and came hither.' He who talked with him answered, 'However that be, you shall sing to Me.' 'What shall I sing?' rejoined Cædmon. 'The beginning of created things,' replied He. In the morning the cowherd stood before Hild and told his dream. Abbess and brethren alike concluded 'that heavenly grace had been conferred on him by the Lord.' They translated for Cædmon a passage in Holy Writ, 'bidding him, if he could, put the same into verse.' The next morning he gave it them composed in excellent verse, whereon the abbess, understanding the divine grace in the man, bade him quit the secular habit and take on him the monastic life." Piece by piece the sacred story was thus thrown into Cædmon's poem. "He sang of the creation of the world, of the origin of man, and of all the history of Israel; of their departure from Egypt and entering into the Promised Land; of the incarnation, passion, and resurrection of Christ, and of His ascension; of the terror of future judgement, the horror of hell-pangs, and the joys of heaven."

Synod of Whitby

But even while Cædmon was singing the glories of Northumbria and of the Irish Church were passing away. The revival of Mercia was as rapid as its fall. Only a few years after Penda's defeat the Mercians threw off Oswin's yoke and set Wulfhere, a son of Penda, on their throne. They were aided in their revolt, no doubt, by a religious strife which was now rending the Northumbrian realm. The labour of Aidan, the victories of Oswald and Oswin, seemed to have annexed the north to the Irish Church. The monks of Lindisfarne, or of the new religious houses whose foundation followed that of Lindisfarne, looked for their ecclesiastical tradition, not to Rome but to Ireland; and quoted for their guidance the instructions, not of Gregory, but of Columba. Whatever claims of supremacy over the whole English Church might be pressed by the see of Canterbury, the real metropolitan of the Church as it existed in the North of England was the Abbot of Iona. But Oswiu's queen brought with her from Kent the loyalty of the Kentish Church to the Roman See; and the visit of two young thegns to the Imperial City raised their love of Rome into a passionate fanaticism. The elder of these, Benedict Biscop, returned to denounce the usages in which the Irish Church differed from the Roman as schismatic; and the vigour of his comrade Wilfrid stirred so hot a strife that Oswiu was prevailed upon to summon in 664 a great council at Whitby, where the future ecclesiastical allegiance of his realm should be decided. The points actually contested were trivial enough. Colman, Aidan's successor at Holy Island, pleaded for the Irish fashion of the tonsure, and for the Irish time of keeping Easter: Wilfrid pleaded for the Roman. The one disputant appealed to the authority of Columba, the other to that of St. Peter. "You own," cried the king at last to Colman, "that Christ gave to Peter the keys of the kingdom of heaven--has He given such power to Columba?" The bishop could but answer "No." "Then will I rather obey the porter of heaven," said Oswiu, "lest when I reach its gates he who has the keys in his keeping turn his back on me, and there be none to open." The humorous tone of Oswiu's decision could not hide its importance, and the synod had no sooner broken up than Colman, followed by the whole of the Irish-born brethren and thirty of their English fellows, forsook the see of St. Aidan and sailed away to Iona. Trivial in fact as were the actual points of difference which severed the Roman Church from the Irish, the question to which communion Northumbria should

belong was of immense moment to the after fortunes of England. Had the Church of Aidan finally won, the later ecclesiastical history of England would probably have resembled that of Ireland. Devoid of that power of organization which was the strength of the Roman Church, the Celtic Church in its own Irish home took the clan system of the country as the basis of its government. Tribal quarrels and ecclesiastical controversies became inextricably confounded; and the clergy, robbed of all really spiritual influence, contributed no element save that of disorder to the state. Hundreds of wandering bishops, a vast religious authority wielded by hereditary chieftains, the dissociation of piety from morality, the absence of those larger and more humanizing influences which contact with a wider world alone can give, this is a picture which the Irish Church of later times presents to us. It was from such a chaos as this that England was saved by the victory of Rome in the Synod of Whitby. But the success of Wilfrid dispelled a yet greater danger. Had England clung to the Irish Church it must have remained spiritually isolated from the bulk of the Western world. Fallen as Rome might be from its older greatness, it preserved the traditions of civilization, of letters and art and law. Its faith still served as a bond which held together the nations that sprang from the wreck of the Empire. To fight against Rome was, as Wilfrid said, "to fight against the world." To repulse Rome was to condemn England to isolation. Dimly as such thoughts may have presented themselves to Oswiu's mind, it was the instinct of a statesman that led him to set aside the love and gratitude of his youth and to link England to Rome in the Synod of Whitby.

Theodore

Oswiu's assent to the vigorous measures of organization undertaken by a Greek monk, Theodore of Tarsus, whom Rome despatched in 668 to secure England to her sway as Archbishop of Canterbury, marked a yet more decisive step in the new policy. The work of Theodore lay mainly in the organization of the episcopate, and thus the Church of England, as we know it to-day, is the work, so far as its outer form is concerned, of Theodore. His work was determined in its main outlines by the previous history of the English people. The conquest of the Continent had been wrought either by races which were already Christian, or by heathens who bowed to the Christian faith of the nations they conquered. To this oneness of religion between the German invaders of the Empire and their Roman subjects was

owing the preservation of all that survived of the Roman world. The Church everywhere remained untouched. The Christian bishop became the defender of the conquered Italian or Gaul against his Gothic and Lombard conqueror, the mediator between the German and his subjects, the one bulwark against barbaric violence and oppression. To the barbarian, on the other hand, he was the representative of all that was venerable in the past, the living record of law, of letters, and of art. But in Britain the priesthood and the people had been driven out together. When Theodore came to organize the Church of England, the very memory of the older Christian Church which existed in Roman Britain had passed away. The first missionaries to the Englishmen, strangers in a heathen land, attached themselves necessarily to the courts of the kings, who were their earliest converts, and whose conversion was generally followed by that of their people. The English bishops were thus at first royal chaplains, and their diocese was naturally nothing but the kingdom. In this way realms which are all but forgotten are commemorated in the limits of existing sees. That of Rochester represented till of late an obscure kingdom of West Kent, and the frontier of the original kingdom of Mercia may be recovered by following the map of the ancient bishopric of Lichfield. In adding many sees to those he found Theodore was careful to make their dioceses co-extensive with existing tribal demarcations. But he soon passed from this extension of the episcopate to its organization. In his arrangement of dioceses, and the way in which he grouped them round the see of Canterbury, in his national synods and ecclesiastical canons, Theodore did unconsciously a political work. The old divisions of kingdoms and tribes about him, divisions which had sprung for the most part from mere accidents of the conquest, were now fast breaking down. The smaller states were by this time practically absorbed by the three larger ones, and of these three Mercia and Wessex were compelled to bow to the superiority of Northumbria. The tendency to national unity which was to characterize the new England had thus already declared itself; but the policy of Theodore clothed with a sacred form and surrounded with divine sanctions a unity which as yet rested on no basis but the sword. The single throne of the one Primate at Canterbury accustomed men's minds to the thought of a single throne for their one temporal overlord. The regular subordination of priest to bishop, of bishop to primate, in the administration of the Church, supplied a mould on which the civil organization of the state quietly shaped itself. Above all, the councils gathered by Theodore were the

first of our national gatherings for general legislation. It was at a much later time that the Wise Men of Wessex, or Northumbria, or Mercia learned to come together in the Witenagemot of all England. The synods which Theodore convened as religiously representative of the whole English nation led the way by their example to our national parliaments. The canons which these synods enacted led the way to a national system of law.

Wulfhere

The organization of the episcopate was followed by the organization of the parish system. The mission-station or monastery from which priest or bishop went forth on journey after journey to preach and baptize naturally disappeared as the land became Christian. The missionaries turned into settled clergy. As the king's chaplain became a bishop and the kingdom his diocese, so the chaplain of an English noble became the priest and the manor his parish. But this parish system is probably later than Theodore, and the system of tithes which has been sometimes coupled with his name dates only from the close of the eighth century. What was really due to him was the organization of the episcopate, and the impulse which this gave to national unity. But the movement towards unity found a sudden check in the revived strength of Mercia. Wulfhere proved a vigorous and active ruler, and the peaceful reign of Oswiu left him free to build up again during fifteen years of rule (659-675) that Mercian overlordship over the tribes of Mid-England which had been lost at Penda's death. He had more than his father's success. Not only did Essex again own his supremacy, but even London fell into Mercian hands. The West-Saxons were driven across the Thames, and nearly all their settlements to the north of that river were annexed to the Mercian realm. Wulfhere's supremacy soon reached even south of the Thames, for Sussex in its dread of West-Saxons found protection in accepting his overlordship, and its king was rewarded by a gift of the two outlying settlements of the Jutes--the Isle of Wight and the lands of the Meonwaras along the Southampton water--which we must suppose had been reduced by Mercian arms. The industrial progress of the Mercian kingdom went hand in hand with its military advance. The forests of its western border, the marshes of its eastern coast, were being cleared and drained by monastic colonies, whose success shows the hold which Christianity had now gained over its people. Heathenism indeed still held its own in the wild western woodlands and in the yet wilder fen-country on

the eastern border of the kingdom which stretched from the "Holland," the sunk, hollow land of Lincolnshire, to the channel of the Ouse, a wilderness of shallow waters and reedy islets wrapped in its own dark mist-veil and tenanted only by flocks of screaming wild-fowl. But in either quarter the new faith made its way. In the western woods Bishop Ecgwine found a site for an abbey round which gathered the town of Evesham, and the eastern fen-land was soon filled with religious houses. Here through the liberality of King Wulfhere rose the Abbey of Peterborough. Here too, Guthlac, a youth of the royal race of Mercia, sought a refuge from the world in the solitudes of Crowland, and so great was the reverence he won, that only two years had passed since his death when the stately Abbey of Crowland rose over his tomb. Earth was brought in boats to form a site; the buildings rested on oaken piles driven into the marsh; a great stone church replaced the hermit's cell; and the toil of the new brotherhood changed the pools around them into fertile meadow-land.

Ecgfrith

In spite however of this rapid recovery of its strength by Mercia, Northumbria remained the dominant state in Britain: and Ecgfrith, who succeeded Oswiu in 670, so utterly defeated Wulfhere when war broke out between them that he was glad to purchase peace by the surrender of Lincolnshire. Peace would have been purchased more hardly had not Ecgfrith's ambition turned rather to conquests over the Briton than to victories over his fellow Englishmen. The war between Briton and Englishman which had languished since the battle of Chester had been revived some twelve years before by an advance of the West-Saxons to the south-west. Unable to save the possessions of Wessex north of the Thames from the grasp of Wulfhere, their king, Cenwealh, sought for compensation in an attack on his Welsh neighbours. A victory at Bradford on the Avon enabled him to overrun the country near Mendip which had till then been held by the Britons; and a second campaign in 658, which ended in a victory on the skirts of the great forest that covered Somerset to the east, settled the West-Saxons as conquerors round the sources of the Parret. It may have been the example of the West-Saxons which spurred Ecgfrith to a series of attacks upon his British neighbours in the west which widened the bounds of his kingdom. His reign marks the highest pitch of Northumbrian power. His armies chased the Britons from the kingdom of Cumbria, and

made the district of Carlisle English ground. A large part of the conquered country was bestowed upon the see of Lindisfarne, which was at this time filled by one whom we have seen before labouring as the Apostle of the Lowlands. Cuthbert had found a new mission-station in Holy Island, and preached among the moors of Northumberland as he had preached beside the banks of Tweed. He remained there through the great secession which followed on the Synod of Whitby, and became prior of the dwindled company of brethren, now torn with endless disputes against which his patience and good humour struggled in vain. Worn out at last, he fled to a little island of basaltic rock, one of the Farne group not far from Ida's fortress of Bamborough, strewn for the most part with kelp and sea-weed, the home of the gull and the seal. In the midst of it rose his hut of rough stones and turf, dug down within deep into the rock, and roofed with logs and straw. But the reverence for his sanctity dragged Cuthbert back to fill the vacant see of Lindisfarne. He entered Carlisle, which the king had bestowed upon the bishopric, at a moment when all Northumbria was waiting for news of a fresh campaign of Ecgfrith's against the Britons in the north. The Firth of Forth had long been the limit of Northumbria, but the Picts to the north of it owned Ecgfrith's supremacy. In 685 however the king resolved on their actual subjection and marched across the Forth. A sense of coming ill weighed on Northumbria, and its dread was quickened by a memory of the curses which had been pronounced by the bishops of Ireland on its king, when his navy, setting out a year before from the newly-conquered western coast, swept the Irish shores in a raid which seemed like sacrilege to those who loved the home of Aidan and Columba. As Cuthbert bent over a Roman fountain which still stood unharmed amongst the ruins of Carlisle, the anxious bystanders thought they caught words of ill-omen falling from the old man's lips. "Perhaps," he seemed to murmur, "at this very hour the peril of the fight is over and done." "Watch and pray," he said, when they questioned him on the morrow; "watch and pray." In a few days more a solitary fugitive escaped from the slaughter told that the Picts had turned desperately to bay as the English army entered Fife; and that Ecgfrith and the flower of his nobles lay, a ghastly ring of corpses, on the far-off moorland of Nectansmere.

Mercian greatness

The blow was a fatal one for Northumbrian greatness, for while the Picts pressed on the kingdom from the north Æthelred, Wulfhere's successor, attacked it on the Mercian border, and the war was only ended by a peace which left him master of Middle-England and free to attempt the direct conquest of the south. For the moment this attempt proved a fruitless one. Mercia was still too weak to grasp the lordship which was slipping from Northumbria's hands, while Wessex which seemed her destined prey rose at this moment into fresh power under the greatest of its early kings. Ine, the West-Saxon king whose reign covered the long period from 688 to 726, carried on during the whole of it the war which Cenwealh and Centwine had begun. He pushed his way southward round the marshes of the Parret to a more fertile territory, and guarded the frontier of his new conquests by a fort on the banks of the Tone which has grown into the present Taunton. The West-Saxons thus became masters of the whole district which now bears the name of Somerset. The conquest of Sussex and of Kent on his eastern border made Ine master of all Britain south of the Thames, and his repulse of a new Mercian king Ceolred in a bloody encounter at Wanborough in 715 seemed to establish the threefold division of the English race between three realms of almost equal power. But able as Ine was to hold Mercia at bay, he was unable to hush the civil strife that was the curse of Wessex, and a wild legend tells the story of the disgust which drove him from the world. He had feasted royally at one of his country houses, and on the morrow, as he rode from it, his queen bade him turn back thither. The king returned to find his house stripped of curtains and vessels, and foul with refuse and the dung of cattle, while in the royal bed where he had slept with Æthelburh rested a sow with her farrow of pigs. The scene had no need of the queen's comment: "See, my lord, how the fashion of this world passeth away!" In 726 he sought peace in a pilgrimage to Rome. The anarchy which had driven Ine from the throne broke out in civil strife which left Wessex an easy prey to Æthelbald, the successor of Ceolred in the Mercian realm. Æthelbald took up with better fortune the struggle of his people for supremacy over the south. He penetrated to the very heart of the West-Saxon kingdom, and his siege and capture of the royal town of Somerton in 733 ended the war. For twenty years the overlordship of Mercia was recognized by all Britain south of the Humber. It was at the head of the forces not of Mercia only but of East-Anglia and Kent, as well

as of the West-Saxons, that Æthelbald marched against the Welsh on his western border.

Bæda

In so complete a mastery of the south the Mercian King found grounds for a hope that Northern Britain would also yield to his sway. But the dream of a single England was again destined to be foiled. Fallen as Northumbria was from its old glory, it still remained a great power. Under the peaceful reigns of Ecgfrith's successors, Aldfrith and Ceolwulf, their kingdom became the literary centre of Western Europe. No schools were more famous than those of Jarrow and York. The whole learning of the age seemed to be summed up in a Northumbrian scholar. Bæda--the Venerable Bede as later times styled him--was born nine years after the Synod of Whitby on ground which passed a year later to Benedict Biscop as the site of the great abbey which he reared by the mouth of the Wear. His youth was trained and his long tranquil life was wholly spent in an offshoot of Benedict's house which was founded by his friend Ceolfrid. Bæda never stirred from Jarrow. "I spent my whole life in the same monastery," he says, "and while attentive to the rule of my order and the service of the Church, my constant pleasure lay in learning, or teaching, or writing." The words sketch for us a scholar's life, the more touching in its simplicity that it is the life of the first great English scholar. The quiet grandeur of a life consecrated to knowledge, the tranquil pleasure that lies in learning and teaching and writing, dawned for Englishmen in the story of Bæda. While still young he became a teacher, and six hundred monks besides strangers that flocked thither for instruction formed his school of Jarrow. It is hard to imagine how among the toils of the schoolmaster and the duties of the monk, Bæda could have found time for the composition of the numerous works that made his name famous in the West. But materials for study had accumulated in Northumbria through the journeys of Wilfrid and Benedict Biscop and the libraries which were forming at Wearmouth and York. The tradition of the older Irish teachers still lingered to direct the young scholar into that path of Scriptural interpretation to which he chiefly owed his fame. Greek, a rare accomplishment in the West, came to him from the school which the Greek Archbishop Theodore founded beneath the walls of Canterbury. His skill in the ecclesiastical chant was derived from a Roman cantor whom Pope Vitalian sent in the train of Benedict Biscop. Little by

little the young scholar thus made himself master of the whole range of the science of his time; he became, as Burke rightly styled him, "the father of English learning." The tradition of the older classic culture was first revived for England in his quotations of Plato and Aristotle, of Seneca and Cicero, of Lucretius and Ovid. Virgil cast over him the same spell that he cast over Dante; verses from the *Æneid* break his narratives of martyrdoms, and the disciple ventures on the track of the great master in a little eclogue descriptive of the approach of spring. His work was done with small aid from others. "I am my own secretary," he writes; "I make my own notes. I am my own librarian." But forty-five works remained after his death to attest his prodigious industry. In his own eyes and those of his contemporaries the most important among these were the commentaries and homilies upon various books of the Bible which he had drawn from the writings of the Fathers. But he was far from confining himself to theology. In treatises compiled as textbooks for his scholars, Bæda threw together all that the world had then accumulated in astronomy and meteorology, in physics and music, in philosophy, grammar, rhetoric, arithmetic, medicine. But the encyclopædic character of his researches left him in heart a simple Englishman. He loved his own English tongue, he was skilled in English song, his last work was a translation into English of the Gospel of St. John, and almost the last words that broke from his lips were some English rimes upon death.

But the noblest proof of his love of England lies in the work which immortalizes his name. In his "Ecclesiastical History of the English Nation," Bæda was at once the founder of mediæval history and the first English historian. All that we really know of the century and a half that follows the landing of Augustine we know from him. Wherever his own personal observation extended, the story is told with admirable detail and force. He is hardly less full or accurate in the portions which he owed to his Kentish friends, Albinus and Nothelm. What he owed to no informant was his exquisite faculty of story-telling, and yet no story of his own telling is so touching as the story of his death. Two weeks before the Easter of 735 the old man was seized with an extreme weakness and loss of breath. He still preserved however his usual pleasantness and gay good-humour, and in spite of prolonged sleeplessness continued his lectures to the pupils about him. Verses of his own English tongue broke from time to time from the

master's lip--rude rimes that told how before the "need-fare," Death's stern "must go," none can enough bethink him what is to be his doom for good or ill. The tears of Bæda's scholars mingled with his song. "We never read without weeping," writes one of them. So the days rolled on to Ascension-tide, and still master and pupils toiled at their work, for Based longed to bring to an end his version of St. John's Gospel into the English tongue and his extracts from Bishop Isidore. "I don't want my boys to read a lie," he answered those who would have had him rest, "or to work to no purpose after I am gone." A few days before Ascension-tide his sickness grew upon him, but he spent the whole day in teaching, only saying cheerfully to his scholars, "Learn with what speed you may; I know not how long I may last." The dawn broke on another sleepless night, and again the old man called his scholars round him and bade them write. "There is still a chapter wanting," said the scribe, as the morning drew on, "and it is hard for thee to question thyself any longer." "It is easily done," said Bæda; "take thy pen and write quickly." Amid tears and farewells the day wore on till eventide. "There is yet one sentence unwritten, dear master," said the boy. "Write it quickly," bade the dying man. "It is finished now," said the little scribe at last. "You speak truth," said the master; "all is finished now." Placed upon the pavement, his head supported in his scholar's arms, his face turned to the spot where he was wont to pray, Bæda chanted the solemn "Glory to God." As his voice reached the close of his song he passed quietly away.

Fall of Æthelbald

First among English scholars, first among English theologians, first among English historians, it is in the monk of Jarrow that English literature strikes its roots. In the six hundred scholars who gathered round him for instruction he is the father of our national education. In his physical treatises he is the first figure to which our science looks back. But the quiet tenor of his scholar's life was broken by the growing anarchy of Northumbria, and by threats of war from its Mercian rival. At last Æthelbald marched on a state which seemed exhausted by civil discord and ready for submission to his arms. But its king Eadberht showed himself worthy of the kings that had gone before him, and in 740 he threw back Æthelbald's attack in a repulse which not only ruined the Mercian ruler's hopes of northern conquest but loosened his hold on the south. Already goaded to revolt by exactions, the West-Saxons were roused to a fresh

struggle for independence, and after twelve years of continued outbreaks the whole people mustered at Burford under the golden dragon of their race. The fight was a desperate one, but a sudden panic seized the Mercian King. He fled from the field, and a decisive victory freed Wessex from the Mercian yoke. Æthelbald's own throne seems to have been shaken; for three years later, in 757, the Mercian king was surprised and slain in a night attack by his ealdormen, and a year of confusion passed ere his kinsman Offa could avenge him on his murderers and succeed to the realm.

But though Eadberht might beat back the inroads of the Mercians and even conquer Strathclyde, before the anarchy of his own kingdom he could only fling down his sceptre and seek a refuge in the cloister of Lindisfarne. From the death of Bæda the history of Northumbria became in fact little more than a wild story of lawlessness and bloodshed. King after king was swept away by treason and revolt, the country fell into the hands of its turbulent nobles, its very fields lay waste, and the land was scourged by famine and plague. An anarchy almost as complete fell on Wessex after the recovery of its freedom. Only in Mid-England was there any sign of order and settled rule. The crushing defeat at Burford, though it had brought about revolts which stripped Mercia of all the conquests it had made, was far from having broken the Mercian power. Under the long reign of Offa, which went on from 758 to 796, it rose again to all but its old dominion. Since the dissolution of the temporary alliance which Penda formed with the Welsh King Cadwallon the war with the Britons in the west had been the one great hindrance to the progress of Mercia. But under Offa Mercia braced herself to the completion of her British conquests. Pushing after 779 over the Severn, and carrying his ravages into the heart of Wales, Offa drove the King of Powys from his capital, which changed its old name of Pengwern for the significant English title of the Town in the Scrub or Bush, Scrobbesbyrig, Shrewsbury. Experience however had taught the Mercians the worthlessness of raids like these and Offa resolved to create a military border by planting a settlement of Englishmen between the Severn, which had till then served as the western boundary of the English race, and the huge "Offa's Dyke" which he drew from the mouth of Wye to that of Dee. Here, as in the later conquests of the West-Saxons, the old plan of extermination was definitely abandoned and the Welsh who chose to remain dwelled undisturbed among their English conquerors. From these conquests

over the Britons Offa turned to build up again the realm which had been shattered at Burford. But his progress was slow. A reconquest of Kent in 775 woke anew the jealousy of the West-Saxons; and though Offa defeated their army at Bensington in 779 the victory was followed by several years of inaction. It was not till Wessex was again weakened by fresh anarchy that he was able in 794 to seize East-Anglia and restore his realm to its old bounds under Wulfhere. Further he could not go. A Kentish revolt occupied him till his death in 796, and his successor Cenwulf did little but preserve the realm he bequeathed him. At the close of the eighth century the drift of the English peoples towards a national unity was in fact utterly arrested. The work of Northumbria had been foiled by the resistance of Mercia; the effort of Mercia had broken down before the resistance of Wessex. A threefold division seemed to have stamped itself upon the land; and so complete was the balance of power between the three realms which parted it that no subjection of one to the other seemed likely to fuse the English tribes into an English people.

CHAPTER III

WESSEX AND THE NORTHMEN

796-947

The Northmen

The union which each English kingdom in turn had failed to bring about was brought about by the pressure of the Northmen. The dwellers in the isles of the Baltic or on either side of the Scandinavian peninsula had lain hidden till now from Western Christendom, waging their battle for existence with a stern climate, a barren soil, and stormy seas. It was this hard fight for life that left its stamp on the temper of Dane, Swede, or Norwegian alike, that gave them their defiant energy, their ruthless daring, their passion for freedom and hatred of settled rule. Forays and plunder raids over sea eked out their scanty livelihood, and at the close of the eighth century these raids found a wider sphere than the waters of the northern seas. Tidings of the wealth garnered in the abbeys and towns of the new Christendom which had risen from the wreck of Rome drew the pirates slowly southwards to the coasts of Northern Gaul; and just before Offa's death their boats touched the shores of Britain. To men of that day it must have seemed as though the world had gone back three hundred years. The same northern fiords poured forth their pirate-fleets as in the days of Hengest or Cerdic. There was the same wild panic as the black boats of the invaders struck inland along the river-reaches or moored round the river isles, the same sights of horror, firing of homesteads, slaughter of men, women driven off to slavery or shame, children tossed on pikes or sold in the market-place, as when the English themselves had attacked Britain. Christian priests were again slain at the altar by worshippers of Woden; letters, arts, religion, government disappeared before these northmen as before the northmen of three centuries before.

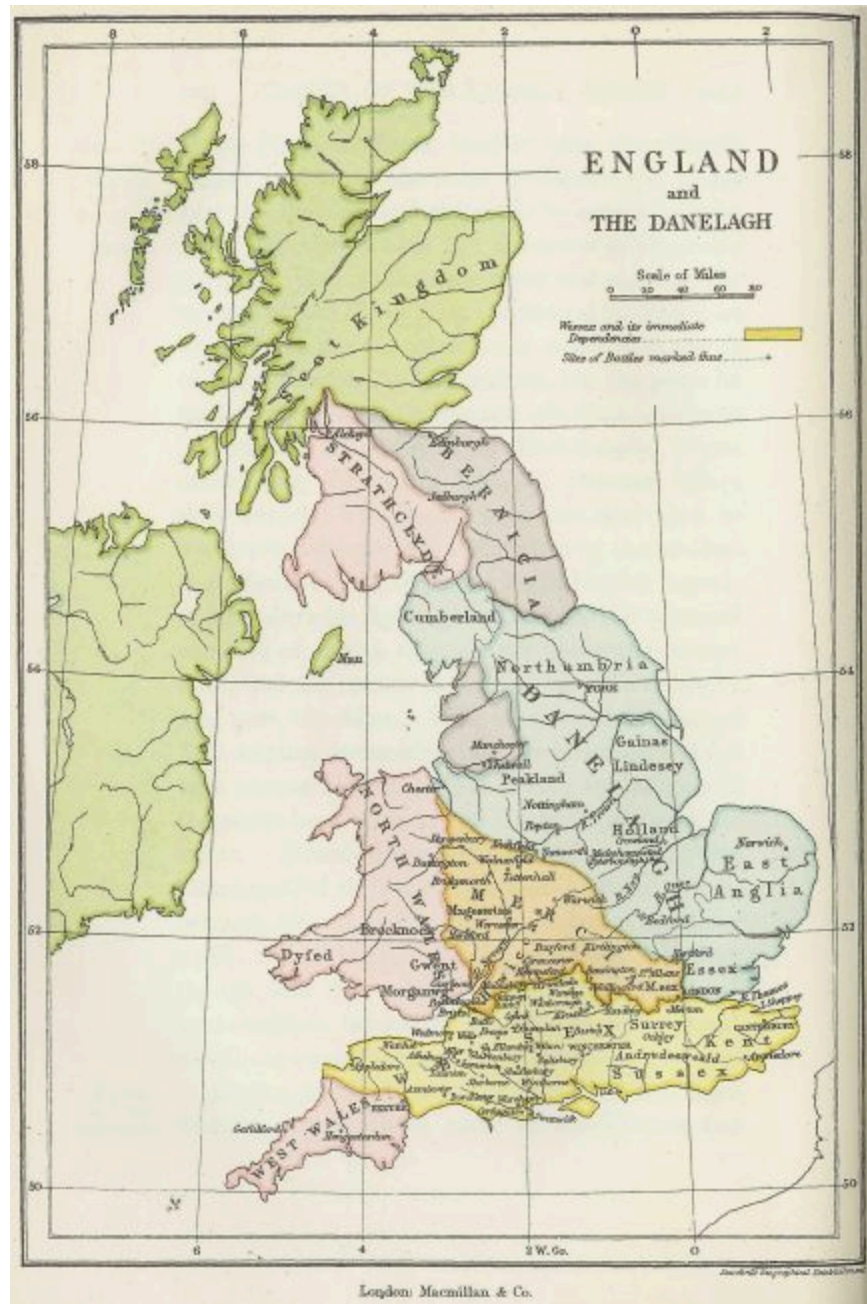
Ecgberht

In 794 a pirate band plundered the monasteries of Wearmouth and Jarrow, and the presence of the freebooters soon told on the political balance of the English realms. A great revolution was going on in the south, where Mercia was torn by civil wars which followed on Cenwulf's death, while the civil strife of the West-Saxons was hushed by a new king, Ecgberht. In Offa's days Ecgberht had failed in his claim of the crown of Wessex and had been driven to fly for refuge to the court of the Franks. He remained there through the memorable year during which Charles the Great restored the Empire of the West, and returned in 802 to be quietly welcomed as King by the West-Saxon people. A march into the heart of Cornwall and the conquest of this last fragment of the British kingdom in the south-west freed his hands for a strife with Mercia, which broke out in 825 when the Mercian King Beornwulf marched into the heart of Wiltshire. A victory of Ecgberht at Ellandun gave all England south of Thames to the West-Saxons, and the defeat of Beornwulf spurred the men of East-Anglia to rise in a desperate revolt against Mercia. Two great overthrows at their hands had already spent its strength when Ecgberht crossed the Thames in 828, and the realm of Penda and Offa bowed without a struggle to its conqueror. But Ecgberht had wider aims than those of supremacy over Mercia alone. The dream of a union of all England drew him to the north. Northumbria was still strong; in learning and arts it stood at the head of the English race; and under a king like Eadberht it would have withstood Ecgberht as resolutely as it had withstood Æthelbald. But the ruin of Jarrow and Wearmouth had cast on it a spell of terror. Torn by civil strife, and desperate of finding in itself the union needed to meet the northmen, Northumbria sought union and deliverance in subjection to a foreign master. Its thegns met Ecgberht in Derbyshire, and owned the supremacy of Wessex.

Conquests of the Northmen

With the submission of Northumbria the work which Oswiu and Æthelbald had failed to do was done, and the whole English race was for the first time knit together under a single rule. The union came not a moment too soon. Had the old severance of people from people, the old civil strife within each separate realm, gone on it is hard to see how the attacks of the northmen could have been withstood. They were already settled in Ireland; and from Ireland a northern host landed in 836 at

Charmouth in Dorsetshire strong enough to drive Ecgberht, when he hastened to meet them, from the field. His victory the year after at Hengestdun won a little rest for the land; but Æthelwulf who mounted the throne on Ecgberht's death in 839 had to face an attack which was only beaten off by years of hard fighting. Æthelwulf fought bravely in defence of his realm; in his defeat at Charmouth as in a final victory at Aclea in 851 he led his troops in person against the sea-robbers; and his success won peace for the land through the short and uneventful reigns of his sons Æthelbald and Æthelberht. But the northern storm burst in full force upon England when a third son, Æthelred, followed his brothers on the throne. The northmen were now settled on the coast of Ireland and the coast of Gaul; they were masters of the sea; and from west and east alike they closed upon Britain. While one host from Ireland fell on the Scot kingdom north of the Firth of Forth, another from Scandinavia landed in 866 on the coast of East-Anglia under Ivar the Boneless and marched the next year upon York. A victory over two claimants of its crown gave the pirates Northumbrian and seizing the passage of the Trent they threatened an attack on the Mercian realm. Mercia was saved by a march of King Æthelred to Nottingham, but the peace he made there with the northmen left them leisure to prepare for an invasion of East-Anglia, whose under-king, Eadmund, brought prisoner before their leaders, was bound to a tree and shot to death with arrows. His martyrdom by the heathen made Eadmund the St. Sebastian of English legend; in later days his figure gleamed from the pictured windows of church after church along the eastern coast, and the stately Abbey of St. Edmundsbury rose over his relics. With him ended the line of East-Anglian under-kings, for his kingdom was not only conquered, but divided among the soldiers of the pirate host when in 880 Guthrum assumed its crown. Already the northmen had turned to the richer spoil of the great abbeys of the Fen. Peterborough, Crowland, Ely went up in flames, and their monks fled or lay slain among the ruins. Mercia, though still free from actual attack, cowered panic-stricken before the Danes, and by payment of tribute owned them as its overlords.



Wessex and the Northmen

In five years the work of Ecgberht had been undone, and England north of the Thames had been torn from the overlordship of Wessex. So rapid a change could only have been made possible by the temper of the conquered kingdoms. To them the conquest was simply their transfer from one overlord to another, and it may be that in all there were men who preferred the overlordship of the Northman to the overlordship of the West-Saxon.

But the loss of the subject kingdoms left Wessex face to face with the invaders. The time had now come for it to fight, not for supremacy, but for life. As yet the land seemed paralyzed by terror. With the exception of his one march on Nottingham, King Æthelred had done nothing to save his under-kingdoms from the wreck. But the pirates no sooner pushed up Thames to Reading in 871 than the West-Saxons, attacked on their own soil, turned fiercely at bay. A desperate attack drove the northmen from Ashdown on the heights that overlook the Vale of White Horse, but their camp in the tongue of land between the Kennet and Thames proved impregnable. Æthelred died in the midst of the struggle, and his brother Ælfred, who now became king, bought the withdrawal of the pirates and a few years' breathing-space for his realm. It was easy for the quick eye of Ælfred to see that the northmen had withdrawn simply with the view of gaining firmer footing for a new attack; three years indeed had hardly passed before Mercia was invaded and its under-king driven over sea to make place for a tributary of the invaders. From Repton half their host marched northwards to the Tyne, while Guthrum led the rest to Cambridge to prepare for their next year's attack on Wessex. In 876 his fleet appeared before Wareham, and in spite of a treaty bought by Ælfred, the northmen threw themselves into Exeter. Their presence there was likely to stir a rising of the Welsh, and through the winter Ælfred girded himself for this new peril. At break of spring his army closed round the town, a hired fleet cruised off the coast to guard against rescue, and the defeat of their fellows at Wareham in an attempt to relieve them drove the pirates to surrender. They swore to leave Wessex and withdrew to Gloucester. But Ælfred had hardly disbanded his troops when his enemies, roused by the arrival of fresh hordes eager for plunder, reappeared at Chippenham, and in the opening of 878 marched ravaging over the land. The surprise of Wessex was complete, and for a month or two the general panic left no hope of resistance. Ælfred, with his small band of followers, could only throw himself into a fort raised hastily in the isle of Athelney among the marshes of the Parret, a position from which he could watch closely the movements of his foes. But with the first burst of spring he called the thegns of Somerset to his standard, and still gathering troops as he moved marched through Wiltshire on the northmen. He found their host at Edington, defeated it in a great battle, and after a siege of fourteen days forced them to surrender and to bind themselves by a solemn peace or "frith" at Wedmore in Somerset. In form

the Peace of Wedmore seemed a surrender of the bulk of Britain to its invaders. All Northumbria, all East-Anglia, all Central England east of a line which stretched from Thames' mouth along the Lea to Bedford, thence along the Ouse to Watling Street, and by Watling Street to Chester, was left subject to the northmen. Throughout this "Danelaw"--as it was called--the conquerors settled down among the conquered population as lords of the soil, thickly in northern Britain, more thinly in its central districts, but everywhere guarding jealously their old isolation and gathering in separate "heres" or armies round towns which were only linked in loose confederacies. The peace had in fact saved little more than Wessex itself. But in saving Wessex it saved England. The spell of terror was broken. The tide of invasion turned. From an attitude of attack the northmen were thrown back on an attitude of defence. The whole reign of Ælfred was a preparation for a fresh struggle that was to wrest back from the pirates the land they had won.

Ælfred

What really gave England heart for such a struggle was the courage and energy of the King himself. Alfred was the noblest as he was the most complete embodiment of all that is great, all that is loveable, in the English temper. He combined as no other man has ever combined its practical energy, its patient and enduring force, its profound sense of duty, the reserve and self-control that steadies in it a wide outlook and a restless daring, its temperance and fairness, its frank geniality, its sensitiveness to affection, its poetic tenderness, its deep and passionate religion. Religion indeed was the groundwork of Ælfred's character. His temper was instinct with piety. Everywhere throughout his writings that remain to us the name of God, the thought of God, stir him to outbursts of ecstatic adoration. But he was no mere saint. He felt none of that scorn of the world about him which drove the nobler souls of his day to monastery or hermitage. Vexed as he was by sickness and constant pain, his temper took no touch of asceticism. His rare geniality, a peculiar elasticity and mobility of nature, gave colour and charm to his life. A sunny frankness and openness of spirit breathes in the pleasant chat of his books, and what he was in his books he showed himself in his daily converse. Ælfred was in truth an artist, and both the lights and shadows of his life were those of the artistic temperament. His love of books, his love of strangers, his questionings of travellers and

scholars, betray an imaginative restlessness that longs to break out of the narrow world of experience which hemmed him in. At one time he jots down news of a voyage to the unknown seas of the north. At another he listens to tidings which his envoys bring back from the churches of Malabar. And side by side with this restless outlook of the artistic nature he showed its tenderness and susceptibility, its vivid apprehension of unseen danger, its craving for affection, its sensitiveness to wrong. It was with himself rather than with his reader that he communed as thoughts of the foe without, of ingratitude and opposition within, broke the calm pages of Gregory or Boethius. "Oh, what a happy man was he," he cries once, "that man that had a naked sword hanging over his head from a single thread; so as to me it always did!" "Desirest thou power?" he asks at another time. "But thou shalt never obtain it without sorrows--sorrows from strange folk, and yet keener sorrows from thine own kindred." "Hardship and sorrow!" he breaks out again, "not a king but would wish to be without these if he could. But I know that he cannot!" The loneliness which breathes in words like these has often begotten in great rulers a cynical contempt of men and the judgements of men. But cynicism found no echo in the large and sympathetic temper of Ælfred. He not only longed for the love of his subjects, but for the remembrance of "generations" to come. Nor did his inner gloom or anxiety check for an instant his vivid and versatile activity. To the scholars he gathered round him he seemed the very type of a scholar, snatching every hour he could find to read or listen to books read to him. The singers of his court found in him a brother singer, gathering the old songs of his people to teach them to his children, breaking his renderings from the Latin with simple verse, solacing himself in hours of depression with the music of the Psalms. He passed from court and study to plan buildings and instruct craftsmen in gold-work, to teach even falconers and dog-keepers their business. But all this versatility and ingenuity was controlled by a cool good sense. Ælfred was a thorough man of business. He was careful of detail, laborious, methodical. He carried in his bosom a little handbook in which he noted things as they struck him--now a bit of family genealogy, now a prayer, now such a story as that of Ealdhelm playing minstrel on the bridge. Each hour of the day had its appointed task, there was the same order in the division of his revenue and in the arrangement of his court.

Wide however and various as was the King's temper, its range was less wonderful than its harmony. Of the narrowness, of the want of proportion, of the predominance of one quality over another which goes commonly with an intensity of moral purpose Ælfred showed not a trace. Scholar and soldier, artist and man of business, poet and saint, his character kept that perfect balance which charms us in no other Englishman save Shakspeare. But full and harmonious as his temper was, it was the temper of a king. Every power was bent to the work of rule. His practical energy found scope for itself in the material and administrative restoration of the wasted land. His intellectual activity breathed fresh life into education and literature. His capacity for inspiring trust and affection drew the hearts of Englishmen to a common centre, and began the upbuilding of a new England. And all was guided, controlled, ennobled by a single aim. "So long as I have lived," said the King as life closed about him, "I have striven to live worthily." Little by little men came to know what such a life of worthiness meant. Little by little they came to recognize in Ælfred a ruler of higher and nobler stamp than the world had seen. Never had it seen a King who lived solely for the good of his people. Never had it seen a ruler who set aside every personal aim to devote himself solely to the welfare of those whom he ruled. It was this grand self-mastery that gave him his power over the men about him. Warrior and conqueror as he was, they saw him set aside at thirty the warrior's dream of conquest; and the self-renouncement of Wedmore struck the key-note of his reign. But still more is it this height and singleness of purpose, this absolute concentration of the noblest faculties to the noblest aim, that lifts Ælfred out of the narrow bounds of Wessex. If the sphere of his action seems too small to justify the comparison of him with the few whom the world owns as its greatest men, he rises to their level in the moral grandeur of his life. And it is this which has hallowed his memory among his own English people. "I desire," said the King in some of his latest words, "I desire to leave to the men that come after me a remembrance of me in good works." His aim has been more than fulfilled. His memory has come down to us with a living distinctness through the mists of exaggeration and legend which time gathered round it. The instinct of the people has clung to him with a singular affection. The love which he won a thousand years ago has lingered round his name from that day to this. While every other name of those earlier times has all but faded from the

recollection of Englishmen, that of Ælfred remains familiar to every English child.

English Literature

The secret of Ælfred's government lay in his own vivid energy. He could hardly have chosen braver or more active helpers than those whom he employed both in his political and in his educational efforts. The children whom he trained to rule proved the ablest rulers of their time. But at the outset of his reign he stood alone, and what work was to be done was done by the King himself. His first efforts were directed to the material restoration of his realm. The burnt and wasted country saw its towns built again, forts erected in positions of danger, new abbeys founded, the machinery of justice and government restored, the laws codified and amended. Still more strenuous were Ælfred's efforts for its moral and intellectual restoration. Even in Mercia and Northumbria the pirates' sword had left few survivors of the schools of Ecgberht or Bæda, and matters were even worse in Wessex which had been as yet the most ignorant of the English kingdoms. "When I began to reign," said Ælfred, "I cannot remember one priest south of the Thames who could render his service-book into English." For instructors indeed he could find only a few Mercian prelates and priests with one Welsh bishop, Asser. "In old times," the King writes sadly, "men came hither from foreign lands to seek for instruction, and now if we are to have it we can only get it from abroad." But his mind was far from being prisoned within his own island. He sent a Norwegian ship-master to explore the White Sea, and Wulfstan to trace the coast of Esthonia; envoys bore his presents to the churches of India and Jerusalem, and an annual mission carried Peter's-pence to Rome. But it was with the Franks that his intercourse was closest, and it was from them that he drew the scholars to aid him in his work of education. Grimbald came from St. Omer to preside over his new abbey at Winchester; and John, the Old Saxon, was fetched it may be from the Westphalian abbey of Corbey to rule the monastery that Ælfred's gratitude for his deliverance from the Danes raised in the marshes of Athelney. The real work however to be done was done, not by these teachers but by the King himself. Ælfred established a school for the young nobles at his own court, and it was to the need of books for these scholars in their own tongue that we owe his most remarkable literary effort. He took his books as he found them--they were

the popular manuals of his age--the Consolation of Boethius, the Pastoral Book of Pope Gregory, the compilation of "Orosius," then the one accessible handbook of universal history, and the history of his own people by Bæda. He translated these works into English, but he was far more than a translator, he was an editor for his people. Here he omitted, there he expanded. He enriched "Orosius" by a sketch of the new geographical discoveries in the North. He gave a West-Saxon form to his selections from Bæda. In one place he stops to explain his theory of government, his wish for a thicker population, his conception of national welfare as consisting in a due balance of the priest, the thegn, and the churl. The mention of Nero spurs him to an outbreak on the abuses of power. The cold Providence of Boethius gives way to an enthusiastic acknowledgement of the goodness of God. As he writes, his large-hearted nature flings off its royal mantle, and he talks as a man to men. "Do not blame me," he prays with a charming simplicity, "if any know Latin better than I, for every man must say what he says and do what he does according to his ability." But simple as was his aim, Ælfred changed the whole front of our literature. Before him, England possessed in her own tongue one great poem and a train of ballads and battle-songs. Prose she had none. The mighty roll of the prose books that fill her libraries begins with the translations of Ælfred, and above all with the chronicle of his reign. It seems likely that the King's rendering of Bæda's history gave the first impulse towards the compilation of what is known as the English or Anglo-Saxon Chronicle, which was certainly thrown into its present form during his reign. The meagre lists of the kings of Wessex and the bishops of Winchester, which had been preserved from older times, were roughly expanded into a national history by insertions from Bæda: but it is when it reaches the reign of Ælfred that the chronicle suddenly widens into the vigorous narrative, full of life and originality, that marks the gift of a new power to the English tongue. Varying as it does from age to age in historic value, it remains the first vernacular history of any Teutonic people, and save for the work of Ulfilas who found no successors among his Gothic people, the earliest and most venerable monument of Teutonic prose.

But all this literary activity was only a part of that general upbuilding of Wessex by which Ælfred was preparing for a fresh contest with the stranger. He knew that the actual winning back of the Danelaw must be a work of the

sword, and through these long years of peace he was busy with the creation of such a force as might match that of the northmen. A fleet grew out of the little squadron which Ælfred had been forced to man with Frisian seamen. The national fyrd or levy of all freemen at the King's call was reorganized. It was now divided into two halves, one of which served in the field while the other guarded its own burhs and townships and served to relieve its fellow when the men's forty days of service were ended. A more disciplined military force was provided by subjecting all owners of five hides of land to thegn-service, a step which recognized the change that had now substituted the thegn for the eorl and in which we see the beginning of a feudal system. How effective these measures were was seen when the new resistance they met on the Continent drove the northmen to a fresh attack on Britain. In 893 a large fleet steered for the Andredsweald, while the sea-king Hasting entered the Thames. Ælfred held both at bay through the year till the men of the Danelaw rose at their comrades' call. Wessex stood again front to front with the northmen. But the King's measures had made the realm strong enough to set aside its old policy of defence for one of vigorous attack. His son Eadward and his son-in-law Æthelred, whom he had set as Ealdorman over what remained of Mercia, showed themselves as skilful and active as the King. The aim of the northmen was to rouse again the hostility of the Welsh, but while Ælfred held Exeter against their fleet, Eadward and Æthelred caught their army near the Severn and overthrew it with a vast slaughter at Buttington. The destruction of their camp on the Lea by the united English forces ended the war; in 897 Hasting again withdrew across the Channel, and the Danelaw made peace. It was with the peace he had won still about him that Ælfred died in 901, and warrior as his son Eadward had shown himself, he clung to his father's policy of rest. It was not till 910 that a fresh rising of the northmen forced Ælfred's children to gird themselves to the conquest of the Danelaw.

Eadward the Elder

While Eadward bridled East-Anglia his sister Æthelflæd, in whose hands Æthelred's death left English Mercia, attacked the "Five Boroughs," a rude confederacy which had taken the place of the older Mercian kingdom. Derby represented the original Mercia on the upper Trent, Lincoln the Lindiswaras, Leicester the Middle-English, Stamford the province of the Gyrwas, Nottingham probably that of the Southumbrians. Each of these

"Five Boroughs" seems to have been ruled by its earl with his separate "host"; within each twelve "lawmen" administered Danish law, while a common "Thing" may have existed for the whole district. In her attack on this powerful league Æthelflæd abandoned the older strategy of battle and raid for that of siege and fortress-building. Advancing along the line of Trent, she fortified Tamworth and Stafford on its head-waters; when a rising in Gwent called her back to the Welsh border, her army stormed Brecknock; and its king no sooner fled for shelter to the northmen in whose aid he had risen than Æthelflæd at once closed on Derby. Raids from Middle-England failed to draw the Lady of Mercia from her prey; and Derby was hardly her own when, turning southward, she forced the surrender of Leicester. Nor had the brilliancy of his sister's exploits eclipsed those of the King, for the son of Ælfred was a vigorous and active ruler; he had repulsed a dangerous inroad of the northmen from France, summoned no doubt by the cry of distress from their brethren in England, and had bridled East-Anglia to the south by the erection of forts at Hertford and Witham. On the death of Æthelflæd in 918 he came boldly to the front. Annexing Mercia to Wessex, and thus gathering the whole strength of the kingdom into his single hand, he undertook the systematic reduction of the Danelaw. South of the Middle-English and the Fens lay a tract watered by the Ouse and the Nen--originally the district of a tribe known as the South-English, and now, like the Five Boroughs of the north, grouped round the towns of Bedford, Huntingdon, and Northampton. The reduction of these was followed by that of East-Anglia; the northmen of the Fens submitted with Stamford, the Southumbrians with Nottingham. Eadward's Mercian troops had already seized Manchester; he himself was preparing to complete his conquests, when in 924 the whole of the North suddenly laid itself at his feet. Not merely Northumbria but the Scots and the Britons of Strathclyde "chose him to father and lord."

Æthelstan

The triumph was his last. Eadward died in 925, but the reign of his son Æthelstan, Ælfred's golden-haired grandson whom the King had girded as a child with a sword set in a golden scabbard and a gem-studded belt, proved even more glorious than his own. In spite of its submission the North had still to be won. Dread of the northmen had drawn Scot and Cumbrian to their acknowledgement of Eadward's overlordship, but Æthelstan no sooner

incorporated Northumbria with his dominions than dread of Wessex took the place of dread of the Danelaw. The Scot King Constantine organized a league of Scot, Cumbrian, and Welshman with the northmen. The league was broken by Æthelstan's rapid action in 926; the North-Welsh were forced to pay annual tribute, to march in his armies, and to attend his councils; the West-Welsh of Cornwall were reduced to a like vassalage, and finally driven from Exeter, which they had shared till then with its English inhabitants, But eight years later the same league called Æthelstan again to the North; and though Constantine was punished by an army which wasted his kingdom while a fleet ravaged its coasts to Caithness the English army had no sooner withdrawn than Northumbria rose in 937 at the appearance of a fleet of pirates from Ireland under the sea-king Anlaf in the Humber. Scot and Cumbrian fought beside the northmen against the West-Saxon King; but his victory at Brunanburh crushed the confederacy and won peace till his death. His brother Eadmund was but eighteen at his accession in 940, and the North again rose in revolt. The men of the Five Boroughs joined their kinsmen in Northumbria; once Eadmund was driven to a peace which left him king but south of the Watling Street; and only years of hard fighting again laid the Danelaw at his feet.

Dunstan

But policy was now to supplement the work of the sword. The completion of the West-Saxon realm was in fact reserved for the hands, not of a king or warrior, but of a priest. Dunstan stands first in the line of ecclesiastical statesmen who counted among them Lanfranc and Wolsey and ended in Laud. He is still more remarkable in himself, in his own vivid personality after eight centuries of revolution and change. He was born in the little hamlet of Glastonbury, the home of his father, Heorstan, a man of wealth and brother of the bishops of Wells and of Winchester. It must have been in his father's hall that the fair, diminutive boy, with scant but beautiful hair, caught his love for "the vain songs of heathendom, the trifling legends, the funeral chaunts," which afterwards roused against him the charge of sorcery. Thence too he might have derived his passionate love of music, and his custom of carrying his harp in hand on journey or visit. Wandering scholars of Ireland had left their books in the monastery of Glastonbury, as they left them along the Rhine and the Danube; and Dunstan plunged into the study of sacred and profane letters till his brain broke down in delirium.

So famous became his knowledge in the neighbourhood that news of it reached the court of Æthelstan, but his appearance there was the signal for a burst of ill-will among the courtiers. Again they drove him from Eadmund's train, threw him from his horse as he passed through the marshes, and with the wild passion of their age trampled him under foot in the mire. The outrage ended in fever, and Dunstan rose from his sick-bed a monk. But the monastic profession was then little more than a vow of celibacy and his devotion took no ascetic turn. His nature in fact was sunny, versatile, artistic; full of strong affections, and capable of inspiring others with affections as strong. Quick-witted, of tenacious memory, a ready and fluent speaker, gay and genial in address, an artist, a musician, he was at the same time an indefatigable worker alike at books or handicraft. As his sphere began to widen we see him followed by a train of pupils, busy with literature, writing, harping, painting, designing. One morning a lady summons him to her house to design a robe which she is embroidering, and as he bends with her maidens over their toil his harp hung upon the wall sounds without mortal touch tones which the excited ears around frame into a joyous antiphon.

Conquest of the Danelaw

From this scholar-life Dunstan was called to a wider sphere of activity towards the close of Eadmund's reign. But the old jealousies revived at his reappearance at court, and counting the game lost Dunstan prepared again to withdraw. The king had spent the day in the chase; the red deer which he was pursuing dashed over Cheddar cliffs, and his horse only checked itself on the brink of the ravine at the moment when Eadmund in the bitterness of death was repenting of his injustice to Dunstan. He was at once summoned on the king's return. "Saddle your horse," said Eadmund, "and ride with me." The royal train swept over the marshes to his home; and the king, bestowing on him the kiss of peace, seated him in the abbot's chair as Abbot of Glastonbury. Dunstan became one of Eadmund's councillors, and his hand was seen in the settlement of the north. It was the hostility of the states around it to the West-Saxon rule which had roused so often revolt in the Danelaw; but from the time of Brunanburh we hear nothing more of the hostility of Bernicia, while Cumbria was conquered by Eadmund and turned adroitly to account in winning over the Scots to his cause. The greater part of it was granted to their king Malcolm on terms that he should be

Eadmund's "fellow-worker by sea and land." The league of Scot and Briton was thus finally broken up, and the fidelity of the Scots secured by their need of help in holding down their former ally. The settlement was soon troubled by the young king's death. As he feasted at Pucklechurch in the May of 946, Leofa, a robber whom Eadmund had banished from the land, entered the hall, seated himself at the royal board, and drew sword on the cup-bearer when he bade him retire. The king sprang in wrath to his thegn's aid, and seizing Leofa by the hair, flung him to the ground; but in the struggle the robber drove his dagger to Eadmund's heart. His death at once stirred fresh troubles in the north; the Danelaw rose against his brother and successor, Eadred, and some years of hard fighting were needed before it was again driven to own the English supremacy. But with its submission in 954 the work of conquest was done. Dogged as his fight had been, the Dane at last owned himself beaten. From the moment of Eadred's final triumph all resistance came to an end. The Danelaw ceased to be a force in English politics. North might part anew from South; men of Yorkshire might again cross swords with men of Hampshire; but their strife was henceforth a local strife between men of the same people; it was a strife of Englishmen with Englishmen, and not of Englishmen with Northmen.

CHAPTER IV

FEUDALISM AND THE MONARCHY

954-1071

Absorption of the Northmen

The fierceness of the northman's onset had hidden the real character of his attack. To the men who first fronted the pirates it seemed as though the story of the world had gone back to the days when the German barbarians first broke in upon the civilized world. It was so above all in Britain. All that tradition told of the Englishmen's own attack on the island was seen in the northmen's attack on it. Boats of marauders from the northern seas again swarmed off the British coast; church and town were again the special object of attack; the invaders again settled on the conquered soil; heathendom again proved stronger than the faith of Christ. But the issues of the two attacks showed the mighty difference between them. When the English ceased from their onset upon Roman Britain, Roman Britain had disappeared, and a new people of conquerors stood alone on the conquered land. The Northern storm on the other hand left land, people, government unchanged. England remained a country of Englishmen. The conquerors sank into the mass of the conquered, and Woden yielded without a struggle to Christ. The strife between Briton and Englishman was in fact a strife between men of different races, while the strife between northman and Englishman was a strife between men whose race was the same. The followers of Hengest or of Ida were men utterly alien from the life of Britain, strange to its arts, its culture, its wealth, as they were strange to the social degradation which Rome had brought on its province. But the northman was little more than an Englishman bringing back to an England which had drifted far from its origin the barbaric life of its earliest forefathers. Nowhere throughout Europe was the fight so fierce, because nowhere else were the fighters men of one blood and one speech. But just for this reason the union of the combatants was nowhere so peaceful or so complete. The victory of the house of Ælfred only hastened a process of

fusion which was already going on. From the first moment of his settlement in the Danelaw the northman had been passing into an Englishman. The settlers were few; they were scattered among a large population; in tongue, in manner, in institutions there was little to distinguish them from the men among whom they dwelt. Moreover their national temper helped on the process of assimilation. Even in France, where difference of language and difference of custom seemed to interpose an impassable barrier between the northman settled in Normandy and his neighbours, he was fast becoming a Frenchman. In England, where no such barriers existed, the assimilation was even quicker. The two peoples soon became confounded. In a few years a northman in blood was Archbishop of Canterbury and another northman in blood was Archbishop of York.

The three Northern Kingdoms

The fusion might have been delayed if not wholly averted by continued descents from the Scandinavian homeland. But with Eadred's reign the long attack which the northman had directed against western Christendom came, for a while at least, to an end. On the world which it assailed its results had been immense. It had utterly changed the face of the west. The empire of Ecgbert, the empire of Charles the Great, had been alike dashed to pieces. But break and change as it might, Christendom had held the northmen at bay. The Scandinavian power which had grown up on the western seas had disappeared like a dream. In Ireland the northman's rule had dwindled to the holding of a few coast towns. In France his settlements had shrunk to the one settlement of Normandy. In England every northman was a subject of the English King. Even the empire of the seas had passed from the sea-kings' hands. It was an English and not a Scandinavian fleet that for fifty years to come held mastery in the English and the Irish Channels. With Eadred's victory in fact the struggle seemed to have reached its close. Stray pirate boats still hung off headland and coast; stray vikings still shoved out in springtide to gather booty. But for nearly half-a-century to come no great pirate fleet made its way to the west, or landed on the shores of Britain. The energies of the northmen were in fact absorbed through these years in the political changes of Scandinavia itself. The old isolation of fiord from fiord and dale from dale was breaking down. The little commonwealths which had held so jealously aloof from each other were being drawn together whether they would or no. In each of the three regions of the north great

kingdoms were growing up. In Sweden King Eric made himself lord of the petty states about him. In Denmark King Gorm built up in the same way a monarchy of the Danes. Norway itself was the first to become a single monarchy. Legend told how one of its many rulers, Harald of Westfold, sent his men to bring him Gytha of Hordaland, a girl he had chosen for wife, and how Gytha sent his men back again with taunts at his petty realm. The taunts went home, and Harald vowed never to clip or comb his hair till he had made all Norway his own. So every springtide came war and hosting, harrying and burning, till a great fight at Hafursfiord settled the matter, and Harald "Ugly-Head," as men called him while the strife lasted, was free to shear his locks again and became Harald "Fair-Hair." The Northmen loved no master, and a great multitude fled out of the country, some pushing as far as Iceland and colonizing it, some swarming to the Orkneys and Hebrides till Harald harried them out again and the sea-kings sailed southward to join Guthrum's host in the Rhine country or follow Hrolf to his fights on the Seine. But little by little the land settled down into order, and the three Scandinavian realms gathered strength for new efforts which were to leave their mark on our after history.

England and its King

But of the new danger which threatened it in this union of the north England knew little. The storm seemed to have drifted utterly away; and the land passed from a hundred years of ceaseless conflict into a time of peace. Here as elsewhere the northman had failed in his purpose of conquest; but here as elsewhere he had done a mighty work. In shattering the empire of Charles the Great he had given birth to the nations of modern Europe. In his long strife with Englishmen he had created an English people. The national union which had been brought about for a moment by the sword of Ecgberht was a union of sheer force which broke down at the first blow of the sea-robbers. The black boats of the northmen were so many wedges that split up the fabric of the roughly-built realm. But the very agency which destroyed the new England was destined to bring it back again, and to breathe into it a life that made its union real. The peoples who had so long looked on each other as enemies found themselves fronted by a common foe. They were thrown together by a common danger and the need of a common defence. Their common faith grew into a national bond as religion struggled hand in hand with England itself against the heathen of the north.

They recognized a common king as a common struggle changed Ælfred and his sons from mere leaders of West-Saxons into leaders of all Englishmen in their fight with the stranger. And when the work which Ælfred set his house to do was done, when the yoke of the northman was lifted from the last of his conquests, Engle and Saxon, Northumbrian and Mercian, spent with the battle for a common freedom and a common country, knew themselves in the hour of their deliverance as an English people.

The new people found its centre in the King. The heightening of the royal power was a direct outcome of the war. The dying out of other royal stocks left the house of Cerdic the one line of hereditary kingship. But it was the war with the northmen that raised Ælfred and his sons from tribal leaders into national kings. The long series of triumphs which wrested the land from the stranger begot a new and universal loyalty; while the wider dominion which their success bequeathed removed the kings further and further from their people, lifted them higher and higher above the nobles, and clothed them more and more with a mysterious dignity. Above all the religious character of the war against the northmen gave a religious character to the sovereigns who waged it. The king, if he was no longer sacred as the son of Woden, became yet more sacred as "the Lord's Anointed." By the very fact of his consecration he was pledged to a religious rule, to justice, mercy, and good government; but his "hallowing" invested him also with a power drawn not from the will of man or the assent of his subjects but from the will of God, and treason against him became the worst of crimes. Every reign lifted the sovereign higher in the social scale. The bishop, once ranked equal with him in value of life, sank to the level of the ealdorman. The ealdorman himself, once the hereditary ruler of a smaller state, became a mere delegate of the national king, with an authority curtailed in every shire by that of the royal shire-reeves, officers charged with levying the royal revenues and destined ultimately to absorb judicial authority. Among the later nobility of the thegns personal service with such a lord was held not to degrade but to ennoble. "Horse-thegn," and "cup-thegn," and "border," the constable, butler, and treasurer, found themselves officers of state; and the developement of politics, the wider extension of home and foreign affairs were already transforming these royal officers into a standing council or ministry for the transaction of the ordinary administrative business and the reception of judicial appeals. Such a

ministry, composed of thegns or prelates nominated by the king, and constituting in itself a large part of the Witenagemot when that assembly was gathered for legislative purposes, drew the actual control of affairs more and more into the hands of the sovereign himself.

Growth of Feudalism

But the king's power was still a personal power. He had to be everywhere and to see for himself that everything he willed was done. The royal claims lay still far ahead of the real strength of the Crown. There was a want of administrative machinery in actual connexion with the government, responsible to it, drawing its force directly from it, and working automatically in its name even in moments when the royal power was itself weak or wavering. The Crown was strong under a king who was strong, whose personal action was felt everywhere throughout the realm, whose dread lay on every reeve and ealdorman. But with a weak king the Crown was weak. Ealdor-men, provincial witenagemots, local jurisdictions, ceased to move at the royal bidding the moment the direct royal pressure was loosened or removed. Enfeebled as they were, the old provincial jealousies, the old tendency to severance and isolation lingered on and woke afresh when the crown fell to a nerveless ruler or to a child. And at the moment we have reached the royal power and the national union it embodied had to battle with fresh tendencies towards national disintegration which sprang like itself from the struggle with the northman. The tendency towards personal dependence and towards a social organization based on personal dependence received an overpowering impulse from the strife. The long insecurity of a century of warfare drove the ceorl, the free tiller of the soil, to seek protection more and more from the thegn beside him. The freeman "commended" himself to a lord who promised aid, and as the price of this shelter he surrendered his freehold to receive it back as a fief laden with conditions of military service. The principle of personal allegiance which was embodied in the very notion of thegnhood, itself tended to widen into a theory of general dependence. From Ælfred's day it was assumed that no man could exist without a lord. The "lordless man" became a sort of outlaw in the realm. The free man, the very base of the older English constitution, died down more and more into the "villein," the man who did suit and service to a master, who followed him to the field, who looked to his court for justice, who rendered days of service in his demesne. The same

tendencies drew the lesser thegns around the greater nobles, and these around the provincial ealdormen. The ealdormen had hardly been dwarfed into lieutenants of the national sovereign before they again began to rise into petty kings, and in the century which follows we see Mercian or Northumbrian thegns following a Mercian or Northumbrian ealdorman to the field though it were against the lord of the land. Even the constitutional forms which sprang from the old English freedom tended to invest the higher nobles with a commanding power. In the "great meeting" of the Witenagemot or Assembly of the Wise lay the rule of the realm. It represented the whole English people, as the wise-moots of each kingdom represented the separate peoples of each; and its powers were as supreme in the wider field as theirs in the narrower. It could elect or depose the King. To it belonged the higher justice, the imposition of taxes, the making of laws, the conclusion of treaties, the control of wars, the disposal of public lands, the appointment of great officers of state. But such a meeting necessarily differed greatly in constitution from the Witan of the lesser kingdoms. The individual freeman, save when the host was gathered together, could hardly take part in its deliberations. The only relic of its popular character lay at last in the ring of citizens who gathered round the Wise Men at London or Winchester, and shouted their "aye" or "nay" at the election of a king. Distance and the hardships of travel made the presence of the lesser thegns as rare as that of the freemen; and the national council practically shrank into a gathering of the ealdormen, the bishops, and the officers of the crown.

Feudalism and the Monarchy

The old English democracy had thus all but passed into an oligarchy of the narrowest kind. The feudal movement which in other lands was breaking up every nation into a mass of loosely-knit states with nobles at their head who owed little save a nominal allegiance to their king threatened to break up England itself. What hindered its triumph was the power of the Crown, and it is the story of this struggle between the monarchy and these tendencies to feudal isolation which fills the period between the death of Eadred and the conquest of the Norman. It was a struggle which England shared with the rest of the western world, but its issue here was a peculiar one. In other countries feudalism won an easy victory over the central government. In England alone the monarchy was

strong enough to hold feudalism at bay. Powerful as he might be, the English ealdorman never succeeded in becoming really hereditary or independent of the Crown. Kings as weak as Æthelred could drive ealdormen into exile and could replace them by fresh nominees. If the Witenagemot enabled the great nobles to bring their power to bear directly on the Crown, it preserved at any rate a feeling of national unity and was forced to back the Crown against individual revolt. The Church too never became feudalized. The bishop clung to the Crown, and the bishop remained a great social and political power. As local in area as the ealdorman, for the province was his diocese and he sat by his side in the local Witenagemot, he furnished a standing check on the independence of the great nobles. But if feudalism proved too weak to conquer the monarchy, it was strong enough to paralyze its action. Neither of the two forces could master the other, but each could weaken the other, and throughout the whole period of their conflict England lay a prey to disorder within and to insult from without.

The first sign of these troubles was seen when the death of Eadred in 955 handed over the realm to a child king, his nephew Eadwig. Eadwig was swayed by a woman of high lineage, Æthelgifu; and the quarrel between her and the older counsellors of Eadred broke into open strife at the coronation feast. On the young king's insolent withdrawal to her chamber Dunstan, at the bidding of the Witan, drew him roughly back to his seat. But the feast was no sooner ended than a sentence of outlawry drove the abbot over sea, while the triumph of Æthelgifu was crowned in 957 by the marriage of her daughter to the king and the spoliation of the monasteries which Dunstan had befriended. As the new queen was Eadwig's kinswoman the religious opinion of the day regarded his marriage as incestuous, and it was followed by a revolution. At the opening of 958 Archbishop Odo parted the King from his wife by solemn sentence; while the Mercians and Northumbrians rose in revolt, proclaimed Eadwig's brother Eadgar their king, and recalled Dunstan. The death of Eadwig a few months later restored the unity of the realm; but his successor Eadgar was only a boy of sixteen and at the outset of his reign the direction of affairs must have lain in the hands of Dunstan, whose elevation to the see of Canterbury set him at the head of the Church as of the State. The noblest tribute to his rule lies in the silence of our chroniclers. His work indeed was a work of settlement, and such a work

was best done by the simple enforcement of peace. During the years of rest in which King and Primate enforced justice and order northman and Englishman drew together into a single people. Their union was the result of no direct policy of fusion; on the contrary Dunstan's policy preserved to the conquered Danelaw its local rights and local usages. But he recognized the men of the Danelaw as Englishmen, he employed northmen in the royal service, and promoted them to high posts in Church and State. For the rest he trusted to time, and time justified his trust. The fusion was marked by a memorable change in the name of the land. Slowly as the conquering tribes had learned to know themselves, by the one national name of Englishmen, they learned yet more slowly to stamp their name on the land they had won. It was not till Eadgar's day that the name of Britain passed into the name of Engla-land, the land of Englishmen, England. The same vigorous rule which secured rest for the country during these years of national union told on the growth of material prosperity. Commerce sprang into a wider life. Its extension is seen in the complaint that men learned fierceness from the Saxon of Germany, effeminacy from the Fleming, and drunkenness from the Dane. The laws of Æthelred which provide for the protection and regulation of foreign trade only recognize a state of things which grew up under Eadgar. "Men of the Empire," traders of Lower Lorraine and the Rhine-land, "Men of Rouen," traders from the new Norman duchy of the Seine, were seen in the streets of London. It was in Eadgar's day indeed that London rose to the commercial greatness it has held ever since.

Eadward the Martyr

Though Eadgar reigned for sixteen years, he was still in the prime of manhood when he died in 975. His death gave a fresh opening to the great nobles. He had bequeathed the crown to his elder son Eadward; but the ealdorman of East-Anglia, Æthelwine, rose at once to set a younger child, Æthelred, on the throne. But the two primates of Canterbury and York who had joined in setting the crown on the head of Eadgar now joined in setting it on the head of Eadward, and Dunstan remained as before master of the realm. The boy's reign however was troubled by strife between the monastic party and their opponents till in 979 the quarrel was cut short by his murder at Corfe, and with the accession of Æthelred, the power of Dunstan made way for that of ealdorman Æthelwine and the queen-mother. Some years of tranquillity followed this victory; but though Æthelwine preserved order at

home he showed little sense of the danger which threatened from abroad. The North was girding itself for a fresh, onset on England. The Scandinavian peoples had drawn together into their kingdoms of Denmark, Sweden, and Norway; and it was no longer in isolated bands but in national hosts that they were about to seek conquests in the South. As Æthelred drew to manhood some chance descents on the coast told of this fresh stir in the North, and the usual result of the northman's presence was seen in new risings among the Welsh.

Æthelred

In 991 ealdorman Brihtnoth of East-Anglia fell in battle with a Norwegian force at Maldon, and the withdrawal of the pirates had to be bought by money. Æthelwine too died at this moment, and the death of the two ealdormen left Æthelred free to act as King. But his aim was rather to save the Crown from his nobles than England from the northmen. Handsome and pleasant of address, the young King's pride showed itself in a string of imperial titles, and his restless and self-confident temper drove him to push the pretensions of the Crown to their furthest extent. His aim throughout his reign was to free himself from the dictation of the great nobles, and it was his indifference to their "rede" or counsel that won him the name of "Æthelred the Redeless." From the first he struck boldly at his foes, and Ælfric, the ealdorman of Central Wessex, whom the death of his rival Æthelwine left supreme in the realm, was driven possibly by fear to desert to a Danish force which he was sent in 992 to drive from the coast. Æthelred turned from his triumph at home to meet the forces of the Danish and Norwegian kings, Swein and Olaf, which anchored off London in 994. His policy through-out was a policy of diplomacy rather than of arms, and a treaty of subsidy gave time for intrigues which parted the invaders till troubles at home drew both again to the North. Æthelrod took quick advantage of his success at home and abroad; the place of the great ealdormen in the royal councils was taken by court-thegns, in whom we see the rudiments of a ministry, while the king's fleet attacked the pirates' haunts in Cumberland and the Cotentin. But in spite of all this activity the news of a fresh invasion found England more weak and broken than ever. The rise of the "new men" only widened the breach between the court and the great nobles, and their resentment showed itself in delays which foiled

every attempt of Æthelred to meet the pirate-bands who still clung to the coast.

Swein

They came probably from the other side of the Channel, and it was to clear them away as well as secure himself against Swein's threatened descent that Æthelred took a step which brought England in contact with a land over-sea. Normandy, where the northmen had settled a hundred years before, was now growing into a great power, and it was to win the friendship of Normandy and to close its harbours against Swein that Æthelred in 1002 took the Norman Duke's daughter, Emma, to wife. The same dread of invasion gave birth to a panic of treason from the northern mercenaries whom the king had drawn to settle in the land as a fighting force against their brethren; and an order of Æthelred brought about a general massacre of them on St. Brice's day. Wedding and murder however proved feeble defences against Swein. His fleet reached the coast in 1003, and for four years he marched through the length and breadth of southern and eastern England, "lighting his war-beacons as he went" in blazing homestead and town. Then for a heavy bribe he withdrew, to prepare for a later and more terrible onset. But there was no rest for the realm. The fiercest of the Norwegian jarls took his place, and from Wessex the war extended over Mercia and East-Anglia. In 1012 Canterbury was taken and sacked, Æltheah the Archbishop dragged to Greenwich, and there in default of ransom brutally slain. The Danes set him in the midst of their husting, pelting him with bones and skulls of oxen, till one more pitiful than the rest clove his head with an axe. Meanwhile the court was torn with intrigue and strife, with quarrels between the court-thegns in their greed of power and yet fiercer quarrels between these favourites and the nobles whom they superseded in the royal councils. The King's policy of finding aid among his new ministers broke down when these became themselves ealdormen. With their local position they took up the feudal claims of independence; and Eadric, whom Æthelred raised to be ealdorman of Mercia, became a power that overawed the Crown. In this paralysis of the central authority all organization and union was lost. "Shire would not help other" when Swein returned in 1013. The war was terrible but short. Everywhere the country was pitilessly harried, churches plundered, men slaughtered. But, with the one exception of London, there was no attempt at resistance. Oxford and

Winchester flung open their gates. The thegns of Wessex submitted to the northmen at Bath. Even London was forced at last to give way, and Æthelred fled over-sea to a refuge in Normandy.

Cnut

He was soon called back again. In the opening of 1014 Swein died suddenly at Gainsborough; and the spell of terror was broken. The Witan recalled "their own born lord," and Æthelred returned to see the Danish fleet under Swein's son, Cnut, sail away to the North. It was but to plan a more terrible return. Youth of nineteen as he was, Cnut showed from the first the vigour of his temper. Setting aside his brother he made himself king of Denmark; and at once gathered a splendid fleet for a fresh attack on England, whose king and nobles were again at strife, and where a bitter quarrel between ealdorman Eadric of Mercia and Æthelred's son Eadmund Ironside broke the strength of the realm. The desertion of Eadric to Cnut as soon as he appeared off the coast threw open England to his arms; Wessex and Mercia submitted to him; and though the loyalty of London enabled Eadmund, when his father's death raised him in 1016 to the throne, to struggle bravely for a few months against the Danes, a decisive overthrow at Assandun and a treaty of partition which this wrested from him at Olney were soon followed by the young king's death. Cnut was left master of the realm. His first acts of government showed little but the temper of the mere northman, passionate, revengeful, uniting the guile of the savage with his thirst for blood. Eadric of Mercia, whose aid had given him the Crown, was felled by an axe-blow at the king's signal; a murder removed Eadwig, the brother of Eadmund Ironside, while the children of Eadmund were hunted even into Hungary by his ruthless hate. But from a savage such as this the young conqueror rose abruptly into a wise and temperate king. His aim during twenty years seems to have been to obliterate from men's minds the foreign character of his rule and the bloodshed in which it had begun.

Conqueror indeed as he was, the Dane was no foreigner in the sense that the Norman was a foreigner after him. His language differed little from the English tongue. He brought in no new system of tenure or government. Cnut ruled in fact not as a foreign conqueror but as a native king. He dismissed his Danish host, and retaining only a trained band of household troops or "hus-carls" to serve as a body-guard relied boldly for support

within his realm on the justice and good government he secured it. He fell back on "Eadgar's Law," on the old constitution of the realm, for his rule of government; and owned no difference between Dane and Englishman among his subjects. He identified himself even with the patriotism which had withstood the stranger. The Church had been the centre of the national resistance; Archbishop Ælfheah had been slain by Danish hands. But Cnut sought the friendship of the Church; he translated Ælfheah's body with great pomp to Canterbury; he atoned for his father's ravages by gifts to the religious houses; he protected English pilgrims even against the robber-lords of the Alps. His love for monks broke out in a song which he composed as he listened to their chaunt at Ely. "Merrily sang the monks of Ely when Cnut King rowed by" across the vast fen-waters that surrounded their abbey. "Row, boatmen, near the land, and hear we these monks sing." A letter which Cnut wrote after twelve years of rule to his English subjects marks the grandeur of his character and the noble conception he had formed of kingship. "I have vowed to God to lead a right life in all things," wrote the king, "to rule justly and piously my realms and subjects, and to administer just judgement to all. If heretofore I have done aught beyond what was just, through headiness or negligence of youth, I am ready, with God's help, to amend it utterly." No royal officer, either for fear of the king or for favour of any, is to consent to injustice, none is to do wrong to rich or poor "as they would value my friendship and their own well-being." He especially denounces unfair exactions: "I have no need that money be heaped together for me by unjust demands." "I have sent this letter before me," Cnut ends, "that all the people of my realm may rejoice in my well-doing; for as you yourselves know, never have I spared, nor will I spare, to spend myself and my toil in what is needful and good for my people."

Cnut and Scotland

Cnut's greatest gift to his people was that of peace. With him began the long internal tranquillity which was from this time to be the keynote of the national history. Without, the Dane was no longer a terror; on the contrary it was English ships and English soldiers who now appeared in the North and followed Cnut in his campaigns against Wend or Norwegian. Within, the exhaustion which follows a long anarchy gave fresh strength to the Crown, and Cnut's own ruling temper was backed by the force of hus-carls at his disposal. The four Earls of Northumberland, Mercia, Wessex, and East-

Anglia, whom he set in the place of the older caldormen, knew themselves to be the creatures of his will; the ablest indeed of their number, Godwine, earl of Wessex, was the minister or close counsellor of the King. The troubles along the Northern border were ended by a memorable act of policy. From Eadgar's day the Scots had pressed further and further across the Firth of Forth till a victory of their king Malcolm over Earl Eadwulf at Carham in 1018 made him master of Northern Northumbria. In 1031 Cnut advanced to the North, but the quarrel ended in a formal cession of the district between the Forth and the Tweed, Lothian as it was called, to the Scot-king on his doing homage to Cnut. The gain told at once on the character of the Northern kingdom. The kings of the Scots had till now been rulers simply of Gaelic and Celtic peoples; but from the moment that Lothian with its English farmers and English seamen became a part of their dominions it became the most important part. The kings fixed their seat at Edinburgh, and in the midst of an English population passed from Gaelic chieftains into the Saxon rulers of a mingled people.

Cnut's Sons

But the greatness of Cnut's rule hung solely on the greatness of his temper, and the Danish power was shaken by his death in 1035. The empire he had built up at once fell to pieces. He had bequeathed both England and Denmark to his son Harthacnut; but the boy's absence enabled his brother, Harald Harefoot, to acquire all England save Godwine's earldom of Wessex, and in the end even Godwine was forced to submit to him. Harald's death in 1040 averted a conflict between the brothers, and placed Harthacnut quietly on the throne. But the love which Cnut's justice had won turned to hatred before the lawlessness of his successors. The long peace sickened men of their bloodshed and violence. "Never was a bloodier deed done in the land since the Danes came," ran a popular song, when Harald's men seized Ælfred, a brother of Eadmund Ironside, who returned to England from Normandy where he had found a refuge since his father's flight to its shores. Every tenth man among his followers was killed, the rest sold for slaves, and Ælfred's eyes torn out at Ely. Harthacnut, more savage than his predecessor, dug up his brother's body and flung it into a marsh; while a rising at Worcester against his hus-carls was punished by the burning of the town and the pillage of the shire. The young king's death was no less brutal than his life; in 1042 "he died as he stood at his drink in the house of Osgod

Clapa at Lambeth." England wearied of rulers such as these: but their crimes helped her to free herself from the impossible dream of Cnut. The North, still more barbarous than herself, could give her no new element of progress or civilization. It was the consciousness of this and a hatred of rulers such as Harald and Harthacnut which co-operated with the old feeling of reverence for the past in calling back the line of Ælfred to the throne.

Eadward the Confessor

It is in such transitional moments of a nation's history that it needs the cool prudence, the sensitive selfishness, the quick perception of what is possible, which distinguished the adroit politician whom the death of Cnut left supreme in England. Originally of obscure origin, Godwine's ability had raised him high in the royal favour; he was allied to Cnut by marriage, entrusted by him with the earldom of Wessex, and at last made the Viceroy or justiciar of the King in the government of the realm. In the wars of Scandinavia he had shown courage and skill at the head of a body of English troops, but his true field of action lay at home. Shrewd, eloquent, an active administrator, Godwine united vigilance, industry, and caution with a singular dexterity in the management of men. During the troubled years that followed the death of Cnut he did his best to continue his master's policy in securing the internal union of England under a Danish sovereign and in preserving her connexion with the North. But at the death of Harthacnut Cnut's policy had become impossible, and abandoning the Danish cause Godwine drifted with the tide of popular feeling which called Eadward, the one living son of Æthelred, to the throne. Eadward had lived from his youth in exile at the court of Normandy. A halo of tenderness spread in after-time round this last king of the old English stock; legends told of his pious simplicity, his blitheness and gentleness of mood, the holiness that gained him his name of "Confessor" and enshrined him as a saint in his abbey-church at Westminster. Gleemen sang in manlier tones of the long peace and glories of his reign, how warriors and wise counsellors stood round his throne, and Welsh and Scot and Briton obeyed him. His was the one figure that stood out bright against the darkness when England lay trodden under foot by Norman conquerors; and so dear became his memory that liberty and independence itself seemed incarnate in his name. Instead of freedom, the subjects of William or Henry called for the "good laws of Eadward the Confessor." But it was as a mere shadow of the past that the exile really

returned to the throne of Ælfred; there was something shadow-like in his thin form, his delicate complexion, his transparent womanly hands; and it is almost as a shadow that he glides over the political stage. The work of government was done by sterner hands.

Godwine

Throughout his earlier reign, in fact, England lay in the hands of its three Earls, Siward of Northumbria, Leofric of Mercia, and Godwine of Wessex, and it seemed as if the feudal tendency to provincial separation against which Æthelred had struggled was to triumph with the death of Cnut. What hindered this severance was the greed of Godwine. Siward was isolated in the North: Leofric's earldom was but a fragment of Mercia. But the Earl of Wessex, already master of the wealthiest part of England, seized district after district for his house. His son Swein secured an earldom in the south-west; his son Harold became earl of East-Anglia; his nephew Beorn was established in Central England: while the marriage of his daughter Eadgyth to the king himself gave Godwine a hold upon the throne. Policy led the earl, as it led his son, rather to aim at winning England itself than at breaking up England to win a mere fief in it. But his aim found a sudden check through the lawlessness of his son Swein. Swein seduced the abbess of Leominster, sent her home again with a yet more outrageous demand of her hand in marriage, and on the king's refusal to grant it fled from the realm. Godwine's influence secured his pardon, but on his very return to seek it Swein murdered his cousin Beorn who had opposed the reconciliation and again fled to Flanders. A storm of national indignation followed him over-sea. The meeting of the Wise men branded him as "nithing," the "utterly worthless," yet in a year his father wrested a new pardon from the King and restored him to his earldom. The scandalous inlawing of such a criminal left Godwine alone in a struggle which soon arose with Eadward himself. The king was a stranger in his realm, and his sympathies lay naturally with the home and friends of his youth and exile. He spoke the Norman tongue. He used in Norman fashion a seal for his charters. He set Norman favourites in the highest posts of Church and State. Foreigners such as these, though hostile to the minister, were powerless against Godwine's influence and ability, and when at a later time they ventured to stand alone against him they fell without a blow. But the general ill-will at Swein's inlawing enabled them to stir Eadward to attack

the earl, and in 1051 a trivial quarrel brought the opportunity of a decisive break with him. On his return from a visit to the court Eustace, Count of Boulogne, the husband of the king's sister, demanded quarters for his train in Dover. Strife arose, and many both of the burghers and foreigners were slain. All Godwine's better nature withstood Eadward when the king angrily bade him exact vengeance from the town for the affront to his kinsman; and he claimed a fair trial for the townsmen. But Eadward looked on his refusal as an outrage, and the quarrel widened into open strife. Godwine at once gathered his forces and marched upon Gloucester, demanding the expulsion of the foreign favourites. But even in a just quarrel the country was cold in his support. The earls of Mercia and Northumberland united their forces to those of Eadward at Gloucester, and marched with the king to a gathering of the Witenagemot at London. Godwine again appeared in arms, but Swein's outlawry was renewed, and the Earl of Wessex, declining with his usual prudence a useless struggle, withdrew over sea to Flanders.

Harold

But the wrath of the nation was appeased by his fall. Great as were Godwine's faults, he was the one man who now stood between England and the rule of the strangers who flocked to the Court; and a year had hardly passed when he was strong enough to return. At the appearance of his fleet in the Thames in 1052 Eadward was once more forced to yield. The foreign prelates and bishops fled over sea, outlawed by the same meeting of the Wise men which restored Godwine to his home. But he returned only to die, and the direction of affairs passed quietly to his son Harold. Harold came to power unfettered by the obstacles which beset his father, and for twelve years he was the actual governor of the realm. The courage, the ability, the genius for administration, the ambition and subtlety of Godwine were found again in his son. In the internal government of England he followed out his father's policy while avoiding its excesses. Peace was preserved, justice administered, and the realm increased in wealth and prosperity. Its gold work and embroidery became famous in the markets of Flanders and France. Disturbances from without were crushed sternly and rapidly; Harold's military talents displayed themselves in a campaign against Wales, and in the boldness and rapidity with which, arming his troops with weapons adapted for mountain conflict, he penetrated to the heart of its fastnesses and reduced the country to complete submission. With the gift of

the Northumbrian earldom on Siward's death to his brother Tostig all England save a small part of the older Mercia lay in the hands of the house of Godwine, and as the waning health of the king, the death of his nephew, the son of Eadmund who had returned from Hungary as his heir, and the childhood of the Ætheling Eadgar who stood next in blood, removed obstacle after obstacle to his plans, Harold patiently but steadily moved forward to the throne.

Normandy

But his advance was watched by one even more able and ambitious than himself. For the last half-century England had been drawing nearer to the Norman land which fronted it across the Channel. As we pass nowadays through Normandy, it is English history which is round about us. The name of hamlet after hamlet has memories for English ears; a fragment of castle wall marks the home of the Bruce, a tiny village preserves the name of the Percy. The very look of the country and its people seem familiar to us; the Norman peasant in his cap and blouse recalls the build and features of the small English farmer; the fields about Caen, with their dense hedgerows, their elms, their apple-orchards, are the very picture of an English countryside. Huge cathedrals lift themselves over the red-tiled roofs of little market towns, the models of stately fabrics which superseded the lowlier churches of Ælfred or Dunstan, while the windy heights that look over orchard and meadowland are crowned with the square grey keeps which Normandy gave to the cliffs of Richmond and the banks of Thames. It was Hrolf the Ganger, or Walker, a pirate leader like Guthrum or Hasting, who wrested this land from the French king, Charles the Simple, in 912, at the moment when Ælfred's children were beginning their conquest of the English Danelaw. The treaty of Clair-on-Epte in which France purchased peace by this cession of the coast was a close imitation of the Peace of Wedmore. Hrolf, like Guthrum, was baptized, received the king's daughter in marriage, and became his vassal for the territory which now took the name of "the Northman's land" or Normandy. But vassalage and the new faith sat lightly on the Dane. No such ties of blood and speech tended to unite the northman with the French among whom he settled along the Seine as united him to the Englishmen among whom he settled along the Humber. William Longsword, the son of Hrolf, though wavering towards France and Christianity, remained a northman in heart; he called in a Danish colony to

occupy his conquest of the Cotentin, the peninsula which runs out from St. Michael's Mount to the cliffs of Cherbourg, and reared his boy among the northmen of Bayeux where the Danish tongue and fashions most stubbornly held their own. A heathen reaction followed his death, and the bulk of the Normans, with the child Duke Richard, fell away for the time from Christianity, while new pirate-fleets came swarming up the Seine. To the close of the century the whole people were still "Pirates" to the French around them, their land the "Pirates' land," their Duke the "Pirates' Duke." Yet in the end the same forces which merged the Dane in the Englishman told even more powerfully on the Dane in France. No race has ever shown a greater power of absorbing all the nobler characteristics of the peoples with whom they came in contact, or of infusing their own energy into them. During the long reign of Duke Richard the Fearless, the son of William Longsword, a reign which lasted from 945 to 996, the heathen Norman pirates became French Christians and feudal at heart. The old Norse language lived only at Bayeux and in a few local names. As the old Northern freedom died silently away, the descendants of the pirates became feudal nobles and the "Pirates' land" sank into the most loyal of the fiefs of France.

Duke William

From the moment of their settlement on the Frankish coast, the Normans had been jealously watched by the English kings; and the anxiety of Æthelred for their friendship set a Norman woman on the English throne. The marriage of Emma with Æthelred brought about a close political connexion between the two countries. It was in Normandy that the King found a refuge from Swein's invasion, and his younger boys grew up in exile at the Norman court. Their presence there drew the eyes of every Norman to the rich land which offered so tempting a prey across the Channel. The energy which they had shown in winning their land from the Franks, in absorbing the French civilization and the French religion, was now showing itself in adventures on far-off shores, in crusades against the Moslem of Spain or the Arabs of Sicily. It was this spirit of adventure that roused the Norman Duke Robert to sail against England in Cnut's day under pretext of setting Æthelred's children on its throne, but the wreck of his fleet in a storm put an end to a project which might have anticipated the work of his son. It was that son, William the Great, as men of his own day styled

him, William the Conqueror as he was to stamp himself by one event on English history, who was now Duke of Normandy. The full grandeur of his indomitable will, his large and patient statesmanship, the loftiness of aim which lifts him out of the petty incidents of his age, were as yet only partly disclosed. But there never had been a moment from his boyhood when he was not among the greatest of men. His life from the very first was one long mastering of difficulty after difficulty. The shame of his birth remained in his name of "the Bastard." His father Robert had seen Arlotta, a tanner's daughter of the town, as she washed her linen in a little brook by Falaise; and loving her he had made her the mother of his boy. The departure of Robert on a pilgrimage from which he never returned left William a child-ruler among the most turbulent baronage in Christendom; treason and anarchy surrounded him as he grew to manhood; and disorder broke at last into open revolt. But in 1047 a fierce combat of horse on the slopes of Val-ès-dunes beside Caen left the young Duke master of his duchy and he soon made his mastery felt. "Normans" said a Norman poet "must be trodden down and kept under foot, for he only that bridles them may use them at his need." In the stern order he forced on the land Normandy from this hour felt the bridle of its Duke.

William and France

Secure at home, William seized the moment of Godwine's exile to visit England, and received from his cousin, King Eadward, as he afterwards asserted, a promise of succession to his throne. Such a promise however, unconfirmed by the Witenagemot, was valueless; and the return of Godwine must have at once cut short the young Duke's hopes. He found in fact work enough to do in his own duchy, for the discontent of his baronage at the stern justice of his rule found support in the jealousy which his power raised in the states around him, and it was only after two great victories at Mortemer and Varaville and six years of hard fighting that outer and inner foes were alike trodden under foot. In 1060 William stood first among the princes of France. Maine submitted to his rule. Brittany was reduced to obedience by a single march. While some of the rebel barons rotted in the Duke's dungeons and some were driven into exile, the land settled down into a peace which gave room for a quick upgrowth of wealth and culture. Learning and education found their centre in the school of Bec, which the teaching of a Lombard scholar, Lanfranc, raised in a few years into the most

famous school of Christendom. Lanfranc's first contact with William, if it showed the Duke's imperious temper, showed too his marvellous insight into men. In a strife with the Papacy which William provoked by his marriage with Matilda, a daughter of the Count of Flanders, Lanfranc took the side of Rome. His opposition was met by a sentence of banishment, and the Prior had hardly set out on a lame horse, the only one his house could afford, when he was overtaken by the Duke, impatient that he should quit Normandy. "Give me a better horse and I shall go the quicker," replied the imperturbable Lombard, and William's wrath passed into laughter and good will. From that hour Lanfranc became his minister and counsellor, whether for affairs in the duchy itself or for the more daring schemes of ambition which opened up across the Channel.

William and England

William's hopes of the English crown are said to have been revived by a storm which threw Harold, while cruising in the Channel, on the coast of Ponthieu. Its count sold him to the Duke; and as the price of return to England William forced him to swear on the relics of saints to support his claim to its throne. But, true or no, the oath told little on Harold's course. As the childless King drew to his grave one obstacle after another was cleared from the earl's path. His brother Tostig had become his most dangerous rival; but a revolt of the Northumbrians drove Tostig to Flanders, and the earl was able to win over the Mercian house of Leofric to his cause by owning Morkere, the brother of the Mercian Earl Eadwine, as his brother's successor. His aim was in fact attained without a struggle. In the opening of 1066 the nobles and bishops who gathered round the death-bed of the Confessor passed quietly from it to the election and coronation of Harold. But at Eouen the news was welcomed with a burst of furious passion, and the Duke of Normandy at once prepared to enforce his claim by arms. William did not claim the Crown. He claimed simply the right which he afterwards used when his sword had won it of presenting himself for election by the nation, and he believed himself entitled so to present himself by the direct commendation of the Confessor. The actual election of Harold which stood in his way, hurried as it was, he did not recognize as valid. But with this constitutional claim was inextricably mingled resentment at the private wrong which Harold had done him, and a resolve to exact vengeance on the man whom he regarded as untrue to his oath. The

difficulties in the way of his enterprise were indeed enormous. He could reckon on no support within England itself. At home he had to extort the consent of his own reluctant baronage; to gather a motley host from every quarter of France and to keep it together for months; to create a fleet, to cut down the very trees, to build, to launch, to man the vessels; and to find time amidst all this for the common business of government, for negotiations with Denmark and the Empire, with France, Brittany, and Anjou, with Flanders and with Rome which had been estranged from England by Archbishop Stigand's acceptance of his pallium from one who was not owned as a canonical Pope.

Stamford Bridge

But his rival's difficulties were hardly less than his own. Harold was threatened with invasion not only by William but by his brother Tostig, who had taken refuge in Norway and secured the aid of its king, Harald Hardrada. The fleet and army he had gathered lay watching for months along the coast. His one standing force was his body of hus-carls, but their numbers only enabled them to act as the nucleus of an army. On the other hand the Land-fyrd or general levy of fighting-men was a body easy to raise for any single encounter but hard to keep together. To assemble such a force was to bring labour to a standstill. The men gathered under the King's standard were the farmers and ploughmen of their fields. The ships were the fishing-vessels of the coast. In September the task of holding them together became impossible, but their dispersion had hardly taken place when the two clouds which had so long been gathering burst at once upon the realm. A change of wind released the landlocked armament of William; but before changing, the wind which prisoned the Duke brought the host of Tostig and Harald Hardrada to the coast of Yorkshire. The King hastened with his household troops to the north and repulsed the Norwegians in a decisive overthrow at Stamford Bridge, but ere he could hurry back to London the Norman host had crossed the sea and William, who had anchored on the twenty-eighth of September off Pevensey, was ravaging the coast to bring his rival to an engagement. His merciless ravages succeeded in drawing Harold from London to the south; but the King wisely refused to attack with the troops he had hastily summoned to his banner. If he was forced to give battle, he resolved to give it on ground he had himself chosen, and advancing near enough to the coast to check William's ravages he

entrenched himself on a hill known afterwards as that of Senlac, a low spur of the Sussex downs near Hastings. His position covered London and drove William to concentrate his forces. With a host subsisting by pillage, to concentrate is to starve; and no alternative was left to the Duke but a decisive victory or ruin.

Battle of Hastings

On the fourteenth of October William led his men at dawn along the higher ground that leads from Hastings to the battle-field which Harold had chosen. From the mound of Telham the Normans saw the host of the English gathered thickly behind a rough trench and a stockade on the height of Senlac. Marshy ground covered their right; on the left, the most exposed part of the position, the hus-carls or body-guard of Harold, men in full armour and wielding huge axes, were grouped round the Golden Dragon of Wessex and the Standard of the King. The rest of the ground was covered by thick masses of half-armed rustics who had flocked at Harold's summons to the fight with the stranger. It was against the centre of this formidable position that William arrayed his Norman knighthood, while the mercenary forces he had gathered in France and Brittany were ordered to attack its flanks. A general charge of the Norman foot opened the battle; in front rode the minstrel Taillefer, tossing his sword in the air and catching it again while he chaunted the song of Roland. He was the first of the host who struck a blow, and he was the first to fall. The charge broke vainly on the stout stockade behind which the English warriors plied axe and javelin with fierce cries of "Out, out," and the repulse of the Norman footmen was followed by a repulse of the Norman horse. Again and again the Duke rallied and led them to the fatal stockade. All the fury of fight that glowed in his Norseman's blood, all the headlong valour that spurred him over the slopes of Val-ès-dunes, mingled that day with the coolness of head, the dogged perseverance, the inexhaustible faculty of resource which shone at Mortemer and Varaville. His Breton troops, entangled in the marshy ground on his left, broke in disorder, and as panic spread through the army a cry arose that the Duke was slain. William tore off his helmet; "I live," he shouted, "and by God's help I will conquer yet." Maddened by a fresh repulse, the Duke spurred right at the Standard; unhorsed, his terrible mace struck down Gyrth, the King's brother; again dismounted, a blow from his hand hurled to the ground an unmannerly rider who would not lend him his

steed. Amidst the roar and tumult of the battle he turned the flight he had arrested into the means of victory. Broken as the stockade was by his desperate onset, the shield-wall of the warriors behind it still held the Normans at bay till William by a feint of flight drew a part of the English force from their post of vantage. Turning on his disorderly pursuers, the Duke cut them to pieces, broke through the abandoned line, and made himself master of the central ground. Meanwhile the French and Bretons made good their ascent on either flank. At three the hill seemed won, at six the fight still raged around the Standard where Harold's hus-carls stood stubbornly at bay on a spot marked afterwards by the high altar of Battle Abbey. An order from the Duke at last brought his archers to the front. Their arrow-flight told heavily on the dense masses crowded around the King and as the sun went down a shaft pierced Harold's right eye. He fell between the royal ensigns, and the battle closed with a desperate melée over his corpse.

Night covered the flight of the English army: but William was quick to reap the advantage of his victory. Securing Romney and Dover, he marched by Canterbury upon London. Faction and intrigue were doing his work for him as he advanced; for Harold's brothers had fallen with the King on the field of Senlac, and there was none of the house of Godwine to contest the crown. Of the old royal line there remained but a single boy, Eadgar the Ætheling. He was chosen king; but the choice gave little strength to the national cause. The widow of the Confessor surrendered Winchester to the Duke. The bishops gathered at London inclined to submission. The citizens themselves faltered as William, passing by their walls, gave Southwark to the flames. The throne of the boy-king really rested for support on the Earls of Mercia and Northumbria, Eadwine and Morkere; and William, crossing the Thames at Wallingford and marching into Hertfordshire, threatened to cut them off from their earldoms. The masterly movement forced the Earls to hurry home, and London gave way at once. Eadgar himself was at the head of the deputation who came to offer the crown to the Norman Duke. "They bowed to him," says the English annalist pathetically, "for need." They bowed to the Norman as they had bowed to the Dane, and William accepted the crown in the spirit of Cnut. London indeed was secured by the erection of a fortress which afterwards grew into the Tower, but William desired to reign not as a Conqueror but as a lawful king. At Christmas he

received the crown at Westminster from the hands of Archbishop Ealdred amid shouts of "Yea, Yea," from his new English subjects. Fines from the greater landowners atoned for a resistance which now counted as rebellion; but with this exception every measure of the new sovereign showed his desire of ruling as a successor of Eadward or Ælfred. As yet indeed the greater part of England remained quietly aloof from him, and he can hardly be said to have been recognized as king by Northumberland or the greater part of Mercia. But to the east of a line which stretched from Norwich to Dorsetshire his rule was unquestioned, and over this portion he ruled as an English king. His soldiers were kept in strict order. No change was made in law or custom. The privileges of London were recognized by a royal writ which still remains, the most venerable of its muniments, among the city's archives. Peace and order were restored. William even attempted, though in vain, to learn the English tongue that he might personally administer justice to the suitors in his court. The kingdom seemed so tranquil that only a few months had passed after the battle of Senlac when leaving England in charge of his brother, Odo Bishop of Bayeux, and his minister, William Fitz-Osbern, the King returned in 1067 for a while to Normandy. The peace he left was soon indeed disturbed. Bishop Odo's tyranny forced the Kentishmen to seek aid from Count Eustace of Boulogne; while the Welsh princes supported a similar rising against Norman oppression in the west. But as yet the bulk of the land held fairly to the new king. Dover was saved from Eustace; and the discontented fled over sea to seek refuge in lands as far off as Constantinople, where Englishmen from this time formed great part of the body-guard or Varangians of the Eastern Emperors. William returned to take his place again as an English king. It was with an English force that he subdued a rising in the south-west with Exeter at its head, and it was at the head of an English army that he completed his work by marching to the North. His march brought Eadwine and Morkere again to submission; a fresh rising ended in the occupation of York, and England as far as the Tees lay quietly at William's feet.

The Norman Conquest

It was in fact only the national revolt of 1068 that transformed the King into a conqueror. The signal for this revolt came from Swein, king of Denmark, who had for two years past been preparing to dispute England with the Norman, but on the appearance of his fleet in the Humber all

northern, all western and south-western England rose as one man. Eadgar the Ætheling with a band of exiles who had found refuge in Scotland took the head of the Northumbrian revolt; in the south-west the men of Devon, Somerset, and Dorset gathered to the sieges of Exeter and Montacute; while a new Norman castle at Shrewsbury alone bridled a rising in the West. So ably had the revolt been planned that even William was taken by surprise. The outbreak was heralded by a storm of York and the slaughter of three thousand Normans who formed its garrison. The news of this slaughter reached William as he was hunting in the forest of Dean; and in a wild outburst of wrath he swore "by the splendour of God" to avenge himself on the North. But wrath went hand in hand with the coolest statesmanship. The centre of resistance lay in the Danish fleet, and pushing rapidly to the Humber with a handful of horsemen William bought at a heavy price its inactivity and withdrawal. Then turning westward with the troops that gathered round him he swept the Welsh border and relieved Shrewsbury while William Fitz-Osbern broke the rising around Exeter. His success set the King free to fulfil his oath of vengeance on the North. After a long delay before the flooded waters of the Aire he entered York and ravaged the whole country as far as the Tees. Town and village were harried and burned, their inhabitants were slain or driven over the Scottish border. The coast was especially wasted that no hold might remain for future landings of the Danes. Crops, cattle, the very implements of husbandry were so mercilessly destroyed that a famine which followed is said to have swept off more than a hundred thousand victims. Half a century later indeed the land still lay bare of culture and deserted of men for sixty miles northward of York. The work of vengeance once over, William led his army back from the Tees to York, and thence to Chester and the West. Never had he shown the grandeur of his character so memorably as in this terrible march. The winter was hard, the roads choked with snowdrifts or broken by torrents, provisions failed; and his army, storm-beaten and forced to devour its horses for food, broke out into mutiny at the order to cross the bleak moorlands that part Yorkshire from the West. The mercenaries from Anjou and Brittany demanded their release from service. William granted their prayer with scorn. On foot, at the head of the troops which still clung to him, he forced his way by paths inaccessible to horses, often helping the men with his own hands to clear the road, and as the army descended upon Chester the resistance of the English died away.

For two years William was able to busy himself in castle-building and in measures for holding down the conquered land. How effective these were was seen when the last act of the conquest was reached. All hope of Danish aid was now gone, but Englishmen still looked for help to Scotland where Eadgar the Ætheling had again found refuge and where his sister Margaret had become wife of King Malcolm. It was probably some assurance of Malcolm's aid which roused the Mercian Earls, Eadwine and Morkere, to a fresh rising in 1071. But the revolt was at once foiled by the vigilance of the Conqueror. Eadwine fell in an obscure skirmish, while Morkere found shelter for a while in the fen country where a desperate band of patriots gathered round an outlawed leader, Hereward. Nowhere had William found so stubborn a resistance: but a causeway two miles long was at last driven across the marshes, and the last hopes of English freedom died in the surrender of Ely. It was as the unquestioned master of England that William marched to the North, crossed the Lowlands and the Forth, and saw Malcolm appear in his camp upon the Tay to swear fealty at his feet.

BOOK II
ENGLAND UNDER FOREIGN KINGS
1071-1204

AUTHORITIES FOR BOOK II

1071-1204

Among the Norman chroniclers Orderic becomes from this point particularly valuable and detailed. The Chronicle and Florence of Worcester remain the primary English authorities, while Simeon of Durham gives much special information on northern matters. For the reign of William the Red the chief source of information is Eadmer, a monk of Canterbury, in his "Historia Noverum" and "Life of Anselm." William of Malmesbury and Henry of Huntingdon are both contemporary authorities during that of Henry the First; the latter remains a brief but accurate annalist; the former is the leader of a new historic school, who treat English events as part of the history of the world, and emulate classic models by a more philosophical arrangement of their materials. To these the opening of Stephen's reign adds the "Gesta Stephani," a record in great detail by one of the King's clerks, and the Hexham Chroniclers.

All this wealth of historical material however suddenly leaves us in the chaos of civil war. Even the Chronicle dies out in the midst of Stephen's reign, and the close at the same time of the works we have noted leaves a blank in our historical literature which extends over the early years of Henry the Second. But this dearth is followed by a vast outburst of historical industry. For the Becket struggle we have the mass of the Archbishop's own correspondence with that of Foliot and John of Salisbury. From 1169 to 1192 our primary authority is the Chronicle known as that of Benedict of Peterborough, whose authorship Professor Stubbs has shown to be more probably due to the royal treasurer, Bishop Richard Fitz-Neal. This is continued to 1201 by Roger of Howden in a record of equally official value. William of Newburgh's history, which ends in 1198, is a work of the classical school, like William of Malmesbury's. It is distinguished by its fairness and good sense. To these may be added the Chronicle of Ralph Niger, with the additions of Ralph of Coggeshall, that of Gervase of Canterbury, and the interesting life of St. Hugh of Lincoln.

But the intellectual energy of Henry the Second's time is shown even more remarkably in the mass of general literature which lies behind these distinctively historical sources, in the treatises of John of Salisbury, the voluminous works of Giraldus Cambrensis, the "Trifles" and satires of Walter Map, Glanvill's treatise on Law, Richard Fitz-Neal's "Dialogue on the Exchequer," to which we owe our knowledge of Henry's financial system, the romances of Gaimar and of Wace, the poem of the San Graal. But this intellectual fertility is far from ceasing with Henry the Second. The thirteenth century has hardly begun when the romantic impulse quickens even the old English tongue in the long poem of Layamon. The Chronicle of Richard of Devizes and an "Itinerarium Regis" supplement Roger of Howden for Richard's reign. With John we enter upon the Annals of Barnwell and are aided by the invaluable series of the Chroniclers of St. Albans. Among the side topics of the time, we may find much information as to the Jews in Toovey's "Anglia Judaica"; the Chronicle of Jocelyn of Brakelond gives us a peep into social and monastic life; the Cistercian revival may be traced in the records of the Cistercian abbeys in Dugdale's Monasticon; the Charter Rolls give some information as to municipal history; and constitutional developement may be traced in the documents collected by Professor Stubbs in his "Select Charters."

CHAPTER I

THE CONQUEROR

1071-1085

The Foreign Kings

In the five hundred years that followed the landing of Hengest Britain had become England, and its conquest had ended in the settlement of its conquerors, in their conversion to Christianity, in the birth of a national literature, of an imperfect civilization, of a rough political order. But through the whole of this earlier age every attempt to fuse the various tribes of conquerors into a single nation had failed. The effort of Northumbria to extend her rule over all England had been foiled by the resistance of Mercia; that of Mercia by the resistance of Wessex. Wessex herself, even under the guidance of great kings and statesmen, had no sooner reduced the country to a seeming unity than local independence rose again at the call of the Northmen. The sense of a single England deepened with the pressure of the invaders; the monarchy of Ælfred and his house broadened into an English kingdom; but still tribal jealousies battled with national unity. Northumbrian lay apart from West-Saxon, Northman from Englishman. A common national sympathy held the country roughly together, but a real national union had yet to come. It came with foreign rule. The rule of the Danish kings broke local jealousies as they had never been broken before, and bequeathed a new England to Godwine and the Confessor. But Cnut was more Englishman than Northman, and his system of government was an English system. The true foreign yoke was only felt when England saw its conqueror in William the Norman.

For nearly a century and a half, from the hour when William turned triumphant from the fens of Ely to the hour when John fled defeated from Norman shores, our story is one of foreign masters. Kings from Normandy were followed by kings from Anjou. But whether under Norman or Angevin Englishmen were a subject race, conquered and ruled by men of strange

blood and of strange speech. And yet it was in these years of subjection that England first became really England. Provincial differences were finally crushed into national unity by the pressure of the stranger. The firm government of her foreign kings secured the land a long and almost unbroken peace in which the new nation grew to a sense of its oneness, and this consciousness was strengthened by the political ability which in Henry the First gave it administrative order and in Henry the Second built up the fabric of its law. New elements of social life were developed alike by the suffering and the prosperity of the times. The wrong which had been done by the degradation of the free landowner into a feudal dependant was partially redressed by the degradation of the bulk of the English lords themselves into a middle class as they were pushed from their place by the foreign baronage who settled on English soil; and this social change was accompanied by a gradual enrichment and elevation of the class of servile and semi-servile cultivators which had lifted them at the close of this period into almost complete freedom. The middle class which was thus created was reinforced by the upgrowth of a corresponding class in our towns. Commerce and trade were promoted by the justice and policy of the foreign kings; and with their advance rose the political importance of the trader. The boroughs of England, which at the opening of this period were for the most part mere villages, were rich enough at its close to buy liberty from the Crown and to stand ready for the mightier part they were to play in the developement of our parliament. The shame of conquest, the oppression of the conquerors, begot a moral and religious revival which raised religion into a living thing; while the close connexion with the Continent which foreign conquest brought about secured for England a new communion with the artistic and intellectual life of the world without her.

William the Conqueror

In a word, it is to the stern discipline of our foreign kings that we owe not merely English wealth and English freedom but England herself. And of these foreign masters the greatest was William of Normandy. In William the wild impulses of the northman's blood mingled strangely with the cool temper of the modern statesman. As he was the last, so he was the most terrible outcome of the northern race. The very spirit of the sea-robbers from whom he sprang seemed embodied in his gigantic form, his enormous strength, his savage countenance, his desperate bravery, the fury of his

wrath, the ruthlessness of his revenge. "No knight under heaven," his enemies owned, "was William's peer." Boy as he was at Val-ès-dunes, horse and man went down before his lance. All the fierce gaiety of his nature broke out in the warfare of his youth, in his rout of fifteen Angevins with but five men at his back, in his defiant ride over the ground which Geoffry Martel claimed from him, a ride with hawk on fist as if war and the chase were one. No man could bend William's bow. His mace crashed its way through a ring of English warriors to the foot of the Standard. He rose to his greatest height at moments when other men despaired. His voice rang out as a trumpet when his soldiers fled before the English charge at Senlac, and his rally turned the flight into a means of victory. In his winter march on Chester he strode afoot at the head of his fainting troops and helped with his own hand to clear a road through the snowdrifts. And with the northman's daring broke out the northman's pitilessness. When the townsmen of Alençon hung raw hides along their walls in scorn of the "tanner's" grandson, William tore out his prisoners' eyes, hewed off their hands and feet, and flung them into the town. Hundreds of Hampshire men were driven from their homes to make him a hunting-ground and his harrying of Northumbria left Northern England a desolate waste. Of men's love or hate he recked little. His grim look, his pride, his silence, his wild outbursts of passion, left William lonely even in his court. His subjects trembled as he passed. "So stark and fierce was he," writes the English chronicler, "that none dared resist his will." His very wrath was solitary. "To no man spake he and no man dared speak to him" when the news reached him of Harold's seizure of the throne. It was only when he passed from his palace to the loneliness of the woods that the King's temper unbent. "He loved the wild deer as though he had been their father."

His rule

It was the genius of William which lifted him out of this mere northman into a great general and a great statesman. The wary strategy of his French campaigns, the organization of his attack upon England, the victory at Senlac, the quick resource, the steady perseverance which achieved the Conquest showed the wide range of his generalship. His political ability had shown itself from the first moment of his accession to the ducal throne. William had the instinct of government. He had hardly reached manhood when Normandy lay peaceful at his feet. Revolt was crushed. Disorder was

trampled under foot. The Duke "could never love a robber," be he baron or knave. The sternness of his temper stamped itself throughout upon his rule. "Stark he was to men that withstood him," says the Chronicler of his English system of government; "so harsh and cruel was he that none dared withstand his will. Earls that did aught against his bidding he cast into bonds; bishops he stripped of their bishopricks, abbots of their abbacies. He spared not his own brother: first he was in the land, but the King cast him into bondage. If a man would live and hold his lands, need it were he followed the King's will." Stern as such a rule was, its sternness gave rest to the land. Even amidst the sufferings which necessarily sprang from the circumstances of the Conquest itself, from the erection of castles or the enclosure of forests or the exactions which built up William's hoard at Winchester, Englishmen were unable to forget "the good peace he made in the land, so that a man might fare over his realm with a bosom full of gold." Strange touches too of a humanity far in advance of his age contrasted with this general temper of the Conqueror's government. One of the strongest traits in his character was an aversion to shed blood by process of law; he formally abolished the punishment of death, and only a single execution stains the annals of his reign. An edict yet more honourable to his humanity put an end to the slave-trade which had till then been carried on at the port of Bristol. The contrast between the ruthlessness and pitifulness of his public acts sprang indeed from a contrast within his temper itself. The pitiless warrior, the stern and awful king was a tender and faithful husband, an affectionate father. The lonely silence of his bearing broke into gracious converse with pure and sacred souls like Anselm. If William was "stark" to rebel and baron, men noted that he was "mild to those that loved God."

William and feudalism

But the greatness of the Conqueror was seen in more than the order and peace which he imposed upon the land. Fortune had given him one of the greatest opportunities ever offered to a king of stamping his own genius on the destinies of a people; and it is the way in which he seized on this opportunity which has set William among the foremost statesmen of the world. The struggle which ended in the fens of Ely had wholly changed his position. He no longer held the land merely as its national and elected King. To his elective right he added the right of conquest. It is the way in which

William grasped and employed this double power that marks the originality of his political genius, for the system of government which he devised was in fact the result of this double origin of his rule. It represented neither the purely feudal system of the Continent nor the system of the older English royalty: more truly perhaps it may be said to have represented both. As the conqueror of England William developed the military organization of feudalism so far as was necessary for the secure possession of his conquests. The ground was already prepared for such an organization. We have watched the beginnings of English feudalism in the warriors, the "companions" or "thegns" who were personally attached to the king's war-band and received estates from the folk-land in reward for their personal services. In later times this feudal distribution of estates had greatly increased as the bulk of the nobles followed the king's example and bound their tenants to themselves by a similar process of subinfeudation. The pure freeholders on the other hand, the class which formed the basis of the original English society, had been gradually reduced in number, partly through imitation of the class above them, but more through the pressure of the Danish wars and the social disturbance consequent upon them which forced these freemen to seek protectors among the thegns at the cost of their independence. Even before the reign of William therefore feudalism was superseding the older freedom in England as it had already superseded it in Germany or France. But the tendency was quickened and intensified by the Conquest. The desperate and universal resistance of the country forced William to hold by the sword what the sword had won; and an army strong enough to crush at any moment a national revolt was needful for the preservation of his throne. Such an army could only be maintained by a vast confiscation of the soil, and the failure of the English risings cleared the ground for its establishment. The greater part of the higher nobility fell in battle or fled into exile, while the lower thegnhood either forfeited the whole of their lands or redeemed a portion by the surrender of the rest. We see the completeness of the confiscation in the vast estates which William was enabled to grant to his more powerful followers. Two hundred manors in Kent with more than an equal number elsewhere rewarded the services of his brother Odo, and grants almost as large fell to William's counsellors Fitz-Osbern and Montgomery or to barons like the Mowbrays and the Clares. But the poorest soldier of fortune found his part in the spoil. The meanest Norman rose to wealth and power in this new dominion of his lord.

Great or small, each manor thus granted was granted on condition of its holder's service at the King's call; a whole army was by this means encamped upon the soil; and William's summons could at any hour gather an overwhelming force around his standard.

Such a force however, effective as it was against the conquered English, was hardly less formidable to the Crown itself. When once it was established, William found himself fronted in his new realm by a feudal baronage, by the men whom he had so hardly bent to his will in Normandy, and who were as impatient of law, as jealous of the royal power, as eager for an unbridled military and judicial independence within their own manors, here as there. The political genius of the Conqueror was shown in his appreciation of this danger and in the skill with which he met it. Large as the estates he granted were, they were scattered over the country in such a way as to render union between the great landowners or the hereditary attachment of great areas of population to any one separate lord equally impossible. A yet wiser measure struck at the very root of feudalism. When the larger holdings were divided by their owners into smaller sub-tenancies, the under-tenants were bound by the same conditions of service to their lord as he to the Crown. "Hear, my lord," swore the vassal as kneeling bareheaded and without arms he placed his hands within those of his superior, "I become liege man of yours for life and limb and earthly regard; and I will keep faith and loyalty to you for life and death, God help me!" Then the kiss of his lord invested him with land as a "fief" to descend to him and his heirs for ever. In other countries such a vassal owed fealty to his lord against all foes, be they king or no. By the usage however which William enacted in England each sub-tenant, in addition to his oath of fealty to his lord, swore fealty directly to the Crown, and loyalty to the King was thus established as the supreme and universal duty of all Englishmen.

William and England

But the Conqueror's skill was shown not so much in these inner checks upon feudalism as in the counterbalancing forces which he provided without it. He was not only the head of the great garrison that held England down, he was legal and elected King of the English people. If as Conqueror he covered the country with a new military organization, as the successor of Eadward he maintained the judicial and administrative organization of the

old English realm. At the danger of a severance of the land between the greater nobles he struck a final blow by the abolition of the four great earldoms. The shire became the largest unit of local government, and in each shire the royal nomination of sheriffs for its administration concentrated the whole executive power in the King's hands. The old legal constitution of the country gave him the whole judicial power, and William was jealous to retain and heighten this. While he preserved the local courts of the hundred and the shire he strengthened the jurisdiction of the King's Court, which seems even in the Confessor's day to have become more and more a court of highest appeal with a right to call up all cases from any lower jurisdiction to its bar. The control over the national revenue which had rested even in the most troubled times in the hands of the King was turned into a great financial power by the Conqueror's system. Over the whole face of the land a large part of the manors were burthened with special dues to the Crown: and it was for the purpose of ascertaining and recording these that William sent into each county the commissioners whose enquiries are recorded in his Domesday Book. A jury empannelled in each hundred declared on oath the extent and nature of each estate, the names, number, and condition of its inhabitants, its value before and after the Conquest, and the sums due from it to the Crown. These, with the Danegeld or land-tax levied since the days of Æthelred, formed as yet the main financial resources of the Crown, and their exaction carried the royal authority in its most direct form home to every landowner. But to these were added a revenue drawn from the old Crown domain, now largely increased by the confiscations of the Conquest, the ever-growing income from the judicial "fines" imposed by the King's judges in the King's courts, and the fees and redemptions paid to the Crown on the grant or renewal of every privilege or charter. A new source of revenue was found in the Jewish traders, many of whom followed William from Normandy, and who were glad to pay freely for the royal protection which enabled them to settle in their quarters or "Jewries" in all the principal towns of England.

The Church

William found a yet stronger check on his baronage in the organization of the Church. Its old dependence on the royal power was strictly enforced. Prelates were practically chosen by the King. Homage was exacted from bishop as from baron. No royal tenant could be excommunicated save by

the King's leave. No synod could legislate without his previous assent and subsequent confirmation of its decrees. No papal letters could be received within the realm save by his permission. The King firmly repudiated the claims which were beginning to be put forward by the court of Rome. When Gregory VII. called on him to do fealty for his kingdom the King sternly refused to admit the claim. "Fealty I have never willed to do, nor will I do it now. I have never promised it, nor do I find that my predecessors did it to yours." William's reforms only tended to tighten this hold of the Crown on the clergy. Stigand was deposed; and the elevation of Lanfranc to the see of Canterbury was followed by the removal of most of the English prelates and by the appointment of Norman ecclesiastics in their place. The new archbishop did much to restore discipline, and William's own efforts were no doubt partly directed by a real desire for the religious improvement of his realm. But the foreign origin of the new prelates cut them off from the flocks they ruled and bound them firmly to the foreign throne; while their independent position was lessened by a change which seemed intended to preserve it. Ecclesiastical cases had till now been decided, like civil cases, in shire or hundred-court, where the bishop sat side by side with ealdorman or sheriff. They were now withdrawn from it to the separate court of the bishop. The change was pregnant with future trouble to the Crown; but for the moment it told mainly in removing the bishop from his traditional contact with the popular assembly and in effacing the memory of the original equality of the religious with the civil power.

William's death

In any struggle with feudalism a national king, secure of the support of the Church, and backed by the royal hoard at Winchester, stood in different case from the merely feudal sovereigns of the Continent. The difference of power was seen as soon as the Conquest was fairly over, and the struggle which William had anticipated opened between the baronage and the Crown. The wisdom of his policy in the destruction of the great earldoms which had overshadowed the throne was shown in an attempt at their restoration made in 1075 by Roger, the son of his minister William Fitz-Osbern, and by the Breton, Ralf de Guader, whom the King had rewarded for his services at Senlac with the earldom of Norfolk. The rising was quickly suppressed, Roger thrown into prison, and Ralf driven over sea. The intrigues of the baronage soon found another leader in William's half-

brother, the Bishop of Bayeux. Under pretence of aspiring by arms to the papacy Bishop Odo collected money and men, but the treasure was at once seized by the royal officers and the bishop arrested in the midst of the court. Even at the King's bidding no officer would venture to seize on a prelate of the Church; and it was with his own hands that William was forced to effect his arrest. The Conqueror was as successful against foes from without as against foes from within. The fear of the Danes, which had so long hung like a thunder-cloud over England, passed away before the host which William gathered in 1085 to meet a great armament assembled by king Cnut. A mutiny dispersed the Danish fleet, and the murder of its king removed all peril from the north. Scotland, already humbled by William's invasion, was bridled by the erection of a strong fortress at Newcastle-upon-Tyne; and after penetrating with his army to the heart of Wales the King commenced its systematic reduction by settling three of his great barons along its frontier. It was not till his closing years that William's unvarying success was troubled by a fresh outbreak of the Norman baronage under his son Robert and by an attack which he was forced to meet in 1087 from France. Its king mocked at the Conqueror's unwieldy bulk and at the sickness which bound him to his bed at Rouen. "King William has as long a lying-in," laughed Philip, "as a woman behind her curtains." "When I get up," William swore grimly, "I will go to mass in Philip's land and bring a rich offering for my churching. I will offer a thousand candles for my fee. Flaming brands shall they be, and steel shall glitter over the fire they make." At harvest-tide town and hamlet flaring into ashes along the French border fulfilled the ruthless vow. But as the King rode down the steep street of Mantes which he had given to the flames his horse stumbled among the embers, and William was flung heavily against his saddle. He was borne home to Rouen to die. The sound of the minster bell woke him at dawn as he lay in the convent of St. Gervais, overlooking the city--it was the hour of prime--and stretching out his hands in prayer the King passed quietly away. Death itself took its colour from the savage solitude of his life. Priests and nobles fled as the last breath left him, and the Conqueror's body lay naked and lonely on the floor.

CHAPTER II

THE NORMAN KINGS

1085-1154

William the Red

With the death of the Conqueror passed the terror which had held the barons in awe, while the severance of his dominions roused their hopes of successful resistance to the stern rule beneath which they had bowed. William bequeathed Normandy to his eldest son Robert; but William the Red, his second son, hastened with his father's ring to England where the influence of Lanfranc secured him the crown. The baronage seized the opportunity to rise in arms under pretext of supporting the claims of Robert, whose weakness of character gave full scope for the growth of feudal independence; and Bishop Odo, now freed from prison, placed himself at the head of the revolt. The new King was thrown almost wholly on the loyalty of his English subjects. But the national stamp which William had given to his kingship told at once. The English rallied to the royal standard; Bishop Wulfstan of Worcester, the one surviving bishop of English blood, defeated the insurgents in the west; while the King, summoning the freemen of country and town to his host under pain of being branded as "nithing" or worthless, advanced with a large force against Rochester where the barons were concentrated. A plague which broke out among the garrison forced them to capitulate, and as the prisoners passed through the royal army cries of "gallows and cord" burst from the English ranks. The failure of a later conspiracy whose aim was to set on the throne a kinsman of the royal house, Stephen of Albemarle, with the capture and imprisonment of its head, Robert Mowbray, the Earl of Northumberland, brought home at last to the baronage their helplessness in a strife with the King. The genius of the Conqueror had saved England from the danger of feudalism. But he had left as weighty a danger in the power which trod feudalism under foot. The power of the Crown was a purely personal power, restrained under the Conqueror by his own high sense of duty, but capable of becoming a pure

despotism in the hands of his son. The nobles were at his feet, and the policy of his minister, Ranulf Flambard, loaded their estates with feudal obligations. Each tenant was held as bound to appear if needful thrice a year at the royal court, to pay a heavy fine or rent on succession to his estate, to contribute aid in case of the king's capture in war or the knighthood of the king's eldest son or the marriage of his eldest daughter. An heir who was still a minor passed into the king's wardship, and all profit from his lands went during the period of wardship to the king. If the estate fell to an heiress, her hand was at the king's disposal, and was generally sold by him to the highest bidder. These rights of "marriage" and "wardship" as well as the exaction of aids at the royal will poured wealth into the treasury while they impoverished and fettered the baronage. A fresh source of revenue was found in the Church. The same principles of feudal dependence were applied to its lands as to those of the nobles; and during the vacancy of a see or abbey its profits, like those of a minor, were swept into the royal hoard. William's profligacy and extravagance soon tempted him to abuse this resource, and so steadily did he refuse to appoint successors to prelates whom death removed that at the close of his reign one archbishoprick, four bishopricks, and eleven abbeys were found to be without pastors.

Vile as was this system of extortion and misrule but a single voice was raised in protest against it. Lanfranc had been followed in his abbey at Bec by the most famous of his scholars, Anselm of Aosta, an Italian like himself. Friends as they were, no two men could be more strangely unlike. Anselm had grown to manhood in the quiet solitude of his mountain-valley, a tenderhearted poet-dreamer, with a soul pure as the Alpine snows above him, and an intelligence keen and clear as the mountain-air. The whole temper of the man was painted in a dream of his youth. It seemed to him as though heaven lay, a stately palace, amid the gleaming hill-peaks, while the women reaping in the corn-fields of the valley became harvest-maidens of its king. They reaped idly, and Anselm, grieved at their sloth, hastily climbed the mountain side to accuse them to their lord. As he reached the palace the king's voice called him to his feet and he poured forth his tale; then at the royal bidding bread of an unearthly whiteness was set before him, and he ate and was refreshed. The dream passed with the morning; but the sense of heaven's nearness to earth, the fervid loyalty to the service of his Lord, the tender restfulness and peace in the Divine presence which it

reflected lived on in the life of Anselm. Wandering like other Italian scholars to Normandy, he became a monk under Lanfranc, and on his teacher's removal to higher duties succeeded him in the direction of the Abbey of Bec. No teacher has ever thrown a greater spirit of love into his toil. "Force your scholars to improve!" he burst out to another teacher who relied on blows and compulsion. "Did you ever see a craftsman fashion a fair image out of a golden plate by blows alone? Does he not now gently press it and strike it with his tools, now with wise art yet more gently raise and shape it? What do your scholars turn into under this ceaseless beating?" "They turn only brutal," was the reply. "You have bad luck," was the keen answer, "in a training that only turns men into beasts." The worst natures softened before this tenderness and patience. Even the Conqueror, so harsh and terrible to others, became another man, gracious and easy of speech, with Anselm. But amidst his absorbing cares as a teacher, the Prior of Bec found time for philosophical speculations to which we owe the scientific inquiries which built up the theology of the Middle Ages. His famous works were the first attempts of any Christian thinker to elicit the idea of God from the very nature of the human reason. His passion for abstruse thought robbed him of food and sleep. Sometimes he could hardly pray. Often the night was a long watch till he could seize his conception and write it on the wax tablets which lay beside him. But not even a fever of intense thought such as this could draw Anselm's heart from its passionate tenderness and love. Sick monks in the infirmary could relish no drink save the juice which his hand squeezed for them from the grape-bunch. In the later days of his archbishoprick a hare chased by the hounds took refuge under his horse, and his gentle voice grew loud as he forbade a huntsman to stir in the chase while the creature darted off again to the woods. Even the greed of lands for the Church to which so many religious men yielded found its characteristic rebuke as the battling lawyers in such a suit saw Anselm quietly close his eyes in court and go peacefully to sleep.

William and Anselm

A sudden impulse of the Red King drew the abbot from these quiet studies into the storms of the world. The see of Canterbury had long been left without a Primate when a dangerous illness frightened the king into the promotion of Anselm. The Abbot, who happened at the time to be in England on the business of his house, was dragged to the royal couch and

the cross forced into his hands. But William had no sooner recovered from his sickness than he found himself face to face with an opponent whose meek and loving temper rose into firmness and grandeur when it fronted the tyranny of the king. Much of the struggle between William and the Archbishop turned on questions such as the right of investiture, which have little bearing on our history, but the particular question at issue was of less importance than the fact of a contest at all. The boldness of Anselm's attitude not only broke the tradition of ecclesiastical servitude but infused through the nation at large a new spirit of independence. The real character of the strife appears in the Primate's answer when his remonstrances against the lawless exactions from the Church were met by a demand for a present on his own promotion, and his first offer of five hundred pounds was contemptuously refused. "Treat me as a free man," Anselm replied, "and I devote myself and all that I have to your service, but if you treat me as a slave you shall have neither me nor mine." A burst of the Red King's fury drove the Archbishop from court, and he finally decided to quit the country, but his example had not been lost, and the close of William's reign found a new spirit of freedom in England with which the greatest of the Conqueror's sons was glad to make terms. His exile however left William without a check. Supreme at home, he was full of ambition abroad. As a soldier the Red King was little inferior to his father. Normandy had been pledged to him by his brother Robert in exchange for a sum which enabled the Duke to march in the first Crusade for the delivery of the Holy Land, and a rebellion at Le Mans was subdued by the fierce energy with which William flung himself at the news of it into the first boat he found, and crossed the Channel in face of a storm. "Kings never drown," he replied contemptuously to the remonstrances of his followers. Homage was again wrested from Malcolm by a march to the Firth of Forth, and the subsequent death of that king threw Scotland into a disorder which enabled an army under Eadgar Ætheling to establish Eadgar, the son of Margaret, as an English feudatory on the throne. In Wales William was less triumphant, and the terrible losses inflicted on the heavy Norman cavalry in the fastnesses of Snowdon forced him to fall back on the slower but wiser policy of the Conqueror. But triumph and defeat alike ended in a strange and tragical close. In 1100 the Red King was found dead by peasants in a glade of the New Forest, with the arrow either of a hunter or an assassin in his breast.

Henry the First

Robert was at this moment on his return from the Holy Land, where his bravery had redeemed much of his earlier ill-fame, and the English crown was seized by his younger brother Henry in spite of the opposition of the baronage, who clung to the Duke of Normandy and the union of their estates on both sides the Channel under a single ruler. Their attitude threw Henry, as it had thrown Rufus, on the support of the English, and the two great measures which followed his coronation, his grant of a charter, and his marriage with Matilda, mark the new relation which this support brought about between the people and their king. Henry's Charter is important, not merely as a direct precedent for the Great Charter of John, but as the first limitation on the despotism established by the Conqueror and carried to such a height by his son. The "evil customs" by which the Red King had enslaved and plundered the Church were explicitly renounced in it, the unlimited demands made by both the Conqueror and his son on the baronage exchanged for customary fees, while the rights of the people itself, though recognized more vaguely, were not forgotten. The barons were held to do justice to their undertenants and to renounce tyrannical exactions from them, the king promising to restore order and the "law of Eadward," the old constitution of the realm, with the changes which his father had introduced. His marriage gave a significance to these promises which the meanest English peasant could understand. Edith, or Matilda, was the daughter of King Malcolm of Scotland and of Margaret, the sister of Eadgar Ætheling. She had been brought up in the nunnery of Romsey where her aunt Christina was a nun; and the veil which she had taken there formed an obstacle to her union with the King, which was only removed by the wisdom of Anselm. While Flambard, the embodiment of the Red King's despotism, was thrown into the Tower, the Archbishop's recall had been one of Henry's first acts after his accession. Matilda appeared before his court to tell her tale in words of passionate earnestness. She had been veiled in her childhood, she asserted, only to save her from the insults of the rude soldiery who infested the land, had flung the veil from her again and again, and had yielded at last to the unwomanly taunts, the actual blows of her aunt. "As often as I stood in her presence," the girl pleaded, "I wore the veil, trembling as I wore it with indignation and grief. But as soon as I could get out of her sight I used to snatch it from my head, fling it on the ground, and

trample it under foot. That was the way, and none other, in which I was veiled." Anselm at once declared her free from conventual bonds, and the shout of the English multitude when he set the crown on Matilda's brow drowned the murmur of Churchman or of baron. The mockery of the Norman nobles, who nicknamed the king and his spouse Godric and Godgifu, was lost in the joy of the people at large. For the first time since the Conquest an English sovereign sat on the English throne. The blood of Cerdic and Ælfred was to blend itself with that of Hrolf and the Conqueror. Henceforth it was impossible that the two peoples should remain parted from each other; so quick indeed was their union that the very name of Norman had passed away in half a century, and at the accession of Henry's grandson it was impossible to distinguish between the descendants of the conquerors and those of the conquered at Senlac.

Henry and the Barons

Charter and marriage roused an enthusiasm among his subjects which enabled Henry to defy the claims of his brother and the disaffection of his nobles. Early in 1101 Robert landed at Portsmouth to win the crown in arms. The great barons with hardly an exception stood aloof from the king. But the Norman Duke found himself face to face with an English army which gathered at Anselm's summons round Henry's standard. The temper of the English had rallied from the panic of Senlac. The soldiers who came to fight for their king "nowise feared the Normans." As Henry rode along their lines showing them how to keep firm their shield-wall against the lances of Robert's knighthood, he was met with shouts for battle. But king and duke alike shrank from a contest in which the victory of either side would have undone the Conqueror's work. The one saw his effort was hopeless, the other was only anxious to remove his rival from the realm, and by a peace which the Count of Meulan negotiated Robert recognized Henry as King of England while Henry gave up his fief in the Cotentin to his brother the Duke. Robert's retreat left Henry free to deal sternly with the barons who had forsaken him. Robert de Lacy was stripped of his manors in Yorkshire; Robert Malet was driven from his lands in Suffolk; Ivo of Grantmesnil lost his vast estates and went to the Holy Land as a pilgrim. But greater even than these was Robert of Belesme, the son of Roger of Montgomery, who held in England the earldoms of Shrewsbury and Arundel, while in Normandy he was Count of Ponthieu and Alençon.

Robert stood at the head of the baronage in wealth and power: and his summons to the King's Court to answer for his refusal of aid to the king was answered by a haughty defiance. But again the Norman baronage had to feel the strength which English loyalty gave to the Crown. Sixty thousand Englishmen followed Henry to the attack of Robert's strongholds along the Welsh border. It was in vain that the nobles about the king, conscious that Robert's fall left them helpless in Henry's hands, strove to bring about a peace. The English soldiers shouted "Heed not these traitors, our lord King Henry," and with the people at his back the king stood firm. Only an early surrender saved Robert's life. He was suffered to retire to his estates in Normandy, but his English lands were confiscated to the Crown. "Rejoice, King Henry," shouted the English soldiers, "for you began to be a free king on that day when you conquered Robert of Belesme and drove him from the land." Master of his own realm and enriched by the confiscated lands of the ruined barons Henry crossed into Normandy, where the misgovernment of the Duke had alienated the clergy and tradesfolk, and where the outrages of nobles like Robert of Belesme forced the more peaceful classes to call the king to their aid. In 1106 his forces met those of his brother on the field of Tenchebray, and a decisive English victory on Norman soil avenged the shame of Hastings. The conquered duchy became a dependency of the English crown, and Henry's energies were frittered away through a quarter of a century in crushing its revolts, the hostility of the French, and the efforts of his nephew William, the son of Robert, to regain the crown which his father had lost.

Henry's rule

With the victory of Tenchebray Henry was free to enter on that work of administration which was to make his reign memorable in our history. Successful as his wars had been he was in heart no warrior but a statesman, and his greatness showed itself less in the field than in the council chamber. His outer bearing like his inner temper stood in marked contrast to that of his father. Well read, accomplished, easy and fluent of speech, the lord of a harem of mistresses, the centre of a gay court where poet and jongleur found a home, Henry remained cool, self-possessed, clear-sighted, hard, methodical, loveless himself, and neither seeking nor desiring his people's love, but wringing from them their gratitude and regard by sheer dint of good government. His work of order was necessarily a costly work; and the

steady pressure of his taxation, a pressure made the harder by local famines and plagues during his reign, has left traces of the grumbling it roused in the pages of the English Chronicle. But even the Chronicler is forced to own amidst his grumbings that Henry "was a good man, and great was the awe of him." He had little of his father's creative genius, of that far-reaching originality by which the Conqueror stamped himself and his will on the very fabric of our history. But he had the passion for order, the love of justice, the faculty of organization, the power of steady and unwavering rule, which was needed to complete the Conqueror's work. His aim was peace, and the title of the Peace-loving King which was given him at his death showed with what a steadiness and constancy he carried out his aim. In Normandy indeed his work was ever and anon undone by outbreaks of its baronage, outbreaks sternly repressed only that the work might be patiently and calmly taken up again where it had been broken off. But in England his will was carried out with a perfect success. For more than a quarter of a century the land had rest. Without, the Scots were held in friendship, the Welsh were bridled by a steady and well-planned scheme of gradual conquest. Within, the licence of the baronage was held sternly down, and justice secured for all. "He governed with a strong hand," says Orderic, but the strong hand was the hand of a king, not of a tyrant. "Great was the awe of him," writes the annalist of Peterborough. "No man durst ill-do to another in his days. Peace he made for man and beast." Pitiless as were the blows he aimed at the nobles who withstood him, they were blows which his English subjects felt to be struck in their cause. "While he mastered by policy the foremost counts and lords and the boldest tyrants, he ever cherished and protected peaceful men and men of religion and men of the middle class." What impressed observers most was the unswerving, changeless temper of his rule. The stern justice, the terrible punishments he inflicted on all who broke his laws, were parts of a fixed system which differed widely from the capricious severity of a mere despot. Hardly less impressive was his unvarying success. Heavy as were the blows which destiny levelled at him, Henry bore and rose unconquered from all. To the end of his life the proudest barons lay bound and blinded in his prison. His hoard grew greater and greater. Normandy, toss as she might, lay helpless at his feet to the last. In England it was only after his death that men dared mutter what evil things they had thought of Henry the Peace-lover, or

censure the pitilessness, the greed, and the lust which had blurred the wisdom and splendour of his rule.

Henry's Administration

His vigorous administration carried out into detail the system of government which the Conqueror had sketched. The vast estates which had fallen to the crown through revolt and forfeiture were granted out to new men dependent on royal favour. On the ruins of the great feudatories whom he had crushed Henry built up a class of lesser nobles, whom the older barons of the Conquest looked down on in scorn, but who were strong enough to form a counterpoise to their influence, while they furnished the Crown with a class of useful administrators whom Henry employed as his sheriffs and judges. A new organization of justice and finance bound the kingdom more tightly together in Henry's grasp. The Clerks of the Royal Chapel were formed into a body of secretaries or royal ministers, whose head bore the title of Chancellor. Above them stood the Justiciar, or Lieutenant-General of the kingdom, who in the frequent absence of the king acted as Regent of the realm, and whose staff, selected from the barons connected with the royal household, were formed into a Supreme Court of the realm. The King's Court, as this was called, permanently represented the whole court of royal vassals which had hitherto been summoned thrice in the year. As the royal council, it revised and registered laws, and its "counsel and consent," though merely formal, preserved the principle of the older popular legislation. As a court of justice, it formed the highest court of appeal: it could call up any suit from a lower tribunal on the application of a suitor, while the union of several sheriffdoms under some of its members connected it closely with the local courts. As a financial body, its chief work lay in the assessment and collection of the revenue. In this capacity it took the name of the Court of Exchequer from the chequered table, much like a chess-board, at which it sat and on which accounts were rendered. In their financial capacity its justices became "barons of the Exchequer." Twice every year the sheriff of each county appeared before these barons and rendered the sum of the fixed rent from royal domains, the Danegeld or land tax, the fines of the local courts, the feudal aids from the baronial estates, which formed the chief part of the royal revenue. Local disputes respecting these payments or the assessment of the town-rents were settled by a detachment of barons from the court who made the circuit of the

shires, and whose fiscal visitations led to the judicial visitations, the "judges' circuits," which still form so marked a feature in our legal system.

The Angevin Marriage

Measures such as these changed the whole temper of the Norman rule. It remained a despotism, but from this moment it was a despotism regulated and held in check by the forms of administrative routine. Heavy as was the taxation under Henry the First, terrible as was the suffering throughout his reign from famine and plague, the peace and order which his government secured through thirty years won a rest for the land in which conqueror and conquered blended into a single people and in which this people slowly moved forward to a new freedom. But while England thus rested in peace a terrible blow broke the fortunes of her king. In 1120 his son, William the "Ætheling," with a crowd of nobles accompanied Henry on his return from Normandy; but the White Ship in which he embarked lingered behind the rest of the royal fleet till the guards of the king's treasure pressed its departure. It had hardly cleared the harbour when the ship's side struck on a rock, and in an instant it sank beneath the waves. One terrible cry, ringing through the silence of the night, was heard by the royal fleet; but it was not till the morning that the fatal news reached the king. Stern as he was, Henry fell senseless to the ground, and rose never to smile again. He had no other son, and the circle of his foreign foes closed round him the more fiercely that William, the son of his captive brother Robert, was now his natural heir. Henry hated William while he loved his own daughter Maud, who had been married to the Emperor Henry the Fifth, but who had been restored by his death to her father's court. The succession of a woman was new in English history; it was strange to a feudal baronage. But when all hope of issue from a second wife whom he wedded was over Henry forced priests and nobles to swear allegiance to Maud as their future mistress, and affianced her to Geoffry the Handsome, the son of the one foe whom he dreaded, Count Fulk of Anjou.

Anjou

The marriage of Matilda was but a step in the wonderful history by which the descendants of a Breton woodman became masters not of Anjou only, but of Touraine, Maine, and Poitou, of Gascony and Auvergne, of Aquitaine

and Normandy, and sovereigns at last of the great realm which Normandy had won. The legend of the father of their race carries us back to the times of our own Ælfred, when the Danes were ravaging along Loire as they ravaged along Thames. In the heart of the Breton border, in the debateable land between France and Brittany, dwelt Tortulf the Forester, half-brigand, half-hunter as the gloomy days went, living in free outlaw-fashion in the woods about Rennes. Tortulf had learned in his rough forest school "how to strike the foe, to sleep on the bare ground, to bear hunger and toil, summer's heat and winter's frost, how to fear nothing save ill-fame." Following King Charles the Bald in his struggle with the Danes, the woodman won broad lands along Loire, and his son Ingelger, who had swept the northmen from Touraine and the land to the west, which they had burned and wasted into a vast solitude, became the first Count of Anjou. But the tale of Tortulf and Ingelger is a mere creation of some twelfth century jongleur. The earliest Count whom history recognizes is Fulk the Red. Fulk attached himself to the Dukes of France who were now drawing nearer to the throne, and between 909 and 929 he received from them in guerdon the county of Anjou. The story of his son is a story of peace, breaking like a quiet idyll the war-storms of his house. Alone of his race Fulk the Good waged no wars: his delight was to sit in the choir of Tours and to be called "Canon." One Martinmas eve Fulk was singing there in clerkly guise when the French king, Lewis d'Outremer, entered the church. "He sings like a priest," laughed the king as his nobles pointed mockingly to the figure of the Count-Canon. But Fulk was ready with his reply. "Know, my lord," wrote the Count of Anjou, "that a king unlearned is a crowned ass." Fulk was in fact no priest, but a busy ruler, governing, enforcing peace, and carrying justice to every corner of the wasted land. To him alone of his race men gave the title of "the Good."

Fulk the Black

Hampered by revolt, himself in character little more than a bold, dashing soldier, Fulk's son, Geoffry Greygown, sank almost into a vassal of his powerful neighbours, the Counts of Blois and Champagne. But this vassalage was roughly shaken off by his successor. Fulk Nerra, Fulk the Black, is the greatest of the Angevins, the first in whom we can trace that marked type of character which their house was to preserve through two hundred years. He was without natural affection. In his youth he burnt a

wife at the stake, and legend told how he led her to her doom decked out in his gayest attire. In his old age he waged his bitterest war against his son, and exacted from him when vanquished a humiliation which men reserved for the deadliest of their foes. "You are conquered, you are conquered!" shouted the old man in fierce exultation, as Geoffry, bridled and saddled like a beast of burden, crawled for pardon to his father's feet. In Fulk first appeared that low type of superstition which startled even superstitious ages in the early Plantagenets. Robber as he was of Church lands, and contemptuous of ecclesiastical censures, the fear of the end of the world drove Fulk to the Holy Sepulchre. Barefoot and with the strokes of the scourge falling heavily on his shoulders, the Count had himself dragged by a halter through the streets of Jerusalem, and courted the doom of martyrdom by his wild outcries of penitence. He rewarded the fidelity of Herbert of Le Mans, whose aid saved him from utter ruin, by entrapping him into captivity and robbing him of his lands. He secured the terrified friendship of the French king by despatching twelve assassins to cut down before his eyes the minister who had troubled it. Familiar as the age was with treason and rapine and blood, it recoiled from the cool cynicism of his crimes, and believed the wrath of Heaven to have been revealed against the union of the worst forms of evil in Fulk the Black. But neither the wrath of Heaven nor the curses of men broke with a single mishap the fifty years of his success.

At his accession in 987 Anjou was the least important of the greater provinces of France. At his death in 1040 it stood, if not in extent, at least in real power, first among them all. Cool-headed, clear-sighted, quick to resolve, quicker to strike, Fulk's career was one long series of victories over all his rivals. He was a consummate general, and he had the gift of personal bravery, which was denied to some of his greatest descendants. There was a moment in the first of his battles when the day seemed lost for Anjou; a feigned retreat of the Bretons drew the Angevin horsemen into a line of hidden pitfalls, and the Count himself was flung heavily to the ground. Dragged from the medley of men and horses, he swept down almost singly on the foe "as a storm-wind" (so rang the pæan of the Angevins) "sweeps down on the thick corn-rows," and the field was won. But to these qualities of the warrior he added a power of political organization, a capacity for far-reaching combinations, a faculty of statesmanship, which became the

heritage of his race, and lifted them as high above the intellectual level of the rulers of their time as their shameless wickedness degraded them below the level of man. His overthrow of Brittany on the field of Conquereux was followed by the gradual absorption of Southern Touraine; a victory at Pontlevoi crushed the rival house of Blois; the seizure of Saumur completed his conquests in the south, while Northern Touraine was won bit by bit till only Tours resisted the Angevin. The treacherous seizure of its Count, Herbert Wakedog, left Maine at his mercy.

Death of Henry

His work of conquest was completed by his son. Geoffry Martel wrested Tours from the Count of Blois, and by the seizure of Le Mans brought his border to the Norman frontier. Here however his advance was checked by the genius of William the Conqueror, and with his death the greatness of Anjou came for a while to an end. Stripped of Maine by the Normans and broken by dissensions within, the weak and profligate rule of Fulk Rechin left Anjou powerless. But in 1109 it woke to fresh energy with the accession of his son, Fulk of Jerusalem. Now urging the turbulent Norman nobles to revolt, now supporting Robert's son, William, in his strife with his uncle, offering himself throughout as the loyal supporter of the French kingdom which was now hemmed in on almost every side by the forces of the English king and of his allies the Counts of Blois and Champagne, Fulk was the one enemy whom Henry the First really feared. It was to disarm his restless hostility that the king gave the hand of Matilda to Geoffry the Handsome. But the hatred between Norman and Angevin had been too bitter to make such a marriage popular, and the secrecy with which it was brought about was held by the barons to free them from the oath they had previously sworn. As no baron if he was sonless could give a husband to his daughter save with his lord's consent, the nobles held by a strained analogy that their own assent was needful to the marriage of Maud. Henry found a more pressing danger in the greed of her husband Geoffry, whose habit of wearing the common broom of Anjou, the *planta genista*, in his helmet gave him the title of Plantagenet. His claims ended at last in intrigues with the Norman nobles, and Henry hurried to the border to meet an Angevin invasion; but the plot broke down at his presence, the Angevins retired, and at the close of 1135 the old king withdrew to the Forest of Lions to die.

Stephen

"God give him," wrote the Archbishop of Rouen from Henry's death-bed, "the peace he loved." With him indeed closed the long peace of the Norman rule. An outburst of anarchy followed on the news of his departure, and in the midst of the turmoil Earl Stephen, his nephew, appeared at the gates of London. Stephen was a son of the Conqueror's daughter, Adela, who had married a Count of Blois; he had been brought up at the English court, had been made Count of Mortain by Henry, had become Count of Boulogne by his marriage, and as head of the Norman baronage had been the first to pledge himself to support Matilda's succession. But his own claim as nearest male heir of the Conqueror's blood (for his cousin, the son of Robert, had fallen some years before in Flanders) was supported by his personal popularity; mere swordsman as he was, his good-humour, his generosity, his very prodigality made Stephen a favourite with all. No noble however had as yet ventured to join him nor had any town opened its gates when London poured out to meet him with uproarious welcome. Neither baron nor prelate was present to constitute a National Council, but the great city did not hesitate to take their place. The voice of her citizens had long been accepted as representative of the popular assent in the election of a king; but it marks the progress of English independence under Henry that London now claimed of itself the right of election. Undismayed by the absence of the hereditary counsellors of the crown its "Aldermen and wise folk gathered together the folk-moot, and these providing at their own will for the good of the realm unanimously resolved to choose a king." The solemn deliberation ended in the choice of Stephen, the citizens swore to defend the king with money and blood, Stephen swore to apply his whole strength to the pacification and good government of the realm. It was in fact the new union of conquered and conquerors into a single England that did Stephen's work. The succession of Maud meant the rule of Geoffry of Anjou, and to Norman as to Englishman the rule of the Angevin was a foreign rule. The welcome Stephen won at London and Winchester, his seizure of the royal treasure, the adhesion of the Justiciar Bishop Roger to his cause, the reluctant consent of the Archbishop, the hopelessness of aid from Anjou where Geoffry was at this moment pressed by revolt, the need above all of some king to meet the outbreak of anarchy which followed Henry's death, secured Stephen the voice of the baronage. He was crowned

at Christmas-tide; and soon joined by Robert Earl of Gloucester, a bastard son of Henry and the chief of his nobles; while the issue of a charter from Oxford in 1136, a charter which renewed the dead king's pledge of good government, promised another Henry to the realm. The charter surrendered all forests made in the last reign as a sop to the nobles, and conciliated the Church by granting freedom of election and renouncing all right to the profits of vacant churches; while the king won the people by a promise to abolish the tax of Danegeld.

Battle of the Standard

The king's first two years were years of success and prosperity. Two risings of barons in the east and west were easily put down, and in 1137 Stephen passed into Normandy and secured the Duchy against an attack from Anjou. But already the elements of trouble were gathering round him. Stephen was a mere soldier, with few kingly qualities save that of a soldier's bravery; and the realm soon began to slip from his grasp. He turned against himself the jealous dread of foreigners to which he owed his accession by surrounding himself with hired knights from Flanders; he drained the treasury by creating new earls endowed with pensions from it, and recruited his means by base coinage. His consciousness of the gathering storm only drove Stephen to bind his friends to him by suffering them to fortify castles and to renew the feudal tyranny which Henry had struck down. But the long reign of the dead king had left the Crown so strong that even yet Stephen could hold his own. A plot which Robert of Gloucester had been weaving from the outset of his reign came indeed to a head in 1138, and the Earl's revolt stripped Stephen of Caen and half Normandy. But when his partizans in England rose in the south and the west and the King of Scots, whose friendship Stephen had bought in the opening of his reign by the cession of Carlisle, poured over the northern border, the nation stood firmly by the king. Stephen himself marched on the western rebels and soon left them few strongholds save Bristol. His people fought for him in the north. The pillage and cruelties of the wild tribes of Galloway and the Highlands roused the spirit of the Yorkshiremen. Baron and freeman gathered at York round Archbishop Thurstan and marched to the field of Northallerton to await the foe. The sacred banners of St. Cuthbert of Durham, St. Peter of York, St. John of Beverley, and St. Wilfrid of Ripon hung from a pole fixed in a four-wheeled car which stood in the centre of the host. The first onset

of David's host was a terrible one. "I who wear no armour," shouted the chief of the Galwegians, "will go as far this day as any one with breastplate of mail"; his men charged with wild shouts of "Albin, Albin," and were followed by the Norman knighthood of the Lowlands. But their repulse was complete; the fierce hordes dashed in vain against the close English ranks around the Standard, and the whole army fled in confusion to Carlisle.

Seizure of the Bishops

Weak indeed as Stephen was, the administrative organization of Henry still did its work. Roger remained justiciar, his son was chancellor, his nephew Nigel, the Bishop of Ely, was treasurer. Finance and justice were thus concentrated in the hands of a single family which preserved amidst the deepening misrule something of the old order and rule, and which stood at the head of the "new men," whom Henry had raised into importance and made the instruments of his will. These new men were still weak by the side of the older nobles; and conscious of the jealousy and ill-will with which they were regarded they followed in self-defence the example which the barons were setting in building and fortifying castles on their domains. Roger and his house, the objects from their official position of a deeper grudge than any, were carried away by the panic. The justiciar and his son fortified their castles, and it was only with a strong force at their back that the prelates appeared at court. Their attitude was one to rouse Stephen's jealousy, and the news of Matilda's purpose of invasion lent strength to the doubts which the nobles cast on their fidelity. All the weak violence of the king's temper suddenly broke out. He seized Roger the Chancellor and the Bishop of Lincoln when they appeared at Oxford in June 1139, and forced them to surrender their strongholds. Shame broke the justiciar's heart; he died at the close of the year, and his nephew Nigel of Ely was driven from the realm. But the fall of this house shattered the whole system of government. The King's Court and the Exchequer ceased to work at a moment when the landing of Earl Robert and the Empress Matilda set Stephen face to face with a danger greater than he had yet encountered, while the clergy, alienated by the arrest of the Bishops and the disregard of their protests, stood angrily aloof.

Civil War

The three bases of Henry's system of government, the subjection of the baronage to the law, the good-will of the Church, and the organization of justice and finance, were now utterly ruined; and for the fourteen years which passed from this hour to the Treaty of Wallingford England was given up to the miseries of civil war. The country was divided between the adherents of the two rivals, the West supporting Matilda, London and the East Stephen. A defeat at Lincoln in 1141 left the latter a captive in the hands of his enemies, while Matilda was received throughout the land as its "Lady." But the disdain with which she repulsed the claim of London to the enjoyment of its older privileges called its burghers to arms; her resolve to hold Stephen a prisoner roused his party again to life, and she was driven to Oxford to be besieged there in 1142 by Stephen himself, who had obtained his release in exchange for Earl Robert after the capture of the Earl in a battle at Winchester. She escaped from the castle, but with the death of Robert her struggle became a hopeless one, and in 1148 she withdrew to Normandy. The war was now a mere chaos of pillage and bloodshed. The royal power came to an end. The royal courts were suspended, for not a baron or bishop would come at the king's call. The bishops met in council to protest, but their protests and excommunications fell on deafened ears. For the first and last time in her history England was in the hands of the baronage, and their outrages showed from what horrors the stern rule of the Norman kings had saved her. Castles sprang up everywhere. "They filled the land with castles," say the terrible annals of the time. "They greatly oppressed the wretched people by making them work at these castles, and when they were finished they filled them with devils and armed men." In each of these robber-holds a petty tyrant ruled like a king. The strife for the Crown had broken into a medley of feuds between baron and baron, for none could brook an equal or a superior in his fellow. "They fought among themselves with deadly hatred, they spoiled the fairest lands with fire and rapine; in what had been the most fertile of counties they destroyed almost all the provision of bread." For fight as they might with one another, all were at one in the plunder of the land. Towns were put to ransom. Villages were sacked and burned. All who were deemed to have goods, whether men or women, were carried off and flung into dungeons and tortured till they yielded up their wealth. No ghastlier picture of a nation's misery has ever been painted than that which closes the English Chronicle whose last accents falter out amidst the horrors of the time. "They hanged up men by

their feet and smoked them with foul smoke. Some were hanged up by their thumbs, others by the head, and burning things were hung on to their feet. They put knotted strings about men's heads, and writhed them till they went to the brain. They put men into prisons where adders and snakes and toads were crawling, and so they tormented them. Some they put into a chest short and narrow and not deep and that had sharp stones within, and forced men therein so that they broke all their limbs. In many of the castles were hateful and grim things called rachenteges, which two or three men had enough to do to carry. It was thus made: it was fastened to a beam and had a sharp iron to go about a man's neck and throat, so that he might noways sit, or lie, or sleep, but he bore all the iron. Many thousands they starved with hunger."

Religious Revival

It was only after years of this feudal anarchy that England was rescued from it by the efforts of the Church. The political influence of the Church had been greatly lessened by the Conquest: for pious, learned, and energetic as the bulk of the Conqueror's bishops were, they were not Englishmen. Till the reign of Henry the First no Englishman occupied an English see. This severance of the higher clergy from the lower priesthood and from the people went far to paralyze the constitutional influence of the Church. Anselm stood alone against Rufus, and when Anselm was gone no voice of ecclesiastical freedom broke the silence of the reign of Henry the First. But at the close of Henry's reign and throughout the reign of Stephen England was stirred by the first of those great religious movements which it was to experience afterwards in the preaching of the Friars, the Lollardism of Wyclif, the Reformation, the Puritan enthusiasm, and the mission work of the Wesleys. Everywhere in town and country men banded themselves together for prayer: hermits flocked to the woods: noble and churl welcomed the austere Cistercians, a reformed offshoot of the Benedictine order, as they spread over the moors and forests of the North. A new spirit of devotion woke the slumbers of the religious houses, and penetrated alike to the home of the noble and the trader. London took its full share in the revival. The city was proud of its religion, its thirteen conventual and more than a hundred parochial churches. The new impulse changed its very aspect. In the midst of the city Bishop Richard busied himself with the vast cathedral church of St. Paul which Bishop Maurice had begun; barges came

up the river with stone from Caen for the great arches that moved the popular wonder, while street and lane were being levelled to make room for its famous churchyard. Rahere, a minstrel at Henry's court, raised the Priory of St. Bartholomew beside Smithfield. Alfune built St. Giles's at Cripplegate. The old English Cnichtenagild surrendered their soke of Aldgate as a site for the new priory of the Holy Trinity. The tale of this house paints admirably the temper of the citizens at the time. Its founder, Prior Norman, built church and cloister and bought books and vestments in so liberal a fashion that no money remained to buy bread. The canons were at their last gasp when the city-folk, looking into the refectory as they passed round the cloister in their usual Sunday procession, saw the tables laid but not a single loaf on them. "Here is a fine set out," said the citizens; "but where is the bread to come from?" The women who were present vowed each to bring a loaf every Sunday, and there was soon bread enough and to spare for the priory and its priests.

Thomas of London

We see the strength of the new movement in the new class of ecclesiastics whom it forced on to the stage. Men like Archbishop Theobald drew whatever influence they wielded from a belief in their holiness of life and unselfishness of aim. The paralysis of the Church ceased as the new impulse bound prelacy and people together, and at the moment we have reached its power was found strong enough to wrest England out of the chaos of feudal misrule. In the early part of Stephen's reign his brother Henry, the Bishop of Winchester, who had been appointed in 1139 Papal Legate for the realm, had striven to supply the absence of any royal or national authority by convening synods of bishops, and by asserting the moral right of the Church to declare sovereigns unworthy of the throne. The compact between king and people which became a part of constitutional law in the Charter of Henry had gathered new force in the Charter of Stephen, but its legitimate consequence in the responsibility of the crown for the execution of the compact was first drawn out by these ecclesiastical councils. From their alternate depositions of Stephen and Matilda flowed the after depositions of Edward and Richard, and the solemn act by which the succession was changed in the case of James. Extravagant and unauthorized as their expression of it may appear, they expressed the right of a nation to good government. Henry of Winchester however, "half monk,

half soldier," as he was called, possessed too little religious influence to wield a really spiritual power, and it was only at the close of Stephen's reign that the nation really found a moral leader in Theobald, the Archbishop of Canterbury. Theobald's ablest agent and adviser was Thomas, the son of Gilbert Beket, a leading citizen and, it is said, Portreeve of London, the site of whose house is still marked by the Mercers' chapel in Cheapside. His mother Rohese was a type of the devout woman of her day; she weighed her boy every year on his birthday against money, clothes, and provisions which she gave to the poor. Thomas grew up amidst the Norman barons and clerks who frequented his father's house with a genial freedom of character tempered by the Norman refinement; he passed from the school of Merton to the University of Paris, and returned to fling himself into the life of the young nobles of the time. Tall, handsome, bright-eyed, ready of wit and speech, his firmness of temper showed itself in his very sports; to rescue his hawk which had fallen into the water he once plunged into a millrace and was all but crushed by the wheel. The loss of his father's wealth drove him to the court of Archbishop Theobald, and he soon became the Primate's confidant in his plans for the rescue of England.



Treaty of Wallingford

The natural influence which the Primate would have exerted was long held in suspense by the superior position of Bishop Henry of Winchester as Papal Legate; but this office ceased with the Pope who granted it, and when in 1150 it was transferred to the Archbishop himself Theobald soon made his weight felt. The long disorder of the realm was producing its natural reaction in exhaustion and disgust, as well as in a general craving for return to the line of hereditary succession whose breaking seemed the cause of the nation's woes. But the growth of their son Henry to manhood set naturally aside the pretensions both of Count Geoffry and Matilda. Young as he was

Henry already showed the cool long-sighted temper which was to be his characteristic on the throne. Foiled in an early attempt to grasp the crown, he looked quietly on at the disorder which was doing his work till the death of his father at the close of 1151 left him master of Normandy and Anjou. In the spring of the following year his marriage with its duchess, Eleanor of Poitou, added Aquitaine to his dominions. Stephen saw the gathering storm, and strove to meet it. He called on the bishops and baronage to secure the succession of his son Eustace by consenting to his association with him in the kingdom. But the moment was now come for Theobald to play his part. He was already negotiating through Thomas of London with Henry and the Pope; he met Stephen's plans by a refusal to swear fealty to his son, and the bishops, in spite of Stephen's threats, went with their head. The blow was soon followed by a harder one. Thomas, as Theobald's agent, invited Henry to appear in England, and though the Duke disappointed his supporters' hopes by the scanty number of men he brought with him in 1153, his weakness proved in the end a source of strength. It was not to foreigners, men said, that Henry owed his success but to the arms of Englishmen. An English army gathered round him, and as the hosts of Stephen and the Duke drew together a battle seemed near which would decide the fate of the realm. But Theobald who was now firmly supported by the greater barons again interfered and forced the rivals to an agreement. To the excited partizans of the house of Anjou it seemed as if the nobles were simply playing their own game in the proposed settlement and striving to preserve their power by a balance of masters. The suspicion was probably groundless, but all fear vanished with the death of Eustace, who rode off from his father's camp, maddened with the ruin of his hopes, to die in August, smitten, as men believed, by the hand of God for his plunder of abbeys. The ground was now clear, and in November the Treaty of Wallingford abolished the evils of the long anarchy. The castles were to be razed, the crown lands resumed, the foreign mercenaries banished from the country, and sheriffs appointed to restore order. Stephen was recognized as king, and in turn recognized Henry as his heir. The duke received at Oxford the fealty of the barons, and passed into Normandy in the spring of 1154. The work of reformation had already begun. Stephen resented indeed the pressure which Henry put on him to enforce the destruction of the castles built during the anarchy; but Stephen's resistance was but the pettish

outbreak of a ruined man. He was in fact fast drawing to the grave; and on his death in October 1154 Henry returned to take the crown without a blow.

CHAPTER III

HENRY THE SECOND

1154-1189

Henry Fitz-Empress

Young as he was, and he had reached but his twenty-first year when he returned to England as its king, Henry mounted the throne with a purpose of government which his reign carried steadily out. His practical, serviceable frame suited the hardest worker of his time. There was something in his build and look, in the square stout form, the fiery face, the close-cropped hair, the prominent eyes, the bull neck, the coarse strong hands, the bowed legs, that marked out the keen, stirring, coarse-fibred man of business. "He never sits down," said one who observed him closely; "he is always on his legs from morning till night." Orderly in business, careless of appearance, sparing in diet, never resting or giving his servants rest, chatty, inquisitive, endowed with a singular charm of address and strength of memory, obstinate in love or hatred, a fair scholar, a great hunter, his general air that of a rough, passionate, busy man, Henry's personal character told directly on the character of his reign. His accession marks the period of amalgamation when neighbourhood and traffic and intermarriage drew Englishmen and Normans into a single people. A national feeling was thus springing up before which the barriers of the older feudalism were to be swept away. Henry had even less reverence for the feudal past than the men of his day: he was indeed utterly without the imagination and reverence which enable men to sympathize with any past at all. He had a practical man's impatience of the obstacles thrown in the way of his reforms by the older constitution of the realm, nor could he understand other men's reluctance to purchase undoubted improvements by the sacrifice of customs and traditions of bygone days. Without any theoretical hostility to the co-ordinate powers of the state, it seemed to him a perfectly reasonable and natural course to trample either baronage or Church under foot to gain his end of good government. He saw clearly that the remedy for such anarchy

as England had endured under Stephen lay in the establishment of a kingly rule unembarrassed by any privileges of order or class, administered by royal servants, and in whose public administration the nobles acted simply as delegates of the sovereign. His work was to lie in the organization of judicial and administrative reforms which realized this idea. But of the currents of thought and feeling which were tending in the same direction he knew nothing. What he did for the moral and social impulses which were telling on men about him was simply to let them alone. Religion grew more and more identified with patriotism under the eyes of a king who whispered, and scribbled, and looked at picture-books during mass, who never confessed, and cursed God in wild frenzies of blasphemy. Great peoples formed themselves on both sides of the sea round a sovereign who bent the whole force of his mind to hold together an Empire which the growth of nationality must inevitably destroy. There is throughout a tragic grandeur in the irony of Henry's position, that of a Sforza of the fifteenth century set in the midst of the twelfth, building up by patience and policy and craft a dominion alien to the deepest sympathies of his age and fated to be swept away in the end by popular forces to whose existence his very cleverness and activity blinded him. But whether by the anti-national temper of his general system or by the administrative reforms of his English rule his policy did more than that of all his predecessors to prepare England for the unity and freedom which the fall of his house was to reveal.

The Great Scutage

He had been placed on the throne, as we have seen, by the Church. His first work was to repair the evils which England had endured till his accession by the restoration of the system of Henry the First; and it was with the aid and counsel of Theobald that the foreign marauders were driven from the realm, the new castles demolished in spite of the opposition of the baronage, the King's Court and Exchequer restored. Age and infirmity however warned the Primate to retire from the post of minister, and his power fell into the younger and more vigorous hands of Thomas Becket, who had long acted as his confidential adviser and was now made Chancellor. Thomas won the personal favour of the king. The two young men had, in Theobald's words, "but one heart and mind"; Henry jested in the Chancellor's hall, or tore his cloak from his shoulders in rough horse-play as they rode through the streets. He loaded his favourite with riches

and honours, but there is no ground for thinking that Thomas in any degree influenced his system of rule. Henry's policy seems for good or evil to have been throughout his own. His work of reorganization went steadily on amidst troubles at home and abroad. Welsh outbreaks forced him in 1157 to lead an army over the border; and a crushing repulse showed that he was less skilful as a general than as a statesman. The next year saw him drawn across the Channel, where he was already master of a third of the present France. Anjou, Maine, and Touraine he had inherited from his father, Normandy from his mother, he governed Brittany through his brother, while the seven provinces of the South, Poitou, Saintonge, La Marche, Périgord, the Limousin, the Angoumois, and Gascony, belonged to his wife. As Duchess of Aquitaine Eleanor had claims on Toulouse, and these Henry prepared in 1159 to enforce by arms. But the campaign was turned to the profit of his reforms. He had already begun the work of bringing the baronage within the grasp of the law by sending judges from the Exchequer year after year to exact the royal dues and administer the king's justice even in castle and manor. He now attacked its military influence. Each man who held lands of a certain value was bound to furnish a knight for his lord's service; and the barons thus held a body of trained soldiers at their disposal. When Henry called his chief lords to serve in the war of Toulouse, he allowed the lower tenants to commute their service for sums payable to the royal treasury under the name of "scutage," or shield-money. The "Great Scutage" did much to disarm the baronage, while it enabled the king to hire foreign mercenaries for his service abroad. Again however he was luckless in war. King Lewis of France threw himself into Toulouse. Conscious of the ill-compacted nature of his wide dominion, Henry shrank from an open contest with his suzerain; he withdrew his forces, and the quarrel ended in 1160 by a formal alliance and the betrothal of his eldest son to the daughter of Lewis.

Archbishop Thomas

Henry returned to his English realm to regulate the relations of the State with the Church. These rested in the main on the system established by the Conqueror, and with that system Henry had no wish to meddle. But he was resolute that, baron or priest, all should be equal before the law; and he had no more mercy for clerical than for feudal immunities. The immunities of the clergy indeed were becoming a hindrance to public justice. The clerical

order in the Middle Ages extended far beyond the priesthood; it included in Henry's day the whole of the professional and educated classes. It was subject to the jurisdiction of the Church courts alone; but bodily punishment could only be inflicted by officers of the lay courts, and so great had the jealousy between clergy and laity become that the bishops no longer sought civil aid but restricted themselves to the purely spiritual punishments of penance and deprivation of orders. Such penalties formed no effectual check upon crime, and while preserving the Church courts the king aimed at the delivery of convicted offenders to secular punishment. For the carrying out of these designs he sought an agent in Thomas the Chancellor. Thomas had now been his minister for eight years, and had fought bravely in the war against Toulouse at the head of the seven hundred knights who formed his household. But the king had other work for him than war. On Theobald's death he forced on the monks of Canterbury his election as Archbishop. But from the moment of his appointment in 1162 the dramatic temper of the new Primate flung its whole energy into the part he set himself to play. At the first intimation of Henry's purpose he pointed with a laugh to his gay court attire: "You are choosing a fine dress," he said, "to figure at the head of your Canterbury monks"; once monk and Archbishop he passed with a fevered earnestness from luxury to asceticism; and a visit to the Council of Tours in 1163, where the highest doctrines of ecclesiastical authority were sanctioned by Pope Alexander the Third, strengthened his purpose of struggling for the privileges of the Church. His change of attitude encouraged his old rivals at court to vex him with petty lawsuits, but no breach had come with the king till Henry proposed that clerical convicts should be punished by the civil power. Thomas refused; he would only consent that a clerk, once degraded, should for after offences suffer like a layman. Both parties appealed to the "customs" of the realm; and it was to state these "customs" that a court was held in 1164 at Clarendon near Salisbury.

Legal Reforms

The report presented by bishops and barons formed the Constitutions of Clarendon, a code which in the bulk of its provisions simply re-enacted the system of the Conqueror. Every election of bishop or abbot was to take place before royal officers, in the king's chapel, and with the king's assent. The prelate-elect was bound to do homage to the king for his lands before

consecration, and to hold his lands as a barony from the king, subject to all feudal burthens of taxation and attendance in the King's Court. No bishop might leave the realm without the royal permission. No tenant in chief or royal servant might be excommunicated, or their land placed under interdict, but by the king's assent. What was new was the legislation respecting ecclesiastical jurisdiction. The King's Court was to decide whether a suit between clerk and layman, whose nature was disputed, belonged to the Church courts or the King's. A royal officer was to be present at all ecclesiastical proceedings in order to confine the Bishop's court within its own due limits, and a clerk convicted there passed at once under the civil jurisdiction. An appeal was left from the Archbishop's court to the King's Court for defect of justice, but none might appeal to the Papal court save with the king's leave. The privilege of sanctuary in churches and churchyards was repealed, so far as property and not persons was concerned. After a passionate refusal the Primate was at last brought to give his assent to these Constitutions, but the assent was soon retracted, and Henry's savage resentment threw the moral advantage of the position into his opponent's hands. Vexatious charges were brought against Thomas, and he was summoned to answer at a Council held in the autumn at Northampton. All urged him to submit; his very life was said to be in peril from the king's wrath. But in the presence of danger the courage of the man rose to its full height. Grasping his archiepiscopal cross he entered the royal court, forbade the nobles to condemn him, and appealed in the teeth of the Constitutions to the Papal See. Shouts of "Traitor!" followed him as he withdrew. The Primate turned fiercely at the word: "Were I a knight," he shouted back, "my sword should answer that foul taunt!" Once alone however, dread pressed more heavily; he fled in disguise at nightfall and reached France through Flanders.

Great as were the dangers it was to bring with it, the flight of Thomas left Henry free to carry on the reforms he had planned. In spite of denunciations from Primate and Pope, the Constitutions regulated from this time the relations of the Church with the State. Henry now turned to the actual organization of the realm. His reign, it has been truly said, "initiated the rule of law" as distinct from the despotism, whether personal or tempered by routine, of the Norman sovereigns. It was by successive "assizes" or codes issued with the sanction of the great councils of barons and prelates which

he summoned year by year, that he perfected in a system of gradual reforms the administrative measures which Henry the First had begun. The fabric of our judicial legislation commences in 1166 with the Assize of Clarendon, the first object of which was to provide for the order of the realm by reviving the old English system of mutual security or frankpledge. No stranger might abide in any place save a borough and only there for a single night unless sureties were given for his good behaviour; and the list of such strangers was to be submitted to the itinerant justices. In the provisions of this assize for the repression of crime we find the origin of trial by jury, so often attributed to earlier times. Twelve lawful men of each hundred, with four from each township, were sworn to present those who were known or reputed as criminals within their district for trial by ordeal. The jurors were thus not merely witnesses, but sworn to act as judges also in determining the value of the charge, and it is this double character of Henry's jurors that has descended to our "grand jury," who still remain charged with the duty of presenting criminals for trial after examination of the witnesses against them. Two later steps brought the jury to its modern condition. Under Edward the First witnesses acquainted with the particular fact in question were added in each case to the general jury, and by the separation of these two classes of jurors at a later time the last became simply "witnesses" without any judicial power, while the first ceased to be witnesses at all and became our modern jurors, who are only judges of the testimony given. With this assize too a practice which had prevailed from the earliest English times, the practice of "compurgation," passed away. Under this system the accused could be acquitted of the charge by the voluntary oath of his neighbours and kinsmen; but this was abolished by the Assize of Clarendon, and for the fifty years which followed it his trial, after the investigation of the grand jury, was found solely in the ordeal or "judgement of God," where innocence was proved by the power of holding hot iron in the hand or by sinking when flung into the water, for swimming was a proof of guilt. It was the abolition of the whole system of ordeal by the Council of Lateran in 1216 which led the way to the establishment of what is called a "petty jury" for the final trial of prisoners.

Murder of Thomas

But Henry's work of reorganization had hardly begun when it was broken by the pressure of the strife with the Primate. For six years the contest raged

bitterly; at Rome, at Paris, the agents of the two powers intrigued against each other. Henry stooped to acts of the meanest persecution in driving the Primate's kinsmen from England, and in confiscating the lands of their order till the monks of Pontigny should refuse Thomas a home; while Becket himself exhausted the patience of his friends by his violence and excommunications, as well as by the stubbornness with which he clung to the offensive clause "Saving the honour of my order," the addition of which to his consent would have practically neutralised the king's reforms. The Pope counselled mildness, the French king for a time withdrew his support, his own clerks gave way at last. "Come up," said one of them bitterly when his horse stumbled on the road, "saving the honour of the Church and my order." But neither warning nor desertion moved the resolution of the Primate. Henry, in dread of Papal excommunication, resolved in 1170 on the coronation of his son: and this office, which belonged to the see of Canterbury, he transferred to the Archbishop of York. But the Pope's hands were now freed by his successes in Italy, and the threat of an interdict forced the king to a show of submission. The Archbishop was allowed to return after a reconciliation with the king at Fréteval, and the Kentishmen flocked around him with uproarious welcome as he entered Canterbury. "This is England," said his clerks, as they saw the white headlands of the coast. "You will wish yourself elsewhere before fifty days are gone," said Thomas sadly, and his foreboding showed his appreciation of Henry's character. He was now in the royal power, and orders had already been issued in the younger Henry's name for his arrest when four knights from the King's Court, spurred to outrage by a passionate outburst of their master's wrath, crossed the sea, and on the 29th of December forced their way into the Archbishop's palace. After a stormy parley with him in his chamber they withdrew to arm. Thomas was hurried by his clerks into the cathedral, but as he reached the steps leading from the transept to the choir his pursuers burst in from the cloisters. "Where," cried Reginald Fitzurse in the dusk of the dimly-lighted minster, "where is the traitor, Thomas Becket?" The Primate turned resolutely back: "Here am I, no traitor, but a priest of God," he replied, and again descending the steps he placed himself with his back against a pillar and fronted his foes. All the bravery and violence of his old knightly life seemed to revive in Thomas as he tossed back the threats and demands of his assailants. "You are our prisoner," shouted Fitzurse, and the four knights seized him to drag him from the church. "Do not touch me,

Reginald," cried the Primate, "pander that you are, you owe me fealty"; and availing himself of his personal strength he shook him roughly off. "Strike, strike," retorted Fitzurse, and blow after blow struck Thomas to the ground. A retainer of Ranulf de Broc with the point of his sword scattered the Primate's brains on the ground. "Let us be off," he cried triumphantly, "this traitor will never rise again."

The Church and Literature

The brutal murder was received with a thrill of horror throughout Christendom; miracles were wrought at the martyr's tomb; he was canonized, and became the most popular of English saints. The stately "martyrdom" which rose over his relics at Canterbury seemed to embody the triumph which his blood had won. But the contest had in fact revealed a new current of educated opinion which was to be more fatal to the Church than the reforms of the king. Throughout it Henry had been aided by a silent revolution which now began to part the purely literary class from the purely clerical. During the earlier ages of our history we have seen literature springing up in ecclesiastical schools, and protecting itself against the ignorance and violence of the time under ecclesiastical privileges. Almost all our writers from Bæda to the days of the Angevins are clergy or monks. The revival of letters which followed the Conquest was a purely ecclesiastical revival; the intellectual impulse which Bee had given to Normandy travelled across the Channel with the new Norman abbots who were established in the greater English monasteries; and writing-rooms or scriptoria, where the chief works of Latin literature, patristic or classical, were copied and illuminated, the lives of saints compiled, and entries noted in the monastic chronicle, formed from this time a part of every religious house of any importance. But the literature which found this religious shelter was not so much ecclesiastical as secular. Even the philosophical and devotional impulse given by Anselm produced no English work of theology or metaphysics. The literary revival which followed the Conquest took mainly the old historical form. At Durham Turgot and Simeon threw into Latin shape the national annals to the time of Henry the First with an especial regard to northern affairs, while the earlier events of Stephen's reign were noted down by two Priors of Hexham in the wild border-land between England and the Scots.

These however were the colourless jottings of mere annalists; it was in the Scriptorium of Canterbury, in Osbern's lives of the English saints or in Eadmer's record of the struggle of Anselm against the Red King and his successor, that we see the first indications of a distinctively English feeling telling on the new literature. The national impulse is yet more conspicuous in the two historians that followed. The war-songs of the English conquerors of Britain were preserved by Henry, an Archdeacon of Huntingdon, who wove them into annals compiled from Bæda, and the Chronicle; while William, the librarian of Malmesbury, as industriously collected the lighter ballads which embodied the popular traditions of the English kings. It is in William above all others that we see the new tendency of English literature. In himself, as in his work, he marks the fusion of the conquerors and the conquered, for he was of both English and Norman parentage and his sympathies were as divided as his blood. The form and style of his writings show the influence of those classical studies which were now reviving throughout Christendom. Monk as he is, William discards the older ecclesiastical models and the annalistic form. Events are grouped together with no strict reference to time, while the lively narrative flows rapidly and loosely along with constant breaks of digression over the general history of Europe and the Church. It is in this change of historic spirit that William takes his place as first of the more statesmanlike and philosophic school of historians who began to arise in direct connexion with the Court, and among whom the author of the chronicle which commonly bears the name of "Benedict of Peterborough" with his continuator Roger of Howden are the most conspicuous. Both held judicial offices under Henry the Second, and it is to their position at Court that they owe the fulness and accuracy of their information as to affairs at home and abroad, as well as their copious supply of official documents. What is noteworthy in these writers is the purely political temper with which they regard the conflict of Church and State in their time. But the English court had now become the centre of a distinctly secular literature. The treatise of Ranulf de Glanvill, a justiciar of Henry the Second, is the earliest work on English law, as that of the royal treasurer, Richard Fitz-Neal, on the Exchequer is the earliest on English government.

Gerald of Wales

Still more distinctly secular than these, though the work of a priest who claimed to be a bishop, are the writings of Gerald de Barri. Gerald is the father of our popular literature as he is the originator of the political and ecclesiastical pamphlet. Welsh blood (as his usual name of Giraldus Cambrensis implies) mixed with Norman in his veins, and something of the restless Celtic fire runs alike through his writings and his life. A busy scholar at Paris, a reforming Archdeacon in Wales, the wittiest of Court chaplains, the most troublesome of bishops, Gerald became the gayest and most amusing of all the authors of his time. In his hands the stately Latin tongue took the vivacity and picturesqueness of the jongleur's verse. Reared as he had been in classic studies, he threw pedantry contemptuously aside. "It is better to be dumb than not to be understood," is his characteristic apology for the novelty of his style: "new times require new fashions, and so I have thrown utterly aside the old and dry method of some authors and aimed at adopting the fashion of speech which is actually in vogue to-day." His tract on the conquest of Ireland and his account of Wales, which are in fact reports of two journeys undertaken in those countries with John and Archbishop Baldwin, illustrate his rapid faculty of careless observation, his audacity, and his good sense. They are just the sort of lively, dashing letters that we find in the correspondence of a modern journal. There is the same modern tone in his political pamphlets; his profusion of jests, his fund of anecdote, the aptness of his quotations, his natural shrewdness and critical acumen, the clearness and vivacity of his style, are backed by a fearlessness and impetuosity that made him a dangerous assailant even to such a ruler as Henry the Second. The invectives in which Gerald poured out his resentment against the Angevins are the cause of half the scandal about Henry and his sons which has found its way into history. His life was wasted in an ineffectual attempt to secure the see of St. David's, but his pungent pen played its part in rousing the nation to its later struggle with the Crown.

Romance

A tone of distinct hostility to the Church developed itself almost from the first among the singers of romance. Romance had long before taken root in the court of Henry the First, where under the patronage of Queen Maud the dreams of Arthur, so long cherished by the Celts of Brittany, and which had travelled to Wales in the train of the exile Rhys ap Tewdor, took shape in

the History of the Britons by Geoffry of Monmouth. Myth, legend, tradition, the classical pedantry of the day, Welsh hopes of future triumph over the Saxon, the memories of the Crusades and of the world-wide dominion of Charles the Great, were mingled together by this daring fabulist in a work whose popularity became at once immense. Alfred of Beverley transferred Geoffry's inventions into the region of sober history, while two Norman *trouveurs*, Gaimar and Wace, translated them into French verse. So complete was the credence they obtained that Arthur's tomb at Glastonbury was visited by Henry the Second, while the child of his son Geoffry and of Constance of Brittany received the name of the Celtic hero. Out of Geoffry's creation grew little by little the poem of the Table Round. Brittany, which had mingled with the story of Arthur the older and more mysterious legend of the Enchanter Merlin, lent that of Lancelot to the wandering minstrels of the day, who moulded it as they wandered from hall to hall into the familiar tale of knighthood wrested from its loyalty by the love of woman. The stories of Tristram and Gawayne, at first as independent as that of Lancelot, were drawn with it into the whirlpool of Arthurian romance; and when the Church, jealous of the popularity of the legends of chivalry, invented as a counteracting influence the poem of the Sacred Dish, the San Graal which held the blood of the Cross invisible to all eyes but those of the pure in heart, the genius of a Court poet, Walter de Map, wove the rival legends together, sent Arthur and his knights wandering over sea and land in quest of the San Graal, and crowned the work by the figure of Sir Galahad, the type of ideal knighthood, without fear and without reproach.

Walter de Map

Walter stands before us as the representative of a sudden outburst of literary, social, and religious criticism which followed this growth of romance and the appearance of a freer historical tone in the court of the two Henries. Born on the Welsh border, a student at Paris, a favourite with the king, a royal chaplain, justiciary, and ambassador, his genius was as various as it was prolific. He is as much at his ease in sweeping together the chitchat of the time in his "Courtly Trifles" as in creating the character of Sir Galahad. But he only rose to his fullest strength when he turned from the fields of romance to that of Church reform and embodied the ecclesiastical abuses of his day in the figure of his "Bishop Goliath." The

whole spirit of Henry and his Court in their struggle with Thomas is reflected and illustrated in the apocalypse and confession of this imaginary prelate. Picture after picture strips the veil from the corruption of the mediæval Church, its indolence, its thirst for gain, its secret immorality. The whole body of the clergy from Pope to hedge-priest is painted as busy in the chase for gain; what escapes the bishop is snapped up by the archdeacon, what escapes the archdeacon is nosed and hunted down by the dean, while a host of minor officials prowl hungrily around these greater marauders. Out of the crowd of figures which fills the canvas of the satirist, pluralist vicars, abbots "purple as their wines," monks feeding and chattering together like parrots in the refectory, rises the Philistine Bishop, light of purpose, void of conscience, lost in sensuality, drunken, unchaste, the Goliath who sums up the enormities of all, and against whose forehead this new David slings his sharp pebble of the brook.



Invasion of Ireland

It would be in the highest degree unjust to treat such invectives as sober history, or to judge the Church of the twelfth century by the taunts of Walter de Map. What writings such as his bring home to us is the upgrowth of a new literary class, not only standing apart from the Church but regarding it with a hardly disguised ill-will, and breaking down the unquestioning reverence with which men had till now regarded it by their sarcasm and abuse. The tone of intellectual contempt which begins with Walter de Map

goes deepening on till it culminates in Chaucer and passes into the open revolt of the Lollard. But even in these early days we can hardly doubt that it gave Henry strength in his contest with the Church. So little indeed did he suffer from the murder of Archbishop Thomas that the years which follow it form the grandest portion of his reign. While Rome was threatening excommunication he added a new realm to his dominions. Ireland had long since fallen from the civilization and learning which its missionaries brought in the seventh century to the shores of Northumbria. Every element of improvement or progress which had been introduced into the island disappeared in the long and desperate struggle with the Danes. The coast-towns which the invaders founded, such as Dublin or Waterford, remained Danish, in blood and manners and at feud with the Celtic tribes around them, though sometimes forced by the fortunes of war to pay tribute and to accept the overlordship of the Irish kings. It was through these towns however that the intercourse with England which had ceased since the eighth century was to some extent renewed in the eleventh. Cut off from the Church of the island by national antipathy, the Danish coast-cities applied to the See of Canterbury for the ordination of their bishops, and acknowledged a right of spiritual supervision in Lanfranc and Anselm. The relations thus formed were drawn closer by a slave-trade between the two countries which the Conqueror and Bishop Wulfstan succeeded for a time in suppressing at Bristol but which appears to have quickly revived. In the twelfth century Ireland was full of Englishmen who had been kidnapped and sold into slavery in spite of royal prohibitions and the spiritual menaces of the English Church. The slave-trade afforded a legitimate pretext for war, had a pretext been needed by the ambition of Henry the Second; and within a few months of that king's coronation John of Salisbury was despatched to obtain the Papal sanction for an invasion of the island. The enterprise, as it was laid before Pope Hadrian IV., took the colour of a crusade. The isolation of Ireland from the general body of Christendom, the absence of learning and civilization, the scandalous vices of its people, were alleged as the grounds of Henry's action. It was the general belief of the time that all islands fell under the jurisdiction of the Papal See, and it was as a possession of the Roman Church that Henry sought Hadrian's permission to enter Ireland. His aim was "to enlarge the bounds of the Church, to restrain the progress of vices, to correct the manners of its people and to plant virtue among them, and to increase the Christian religion." He engaged to "subject

the people to laws, to extirpate vicious customs, to respect the rights of the native Churches, and to enforce the payment of Peter's pence" as a recognition of the overlordship of the Roman See. Hadrian by his bull approved the enterprise, as one prompted by "the ardour of faith and love of religion," and declared his will that the people of Ireland should receive Henry with all honour, and revere him as their lord.

The Papal bull was produced in a great council of the English baronage, but the opposition was strong enough to force on Henry a temporary abandonment of his designs, and twelve years passed before the scheme was brought to life again by the flight of Dermot, King of Leinster, to Henry's court. Dermot had been driven from his dominions in one of the endless civil wars which devastated the island; he now did homage for his kingdom to Henry, and returned to Ireland with promises of aid from the English knighthood. He was followed in 1168 by Robert FitzStephen, a son of the Constable of Cardigan, with a little band of a hundred and forty knights, sixty men-at-arms, and three or four hundred Welsh archers. Small as was the number of the adventurers, their horses and arms proved irresistible by the Irish kernes; a sally of the men of Wexford was avenged by the storm of their town; the Ossory clans were defeated with a terrible slaughter, and Dermot, seizing a head from the heap of trophies which his men piled at his feet, tore off in savage triumph its nose and lips with his teeth. The arrival of fresh forces heralded the coming of Richard of Clare, Earl of Pembroke and Striguil, a ruined baron later known by the nickname of Strongbow, and who in defiance of Henry's prohibition landed near Waterford with a force of fifteen hundred men as Dermot's mercenary. The city was at once stormed, and the united forces of the earl and king marched to the siege of Dublin. In spite of a relief attempted by the King of Connaught, who was recognized as overking of the island by the rest of the tribes, Dublin was taken by surprise; and the marriage of Richard with Eva, Dermot's daughter, left the Earl on the death of his father-in-law, which followed quickly on these successes, master of his kingdom of Leinster. The new lord had soon however to hurry back to England and appease the jealousy of Henry by the surrender of Dublin to the Crown, by doing homage for Leinster as an English lordship, and by accompanying the king in 1171 on a voyage to the new dominion which the adventurers had won.

Revolt of the younger Henry

Had fate suffered Henry to carry out his purpose, the conquest of Ireland would now have been accomplished. The King of Connaught indeed and the chiefs of Ulster refused him homage, but the rest of the Irish tribes owned his suzerainty; the bishops in synod at Cashel recognized him as their lord; and he was preparing to penetrate to the north and west, and to secure his conquest by a systematic erection of castles throughout the country, when the need of making terms with Rome, whose interdict threatened to avenge the murder of Archbishop Thomas, recalled him in the spring of 1172 to Normandy. Henry averted the threatened sentence by a show of submission. The judicial provisions in the Constitutions of Clarendon were in form annulled, and liberty of election was restored in the case of bishopricks and abbacies. In reality however the victory rested with the king. Throughout his reign ecclesiastical appointments remained practically in his hands, and the King's Court asserted its power over the spiritual jurisdiction of the bishops. But the strife with Thomas had roused into active life every element of danger which surrounded Henry, the envious dread of his neighbours, the disaffection of his own house, the disgust of the barons at the repeated blows which he levelled at their military and judicial power. The king's withdrawal of the office of sheriff from the great nobles of the shire to entrust it to the lawyers and courtiers who already furnished the staff of the royal judges quickened the resentment of the baronage into revolt. His wife Eleanor, now parted from Henry by a bitter hate, spurred her eldest son, whose coronation had given him the title of king, to demand possession of the English realm. On his father's refusal the boy sought refuge with Lewis of France, and his flight was the signal for a vast rising. France, Flanders, and Scotland joined in league against Henry; his younger sons, Richard and Geoffry, took up arms in Aquitaine, while the Earl of Leicester sailed from Flanders with an army of mercenaries to stir up England to revolt. The Earl's descent ended in a crushing defeat near St. Edmundsbury at the hands of the king's justiciars; but no sooner had the French king entered Normandy and invested Rouen than the revolt of the baronage burst into flame. The Scots crossed the border, Roger Mowbray rose in Yorkshire, Ferrars, Earl of Derby, in the midland shires, Hugh Bigod in the eastern counties, while a Flemish fleet prepared to support the insurrection by a descent upon the coast. The murder of Archbishop Thomas still hung round Henry's neck, and his first act in hurrying to England to meet these perils in 1174 was to prostrate

himself before the shrine of the new martyr and to submit to a public scourging in expiation of his sin. But the penance was hardly wrought when all danger was dispelled by a series of triumphs. The King of Scotland, William the Lion, surprised by the English under cover of a mist, fell into the hands of Henry's minister, Ranulf de Glanvill, and at the retreat of the Scots the English rebels hastened to lay down their arms. With the army of mercenaries which he had brought over sea Henry was able to return to Normandy, to raise the siege of Rouen, and to reduce his sons to submission.

Later reforms

Through the next ten years Henry's power was at its height. The French king was cowed. The Scotch king bought his release in 1175 by owning Henry's suzerainty. The Scotch barons did homage, and English garrisons manned the strongest of the Scotch castles. In England itself church and baronage were alike at the king's mercy. Eleanor was imprisoned; and the younger Henry, though always troublesome, remained powerless to do harm. The king availed himself of this rest from outer foes to push forward his judicial and administrative organization. At the outset of his reign he had restored the King's Court and the occasional circuits of its justices; but the revolt was hardly over when in 1176 the Assize of Northampton rendered this institution permanent and regular by dividing the kingdom into six districts, to each of which three itinerant judges were assigned. The circuits thus marked out correspond roughly with those that still exist. The primary object of these circuits was financial; but the rendering of the king's justice went on side by side with the exaction of the king's dues, and this carrying of justice to every corner of the realm was made still more effective by the abolition of all feudal exemptions from the royal jurisdiction. The chief danger of the new system lay in the opportunities it afforded to judicial corruption; and so great were its abuses, that in 1178 Henry was forced to restrict for a while the number of justices to five, and to reserve appeals from their court to himself in council. The Court of Appeal which was thus created, that of the King in Council, gave birth as time went on to tribunal after tribunal. It is from it that the judicial powers now exercised by the Privy Council are derived, as well as the equitable jurisdiction of the Chancellor. In the next century it became the Great Council of the realm, and it is from this Great Council, in its two distinct

capacities, that the Privy Council drew its legislative, and the House of Lords its judicial character. The Court of Star Chamber and the Judicial Committee of the Privy Council are later offshoots of Henry's Court of Appeal. From the judicial organization of the realm, he turned to its military organization, and in 1181 an Assize of Arms restored the national fyrd or militia to the place which it had lost at the Conquest. The substitution of scutage for military service had freed the crown from its dependence on the baronage and its feudal retainers; the Assize of Arms replaced this feudal organization by the older obligation of every freeman to serve in defence of the realm. Every knight was now bound to appear in coat of mail and with shield and lance, every freeholder with lance and hauberk, every burgess and poorer freeman with lance and helmet, at the king's call. The levy of an armed nation was thus placed wholly at the disposal of the Crown for purposes of defence.

Henry's death

A fresh revolt of the younger Henry with his brother Geoffry in 1183 hardly broke the current of Henry's success. The revolt ended with the young king's death, and in 1186 this was followed by the death of Geoffry. Richard, now his father's heir, remained busy in Aquitaine; and Henry was himself occupied with plans for the recovery of Jerusalem, which had been taken by Saladin in 1187. The "Saladin tithe," a tax levied on all goods and chattels, and memorable as the first English instance of taxation on personal property, was granted to the king at the opening of 1188 to support his intended Crusade. But the Crusade was hindered by strife which broke out between Richard and the new French king, Philip; and while Henry strove in vain to bring about peace, a suspicion that he purposed to make his youngest son, John, his heir drove Richard to Philip's side. His father, broken in health and spirits, negotiated fruitlessly through the winter, but with the spring of 1189 Richard and the French king suddenly appeared before Le Mans. Henry was driven in headlong flight from the town. Tradition tells how from a height where he halted to look back on the burning city, so dear to him as his birthplace, the king hurled his curse against God: "Since Thou hast taken from me the town I loved best, where I was born and bred, and where my father lies buried, I will have my revenge on Thee too--I will rob Thee of that thing Thou lovest most in me." If the words were uttered, they were the frenzied words of a dying man. Death

drew Henry to the home of his race, but Tours fell as he lay at Saumur, and the hunted king was driven to beg mercy from his foes. They gave him the list of the conspirators against him: at its head was the name of one, his love for whom had brought with it the ruin that was crushing him, his youngest son, John. "Now," he said, as he turned his face to the wall, "let things go as they will--I care no more for myself or for the world." The end was come at last. Henry was borne to Chinon by the silvery waters of Vienne, and muttering, "Shame, shame on a conquered king," passed sullenly away.

CHAPTER IV

THE ANGEVIN KINGS

1189-1204

John and Longchamp

The fall of Henry the Second only showed the strength of the system he had built up on this side the sea. In the hands of the Justiciar, Ranulf de Glanvill, England remained peaceful through the last stormy months of his reign, and his successor Richard found it undisturbed when he came for his crowning in the autumn of 1189. Though born at Oxford, Richard had been bred in Aquitaine; he was an utter stranger to his realm, and his visit was simply for the purpose of gathering money for a Crusade. Sherifffdoms, bishopricks, were sold; even the supremacy over Scotland was bought back again by William the Lion; and it was with the wealth which these measures won that Richard made his way in 1190 to Marseilles and sailed thence to Messina. Here he found his army and a host under King Philip of France; and the winter was spent in quarrels between the two kings and a strife between Richard and Tancred of Sicily. In the spring of 1191 his mother Eleanor arrived with ill news from England. Richard had left the realm under the regency of two bishops, Hugh Puiset of Durham and William Longchamp of Ely; but before quitting France he had entrusted it wholly to the latter, who stood at the head of Church and State as at once Justiciar and Papal Legate. Longchamp was loyal to the king, but his exactions and scorn of Englishmen roused a fierce hatred among the baronage, and this hatred found a head in John. While richly gifting his brother with earldoms and lands, Richard had taken oath from him that he would quit England for three years. But tidings that the Justiciar was striving to secure the succession of Arthur, the child of his elder brother Geoffry and of Constance of Brittany, to the English crown at once recalled John to the realm, and peace between him and Longchamp was only preserved by the influence of the queen-mother Eleanor. Richard met this news by sending Walter of Coutances, the Archbishop of Rouen, with full but secret powers

to England. On his landing in the summer of 1191 Walter found the country already in arms. No battle had been fought, but John had seized many of the royal castles, and the indignation stirred by Longchamp's arrest of Archbishop Geoffry of York, a bastard son of Henry the Second, called the whole baronage to the field. The nobles swore fealty to John as Richard's successor, and Walter of Coutances saw himself forced to show his commission as Justiciar, and to assent to Longchamp's exile from the realm.

Richard

The tidings of this revolution reached Richard in the Holy Land. He had landed at Acre in the summer and joined with the French king in its siege. But on the surrender of the town Philip at once sailed home, while Richard, marching from Acre to Joppa, pushed inland to Jerusalem. The city however was saved by false news of its strength, and through the following winter and the spring of 1192 the king limited his activity to securing the fortresses of southern Palestine. In June he again advanced on Jerusalem, but the revolt of his army forced him a second time to fall back, and news of Philip's intrigues with John drove him to abandon further efforts. There was need to hasten home. Sailing for speed's sake in a merchant vessel, he was driven by a storm on the Adriatic coast, and while journeying in disguise overland arrested in December at Vienna by his personal enemy, Duke Leopold of Austria. Through the whole year John, in disgust at his displacement by Walter of Coutances, had been plotting fruitlessly with Philip. But the news of this capture at once roused both to activity. John secured his castles and seized Windsor, giving out that the king would never return; while Philip strove to induce the Emperor, Henry the Sixth, to whom the Duke of Austria had given Richard up, to retain his captive. But a new influence now appeared on the scene. The see of Canterbury was vacant, and Richard from his prison bestowed it on Hubert Walter, the Bishop of Salisbury, a nephew of Ranulf de Glanvill, and who had acted as secretary to Bishop Longchamp. Hubert's ability was seen in the skill with which he held John at bay and raised the enormous ransom which Henry demanded, the whole people, clergy as well as lay, paying a fourth of their moveable goods. To gain his release however Richard was forced besides this payment of ransom to do homage to the Emperor, not only for the kingdom of Arles with which Henry invested him but for England itself, whose crown he resigned into the Emperor's hands and received back as a fief. But

John's open revolt made even these terms welcome, and Richard hurried to England in the spring of 1194. He found the rising already quelled by the decision with which the Primate led an army against John's castles, and his landing was followed by his brother's complete submission.

Richard and Philip

The firmness of Hubert Walter had secured order in England, but overseas Richard found himself face to face with dangers which he was too clear-sighted to undervalue. Destitute of his father's administrative genius, less ingenious in his political conceptions than John, Richard was far from being a mere soldier. A love of adventure, a pride in sheer physical strength, here and there a romantic generosity, jostled roughly with the craft, the unscrupulousness, the violence of his race; but he was at heart a statesman, cool and patient in the execution of his plans as he was bold in their conception. "The devil is loose; take care of yourself," Philip had written to John at the news of Richard's release. In the French king's case a restless ambition was spurred to action by insults which he had borne during the Crusade. He had availed himself of Richard's imprisonment to invade Normandy, while the lords of Aquitaine rose in open revolt under the troubadour Bertrand de Born. Jealousy of the rule of strangers, weariness of the turbulence of the mercenary soldiers of the Angevins or of the greed and oppression of their financial administration, combined with an impatience of their firm government and vigorous justice to alienate the nobles of their provinces on the Continent. Loyalty among the people there was none; even Anjou, the home of their race, drifted towards Philip as steadily as Poitou. But in warlike ability Richard was more than Philip's peer. He held him in check on the Norman frontier and surprised his treasure at Fréteval while he reduced to submission the rebels of Aquitaine. Hubert Walter gathered vast sums to support the army of mercenaries which Richard led against his foes. The country groaned under its burdens, but it owed the justice and firmness of the Primate's rule, and the measures which he took to procure money with as little oppression as might be proved steps in the education of the nation in its own self-government. The taxes were assessed by a jury of sworn knights at each circuit of the justices; the grand jury of the county was based on the election of knights in the hundred courts; and the keeping of pleas of the crown was taken from the sheriff and given to a newly-elected officer, the coroner. In these elections were found at a later time

precedents for parliamentary representation; in Hubert's mind they were doubtless intended to do little more than reconcile the people to the crushing taxation. His work poured a million into the treasury, and enabled Richard during a short truce to detach Flanders by his bribes from the French alliance, and to unite the Counts of Chartres, Champagne, and Boulogne with the Bretons in a revolt against Philip. He won a yet more valuable aid in the election of his nephew Otto of Saxony, a son of Henry the Lion, to the German throne, and his envoy William Longchamp knitted an alliance which would bring the German lances to bear on the King of Paris.

Château Gaillard

But the security of Normandy was requisite to the success of these wider plans, and Richard saw that its defence could no longer rest on the loyalty of the Norman people. His father might trace his descent through Matilda from the line of Hrolf, but the Angevin ruler was in fact a stranger to the Norman. It was impossible for a Norman to recognize his Duke with any real sympathy in the Angevin prince whom he saw moving along the border at the head of Brabançon mercenaries, in whose camp the old names of the Norman baronage were missing and Merchade, a Provençal ruffian, held supreme command. The purely military site that Richard selected for a new fortress with which he guarded the border showed his realization of the fact that Normandy could now only be held by force of arms. As a monument of warlike skill his "Saucy Castle," Château Gaillard, stands first among the fortresses of the Middle Ages. Richard fixed its site where the Seine bends suddenly at Gaillon in a great semicircle to the north, and where the valley of Les Andelys breaks the line of the chalk cliffs along its banks. Blue masses of woodland crown the distant hills; within the river curve lies a dull reach of flat meadow, round which the Seine, broken with green islets and dappled with the grey and blue of the sky, flashes like a silver bow on its way to Rouen. The castle formed part of an entrenched camp which Richard designed to cover his Norman capital. Approach by the river was blocked by a stockade and a bridge of boats, by a fort on the islet in mid stream, and by a fortified town which the king built in the valley of the Gambon, then an impassable marsh. In the angle between this valley and the Seine, on a spur of the chalk hills which only a narrow neck of land connects with the general plateau, rose at the height of three hundred feet above the river the

crowning fortress of the whole. Its outworks and the walls which connected it with the town and stockade have for the most part gone, but time and the hand of man have done little to destroy the fortifications themselves--the fosse, hewn deep into the solid rock, with casemates hollowed out along its sides, the fluted walls of the citadel, the huge donjon looking down on the brown roofs and huddled gables of Les Andelys. Even now in its ruin we can understand the triumphant outburst of its royal builder as he saw it rising against the sky: "How pretty a child is mine, this child of but one year old!"

Richard's death

The easy reduction of Normandy on the fall of Château Gaillard at a later time proved Richard's foresight; but foresight and sagacity were mingled in him with a brutal violence and a callous indifference to honour. "I would take it, were its walls of iron," Philip exclaimed in wrath as he saw the fortress rise. "I would hold it, were its walls of butter," was the defiant answer of his foe. It was Church land and the Archbishop of Rouen laid Normandy under interdict at its seizure, but the king met the interdict with mockery, and intrigued with Rome till the censure was withdrawn. He was just as defiant of a "rain of blood," whose fall scared his courtiers. "Had an angel from heaven bid him abandon his work," says a cool observer, "he would have answered with a curse." The twelve months' hard work, in fact, by securing the Norman frontier set Richard free to deal his long-planned blow at Philip. Money only was wanting; for England had at last struck against the continued exactions. In 1198 Hugh, Bishop of Lincoln, brought nobles and bishops to refuse a new demand for the maintenance of foreign soldiers, and Hubert Walter resigned in despair. A new justiciar, Geoffry Fitz-Peter, Earl of Essex, extorted some money by a harsh assize of the forests; but the exchequer was soon drained, and Richard listened with more than the greed of his race to rumours that a treasure had been found in the fields of the Limousin. Twelve knights of gold seated round a golden table were the find, it was said, of the Lord of Châlus. Treasure-trove at any rate there was, and in the spring of 1199 Richard prowled around the walls. But the castle held stubbornly out till the king's greed passed into savage menace. He would hang all, he swore--man, woman, the very child at the breast. In the midst of his threats an arrow from the walls struck him down. He died as he had lived, owning the wild passion which for seven years past

had kept him from confession lest he should be forced to pardon Philip, forgiving with kingly generosity the archer who had shot him.

Loss of Normandy

The Angevin dominion broke to pieces at his death. John was acknowledged as king in England and Normandy, Aquitaine was secured for him by its duchess, his mother Eleanor; but Anjou, Maine, and Touraine did homage to Arthur, the son of his elder brother Geoffry, the late Duke of Brittany. The ambition of Philip, who protected his cause, turned the day against Arthur; the Angevins rose against the French garrisons with which the French king practically annexed the country, and in May 1200 a treaty between the two kings left John master of the whole dominion of his house. But fresh troubles broke out in Poitou; Philip, on John's refusal to answer the charges of the Poitevin barons at his Court, declared in 1202 his fiefs forfeited; and Arthur, now a boy of fifteen, strove to seize Eleanor in the castle of Mirebeau. Surprised at its siege by a rapid march of the king, the boy was taken prisoner to Rouen, and murdered there in the spring of 1203, as men believed, by his uncle's hand. This brutal outrage at once roused the French provinces in revolt, while Philip sentenced John to forfeiture as a murderer, and marched straight on Normandy. The ease with which the conquest of the Duchy was effected can only be explained by the utter absence of any popular resistance on the part of the Normans themselves. Half a century before the sight of a Frenchman in the land would have roused every peasant to arms from Avranches to Dieppe. But town after town surrendered at the mere summons of Philip, and the conquest was hardly over before Normandy settled down into the most loyal of the provinces of France. Much of this was due to the wise liberality with which Philip met the claims of the towns to independence and self-government, as well as to the overpowering force and military ability with which the conquest was effected. But the utter absence of opposition sprang from a deeper cause. To the Norman his transfer from John to Philip was a mere passing from one foreign master to another, and foreigner for foreigner Philip was the less alien of the two. Between France and Normandy there had been as many years of friendship as of strife; between Norman and Angevin lay a century of bitterest hate. Moreover, the subjection to France was the realization in fact of a dependence which had always existed in theory; Philip entered Rouen as the overlord of its dukes; while the

submission to the house of Anjou had been the most humiliating of all submissions, the submission to an equal. In 1204 Philip turned on the south with as startling a success. Maine, Anjou, and Touraine passed with little resistance into his hands, and the death of Eleanor was followed by the submission of the bulk of Aquitaine. Little was left save the country south of the Garonne; and from the lordship of a vast empire that stretched from the Tyne to the Pyrenees John saw himself reduced at a blow to the realm of England.

BOOK III

THE CHARTER

1204-1307

AUTHORITIES FOR BOOK III

1204-1307

A Chronicle drawn up at the monastery of Barnwell near Cambridge, and which has been embodied in the "Memoriale" of Walter of Coventry, gives us a contemporary account of the period from 1201 to 1225. We possess another contemporary annalist for the same period in Roger of Wendover, the first of the published chroniclers of St. Albans, whose work extends to 1235. Though full of detail Roger is inaccurate, and he has strong royal and ecclesiastical sympathies; but his chronicle was subsequently revised in a more patriotic sense by another monk of the same abbey, Matthew Paris, and continued in the "Greater Chronicle" of the latter.

Matthew has left a parallel but shorter account of the time in his "Historia Anglorum" (from the Conquest to 1253). He is the last of the great chroniclers of his house; for the chronicles of Rishanger, his successor at St. Albans, and of the obscurer annalists who worked on at that Abbey till the Wars of the Roses are little save scant and lifeless jottings of events which become more and more local as time goes on. The annals of the abbeys of Waverley, Dunstable, and Burton, which have been published in the "Annales Monastici" of the Rolls series, add important details for the reigns of John and Henry III. Those of Melrose, Osney, and Lanercost help us in the close of the latter reign, where help is especially welcome. For the Barons' war we have besides these the royalist chronicle of Wykes, Rishanger's fragment published by the Camden Society, and a chronicle of Bartholomew de Cotton, which is contemporary from 1264 to 1298. Where the chronicles fail however the public documents of the realm become of high importance. The "Royal Letters" (1216-1272) which have been printed from the Patent Rolls by Professor Shirley (Rolls Series) throw great light on Henry's politics.

Our municipal history during this period is fully represented by that of London. For the general history of the capital the Rolls series has given us its "Liber Albus" and "Liber Custumarum," while a vivid account of its

communal revolution is to be found in the "*Liber de Antiquis Legibus*" published by the Camden Society. A store of documents will be found in the Charter Rolls published by the Record Commission, in Brady's work on "English Boroughs," and in the "Ordinances of English Gilds," published with a remarkable preface from the pen of Dr. Brentano by the Early English Text Society. For our religious and intellectual history materials now become abundant. Grosseteste's Letters throw light on the state of the Church and its relations with Rome; those of Adam Marsh give us interesting details of Earl Simon's relation to the religious movement of his day; and Eceleston's tract on the arrival of the Friars is embodied in the "*Monumenta Franciscana*." For the Universities we have the collection of materials edited by Mr. Anstey under the name of "*Munimenta Academica*."

With the close of Henry's reign our directly historic materials become scantier and scantier. The monastic annals we have before mentioned are supplemented by the jejune entries of Trivet and Murimuth, by the "*Annales Anglic et Scotias*," by Rishanger's Chronicle, his "*Gesta Edwardi Primi*," and three fragments of his annals (all published in the Rolls Series). The portion of the so-called "Walsingham's History" which relates to this period is now attributed by Mr. Riley to Rishanger's hand. For the wars in the north and in the west we have no records from the side of the conquered. The social and physical state of Wales indeed is illustrated by the "*Itinerarium*" which Gerald de Barri drew up in the twelfth century, but Scotland has no contemporary chronicles for this period; the jingling rimes of Blind Harry are two hundred years later than his hero, Wallace. We possess however a copious collection of State papers in the "*Rotuli Scotiæ*," the "Documents and Records illustrative of the History of Scotland" which were edited by Sir F. Palgrave, as well as in Rymer's *Foedera*. For the history of our Parliament the most noteworthy materials have been collected by Professor Stubbs in his *Select Charters*, and he has added to them a short treatise called "*Modus Tenendi Parliamentum*," which may be taken as a fair account of its actual state and powers in the fourteenth century.

CHAPTER I

JOHN

1204-1216

England and the Conquest

The loss of Normandy did more than drive John from the foreign dominions of his race; it set him face to face with England itself. England was no longer a distant treasure-house from which gold could be drawn for wars along the Epte or the Loire, no longer a possession to be kept in order by wise ministers and by flying visits from its foreign king. Henceforth it was his home. It was to be ruled by his personal and continuous rule. People and sovereign were to know each other, to be brought into contact with each other as they had never been brought since the conquest of the Norman. The change in the attitude of the king was the more momentous that it took place at a time when the attitude of the country itself was rapidly changing. The Norman Conquest had given a new aspect to the land. A foreign king ruled it through foreign ministers. Foreign nobles were quartered in every manor. A military organization of the country changed while it simplified the holding of every estate. Huge castles of white stone bridled town and country; huge stone minsters told how the Norman had bridled even the Church. But the change was in great measure an external one. The real life of the nation was little affected by the shock of the Conquest. English institutions, the local, judicial, and administrative forms of the country were the same as of old. Like the English tongue they remained practically unaltered. For a century after the Conquest only a few new words crept in from the language of the conquerors, and so entirely did the spoken tongue of the nation at large remain unchanged that William himself tried to learn it that he might administer justice to his subjects. Even English literature, banished as it was from the court of the stranger and exposed to the fashionable rivalry of Latin scholars, survived not only in religious works, in poetic paraphrases of gospels and psalms, but in the great monument of our prose, the English Chronicle. It was not till the

miserable reign of Stephen that the Chronicle died out in the Abbey of Peterborough. But the "Sayings of Ælfred" show a native literature going on through the reign of Henry the Second, and the appearance of a great work of English verse coincides in point of time with the return of John to his island realm. "There was a priest in the land whose name was Layamon; he was the son of Leovenath; may the Lord be gracious to him! He dwelt at Earnley, a noble church on the bank of Severn (good it seemed to him!) near Radstone, where he read books. It came to mind to him and in his chiefest thought that he would tell the noble deeds of England, what the men were named and whence they came who first had English land." Journeying far and wide over the country, the priest of Earnley found Bæda and Wace, the books too of St. Albin and St. Austin. "Layamon laid down these books and turned the leaves; he beheld them lovingly; may the Lord be gracious to him! Pen he took with finger and wrote a book-skin, and the true words set together, and compressed the three books into one." Layamon's church is now that of Areley, near Bewdley in Worcestershire; his poem was in fact an expansion of Wace's "Brut" with insertions from Bæda. Historically it is worthless; but as a monument of our language it is beyond all price. In more than thirty thousand lines not more than fifty Norman words are to be found. Even the old poetic tradition remains the same. The alliterative metre of the earlier verse is still only slightly affected by riming terminations; the similes are the few natural similes of Cædmon; the battle-scenes are painted with the same rough, simple joy.

English Patriotism

Instead of crushing England, indeed, the Conquest did more than any event that had gone before to build up an English people. All local distinctions, the distinction of Saxon from Mercian, of both from Northumbrian, died away beneath the common pressure of the stranger. The Conquest was hardly over when we see the rise of a new national feeling, of a new patriotism. In his quiet cell at Worcester the monk Florence strives to palliate by excuses of treason or the weakness of rulers the defeats of Englishmen by the Danes. Ælfred, the great name of the English past, gathers round him a legendary worship, and the "Sayings of Ælfred" embody the ideal of an English king. We see the new vigour drawn from this deeper consciousness of national unity in a national action which began as soon as the Conquest had given place to strife among the conquerors. A

common hostility to the conquering baronage gave the nation leaders in its foreign sovereigns, and the sword which had been sheathed at Senlac was drawn for triumphs which avenged it. It was under William the Red that English soldiers shouted scorn at the Norman barons who surrendered at Rochester. It was under Henry the First that an English army faced Duke Robert and his foreign knighthood when they landed for a fresh invasion, "not fearing the Normans." It was under the same great king that Englishmen conquered Normandy in turn on the field of Tenchebray. This overthrow of the conquering baronage, this union of the conquered with the king, brought about the fusion of the conquerors in the general body of the English people. As early as the days of Henry the Second the descendants of Norman and Englishman had become indistinguishable. Both found a bond in a common English feeling and English patriotism, in a common hatred of the Angevin and Poitevin "foreigners" who streamed into England in the wake of Henry and his sons. Both had profited by the stern discipline of the Norman rule. The wretched reign of Stephen alone broke the long peace, a peace without parallel elsewhere, which in England stretched from the settlement of the Conquest to the return of John. Of her kings' forays along Norman or Aquitanian borders England heard little; she cared less. Even Richard's crusade woke little interest in his island realm. What England saw in her kings was "the good peace they made in the land." And with peace came a stern but equitable rule, judicial and administrative reforms that carried order and justice to every corner of the land, a wealth that grew steadily in spite of heavy taxation, an immense outburst of material and intellectual activity.

The Universities

It was with a new English people therefore that John found himself face to face. The nation which he fronted was a nation quickened with a new life and throbbing with a new energy. Not least among the signs of this energy was the upgrowth of our Universities. The establishment of the great schools which bore this name was everywhere throughout Europe a special mark of the impulse which Christendom gained from the crusades. A new fervour of study sprang up in the West from its contact with the more cultured East. Travellers like Adelard of Bath brought back the first rudiments of physical and mathematical science from the schools of Cordova or Bagdad. In the twelfth century a classical revival restored

Cæsar and Virgil to the list of monastic studies, and left its stamp on the pedantic style, the profuse classical quotations of writers like William of Malmesbury or John of Salisbury. The scholastic philosophy sprang up in the schools of Paris. The Roman law was revived by the imperialist doctors of Bologna. The long mental inactivity of feudal Europe broke up like ice before a summer's sun. Wandering teachers such as Lanfranc or Anselm crossed sea and land to spread the new power of knowledge. The same spirit of restlessness, of enquiry, of impatience with the older traditions of mankind either local or intellectual that drove half Christendom to the tomb of its Lord, crowded the roads with thousands of young scholars hurrying to the chosen seats where teachers were gathered together. A new power sprang up in the midst of a world which had till now recognized no power but that of sheer brute force. Poor as they were, sometimes even of servile race, the wandering scholars who lectured in every cloister were hailed as "masters" by the crowds at their feet. Abelard was a foe worthy of the threats of councils, of the thunders of the Church. The teaching of a single Lombard was of note enough in England to draw down the prohibition of a king.

Oxford

Vacarius was probably a guest in the court of Archbishop Theobald where Thomas of London and John of Salisbury were already busy with the study of the Civil Law. But when he opened lectures on it at Oxford he was at once silenced by Stephen, who was at that moment at war with the Church and jealous of the power which the wreck of the royal authority was throwing into Theobald's hands. At this time Oxford stood in the first rank among English towns. Its town church of St. Martin rose from the midst of a huddled group of houses, girded in with massive walls, that lay along the dry upper ground of a low peninsula between the streams of Cherwell and the Thames. The ground fell gently on either side, eastward and westward, to these rivers; while on the south a sharper descent led down across swampy meadows to the ford from which the town drew its name and to the bridge that succeeded it. Around lay a wild forest country, moors such as Cowley and Bullingdon fringing the course of Thames, great woods of which Shotover and Bagley are the relics closing the horizon to the south and east. Though the two huge towers of its Norman castle marked the strategic importance of Oxford as commanding the river valley along which

the commerce of Southern England mainly flowed, its walls formed the least element in the town's military strength, for on every side but the north it was guarded by the swampy meadows along Cherwell or by an intricate network of streams into which the Thames breaks among the meadows of Osney. From the midst of these meadows rose a mitred abbey of Austin Canons, which with the older priory of St. Frideswide gave Oxford some ecclesiastical dignity. The residence of the Norman house of the D'Oillis within its castle, the frequent visits of English kings to a palace without its walls, the presence again and again of important Parliaments, marked its political weight within the realm. The settlement of one of the wealthiest among the English Jewries in the very heart of the town indicated, while it promoted, the activity of its trade. No place better illustrates the transformation of the land in the hands of its Norman masters, the sudden outburst of industrial effort, the sudden expansion of commerce and accumulation of wealth which followed the Conquest. To the west of the town rose one of the stateliest of English castles, and in the meadows beneath the hardly less stately abbey of Osney. In the fields to the north the last of the Norman kings raised his palace of Beaumont. In the southern quarter of the city the canons of St. Frideswide reared the church which still exists as the diocesan cathedral, while the piety of the Norman Castellans rebuilt almost all its parish churches and founded within their new castle walls the church of the Canons of St. George.

Oxford Scholars

We know nothing of the causes which drew students and teachers within the walls of Oxford. It is possible that here as elsewhere a new teacher quickened older educational foundations, and that the cloisters of Osney and St. Frideswide already possessed schools which burst into a larger life under the impulse of Vacarius. As yet however the fortunes of the University were obscured by the glories of Paris. English scholars gathered in thousands round the chairs of William of Champeaux or Abelard. The English took their place as one of the "nations" of the French University. John of Salisbury became famous as one of the Parisian teachers. Thomas of London wandered to Paris from his school at Merton. But through the peaceful reign of Henry the Second Oxford quietly grew in numbers and repute, and forty years after the visit of Vacarius its educational position was fully established. When Gerald of Wales read his amusing Topography

of Ireland to its students the most learned and famous of the English clergy were to be found within its walls. At the opening of the thirteenth century Oxford stood without a rival in its own country, while in European celebrity it took rank with the greatest schools of the Western world. But to realize this Oxford of the past we must dismiss from our minds all recollections of the Oxford of the present. In the outer look of the new University there was nothing of the pomp that overawes the freshman as he first paces the "High" or looks down from the gallery of St. Mary's. In the stead of long fronts of venerable colleges, of stately walks beneath immemorial elms, history plunges us into the mean and filthy lanes of a mediæval town. Thousands of boys, huddled in bare lodging-houses, clustering round teachers as poor as themselves in church porch and house porch, drinking, quarrelling, dicing, begging at the corners of the streets, take the place of the brightly-coloured train of doctors and Heads. Mayor and Chancellor struggled in vain to enforce order or peace on this seething mass of turbulent life. The retainers who followed their young lords to the University fought out the feuds of their houses in the streets. Scholars from Kent and scholars from Scotland waged the bitter struggle of North and South. At nightfall roysterer and reveller roamed with torches through the narrow lanes, defying bailiffs, and cutting down burghers at their doors. Now a mob of clerks plunged into the Jewry and wiped off the memory of bills and bonds by sacking a Hebrew house or two. Now a tavern squabble between scholar and townsman widened into a general broil, and the academical bell of St. Mary's vied with the town bell of St. Martin's in clanging to arms. Every phase of ecclesiastical controversy or political strife was preluded by some fierce outbreak in this turbulent, surging mob. When England growled at the exactions of the Papacy in the years that were to follow the students besieged a legate in the abbot's house at Osney. A murderous town and gown row preceded the opening of the Barons' war. "When Oxford draws knife," ran an old rime, "England's soon at strife."

Edmund Rich

But the turbulence and stir was a stir and turbulence of life. A keen thirst for knowledge, a passionate poetry of devotion, gathered thousands round the poorest scholar and welcomed the barefoot friar. Edmund Rich--Archbishop of Canterbury and saint in later days--came about the time we have reached to Oxford, a boy of twelve years old, from a little lane at

Abingdon that still bears his name. He found his school in an inn that belonged to the abbey of Eynsham where his father had taken refuge from the world. His mother was a pious woman of the day, too poor to give her boy much outfit besides the hair shirt that he promised to wear every Wednesday; but Edmund was no poorer than his neighbours. He plunged at once into the nobler life of the place, its ardour for knowledge, its mystical piety. "Secretly," perhaps at eventide when the shadows were gathering in the church of St. Mary and the crowd of teachers and students had left its aisles, the boy stood before an image of the Virgin, and placing a ring of gold upon its finger took Mary for his bride. Years of study, broken by a fever that raged among the crowded, noisome streets, brought the time for completing his education at Paris; and Edmund, hand in hand with a brother Robert of his, begged his way as poor scholars were wont to the great school of Western Christendom. Here a damsel, heedless of his tonsure, wooed him so pertinaciously that Edmund consented at last to an assignation; but when he appeared it was in company of grave academical officials who, as the maiden declared in the hour of penitence which followed, "straightway whipped the offending Eve out of her." Still true to his Virgin bridal, Edmund on his return from Paris became the most popular of Oxford teachers. It is to him that Oxford owes her first introduction to the Logic of Aristotle. We see him in the little room which he hired, with the Virgin's chapel hard by, his grey gown reaching to his feet, ascetic in his devotion, falling asleep in lecture time after a sleepless night of prayer, but gifted with a grace and cheerfulness of manner which told of his French training and a chivalrous love of knowledge that let his pupils pay what they would. "Ashes to ashes, dust to dust," the young tutor would say, a touch of scholarly pride perhaps mingling with his contempt of worldly things, as he threw down the fee on the dusty window-ledge whence a thievish student would sometimes run off with it. But even knowledge brought its troubles; the Old Testament, which with a copy of the Decretals long formed his sole library, frowned down upon a love of secular learning from which Edmund found it hard to wean himself. At last, in some hour of dream, the form of his dead mother floated into the room where the teacher stood among his mathematical diagrams. "What are these?" she seemed to say; and seizing Edmund's right hand, she drew on the palm three circles interlaced, each of which bore the name of a Person of the Christian Trinity.

"Be these," she cried, as the figure faded away, "thy diagrams henceforth, my son."

The University and Feudalism

The story admirably illustrates the real character of the new training, and the latent opposition between the spirit of the Universities and the spirit of the Church. The feudal and ecclesiastical order of the old mediæval world were both alike threatened by this power that had so strangely sprung up in the midst of them. Feudalism rested on local isolation, on the severance of kingdom from kingdom and barony from barony, on the distinction of blood and race, on the supremacy of material or brute force, on an allegiance determined by accidents of place and social position. The University on the other hand was a protest against this isolation of man from man. The smallest school was European and not local. Not merely every province of France, but every people of Christendom had its place among the "nations" of Paris or Padua. A common language, the Latin tongue, superseded within academical bounds the warring tongues of Europe. A common intellectual kinship and rivalry took the place of the petty strifes which parted province from province or realm from realm. What Church and Empire had both aimed at and both failed in, the knitting of Christian nations together into a vast commonwealth, the Universities for a time actually did. Dante felt himself as little a stranger in the "Latin" quarter round Mont St. Genevieve as under the arches of Bologna. Wandering Oxford scholars carried the writings of Wyclif to the libraries of Prague. In England the work of provincial fusion was less difficult or important than elsewhere, but even in England work had to be done. The feuds of Northerner and Southerner which so long disturbed the discipline of Oxford witnessed at any rate to the fact that Northerner and Southerner had at last been brought face to face in its streets. And here as elsewhere the spirit of national isolation was held in check by the larger comprehensiveness of the University. After the dissensions that threatened the prosperity of Paris in the thirteenth century, Norman and Gascon mingled with Englishmen in Oxford lecture-halls. Irish scholars were foremost in the fray with the legate. At a later time the rising of Owen Glyndwr found hundreds of Welshmen gathered round its teachers. And within this strangely mingled mass society and government rested on a purely democratic basis. Among Oxford scholars the son of the noble stood on precisely the same footing with the poorest mendicant. Wealth, physical

strength, skill in arms, pride of ancestry and blood, the very grounds on which feudal society rested, went for nothing in the lecture-room. The University was a state absolutely self-governed, and whose citizens were admitted by a purely intellectual franchise. Knowledge made the "master." To know more than one's fellows was a man's sole claim to be a regent or "ruler" in the schools. And within this intellectual aristocracy all were equal. When the free commonwealth of the masters gathered in the aisles of St. Mary's all had an equal right to counsel, all had an equal vote in the final decision. Treasury and library were at their complete disposal. It was their voice that named every officer, that proposed and sanctioned every statute. Even the Chancellor, their head, who had at first been an officer of the Bishop, became an elected officer of their own.

The Universities and the Church

If the democratic spirit of the Universities' threatened feudalism, their spirit of intellectual enquiry threatened the Church. To all outer seeming they were purely ecclesiastical bodies. The wide extension which mediæval usage gave to the word "orders" gathered the whole educated world within the pale of the clergy. Whatever might be their age or proficiency, scholar and teacher alike ranked as clerks, free from lay responsibilities or the control of civil tribunals, and amenable only to the rule of the Bishop and the sentence of his spiritual courts. This ecclesiastical character of the University appeared in that of its head. The Chancellor, as we have seen, was at first no officer of the University itself, but of the ecclesiastical body under whose shadow it had sprung into life. At Oxford he was simply the local officer of the Bishop of Lincoln, within whose immense diocese the University was then situated. But this identification in outer form with the Church only rendered more conspicuous the difference of spirit between them. The sudden expansion of the field of education diminished the importance of those purely ecclesiastical and theological studies which had hitherto absorbed the whole intellectual energies of mankind. The revival of classical literature, the rediscovery as it were of an older and a greater world, the contact with a larger, freer life whether in mind, in society, or in politics introduced a spirit of scepticism, of doubt, of denial into the realms of unquestioning belief. Abelard claimed for reason a supremacy over faith. Florentine poets discussed with a smile the immortality of the soul. Even to Dante, while he censures these, Virgil is as sacred as Jeremiah. The imperial

ruler in whom the new culture took its most notable form, Frederick the Second, the "World's Wonder" of his time, was regarded by half Europe as no better than an infidel. A faint revival of physical science, so long crushed as magic by the dominant ecclesiasticism, brought Christians into perilous contact with the Moslem and the Jew. The books of the Rabbis were no longer an accursed thing to Roger Bacon. The scholars of Cordova were no mere Paynim swine to Adelard of Bath. How slowly indeed and against what obstacles science won its way we know from the witness of Roger Bacon. "Slowly," he tells us, "has any portion of the philosophy of Aristotle come into use among the Latins. His Natural Philosophy and his Metaphysics, with the Commentaries of Averroes and others, were translated in my time, and interdicted at Paris up to the year of grace 1237 because of their assertion of the eternity of the world and of time and because of the book of the divinations by dreams (which is the third book, *De Somniis et Vigiliis*) and because of many passages erroneously translated. Even his logic was slowly received and lectured on. For St. Edmund, the Archbishop of Canterbury, was the first in my time who read the Elements at Oxford. And I have seen Master Hugo, who first read the book of Posterior Analytics, and I have seen his writing. So there were but few, considering the multitude of the Latins, who were of any account in the philosophy of Aristotle; nay, very few indeed, and scarcely any up to this year of grace 1292."

The Town

If we pass from the English University to the English Town we see a progress as important and hardly less interesting. In their origin our boroughs were utterly unlike those of the rest of the western world. The cities of Italy and Provence had preserved the municipal institutions of their Roman past; the German towns had been founded by Henry the Fowler with the purpose of sheltering industry from the feudal oppression around them; the communes of Northern France sprang into existence in revolt against feudal outrage within their walls. But in England the tradition of Rome passed utterly away, while feudal oppression was held fairly in check by the Crown. The English town therefore was in its beginning simply a piece of the general country, organized and governed precisely in the same manner as the townships around it. Its existence witnessed indeed to the need which men felt in those earlier times of mutual help and protection.

The burh or borough was probably a more defensible place than the common village; it may have had a ditch or mound about it instead of the quickset-hedge or "tun" from which the township took its name. But in itself it was simply a township or group of townships where men clustered whether for trade or defence more thickly than elsewhere. The towns were different in the circumstances and date of their rise. Some grew up in the fortified camps of the English invaders. Some dated from a later occupation of the sacked and desolate Roman towns. Some clustered round the country houses of king and ealdorman or the walls of church and monastery. Towns like Bristol were the direct result of trade. There was the same variety in the mode in which the various town communities were formed. While the bulk of them grew by simple increase of population from township to town, larger boroughs such as York with its "six shires" or London with its wards and sokes and franchises show how families and groups of settlers settled down side by side, and claimed as they coalesced, each for itself, its shire or share of the town-ground while jealously preserving its individual life within the town-community. But strange as these aggregations might be, the constitution of the borough which resulted from them was simply that of the people at large. Whether we regard it as a township, or rather from its size as a hundred or collection of townships, the obligations of the dwellers within its bounds were those of the townships round, to keep fence and trench in good repair, to send a contingent to the fyrd, and a reeve and four men to the hundred court and shire court. As in other townships, land was a necessary accompaniment of freedom. The landless man who dwelled in a borough had no share in its corporate life; for purposes of government or property the town consisted simply of the landed proprietors within its bounds. The common lands which are still attached to many of our boroughs take us back to a time when each township lay within a ring or mark of open ground which served at once as boundary and pasture land. Each of the four wards of York had its common pasture; Oxford has still its own "Port-meadow."

Towns and their lords

The inner rule of the borough lay as in the townships about it in the hands of its own freemen, gathered in "borough-moot" or "portmanni-mote." But the social change brought about by the Danish wars, the legal requirement that each man should have a lord, affected the towns as it affected the rest

of the country. Some passed into the hands of great thegns near to them; the bulk became known as in the demesne of the king. A new officer, the lord's or king's reeve, was a sign of this revolution. It was the reeve who now summoned the borough-moot and administered justice in it; it was he who collected the lord's dues or annual rent of the town, and who exacted the services it owed to its lord. To modern eyes these services would imply almost complete subjection. When Leicester, for instance, passed from the hands of the Conqueror into those of its Earls, its townsmen were bound to reap their lord's corn-crops, to grind at his mill, to redeem their strayed cattle from his pound. The great forest around was the Earl's, and it was only out of his grace that the little borough could drive its swine into the woods or pasture its cattle in the glades. The justice and government of a town lay wholly in its master's hands; he appointed its bailiffs, received the fines and forfeitures of his tenants, and the fees and tolls of their markets and fairs. But in fact when once these dues were paid and these services rendered the English townsman was practically free. His rights were as rigidly defined by custom as those of his lord. Property and person alike were secured against arbitrary seizure. He could demand a fair trial on any charge, and even if justice was administered by his master's reeve it was administered in the presence and with the assent of his fellow-townsmen. The bell which swung out from the town tower gathered the burgesses to a common meeting, where they could exercise rights of free speech and free deliberation on their own affairs. Their merchant-gild over its ale-feast regulated trade, distributed the sums due from the town among the different burgesses, looked to the due repairs of gate and wall, and acted in fact pretty much the same part as a town-council of to-day.

The Merchant Gild

The merchant-gild was the outcome of a tendency to closer association which found support in those principles of mutual aid and mutual restraint that lay at the base of our old institutions. Gilds or clubs for religious, charitable, or social purposes were common throughout the country, and especially common in boroughs, where men clustered more thickly together. Each formed a sort of artificial family. An oath of mutual fidelity among its members was substituted for the tie of blood, while the gild-feast, held once a month in the common hall, replaced the gathering of the kinsfolk round their family hearth. But within this new family the aim of

the gild was to establish a mutual responsibility as close as that of the old. "Let all share the same lot," ran its law; "if any misdo, let all bear it." A member could look for aid from his gild-brothers in atoning for guilt incurred by mishap. He could call on them for assistance in case of violence or wrong. If falsely accused they appeared in court as his compurgators, if poor they supported, and when dead they buried him. On the other hand he was responsible to them, as they were to the State, for order and obedience to the laws. A wrong of brother against brother was also a wrong against the general body of the gild and was punished by fine or in the last resort by an expulsion which left the offender a "lawless" man and an outcast. The one difference between these gilds in country and town was this, that in the latter case from their close local neighbourhood they tended inevitably to coalesce. Under Æthelstan the London gilds united into one for the purpose of carrying out more effectually their common aims, and at a later time we find the gilds of Berwick enacting "that where many bodies are found side by side in one place they may become one, and have one will, and in the dealings of one with another have a strong and hearty love." The process was probably a long and difficult one, for the brotherhoods naturally differed much in social rank, and even after the union was effected we see traces of the separate existence to a certain extent of some one or more of the wealthier or more aristocratic gilds. In London for instance the Cnighthen-gild which seems to have stood at the head of its fellows retained for a long time its separate property, while its Alderman--as the chief officer of each gild was called--became the Alderman of the united gild of the whole city. In Canterbury we find a similar gild of Thanes from which the chief officers of the town seem commonly to have been selected. Imperfect however as the union might be, when once it was effected the town passed from a mere collection of brotherhoods into a powerful community, far more effectually organized than in the loose organization of the township, and whose character was inevitably determined by the circumstances of its origin. In their beginnings our boroughs seem to have been mainly gatherings of persons engaged in agricultural pursuits; the first Doms of London provide especially for the recovery of cattle belonging to the citizens. But as the increasing security of the country invited the farmer or the landowner to settle apart in his own fields, and the growth of estate and trade told on the towns themselves, the difference between town and country became more sharply defined. London of course took the lead in

this new developement of civic life. Even in Æthelstan's day every London merchant who had made three long voyages on his own account ranked as a Thegn. Its "lithsmen," or shipmen's-gild, were of sufficient importance under Harthacnut to figure in the election of a king, and its principal street still tells of the rapid growth of trade in its name of "Cheap-side" or the bargaining place. But at the Norman Conquest the commercial tendency had become universal. The name given to the united brotherhood in a borough is in almost every case no longer that of the "town-gild," but of the "merchant-gild."

Emancipation of Towns

This social change in the character of the townsmen produced important results in the character of their municipal institutions. In becoming a merchant-gild the body of citizens who formed the "town" enlarged their powers of civic legislation by applying them to the control of their internal trade. It became their special business to obtain from the crown or from their lords wider commercial privileges, rights of coinage, grants of fairs, and exemption from tolls, while within the town itself they framed regulations as to the sale and quality of goods, the control of markets, and the recovery of debts. It was only by slow and difficult advances that each step in this securing of privilege was won. Still it went steadily on. Whenever we get a glimpse of the inner history of an English town we find the same peaceful revolution in progress, services disappearing through disuse or omission, while privileges and immunities are being purchased in hard cash. The lord of the town, whether he were king, baron, or abbot, was commonly thriftless or poor, and the capture of a noble, or the campaign of a sovereign, or the building of some new minster by a prior, brought about an appeal to the thrifty burghers, who were ready to fill again their master's treasury at the price of the strip of parchment which gave them freedom of trade, of justice, and of government. In the silent growth and elevation of the English people the boroughs thus led the way. Unnoticed and despised by prelate and noble they preserved or won back again the full tradition of Teutonic liberty. The right of self-government, the right of free speech in free meeting, the right to equal justice at the hands of one's equals, were brought safely across ages of tyranny by the burghers and shopkeepers of the towns. In the quiet quaintly-named streets, in town-mead and market-place, in the lord's mill beside the stream, in the bell that swung out its

summons to the crowded borough-mote, in merchant-gild, and church-gild and craft-gild, lay the life of Englishmen who were doing more than knight and baron to make England what she is, the life of their home and their trade, of their sturdy battle with oppression, their steady, ceaseless struggle for right and freedom.

London

London stood first among English towns, and the privileges which its citizens won became precedents for the burghers of meaner boroughs. Even at the Conquest its power and wealth secured it a full recognition of all its ancient privileges from the Conqueror. In one way indeed it profited by the revolution which laid England at the feet of the stranger. One immediate result of William's success was an immigration into England from the Continent. A peaceful invasion of the Norman traders followed quick on the invasion of the Norman soldiery. Every Norman noble as he quartered himself upon English lands, every Norman abbot as he entered his English cloister, gathered French artists, French shopkeepers, French domestics about him. Round the Abbey of Battle which William founded on the site of his great victory "Gilbert the Foreigner, Gilbert the Weaver, Benet the Steward, Hugh the Secretary, Baldwin the Tailor," dwelt mixed with the English tenantry. But nowhere did these immigrants play so notable a part as in London. The Normans had had mercantile establishments in London as early as the reign of Æthelred, if not of Eadgar. Such settlements however naturally formed nothing more than a trading colony like the colony of the "Emperor's Men," or Easterlings. But with the Conquest their number greatly increased. "Many of the citizens of Rouen and Caen passed over thither, preferring to be dwellers in this city, inasmuch as it was fitter for their trading and better stored with the merchandise in which they were wont to traffic." The status of these traders indeed had wholly changed. They could no longer be looked upon as strangers in cities which had passed under the Norman rule. In some cases, as at Norwich, the French colony isolated itself in a separate French town, side by side with the English borough. But in London it seems to have taken at once the position of a governing class. Gilbert Beket, the father of the famous Archbishop, was believed in later days to have been one of the portreeves of London, the predecessors of its mayors; he held in Stephen's time a large property in houses within the walls, and a proof of his civic importance was preserved

in the annual visit of each newly-elected chief magistrate to his tomb in a little chapel which he had founded in the churchyard of St. Paul's. Yet Gilbert was one of the Norman strangers who followed in the wake of the Conqueror; he was by birth a burgher of Rouen, as his wife was of a burgher family from Caen.

Freedom of London

It was partly to this infusion of foreign blood, partly no doubt to the long internal peace and order secured by the Norman rule, that London owed the wealth and importance to which it attained during the reign of Henry the First. The charter which Henry granted it became a model for lesser boroughs. The king yielded its citizens the right of justice; each townsman could claim to be tried by his fellow-townsmen in the town-court or hustings whose sessions took place every week. They were subject only to the old English trial by oath, and exempt from the trial by battle which the Normans introduced. Their trade was protected from toll or exaction over the length and breadth of the land. The king however still nominated in London as elsewhere the portreeve, or magistrate of the town, nor were the citizens as yet united together in a commune or corporation. But an imperfect civic organization existed in the "wards" or quarters of the town, each governed by its own alderman, and in the "gilds" or voluntary associations of merchants or traders which ensured order and mutual protection for their members. Loose too as these bonds may seem, they were drawn firmly together by the older English traditions of freedom which the towns preserved. The London burgesses gathered in their town-mote when the bell swung out from the bell-tower of St. Paul's to deliberate freely on their own affairs under the presidency of their alderman. Here, too, they mustered in arms if danger threatened the city, and delivered the town-banner to their captain, the Norman baron Fitz-Walter, to lead them against the enemy.

Early Oxford

Few boroughs had as yet attained to such power as this, but the instance of Oxford shows how the freedom of London told on the general advance of English towns. In spite of antiquarian fancies it is certain that no town had arisen on the site of Oxford for centuries after the withdrawal of the Roman

legions from the isle of Britain. Though the monastery of St. Frideswide rose in the turmoil of the eighth century on the slope which led down to a ford across the Thames, it is long before we get a glimpse of the borough that must have grown up under its walls. The first definite evidence for its existence lies in a brief entry of the English Chronicle which recalls its seizure by Eadward the Elder, but the form of this entry shows that the town was already a considerable one, and in the last wrestle of England with the Dane its position on the borders of Mercia and Wessex combined with its command of the upper valley of the Thames to give it military and political importance. Of the life of its burgesses however we still know little or nothing. The names of its parishes, St. Aldate, St. Ebbe, St. Mildred, St. Edmund, show how early church after church gathered round the earlier town-church of St. Martin. But the men of the little town remain dim to us. Their town-mote, or the "Portmannimote" as it was called, which was held in the churchyard of St. Martin, still lives in a shadow of its older self as the Freeman's Common Hall--their town-mead is still the Port-meadow. But it is only by later charters or the record of Domesday that we see them going on pilgrimage to the shrines of Winchester, or chaffering in their market-place, or judging and law-making in their hustings, their merchant-gild regulating trade, their reeve gathering his king's dues of tax or money or marshalling his troop of burghers for the king's wars, their boats paying toll of a hundred herrings in Lent-tide to the Abbot of Abingdon, as they floated down the Thames towards London.

Oxford and the Normans

The number of houses marked waste in the survey marks the terrible suffering of Oxford in the Norman Conquest: but the ruin was soon repaired, and the erection of its castle, the rebuilding of its churches, the planting of a Jewry in the heart of the town, showed in what various ways the energy of its new masters was giving an impulse to its life. It is a proof of the superiority of the Hebrew dwellings to the Christian houses about them that each of the later town-halls of the borough had, before their expulsion, been houses of Jews. Nearly all the larger dwelling houses in fact which were subsequently converted into academic halls bore traces of the same origin in names such as Moysey's Hall, Lombard's Hall, or Jacob's Hall. The Jewish houses were abundant, for besides the greater Jewry in the heart of it, there was a lesser Jewry scattered over its southern quarter, and

we can hardly doubt that this abundance of substantial buildings in the town was at least one of the causes which drew teachers and scholars within its walls. The Jewry, a town within a town, lay here as elsewhere isolated and exempt from the common justice, the common life and self-government of the borough. On all but its eastern side too the town was hemmed in by jurisdictions independent of its own. The precincts of the Abbey of Osney, the wide "bailey" of the Castle, bounded it narrowly on the west. To the north, stretching away beyond the little church of St. Giles, lay the fields of the royal manor of Beaumont. The Abbot of Abingdon, whose woods of Cumnor and Bagley closed the southern horizon, held his leet-court in the hamlet of Grampound beyond the bridge. Nor was the whole space within the walls subject to the self-government of the citizens. The Jewry had a rule and law of its own. Scores of householders, dotted over street and lane, were tenants of castle or abbey and paid no suit or service at the borough court.

Oxford and London

But within these narrow bounds and amidst these various obstacles the spirit of municipal liberty lived a life the more intense that it was so closely cabined and confined. Nowhere indeed was the impulse which London was giving likely to tell with greater force. The "bargemen" of Oxford were connected even before the Conquest with the "boatmen," or shippers, of the capital. In both cases it is probable that the bodies bearing these names represented what is known as the merchant-gild of the town. Royal recognition enables us to trace the merchant-gild of Oxford from the time of Henry the First. Even then lands, islands, pastures belonged to it, and amongst them the same Port-meadow which is familiar to Oxford men pulling lazily on a summer's noon to Godstow. The connexion between the two gilds was primarily one of trade. "In the time of King Eadward and Abbot Ordric" the channel of the Thames beneath the walls of the Abbey of Abingdon became so blocked up that boats could scarce pass as far as Oxford, and it was at the joint prayer of the burgesses of London and Oxford that the abbot dug a new channel through the meadow to the south of his church. But by the time of Henry the Second closer bonds than this linked the two cities together. In case of any doubt or contest about judgements in their own court the burgesses of Oxford were empowered to refer the matter to the decision of London, "and whatsoever the citizens of

London shall adjudge in such cases shall be deemed right." The judicial usages, the municipal rights of each city were assimilated by Henry's charter. "Of whatsoever matter the men of Oxford be put in plea, they shall deraign themselves according to the law and custom of the city of London and not otherwise, because they and the citizens of London are of one and the same custom, law, and liberty."

Life of the Town

A legal connexion such as this could hardly fail to bring with it an identity of municipal rights. Oxford had already passed through the earlier steps of her advance towards municipal freedom before the conquest of the Norman. Her burghers assembled in their own Portmannimote, and their dues to the crown were assessed at a fixed sum of honey or coin. But the formal definition of their rights dates, as in the case of London, from the time of Henry the First. The customs and exemptions of its townsmen were confirmed by Henry the Second "as ever they enjoyed them in the time of Henry my grandfather, and in like manner as my citizens of London hold them." By this date the town had attained entire judicial and commercial freedom, and liberty of external commerce was secured by the exemption of its citizens from toll on the king's lands. Complete independence was reached when a charter of John substituted a mayor of the town's own choosing for the reeve or bailiff of the crown. But dry details such as these tell little of the quick pulse of popular life that beat in the thirteenth century through such a community as that of Oxford. The church of St. Martin in the very heart of it, at the "Quatrevoix" or Carfax where its four streets met, was the centre of the city life. The town-mote was held in its churchyard. Justice was administered ere yet a townhall housed the infant magistracy by mayor or bailiff sitting beneath a low pent-house, the "penniless bench" of later days, outside its eastern wall. Its bell summoned the burghers to council or arms. Around the church the trade-gilds were ranged as in some vast encampment. To the south of it lay Spicery and Vintnery, the quarter of the richer burgesses. Fish-street fell noisily down to the bridge and the ford. The Corn-market occupied then as now the street which led to Northgate. The stalls of the butchers stretched along the "Butcher-row," which formed the road to the bailey and the castle. Close beneath the church lay a nest of huddled lanes, broken by a stately synagogue, and traversed from time to time by the yellow gaberdine of the Jew. Soldiers from the castle rode

clashing through the narrow streets; the bells of Osney clanged from the swampy meadows; processions of pilgrims wound through gates and lane to the shrine of St. Frideswide. Frays were common enough; now the sack of a Jew's house; now burgher drawing knife on burgher; now an outbreak of the young student lads who were growing every day in numbers and audacity. But as yet the town was well in hand. The clang of the city bell called every citizen to his door; the call of the mayor brought trade after trade with bow in hand and banners flying to enforce the king's peace.

St. Edmundsbury

The advance of towns which had grown up not on the royal domain but around abbey or castle was slower and more difficult. The story of St. Edmundsbury shows how gradual was the transition from pure serfage to an imperfect freedom. Much that had been plough-land here in the Confessor's time was covered with houses by the time of Henry the Second. The building of the great abbey-church drew its craftsmen and masons to mingle with the ploughmen and reapers of the Abbot's domain. The troubles of the time helped here as elsewhere the progress of the town; serfs, fugitives from justice or their lord, the trader, the Jew, naturally sought shelter under the strong hand of St. Edmund. But the settlers were wholly at the Abbot's mercy. Not a settler but was bound to pay his pence to the Abbot's treasury, to plough a rood of his land, to reap in his harvest-field, to fold his sheep in the Abbey folds, to help bring the annual catch of eels from the Abbey waters. Within the four crosses that bounded the Abbot's domain land and water were his; the cattle of the townsmen paid for their pasture on the common; if the fullers refused the loan of their cloth the cellarer would refuse the use of the stream and seize their cloths wherever he found them. No toll might be levied from tenants of the Abbey farms, and customers had to wait before shop and stall till the buyers of the Abbot had had the pick of the market. There was little chance of redress, for if burghers complained in folk-mote it was before the Abbot's officers that its meeting was held; if they appealed to the alderman he was the Abbot's nominee and received the horn, the symbol of his office, at the Abbot's hands. Like all the greater revolutions of society, the advance from this mere serfage was a silent one; indeed its more galling instances of oppression seem to have slipped unconsciously away. Some, like the eel-fishing, were commuted for an easy rent; others, like the slavery of the fullers and the toll of flax, simply

disappeared. By usage, by omission, by downright forgetfulness, here by a little struggle, there by a present to a needy abbot, the town won freedom.

The Towns and Justice

But progress was not always unconscious, and one incident in the history of St. Edmundsbury is remarkable, not merely as indicating the advance of law, but yet more as marking the part which a new moral sense of man's right to equal justice was to play in the general advance of the realm. Rude as the borough was, it possessed the right of meeting in full assembly of the townsmen for government and law. Justice was administered in presence of the burgesses, and the accused acquitted or condemned by the oath of his neighbours. Without the borough bounds however the system of Norman judicature prevailed; and the rural tenants who did suit and service at the Cellarer's court were subjected to the trial by battle. The execution of a farmer named Ketel who came under this feudal jurisdiction brought the two systems into vivid contrast. Ketel seems to have been guiltless of the crime laid to his charge; but the duel went against him and he was hung just without the gates. The taunts of the townsmen woke his fellow farmers to a sense of wrong. "Had Ketel been a dweller within the borough," said the burgesses, "he would have got his acquittal from the oaths of his neighbours, as our liberty is"; and even the monks were moved to a decision that their tenants should enjoy equal freedom and justice with the townsmen. The franchise of the town was extended to the rural possessions of the Abbey without it; the farmers "came to the toll-house, were written in the alderman's roll, and paid the town-penny." A chance story preserved in a charter of later date shows the same struggle for justice going on in a greater town. At Leicester the trial by compurgation, the rough predecessor of trial by jury, had been abolished by the Earls in favour of trial by battle. The aim of the burgesses was to regain their old justice, and in this a touching incident at last made them successful. "It chanced that two kinsmen, Nicholas the son of Acon and Geoffrey the son of Nicholas, waged a duel about a certain piece of land concerning which a dispute had arisen between them; and they fought from the first to the ninth hour, each conquering by turns. Then one of them fleeing from the other till he came to a certain little pit, as he stood on the brink of the pit and was about to fall therein, his kinsman said to him 'Take care of the pit, turn back, lest thou shouldest fall into it.' Thereat so much clamour and noise was made by the

bystanders and those who were sitting around that the Earl heard these clamours as far off as the castle, and he enquired of some how it was there was such a clamour, and answer was made to him that two kinsmen were fighting about a certain piece of ground, and that one had fled till he reached a certain little pit, and that as he stood over the pit and was about to fall into it the other warned him. Then the townsmen being moved with pity, made a covenant with the Earl that they should give him threepence yearly for each house in the High Street that had a gable, on condition that he should grant to them that the twenty-four jurors who were in Leicester from ancient times should from that time forward discuss and decide all pleas they might have among themselves."

Division of Labour

At the time we have reached this struggle for emancipation was nearly over. The larger towns had secured the privilege of self-government, the administration of justice, and the control of their own trade. The reigns of Richard and John mark the date in our municipal history at which towns began to acquire the right of electing their own chief magistrate, the Portreeve or Mayor, who had till then been a nominee of the crown. But with the close of this outer struggle opened an inner struggle between the various classes of the townsmen themselves. The growth of wealth and industry was bringing with it a vast increase of population. The mass of the new settlers, composed as they were of escaped serfs, of traders without landed holdings, of families who had lost their original lot in the borough, and generally of the artisans and the poor, had no part in the actual life of the town. The right of trade and of the regulation of trade in common with all other forms of jurisdiction lay wholly in the hands of the landed burghers whom we have described. By a natural process too their superiority in wealth produced a fresh division between the "burghers" of the merchant-gild and the unenfranchised mass around them. The same change which severed at Florence the seven Greater Arts or trades from the fourteen Lesser Arts, and which raised the three occupations of banking, the manufacture and the dyeing of cloth, to a position of superiority even within the privileged circle of the seven, told though with less force on the English boroughs. The burghers of the merchant-gild gradually concentrated themselves on the greater operations of commerce, on trades which required a larger capital, while the meaner employments of general traffic were

abandoned to their poorer neighbours. This advance in the division of labour is marked by such severances as we note in the thirteenth century of the cloth merchant from the tailor or the leather merchant from the butcher.

Trade-Gilds

But the result of this severance was all-important in its influence on the constitution of our towns. The members of the trades thus abandoned by the wealthier burghers formed themselves into Craft-gilds which soon rose into dangerous rivalry with the original Merchant-gild of the town. A seven years' apprenticeship formed the necessary prelude to full membership of these trade-gilds. Their regulations were of the minutest character; the quality and value of work were rigidly prescribed, the hours of toil fixed "from day-break to curfew," and strict provision made against competition in labour. At each meeting of these gilds their members gathered round the Craft-box which contained the rules of their Society, and stood with bared heads as it was opened. The warden and a quorum of gild-brothers formed a court which enforced the ordinances of the gild, inspected all work done by its members, confiscated unlawful tools or unworthy goods; and disobedience to their orders was punished by fines or in the last resort by expulsion, which involved the loss of a right to trade. A common fund was raised by contributions among the members, which not only provided for the trade objects of the gild but sufficed to found chantries and masses and set up painted windows in the church of their patron saint. Even at the present day the arms of a craft-gild may often be seen blazoned in cathedrals side by side with those of prelates and of kings. But it was only by slow degrees that they rose to such a height as this. The first steps in their existence were the most difficult, for to enable a trade-gild to carry out its objects with any success it was first necessary that the whole body of craftsmen belonging to the trade should be compelled to join the gild, and secondly that a legal control over the trade itself should be secured to it. A royal charter was indispensable for these purposes, and over the grant of these charters took place the first struggle with the merchant-gilds which had till then solely exercised jurisdiction over trade within the boroughs. The weavers, who were the first trade-gild to secure royal sanction in the reign of Henry the First, were still engaged in a contest for existence as late as the reign of John when the citizens of London bought for a time the suppression of their gild. Even under the House of Lancaster Exeter was

engaged in resisting the establishment of a tailors' gild. From the eleventh century however the spread of these societies went steadily on, and the control of trade passed more and more from the merchant-gilds to the craft-gilds.

Greater and Lesser Folk

It is this struggle, to use the technical terms of the time, of the "greater folk" against the "lesser folk," or of the "commune," the general mass of the inhabitants, against the "prudhommes," or "wiser" few, which brought about, as it passed from the regulation of trade to the general government of the town, the great civic revolution of the thirteenth and fourteenth centuries. On the Continent, and especially along the Rhine, the struggle was as fierce as the supremacy of the older burghers had been complete. In Köln the craftsmen had been reduced to all but serfage, and the merchant of Brussels might box at his will the ears of "the man without heart or honour who lives by his toil." Such social tyranny of class over class brought a century of bloodshed to the cities of Germany; but in England the tyranny of class over class was restrained by the general tenor of the law, and the revolution took for the most part a milder form. The longest and bitterest strife of all was naturally at London. Nowhere had the territorial constitution struck root so deeply, and nowhere had the landed oligarchy risen to such a height of wealth and influence. The city was divided into wards, each of which was governed by an alderman drawn from the ruling class. In some indeed the office seems to have become hereditary. The "magnates," or "barons," of the merchant-gild advised alone on all matters of civic government or trade regulation, and distributed or assessed at their will the revenues or burthens of the town. Such a position afforded an opening for corruption and oppression of the most galling kind; and it seems to have been a general impression of the unfair assessment of the dues levied on the poor and the undue burthens which were thrown on the unenfranchised classes which provoked the first serious discontent. In the reign of Richard the First William of the Long Beard, though one of the governing body, placed himself at the head of a conspiracy which in the panic-stricken fancy of the burghers numbered fifty thousand of the craftsmen. His eloquence, his bold defiance of the aldermen in the town-mote, gained him at any rate a wide popularity, and the crowds who surrounded him hailed him as "the saviour of the poor." One of his

addresses is luckily preserved to us by a hearer of the time. In mediæval fashion he began with a text from the Vulgate, "Ye shall draw water with joy from the fountain of the Saviour." "I," he began, "am the saviour of the poor. Ye poor men who have felt the weight of rich men's hands, draw from my fountain waters of wholesome instruction and that with joy, for the time of your visitation is at hand. For I will divide the waters from the waters. It is the people who are the waters, and I will divide the lowly and faithful folk from the proud and faithless folk; I will part the chosen from the reprobate as light from darkness." But it was in vain that he strove to win royal favour for the popular cause. The support of the moneyed classes was essential to Richard in the costly wars with Philip of France; and the Justiciar, Archbishop Hubert, after a moment of hesitation issued orders for William Longbeard's arrest. William felled with an axe the first soldier who advanced to seize him, and taking refuge with a few adherents in the tower of St. Mary-le-Bow summoned his adherents to rise. Hubert however, who had already flooded the city with troops, with bold contempt of the right of sanctuary set fire to the tower. William was forced to surrender, and a burgher's son, whose father he had slain, stabbed him as he came forth. With his death the quarrel slumbered for more than fifty years. But the movement towards equality went steadily on. Under pretext of preserving the peace the unenfranchised townsmen united in secret frith-gilds of their own, and mobs rose from time to time to sack the houses of foreigners and the wealthier burgesses. Nor did London stand alone in this movement. In all the larger towns the same discontent prevailed, the same social growth called for new institutions, and in their silent revolt against the oppression of the Merchant-gild the Craft-gilds were training themselves to stand forward as champions of a wider liberty in the Barons' War.

The Villein

Without the towns progress was far slower and more fitful. It would seem indeed that the conquest of the Norman bore harder on the rural population than on any other class of Englishmen. Under the later kings of the house of Ælfred the number of absolute slaves and the number of freemen had alike diminished. The pure slave class had never been numerous, and it had been reduced by the efforts of the Church, perhaps by the general convulsion of the Danish wars. But these wars had often driven the ceorl or freeman of the township to "commend" himself to a thegn who pledged him his protection

in consideration of payment in a rendering of labour. It is probable that these dependent ceorls are the "villeins" of the Norman epoch, the most numerous class of the Domesday Survey, men sunk indeed from pure freedom and bound both to soil and lord, but as yet preserving much of their older rights, retaining their land, free as against all men but their lord, and still sending representatives to hundred-moot and shire-moot. They stood therefore far above the "landless man," the man who had never possessed even under the old constitution political rights, whom the legislation of the English kings had forced to attach himself to a lord on pain of outlawry, and who served as household servant or as hired labourer or at the best as rent-paying tenant of land which was not his own. The Norman knight or lawyer however saw little distinction between these classes; and the tendency of legislation under the Angevins was to blend all in a single class of serfs. While the pure "theow" or absolute slave disappeared therefore the ceorl or villein sank lower in the social scale. But though the rural population was undoubtedly thrown more together and fused into a more homogeneous class, its actual position corresponded very imperfectly with the view of the lawyers. All indeed were dependents on a lord. The manor-house became the centre of every English village. The manor-court was held in its hall; it was here that the lord or his steward received homage, recovered fines, held the view of frank-pledge, or enrolled the villagers in their tithing. Here too, if the lord possessed criminal jurisdiction, was held his justice court, and without its doors stood his gallows. Around it lay the lord's demesne or home-farm, and the cultivation of this rested wholly with the "villeins" of the manor. It was by them that the great barn was filled with sheaves, the sheep shorn, the grain malted, the wood hewn for the manor-hall fire. These services were the labour-rent by which they held their lands, and it was the nature and extent of this labour-rent which parted one class of the population from another. The "villein," in the strict sense of the word, was bound only to gather in his lord's harvest and to aid in the ploughing and sowing of autumn and Lent. The cottar, the bordar, and the labourer were bound to help in the work of the home-farm throughout the year.

But these services and the time of rendering them were strictly limited by custom, not only in the case of the ceorl or villein but in that of the originally meaner "landless man." The possession of his little homestead with the ground around it, the privilege of turning out his cattle on the waste

of the manor, passed quietly and insensibly from mere indulgences that could be granted or withdrawn at a lord's caprice into rights that could be pleaded at law. The number of teams, the fines, the reliefs, the services that a lord could claim, at first mere matter of oral tradition, came to be entered on the court-roll of the manor, a copy of which became the title-deed of the villein. It was to this that he owed the name of "copy-holder" which at a later time superseded his older title. Disputes were settled by a reference to this roll or on oral evidence of the custom at issue, but a social arrangement which was eminently characteristic of the English spirit of compromise generally secured a fair adjustment of the claims of villein and lord. It was the duty of the lord's bailiff to exact their due services from the villeins, but his coadjutor in this office, the reeve or foreman of the manor, was chosen by the tenants themselves and acted as representative of their interests and rights. A fresh step towards freedom was made by the growing tendency to commute labour-services for money-payments. The population was slowly increasing, and as the law of gavel-kind which was applicable to all landed estates not held by military tenure divided the inheritance of the tenantry equally among their sons, the holding of each tenant and the services due from it became divided in a corresponding degree. A labour-rent thus became more difficult to enforce, while the increase of wealth among the tenantry and the rise of a new spirit of independence made it more burthensome to those who rendered it. It was probably from this cause that the commutation of the arrears of labour for a money payment, which had long prevailed on every estate, gradually developed into a general commutation of services. We have already witnessed the silent progress of this remarkable change in the case of St. Edmundsbury, but the practice soon became universal, and "malt-silver," "wood-silver," and "larder-silver" gradually took the place of the older personal services on the court-rolls. The process of commutation was hastened by the necessities of the lords themselves. The luxury of the castle-hall, the splendour and pomp of chivalry, the cost of campaigns drained the purses of knight and baron, and the sale of freedom to a serf or exemption from services to a villein afforded an easy and tempting mode of refilling them. In this process even kings took part. At a later time, under Edward the Third, commissioners were sent to royal estates for the especial purpose of selling manumissions to the king's serfs; and we still possess the names of those who were enfranchised

with their families by a payment of hard cash in aid of the exhausted exchequer.

England

Such was the people which had been growing into a national unity and a national vigour while English king and English baronage battled for rule. But king and baronage themselves had changed like townsman and ceorl. The loss of Normandy, entailing as it did the loss of their Norman lands, was the last of many influences which had been giving through a century and a half a national temper to the baronage. Not only the "new men," the ministers out of whom the two Henries had raised a nobility, were bound to the Crown, but the older feudal houses now owned themselves as Englishmen and set aside their aims after personal independence for a love of the general freedom of the land. They stood out as the natural leaders of a people bound together by the stern government which had crushed all local division, which had accustomed men to the enjoyment of a peace and justice that imperfect as it seems to modern eyes was almost unexampled elsewhere in Europe, and which had trained them to something of their old free government again by the very machinery of election it used to facilitate its heavy taxation. On the other hand the loss of Normandy brought home the king. The growth which had been going on had easily escaped the eyes of rulers who were commonly absent from the realm and busy with the affairs of countries beyond the sea. Henry the Second had been absent for years from England: Richard had only visited it twice for a few months: John had as yet been almost wholly occupied with his foreign dominions. To him as to his brother England had as yet been nothing but a land whose gold paid the mercenaries that followed him, and whose people bowed obediently to his will. It was easy to see that between such a ruler and such a nation once brought together strife must come: but that the strife came as it did and ended as it did was due above all to the character of the king.

John

"Foul as it is, hell itself is defiled by the fouler presence of John." The terrible verdict of his contemporaries has passed into the sober judgement of history. Externally John possessed all the quickness, the vivacity, the cleverness, the good-humour, the social charm which distinguished his

house. His worst enemies owned that he toiled steadily and closely at the work of administration. He was fond of learned men like Gerald of Wales. He had a strange gift of attracting friends and of winning the love of women. But in his inner soul John was the worst outcome of the Angevins. He united into one mass of wickedness their insolence, their selfishness, their unbridled lust, their cruelty and tyranny, their shamelessness, their superstition, their cynical indifference to honour or truth. In mere boyhood he tore with brutal levity the beards of the Irish chieftains who came to own him as their lord. His ingratitude and perfidy brought his father with sorrow to the grave. To his brother he was the worst of traitors. All Christendom believed him to be the murderer of his nephew, Arthur of Brittany. He abandoned one wife and was faithless to another. His punishments were refinements of cruelty, the starvation of children, the crushing old men under copes of lead. His court was a brothel where no woman was safe from the royal lust, and where his cynicism loved to publish the news of his victims' shame. He was as craven in his superstition as he was daring in his impiety. Though he scoffed at priests and turned his back on the mass even amidst the solemnities of his coronation, he never stirred on a journey without hanging relics round his neck. But with the wickedness of his race he inherited its profound ability. His plan for the relief of Château Gaillard, the rapid march by which he shattered Arthur's hopes at Mirebeau, showed an inborn genius for war. In the rapidity and breadth of his political combinations he far surpassed the statesmen of his time. Throughout his reign we see him quick to discern the difficulties of his position, and inexhaustible in the resources with which he met them. The overthrow of his continental power only spurred him to the formation of a league which all but brought Philip to the ground; and the sudden revolt of England was parried by a shameless alliance with the Papacy. The closer study of John's history clears away the charges of sloth and incapacity with which men tried to explain the greatness of his fall. The awful lesson of his life rests on the fact that the king who lost Normandy, became the vassal of the Pope, and perished in a struggle of despair against English freedom, was no weak and indolent voluptuary but the ablest and most ruthless of the Angevins.

Innocent the Third

From the moment of his return to England in 1204 John's whole energies were bent to the recovery of his dominions on the Continent. He impatiently

collected money and men for the support of those adherents of the House of Anjou who were still struggling against the arms of France in Poitou and Guienne, and in the summer of 1205 he gathered an army at Portsmouth and prepared to cross the Channel. But his project was suddenly thwarted by the resolute opposition of the Primate, Hubert Walter, and the Earl of Pembroke, William Marshal. So completely had both the baronage and the Church been humbled by his father that the attitude of their representatives revealed to the king a new spirit of national freedom which was rising around him, and John at once braced himself to a struggle with it. The death of Hubert Walter in July, only a few weeks after his protest, removed his most formidable opponent, and the king resolved to neutralize the opposition of the Church by placing a creature of his own at its head. John de Grey, Bishop of Norwich, was elected by the monks of Canterbury at his bidding, and enthroned as Primate. But in a previous though informal gathering the convent had already chosen its sub-prior, Reginald, as Archbishop. The rival claimants hastened to appeal to Rome, and their appeal reached the Papal Court before Christmas. The result of the contest was a startling one both for themselves and for the king. After a year's careful examination Innocent the Third, who now occupied the Papal throne, quashed at the close of 1206 both the contested elections. The decision was probably a just one, but Innocent was far from stopping there. The monks who appeared before him brought powers from the convent to choose a new Primate should their earlier nomination be set aside; and John, secretly assured of their choice of Grey, had promised to confirm their election. But the bribes which the king lavished at Rome failed to win the Pope over to this plan; and whether from mere love of power, for he was pushing the Papal claims of supremacy over Christendom further than any of his predecessors, or as may fairly be supposed in despair of a free election within English bounds, Innocent commanded the monks to elect in his presence Stephen Langton to the archiepiscopal see.

The Interdict

Personally a better choice could not have been made, for Stephen was a man who by sheer weight of learning and holiness of life had risen to the dignity of Cardinal, and whose after career placed him in the front rank of English patriots. But in itself the step was an usurpation of the rights both of the Church and of the Crown. The king at once met it with resistance. When

Innocent consecrated the new Primate in June 1207, and threatened the realm with interdict if Langton were any longer excluded from his see, John replied by a counter-threat that the interdict should be followed by the banishment of the clergy and the mutilation of every Italian he could seize in the realm. How little he feared the priesthood he showed when the clergy refused his demand of a thirteenth of movables from the whole country and Archbishop Geoffry of York resisted the tax before the Council. John banished the Archbishop and extorted the money. Innocent however was not a man to draw back from his purpose, and in March 1208 the interdict he had threatened fell upon the land. All worship save that of a few privileged orders, all administration of Sacraments save that of private baptism, ceased over the length and breadth of the country: the church-bells were silent, the dead lay unburied on the ground. Many of the bishops fled from the country. The Church in fact, so long the main support of the royal power against the baronage, was now driven into opposition. Its change of attitude was to be of vast moment in the struggle which was impending; but John recked little of the future; he replied to the interdict by confiscating the lands of the clergy who observed it, by subjecting them in spite of their privileges to the royal courts, and by leaving outrages on them unpunished. "Let him go," said John, when a Welshman was brought before him for the murder of a priest, "he has killed my enemy." In 1209 the Pope proceeded to the further sentence of excommunication, and the king was formally cut off from the pale of the Church. But the new sentence was met with the same defiance as the old. Five of the bishops fled over sea, and secret disaffection was spreading widely, but there was no public avoidance of the excommunicated king. An Archdeacon of Norwich who withdrew from his service was crushed to death under a cope of lead, and the hint was sufficient to prevent either prelate or noble from following his example.

The Deposition

The attitude of John showed the power which the administrative reforms of his father had given to the Crown. He stood alone, with nobles estranged from him and the Church against him, but his strength seemed utterly unbroken. From the first moment of his rule John had defied the baronage. The promise to satisfy their demand for redress of wrongs in the past reign, a promise made at his election, remained unfulfilled; when the demand was repeated he answered it by seizing their castles and taking their children as

hostages for their loyalty. The cost of his fruitless threats of war had been met by heavy and repeated taxation, by increased land tax and increased scutage. The quarrel with the Church and fear of their revolt only deepened his oppression of the nobles. He drove De Braose, one of the most powerful of the Lords Marchers, to die in exile, while his wife and grandchildren were believed to have been starved to death in the royal prisons. On the nobles who still clung panic-stricken to the court of the excommunicate king John heaped outrages worse than death. Illegal exactions, the seizure of their castles, the preference shown to foreigners, were small provocations compared with his attacks on the honour of their wives and daughters. But the baronage still submitted. The financial exactions indeed became light as John filled his treasury with the goods of the Church; the king's vigour was seen in the rapidity with which he crushed a rising of the nobles in Ireland, and foiled an outbreak of the Welsh; while the triumphs of his father had taught the baronage its weakness in any single-handed struggle against the Crown. Hated therefore as he was the land remained still. Only one weapon was now left in Innocent's hands. Men held then that a king, once excommunicate, ceased to be a Christian or to have any claims on the obedience of Christian subjects. As spiritual heads of Christendom, the Popes had ere now asserted their right to remove such a ruler from his throne and to give it to a worthier than he; and it was this right which Innocent at last felt himself driven to exercise. After useless threats he issued in 1212 a bull of deposition against John, absolved his subjects from their allegiance, proclaimed a crusade against him as an enemy to Christianity and the Church, and committed the execution of the sentence to the king of the French. John met the announcement of this step with the same scorn as before. His insolent disdain suffered the Roman legate, Cardinal Pandulf, to proclaim his deposition to his face at Northampton. When Philip collected an army for an attack on England an enormous host gathered at the king's call on Barham Down; and the English fleet dispelled all danger of invasion by crossing the Channel, by capturing a number of French ships, and by burning Dieppe.

John's Submission

But it was not in England only that the king showed his strength and activity. Vile as he was, John possessed in a high degree the political ability of his race, and in the diplomatic efforts with which he met the danger from

France he showed himself his father's equal. The barons of Poitou were roused to attack Philip from the south. John bought the aid of the Count of Flanders on his northern border. The German king, Otto, pledged himself to bring the knighthood of Germany to support an invasion of France. But at the moment of his success in diplomacy John suddenly gave way. It was in fact the revelation of a danger at home which shook him from his attitude of contemptuous defiance. The bull of deposition gave fresh energy to every enemy. The Scotch king was in correspondence with Innocent. The Welsh princes who had just been forced to submission broke out again in war. John hanged their hostages, and called his host to muster for a fresh inroad into Wales, but the army met only to become a fresh source of danger. Powerless to oppose the king openly, the baronage had plunged almost to a man into secret conspiracies. The hostility of Philip had dispelled their dread of isolated action; many indeed had even promised aid to the French king on his landing. John found himself in the midst of hidden enemies; and nothing could have saved him but the haste--whether of panic or quick decision--with which he disbanded his army and took refuge in Nottingham Castle. The arrest of some of the barons showed how true were his fears, for the heads of the French conspiracy, Robert Fitzwalter and Eustace de Vesci, at once fled over sea to Philip. His daring self-confidence, the skill of his diplomacy, could no longer hide from John the utter loneliness of his position. At war with Rome, with France, with Scotland, Ireland, and Wales, at war with the Church, he saw himself disarmed by this sudden revelation of treason in the one force left at his disposal. With characteristic suddenness he gave way. He endeavoured by remission of fines to win back his people. He negotiated eagerly with the Pope, consented to receive the Archbishop, and promised to repay the money he had extorted from the Church.

John becomes vassal of Rome

But the shameless ingenuity of the king's temper was seen in his resolve to find in his very humiliation a new source of strength. If he yielded to the Church he had no mind to yield to the rest of his foes; it was indeed in the Pope who had defeated him that he saw the means of baffling their efforts. It was Rome that formed the link between the varied elements of hostility which combined against him. It was Rome that gave its sanction to Philip's ambition and roused the hopes of Scotch and Welsh, Rome that called the

clergy to independence, and nerved the barons to resistance. To detach Innocent by submission from the league which hemmed him in on every side was the least part of John's purpose. He resolved to make Rome his ally, to turn its spiritual thunders on his foes, to use it in breaking up the confederacy it had formed, in crushing the baronage, in oppressing the clergy, in paralyzing--as Rome only could paralyze--the energy of the Primate. That greater issues even than these were involved in John's rapid change of policy time was to show; but there is no need to credit the king with the foresight that would have discerned them. His quick versatile temper saw no doubt little save the momentary gain. But that gain was immense. Nor was the price as hard to pay as it seems to modern eyes. The Pope stood too high above earthly monarchs, his claims, at least as Innocent conceived and expressed them, were too spiritual, too remote from the immediate business and interests of the day, to make the owning of his suzerainty any very practical burthen. John could recall a time when his father was willing to own the same subjection as that which he was about to take on himself. He could recall the parallel allegiance which his brother had pledged to the Emperor. Shame indeed there must be in any loss of independence, but in this less than any, and with Rome the shame of submission had already been incurred. But whatever were the king's thoughts his act was decisive. On the 15th of May 1213 he knelt before the legate Pandulf, surrendered his kingdom to the Roman See, took it back again as a tributary vassal, swore fealty and did liege homage to the Pope.

Its Results

In after times men believed that England thrilled at the news with a sense of national shame such as she had never felt before. "He has become the Pope's man" the whole country was said to have murmured; "he has forfeited the very name of king; from a free man he has degraded himself into a serf." But this was the belief of a time still to come when the rapid growth of national feeling which this step and its issues did more than anything to foster made men look back on the scene between John and Pandulf as a national dishonour. We see little trace of such a feeling in the contemporary accounts of the time. All seem rather to have regarded it as a complete settlement of the difficulties in which king and kingdom were involved. As a political measure its success was immediate and complete. The French army at once broke up in impotent rage, and when Philip turned

on the enemy John had raised up for him in Flanders, five hundred English ships under the Earl of Salisbury fell upon the fleet which accompanied the French army along the coast and utterly destroyed it. The league which John had so long matured at once disclosed itself. Otto, reinforcing his German army by the knighthood of Flanders and Boulogne as well as by a body of mercenaries in the pay of the English king, invaded France from the north. John called on his baronage to follow him over sea for an attack on Philip from the south.

Geoffry Fitz-Peter

Their plea that he remained excommunicate was set aside by the arrival of Langton and his formal absolution of the king on a renewal of his coronation oath and a pledge to put away all evil customs. But the barons still stood aloof. They would serve at home, they said, but they refused to cross the sea. Those of the north took a more decided attitude of opposition. From this point indeed the northern barons begin to play their part in our constitutional history. Lacies, Vescies, Percies, Stutevilles, Bruces, houses such as those of de Ros or de Vaux, all had sprung to greatness on the ruins of the Mowbrays and the great houses of the Conquest, and had done service to the Crown in its strife with the older feudatories. But loyal as was their tradition they were English to the core; they had neither lands nor interest over sea, and they now declared themselves bound by no tenure to follow the king in foreign wars. Furious at this check to his plans John marched in arms northwards to bring these barons to submission. But he had now to reckon with a new antagonist in the Justiciar, Geoffry Fitz-Peter. Geoffry had hitherto bent to the king's will; but the political sagacity which he drew from the school of Henry the Second in which he had been trained showed him the need of concession, and his wealth, his wide kinship, and his experience of affairs gave his interposition a decisive weight. He seized on the political opportunity which was offered by the gathering of a Council at St. Albans at the opening of August with the purpose of assessing the damages done to the Church. Besides the bishops and barons, a reeve and his four men were summoned to this Council from each royal demesne, no doubt simply as witnesses of the sums due to the plundered clergy. Their presence however was of great import. It is the first instance which our history presents of the summons of such representatives to a national Council, and the instance took fresh weight from the great matters which

came to be discussed. In the king's name the Justiciar promised good government for the time to come, and forbade all royal officers to practise extortion as they prized life and limb. The king's peace was pledged to those who had opposed him in the past; and observance of the laws of Henry the First was enjoined upon all within the realm.

Stephen Langton

But it was not in Geoffry Fitz-Peter that English freedom was to find its champion and the baronage their leader. From the moment of his landing in England Stephen Langton had taken up the constitutional position of the Primate in upholding the old customs and rights of the realm against the personal despotism of the kings. As Anselm had withstood William the Red, as Theobald had withstood Stephen, so Langton prepared to withstand and rescue his country from the tyranny of John. He had already forced him to swear to observe the laws of Edward the Confessor, in other words the traditional liberties of the realm. When the baronage refused to sail for Poitou he compelled the king to deal with them not by arms but by process of law. But the work which he now undertook was far greater and weightier than this. The pledges of Henry the First had long been forgotten when the Justiciar brought them to light, but Langton saw the vast importance of such a precedent. At the close of the month he produced Henry's charter in a fresh gathering of barons at St. Paul's, and it was at once welcomed as a base for the needed reforms. From London Langton hastened to the king, whom he reached at Northampton on his way to attack the nobles of the north, and wrested from him a promise to bring his strife with them to legal judgement before assailing them in arms. With his allies gathering abroad John had doubtless no wish to be entangled in a long quarrel at home, and the Archbishop's mediation allowed him to withdraw with seeming dignity. After a demonstration therefore at Durham John marched hastily south again, and reached London in October. His Justiciar at once laid before him the claims of the Councils of St. Alban's and St. Paul's; but the death of Geoffry at this juncture freed him from the pressure which his minister was putting upon him. "Now, by God's feet," cried John, "I am for the first time King and Lord of England," and he entrusted the vacant justiciarship to a Poitevin, Peter des Roches, the Bishop of Winchester, whose temper was in harmony with his own. But the death of Geoffry only called the Archbishop to the front, and Langton at once demanded the king's assent to the charter

of Henry the First. In seizing on this charter as a basis for national action Langton showed a political ability of the highest order. The enthusiasm with which its recital was welcomed showed the sagacity with which the Archbishop had chosen his ground. From that moment the baronage was no longer drawn together in secret conspiracies by a sense of common wrong or a vague longing for common deliverance: they were openly united in a definite claim of national freedom and national law.

Bouvines

John could as yet only meet the claim by delay. His policy had still to wait for its fruits at Rome, his diplomacy to reap its harvest in Flanders, ere he could deal with England. From the hour of his submission to the Papacy his one thought had been that of vengeance on the barons who, as he held, had betrayed him; but vengeance was impossible till he should return a conqueror from the fields of France. It was a sense of this danger which nerved the baronage to their obstinate refusal to follow him over sea: but furious as he was at their resistance, the Archbishop's interposition condemned John still to wait for the hour of his revenge. In the spring of 1214 he crossed with what forces he could gather to Poitou, rallied its nobles round him, passed the Loire in triumph, and won back again Angers, the home of his race. At the same time Otto and the Count of Flanders, their German and Flemish knighthood strengthened by reinforcements from Boulogne as well as by a body of English troops under the Earl of Salisbury, threatened France from the north. For the moment Philip seemed lost: and yet on the fortunes of Philip hung the fortunes of English freedom. But in this crisis of her fate, France was true to herself and her king. From every borough of Northern France the townsmen marched to his rescue, and the village priests led their flocks to battle with the Church-banners flying at their head. The two armies met at the close of July near the bridge of Bouvines, between Lille and Tournay, and from the first the day went against the allies. The Flemish knights were the first to fly; then the Germans in the centre of the host were crushed by the overwhelming numbers of the French; last of all the English on the right of it were broken by a fierce onset of the Bishop of Beauvais who charged mace in hand and struck the Earl of Salisbury to the ground. The news of this complete overthrow reached John in the midst of his triumphs in the South, and scattered his hopes to the winds. He was at once deserted by the Poitevin

nobles; and a hasty retreat alone enabled him to return in October, baffled and humiliated, to his island kingdom.

Rising of the Baronage

His return forced on the crisis to which events had so long been drifting. The victory at Bouvines gave strength to his opponents. The open resistance of the northern barons nerved the rest of their order to action. The great houses who had cast away their older feudal traditions for a more national policy were drawn by the crisis into close union with the families which had sprung from the ministers and councillors of the two Henries. To the first group belonged such men as Saher de Quinci, the Earl of Winchester, Geoffrey of Mandeville, Earl of Essex, the Earl of Clare, Fulk Fitz-Warin, William Mallet, the houses of Fitz-Alan and Gant. Among the second group were Henry Bohun and Roger Bigod, the Earls of Hereford and Norfolk, the younger William Marshal, and Robert de Vere. Robert Fitz-Walter, who took the command of their united force, represented both parties equally, for he was sprung from the Norman house of Brionne, while the Justiciar of Henry the Second, Richard de Lucy, had been his grandfather. Secretly, and on the pretext of pilgrimage, these nobles met at St. Edmundsbury, resolute to bear no longer with John's delays. If he refused to restore their liberties they swore to make war on him till he confirmed them by Charter under the king's seal, and they parted to raise forces with the purpose of presenting their demands at Christmas. John, knowing nothing of the coming storm, pursued his policy of winning over the Church by granting it freedom of election, while he embittered still more the strife with his nobles by demanding scutage from the northern nobles who had refused to follow him to Poitou. But the barons were now ready to act, and early in January in the memorable year 1215 they appeared in arms to lay, as they had planned, their demands before the king.

John deserted

John was taken by surprise. He asked for a truce till Easter-tide, and spent the interval in fevered efforts to avoid the blow. Again he offered freedom to the Church, and took vows as a Crusader against whom war was a sacrilege, while he called for a general oath of allegiance and fealty from the whole body of his subjects. But month after month only showed the

king the uselessness of further resistance. Though Pandulf was with him, his vassalage had as yet brought little fruit in the way of aid from Rome; the commissioners whom he sent to plead his cause at the shire-courts brought back news that no man would help him against the charter that the barons claimed: and his efforts to detach the clergy from the league of his opponents utterly failed. The nation was against the king. He was far indeed from being utterly deserted. His ministers still clung to him, men such as Geoffrey de Lucy, Geoffrey de Furnival, Thomas Basset, and William Briwere, statesmen trained in the administrative school of his father and who, dissent as they might from John's mere oppression, still looked on the power of the Crown as the one barrier against feudal anarchy: and beside them stood some of the great nobles of royal blood, his father's bastard Earl William of Salisbury, his cousin Earl William of Warenne, and Henry Earl of Cornwall, a grandson of Henry the First. With him too remained Ranulf, Earl of Chester, and the wisest and noblest of the barons, William Marshal the elder, Earl of Pembroke. William Marshal had shared in the rising of the younger Henry against Henry the Second, and stood by him as he died; he had shared in the overthrow of William Longchamp and in the outlawry of John. He was now an old man, firm, as we shall see in his after-course, to recall the government to the path of freedom and law, but shrinking from a strife which might bring back the anarchy of Stephen's day, and looking for reforms rather in the bringing constitutional pressure to bear upon the king than in forcing them from him by arms.

John yields

But cling as such men might to John, they clung to him rather as mediators than adherents. Their sympathies went with the demands of the barons when the delay which had been granted was over and the nobles again gathered in arms at Brackley in Northamptonshire to lay their claims before the King. Nothing marks more strongly the absolutely despotic idea of his sovereignty which John had formed than the passionate surprise which breaks out in his reply. "Why do they not ask for my kingdom?" he cried. "I will never grant such liberties as will make me a slave!" The imperialist theories of the lawyers of his father's court had done their work. Held at bay by the practical sense of Henry, they had told on the more headstrong nature of his sons. Richard and John both held with Glanvill that the will of the prince was the law of the land; and to fetter that will by the

customs and franchises which were embodied in the barons' claims seemed to John a monstrous usurpation of his rights. But no imperialist theories had touched the minds of his people. The country rose as one man at his refusal. At the close of May London threw open her gates to the forces of the barons, now arrayed under Robert Fitz-Walter as "Marshal of the Army of God and Holy Church." Exeter and Lincoln followed the example of the capital; promises of aid came from Scotland and Wales; the northern barons marched hastily under Eustace de Vesci to join their comrades in London. Even the nobles who had as yet clung to the king, but whose hopes of conciliation were blasted by his obstinacy, yielded at last to the summons of the "Army of God." Pandulf indeed and Archbishop Langton still remained with John, but they counselled, as Earl Ranulf and William Marshal counselled, his acceptance of the Charter. None in fact counselled its rejection save his new Justiciar, the Poitevin Peter des Roches, and other foreigners who knew the barons purposed driving them from the land. But even the number of these was small; there was a moment when John found himself with but seven knights at his back and before him a nation in arms. Quick as he was, he had been taken utterly by surprise. It was in vain that in the short respite he had gained from Christmas to Easter he had summoned mercenaries to his aid and appealed to his new suzerain, the Pope. Summons and appeal were alike too late. Nursing wrath in his heart, John bowed to necessity and called the barons to a conference on an island in the Thames, between Windsor and Staines, near a marshy meadow by the river side, the meadow of Runnymede. The king encamped on one bank of the river, the barons covered the flat of Runnymede on the other. Their delegates met on the 15th of June in the island between them, but the negotiations were a mere cloak to cover John's purpose of unconditional submission. The Great Charter was discussed and agreed to in a single day.

The Great Charter

Copies of it were made and sent for preservation to the cathedrals and churches, and one copy may still be seen in the British Museum, injured by age and fire, but with the royal seal still hanging from the brown, shrivelled parchment. It is impossible to gaze without reverence on the earliest monument of English freedom which we can see with our own eyes and touch with our own hands, the great Charter to which from age to age men have looked back as the groundwork of English liberty. But in itself the

Charter was no novelty, nor did it claim to establish any new constitutional principles. The Charter of Henry the First formed the basis of the whole, and the additions to it are for the most part formal recognitions of the judicial and administrative changes introduced by Henry the Second. What was new in it was its origin. In form, like the Charter on which it was based, it was nothing but a royal grant. In actual fact it was a treaty between the whole English people and its king. In it England found itself for the first time since the Conquest a nation bound together by common national interests, by a common national sympathy. In words which almost close the Charter, the "community of the whole land" is recognized as the great body from which the restraining power of the baronage takes its validity. There is no distinction of blood or class, of Norman or not Norman, of noble or not noble. All are recognized as Englishmen, the rights of all are owned as English rights. Bishops and nobles claimed and secured at Runnymede the rights not of baron and churchman only but those of freeholder and merchant, of townsman and villein. The provisions against wrong and extortion which the barons drew up as against the king for themselves they drew up as against themselves for their tenants. Based too as it professed to be on Henry's Charter it was far from being a mere copy of what had gone before. The vague expressions of the old Charter were now exchanged for precise and elaborate provisions. The bonds of unwritten custom which the older grant did little more than recognize had proved too weak to hold the Angevins; and the baronage set them aside for the restraints of written and defined law. It is in this way that the Great Charter marks the transition from the age of traditional rights, preserved in the nation's memory and officially declared by the Primate, to the age of written legislation, of Parliaments and Statutes, which was to come.

Its opening indeed is in general terms. The Church had shown its power of self-defence in the struggle over the interdict, and the clause which recognized its rights alone retained the older and general form. But all vagueness ceases when the Charter passes on to deal with the rights of Englishmen at large, their right to justice, to security of person and property, to good government. "No freeman," ran a memorable article that lies at the base of our whole judicial system, "shall be seized or imprisoned, or dispossessed, or outlawed, or in any way brought to ruin: we will not go against any man nor send against him, save by legal judgement of his peers

or by the law of the land." "To no man will we sell," runs another, "or deny, or delay, right or justice." The great reforms of the past reigns were now formally recognized; judges of assize were to hold their circuits four times in the year, and the King's Court was no longer to follow the king in his wanderings over the realm but to sit in a fixed place. But the denial of justice under John was a small danger compared with the lawless exactions both of himself and his predecessor. Richard had increased the amount of the scutage which Henry the Second had introduced, and applied it to raise funds for his ransom. He had restored the Danegeld, or land-tax, so often abolished, under the new name of "carucage," had seized the wool of the Cistercians and the plate of the churches, and rated movables as well as land. John had again raised the rate of scutage, and imposed aids, fines, and ransoms at his pleasure without counsel of the baronage. The Great Charter met this abuse by a provision on which our constitutional system rests. "No scutage or aid [other than the three customary feudal aids] shall be imposed in our realm save by the common council of the realm"; and to this Great Council it was provided that prelates and the greater barons should be summoned by special writ, and all tenants in chief through the sheriffs and bailiffs, at least forty days before. The provision defined what had probably been the common usage of the realm; but the definition turned it into a national right, a right so momentous that on it rests our whole Parliamentary life. Even the baronage seem to have been startled when they realized the extent of their claim; and the provision was dropped from the later issue of the Charter at the outset of the next reign. But the clause brought home to the nation at large their possession of a right which became dearer as years went by. More and more clearly the nation discovered that in these simple words lay the secret of political power. It was the right of self-taxation that England fought for under Earl Simon as she fought for it under Hampden. It was the establishment of this right which established English freedom.

The rights which the barons claimed for themselves they claimed for the nation at large. The boon of free and unbought justice was a boon for all, but a special provision protected the poor. The forfeiture of the freeman on conviction of felony was never to include his tenement, or that of the merchant his wares, or that of the countryman, as Henry the Second had long since ordered, his wain. The means of actual livelihood were to be left even to the worst. The seizure of provisions, the exaction of forced labour,

by royal officers was forbidden; and the abuses of the forest system were checked by a clause which disafforested all forests made in John's reign. The under-tenants were protected against all lawless exactions of their lords in precisely the same terms as these were protected against the lawless exactions of the Crown. The towns were secured in the enjoyment of their municipal privileges, their freedom from arbitrary taxation, their rights of justice, of common deliberation, of regulation of trade. "Let the city of London have all its old liberties and its free customs, as well by land as by water. Besides this, we will and grant that all other cities, and boroughs, and towns, and ports, have all their liberties and free customs." The influence of the trading class is seen in two other enactments by which freedom of journeying and trade was secured to foreign merchants, and an uniformity of weights and measures was ordered to be enforced throughout the realm.

Innocent annuls the Charter

There remained only one question, and that the most difficult of all; the question how to secure this order which the Charter established in the actual government of the realm. It was easy to sweep away the immediate abuses; the hostages were restored to their homes, the foreigners banished by a clause in the Charter from the country. But it was less easy to provide means for the control of a king whom no man could trust. By the treaty as settled at Runnymede a council of twenty-five barons were to be chosen from the general body of their order to enforce on John the observance of the Charter, with the right of declaring war on the king should its provisions be infringed, and it was provided that the Charter should not only be published throughout the whole country but sworn to at every hundred-mote and town-mote by order from the king. "They have given me five-and-twenty over-kings," cried John in a burst of fury, flinging himself on the floor and gnawing sticks and straw in his impotent rage. But the rage soon passed into the subtle policy of which he was a master. After a few days he left Windsor; and lingered for months along the southern shore, waiting for news of the aid he had solicited from Rome and from the Continent. It was not without definite purpose that he had become the vassal of the Papacy. While Innocent was dreaming of a vast Christian Empire with the Pope at its head to enforce justice and religion on his under-kings, John believed that the Papal protection would enable him to rule as tyrannically as he would. The thunders of the Papacy were to be ever

at hand for his protection, as the armies of England are at hand to protect the vileness and oppression of a Turkish Sultan or a Nizam of Hyderabad. His envoys were already at Rome, pleading for a condemnation of the Charter. The after action of the Papacy shows that Innocent was moved by no hostility to English freedom. But he was indignant that a matter which might have been brought before his court of appeal as overlord should have been dealt with by armed revolt, and in this crisis both his imperious pride and the legal tendency of his mind swayed him to the side of the king who submitted to his justice. He annulled the Great Charter by a bull in August, and at the close of the year excommunicated the barons.

Landing of Lewis

His suspension of Stephen Langton from the exercise of his office as Primate was a more fatal blow. Langton hurried to Rome, and his absence left the barons without a head at a moment when the very success of their efforts was dividing them. Their forces were already disorganized when autumn brought a host of foreign soldiers from over sea to the king's standard. After starving Rochester into submission John found himself strong enough to march ravaging through the Midland and Northern counties, while his mercenaries spread like locusts over the whole face of the land. From Berwick the king turned back triumphant to coop up his enemies in London while fresh Papal excommunications fell on the barons and the city. But the burghers set Innocent at defiance. "The ordering of secular matters appertaineth not to the Pope," they said, in words that seem like mutterings of the coming Lollardism; and at the advice of Simon Langton, the Archbishop's brother, bells swung out and mass was celebrated as before. Success however was impossible for the undisciplined militia of the country and the towns against the trained forces of the king, and despair drove the barons to listen to Fitz-Walter and the French party in their ranks, and to seek aid from over sea. Philip had long been waiting the opportunity for his revenge upon John. In the April of 1216 his son Lewis accepted the crown in spite of Innocent's excommunications, and landed soon after in Kent with a considerable force. As the barons had foreseen, the French mercenaries who constituted John's host refused to fight against the French sovereign and the whole aspect of affairs was suddenly reversed. Deserted by the bulk of his troops, the king was forced to fall rapidly back on the Welsh Marches, while his rival entered London and received the submission

of the larger part of England. Only Dover held out obstinately against Lewis. By a series of rapid marches John succeeded in distracting the plans of the barons and in relieving Lincoln; then after a short stay at Lynn he crossed the Wash in a fresh movement to the north. In crossing however his army was surprised by the tide, and his baggage with the royal treasures washed away. Fever seized the baffled tyrant as he reached the Abbey of Swineshead, his sickness was inflamed by a gluttonous debauch, and on the 19th of October John breathed his last at Newark.

END OF VOL. I.

*** END OF THE PROJECT GUTENBERG EBOOK HISTORY OF THE
ENGLISH PEOPLE, VOLUME I ***

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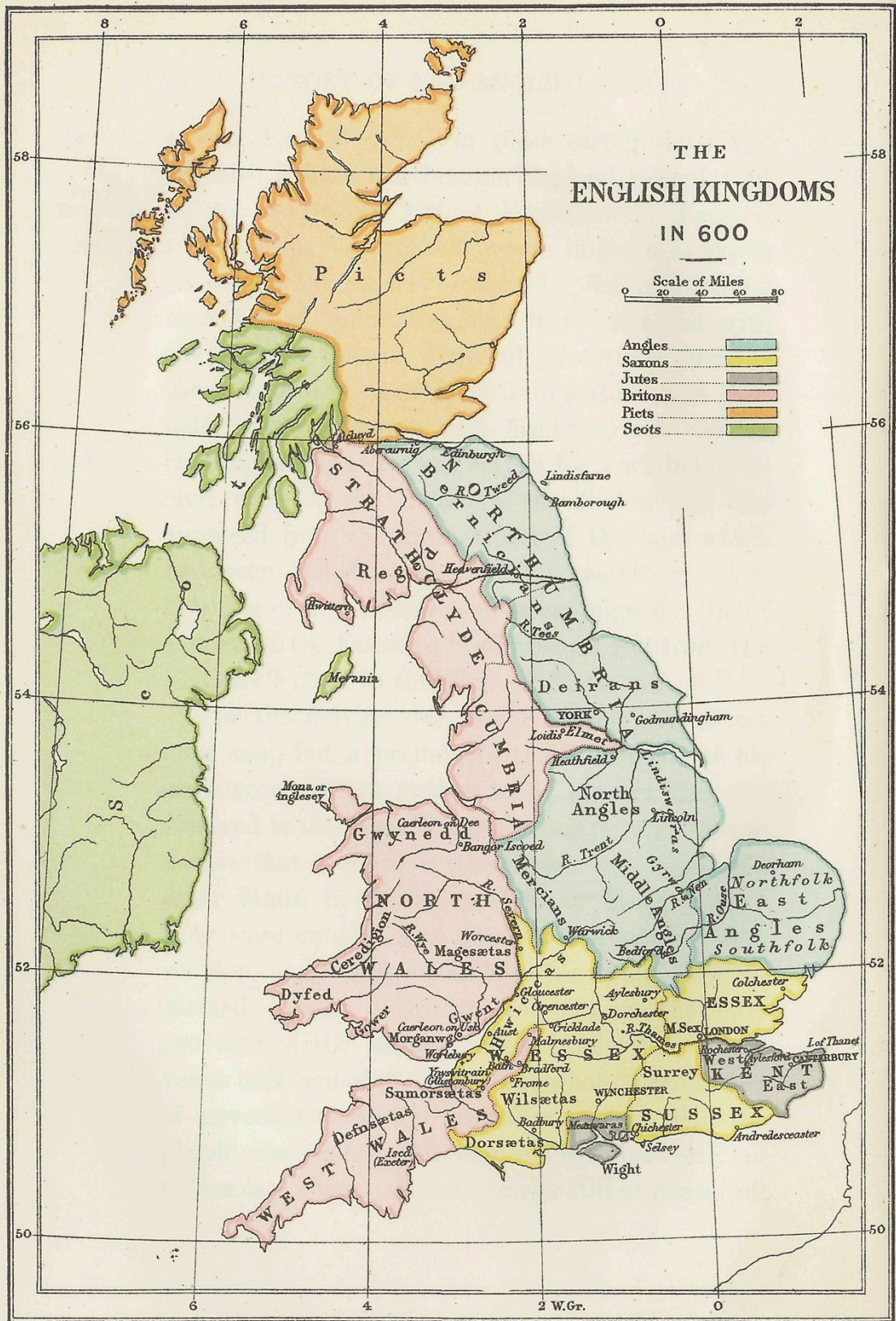
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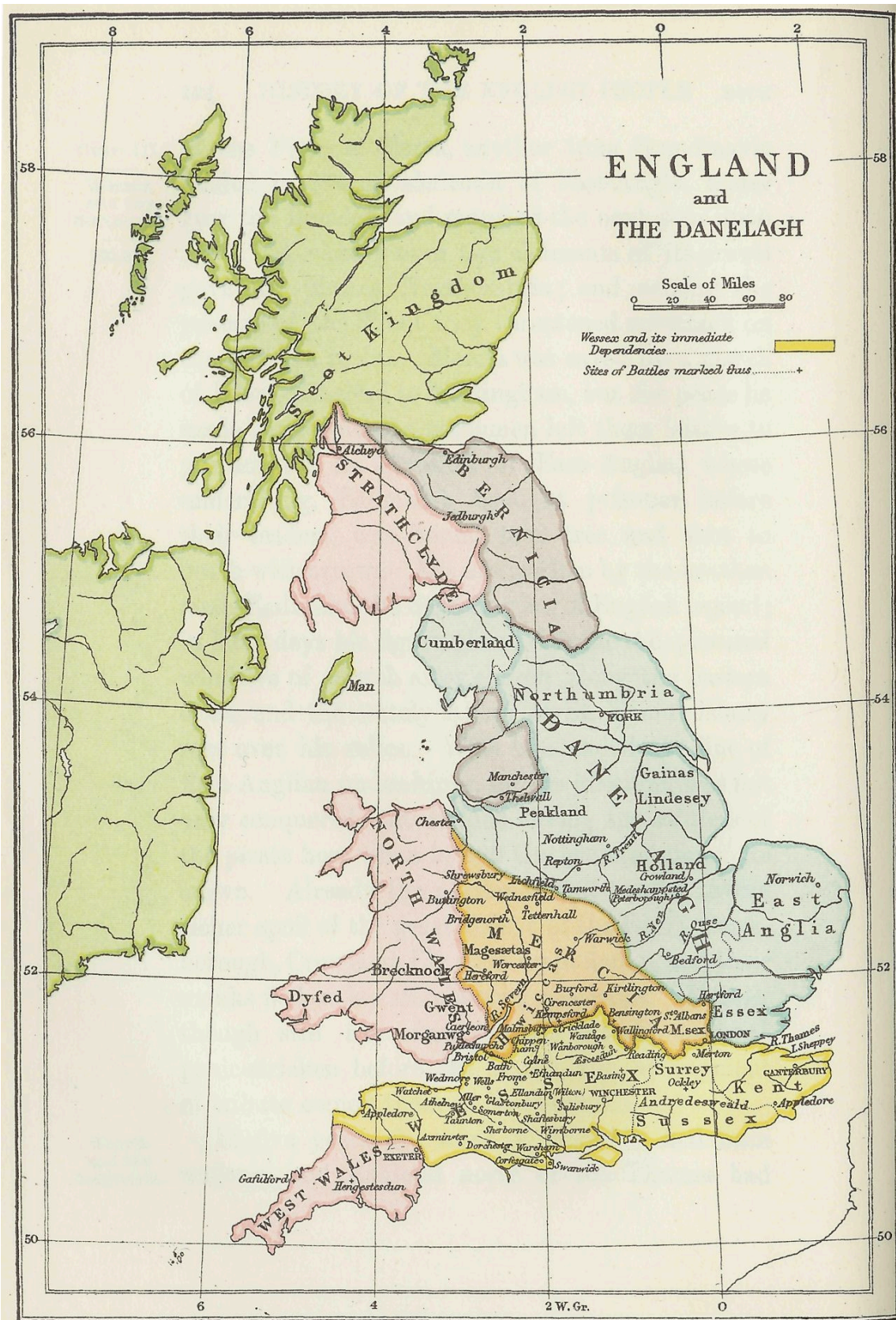
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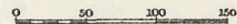
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THE DOMINIONS OF
THE ANGEVINS

Scale of Stat. Miles



N o r t h	S e a
-----------	-------

Irish Channel

English Channel
Cherbourg

B a y	o f	
B i s c a y		

A map of the Malay Peninsula and Sumatra, with the word 'EMPIRE' printed vertically across the center. The map shows the outlines of the landmasses and some internal geographical features like rivers and coastlines. The word 'EMPIRE' is written in large, bold, capital letters, oriented vertically from top to bottom.

R. Elbe

N. Sea

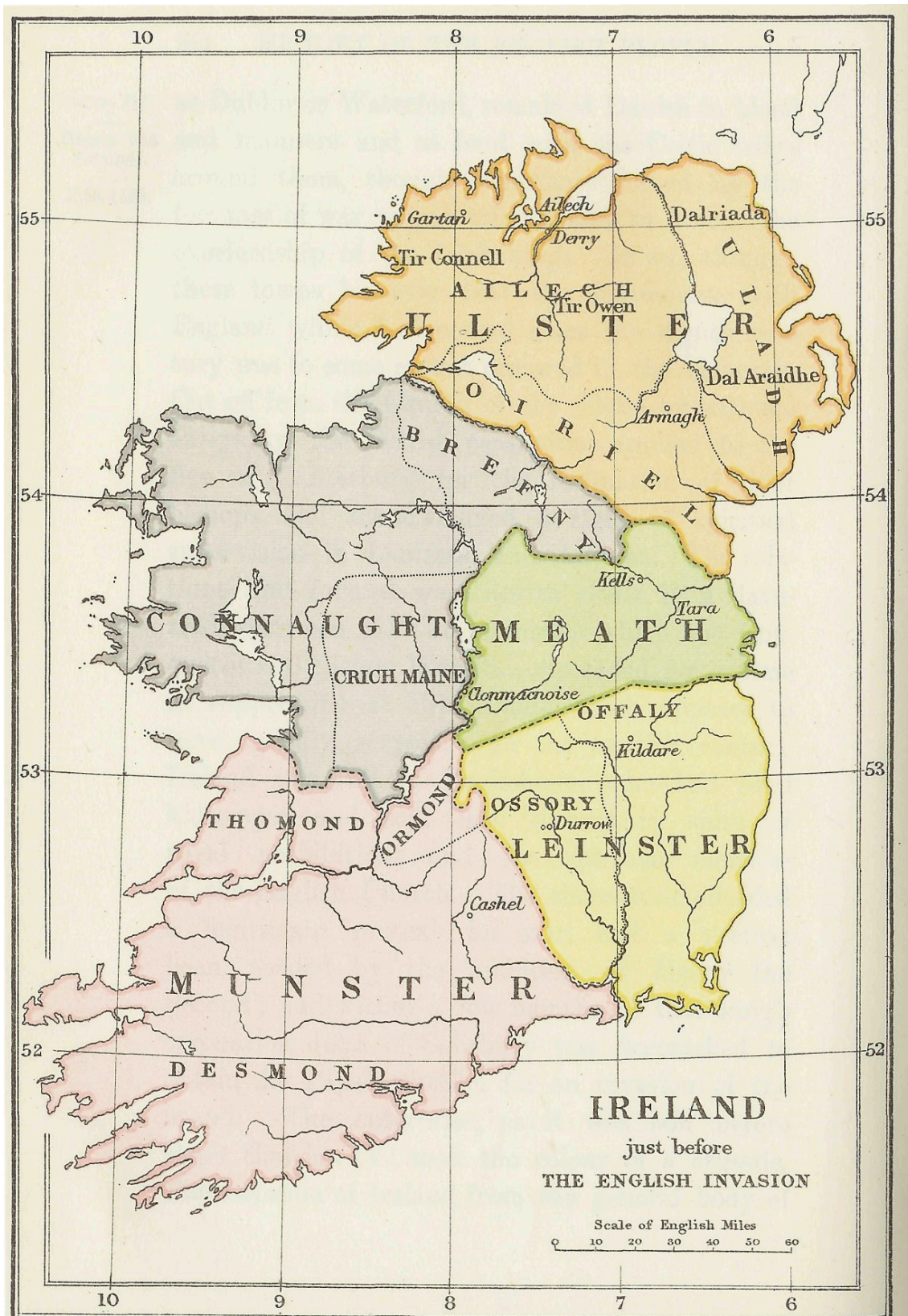
C. of

Marseille

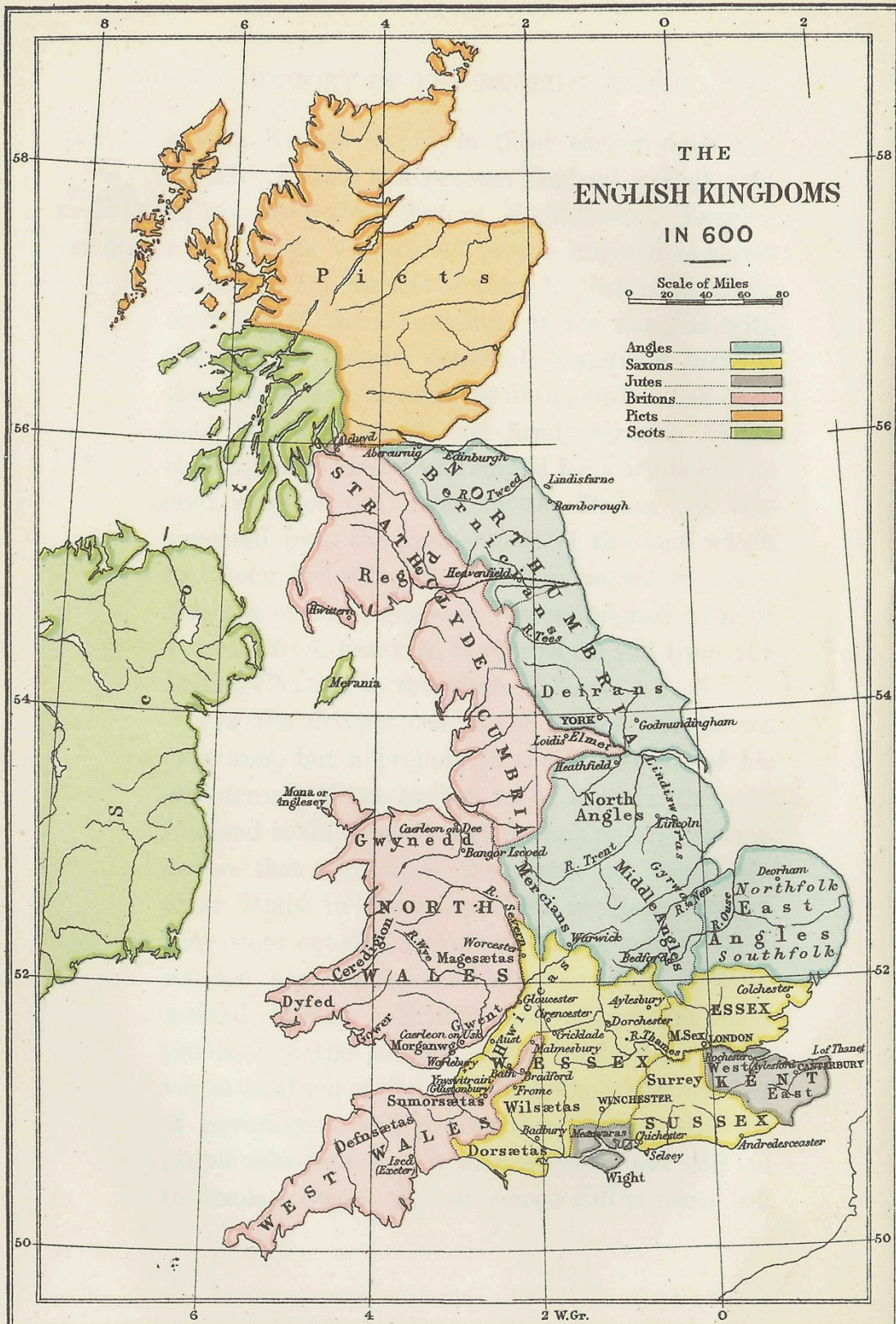
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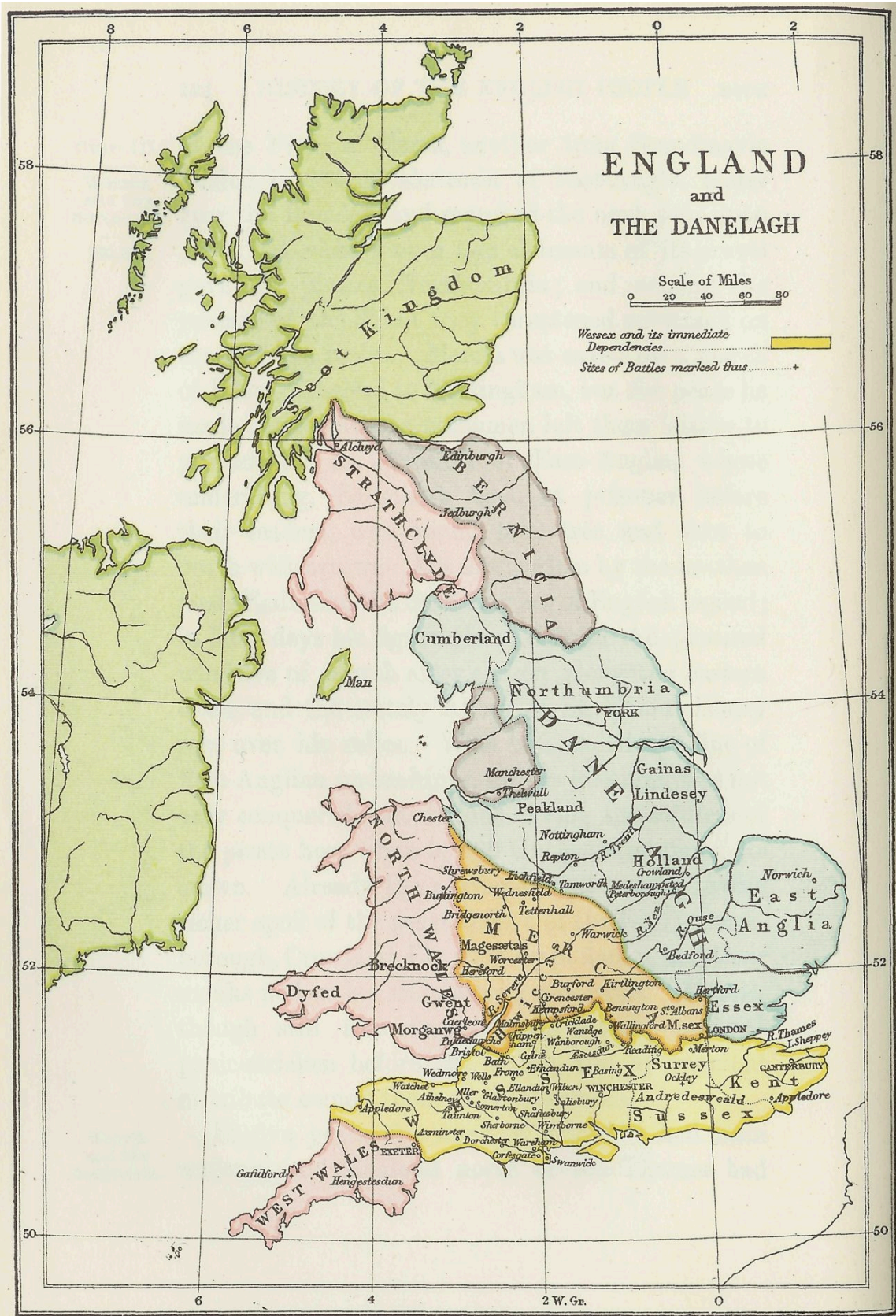
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THE DOMINIONS OF THE ANGEVINS

Scale of Stat. Miles
0 50 100 150

North Sea

Irish Channel

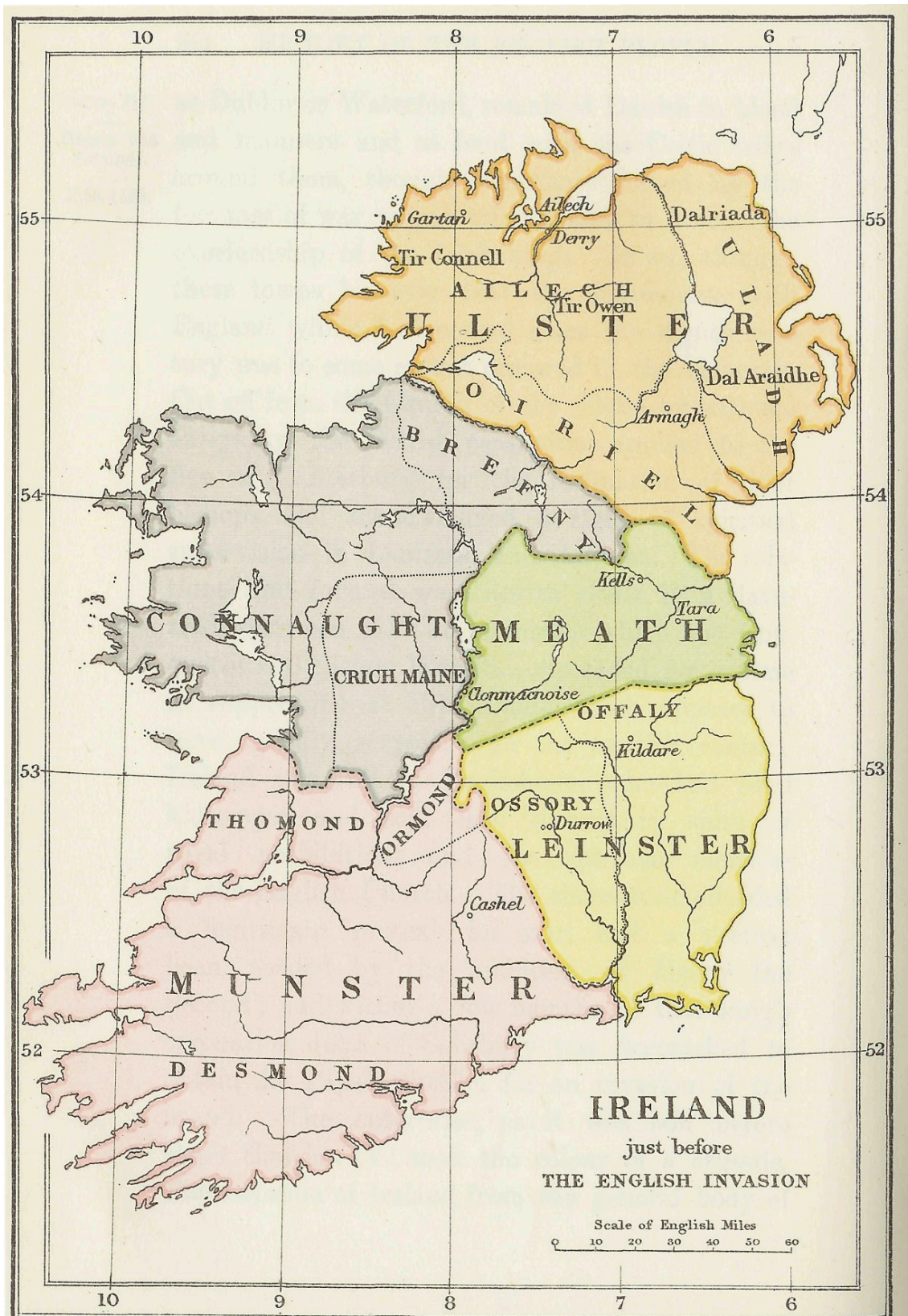
English Channel

Bay of Biscay

Counties of the Angevin Empire:
 - **Normandy**: Caen, Avranches, Dol, Rennes, Mortain, Falaise.
 - **Maine**: Le Mans.
 - **Anjou**: Angers, Fontevraud, Chinon.
 - **Poitou**: Nantes, La Roche-sur-Yon.
 - **Aquitaine**: Bordeaux, Limoges, Bergerac.
 - **Gascony**: Bayonne, Dax.
 - **County of Toulouse**: Toulouse.
 - **Provence**: Arles, Marseille.
 - **Brittany**: Rennes, Nantes.
 - **Brittany**: Quimper, Brest.
 - **Normandy**: Cherbourg, Avranches.
 - **Normandy**: Caen, Falaise.
 - **Normandy**: Mortain, Dol.
 - **Normandy**: Rennes, Nantes.
 - **Normandy**: Angers, Fontevraud.
 - **Normandy**: Chinon, Poitiers.
 - **Normandy**: Limoges, Bergerac.
 - **Normandy**: Bordeaux, Bayonne.
 - **Normandy**: Toulouse, Arles.
 - **Normandy**: Marseille, Provence.

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